

**Moral messages, ethical
responses: punishment and
self-governance among men
serving life sentences for
murder**

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This PhD uses theoretical and conceptual resources from the anthropology of morality and ethics to explore moral communication in the contemporary life sentence, as seen through the ethical lives of men serving life sentences for murder.

Empirically, it describes three things. First, moral communication *about murder*: what a conviction for this crime and the experience of imprisonment for life ‘said’ to prisoners about who they were and whom they ought to become. Second, moral communication *within a life course*: how people with different pre-prison experiences reacted to the rupture in identity imposed by the sanction. Third, moral communication *through the language of risk*: an unclear (though dominant) medium which imposed demands some lifers found a comfortable ‘fit’, but others did not.

These descriptions draw on interview and documentary data relating to forty-eight individuals: thirty in a long-term category-B prison, and eighteen in a category-D or ‘open’ prison focused on resettlement. All serving mandatory life sentences for murder, they were otherwise a heterogeneous group: convicted in diverse circumstances, aged from their teens to their seventies, and sentenced between 1983 and 2017. Their minimum terms ranged in length from less than ten to thirty years, and they had served between 7% and 250% of these minimums. Both in their backgrounds and in their custodial experiences, then, they formed a broad and diverse sample, affording a wide range of perspectives on the theoretical and substantive questions addressed by the research.

The PhD adds theoretical depth and empirical detail to a growing literature on experiences of long-term and life imprisonment. It also comments on some implications of this empirical material for how retributive penal theorists have understood the *aims* of punishment—in particular, whether long-term imprisonment succeeds in communicating to prisoners what is *wrong* (as opposed to merely *harmful*) about taking life. It argues, overall, that the mandatory life sentence as currently delivered is a morally incoherent sanction. On the one hand, it is too individualised to convey clear moral norms or to show meaningful solidarity with those harmed and wronged by murders. On the

other, it is not individualised enough to communicate effectively with murderers about the ethical responses that their actions might warrant.

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About

These pages contain my PhD thesis, formatted as a web book. The version of record—a PDF formatted as per university requirements—is available from the University of Cambridge [repository](#).

More information about my work is available on [my website](#).

Ben Jarman June 2025

Frontmatter

Abbreviations

ATB	Attitudes, Thinking and Behaviour, a department of HMP Swaleside tasked with delivering OBPs
CALM	Controlling Anger and Learning to Manage it, an OBP
CCRC	Criminal Cases Review Commission, a body tasked with referring possible miscarriages of justice to the appeals courts
DHL	Logistics firm which holds the supplier contract for prisoner canteen orders, and operates workshops in both fieldwork prisons
DSPD	Dangerous and Severe Personality Disorder, a superseded but still colloquial term used to describe both prisoners with this diagnosis and the specialist prison units used to treat them; see PIPE
EBM	Enhanced Behaviour Monitoring, a supervision measure used in open prisons
ETE	Education, Training, and Employment
ETS	Enhanced Thinking Skills, an OBP
FIFA	A football-themed video game (referred to in interview quotes from Swaleside)
HMP	His Majesty's Prison
HMPHS	His Majesty's Prison & Probation Service
IEP	Incentives and Earned Privileges, the now-superseded but still-colloquial name for behavioural incentives schemes used by all prisons
IPP	Imprisonment for Public Protection, a form of indeterminate sentence
LTHSE	Long-term and High-Security Estate, an organisational unit of HMPPS
LTI	Long-Term Imprisonment
LTP	Long-Term Prisoner
NHS	National Health Service
NRC	National Research Committee of HMPPS

OASys Offender Assessment System, the overarching risk and needs assessment tool used by HMPPS

OBP Offending Behaviour Programme, a risk-reducing intervention used by HMPPS

OGP OASys General reoffending Predictor, an actuarial risk assessment methodology employing static and dynamic risk factors

OGRS Revised Offender Group Reconviction Score, an actuarial risk assessment methodology employing only static risk factors

OVP OASys Violence Predictor, an actuarial risk assessment methodology employing static and dynamic risk factors

OMU Offender Management Unit—the department in all prisons tasked with risk assessment and management

P- National Offender Management Information System, a
or prison database

C-
NOMIS

PE Physical Education

PIPE Psychologically Informed Planned Environment, a form of prison treatment unit combining prison and NHS provision, originally pioneered through DSPD provision, and operating Progression or Pathways regimes in numerous prisons including HMP Swaleside

PNC Police National Computer, the national criminal records database

POM Prison Offender Manager, a role for staff in OMUs

PQ Pain Quotient (see O'Donnell 2014)

RC1 Security recategorisation form used by OMUs

ROTL Release on Temporary Licence, aka temporary release from prison, usually for resettlement purposes

RoSH Risk of Serious Harm, a risk assessment methodology employing static and dynamic risk factors

RR Risk Reduction or Risk-Reducing

SMART Specific, Measurable, Achievable, Realistic, and Time-Bound, a target-setting methodology required by sentence planning policies

TC Therapeutic Community, a holistic approach to long-term RR work and a metonym for prison units where this work takes place

TSP	Thinking Skills Programme, an OBP
UK	United Kingdom
US	United States

Epigraph

In true community we will not choose our companions, for our choices are so often limited by self-serving motives. Instead, our companions will be given to us by grace. Often they will be persons who will upset our settled view of self and world. In fact, we might define true community as that place where the person you least want to live with always lives.

Parker J. Palmer, *A place called community* (1977 p. 20)

[I]f we were, in the words of Bryan Stevenson, to allow ourselves to get proximate, we might learn, in a much deeper way, about the lives of others.

Reuben J. Miller, *Halfway home: race, punishment, and the afterlife of mass incarceration* (2021, p. loc. 89.0%)

Thesis

Punishment and moral obligation

Introducing core themes

This chapter introduces the thesis using the example of one controversial prison release in 2020 to set out one of the major themes addressed by the PhD. The chapter describes the circumstances of the release—the parole release of a life-sentenced prisoner which was unsuccessfully opposed by his victim’s mother. It then sets this specific example, and the questions about prison release that it poses, in the wider context of UK life imprisonment, noting both its impressive overall scale, and the fact that many who serve life sentences appear to find progressing through the sentence, and securing release, difficult. A final section offers an outline of subsequent chapters.

In February 2020, Ian Simms, a life-sentenced prisoner at HMP Leyhill, was preparing for release. His conviction in 1988, for abducting and murdering Helen McCourt, was one of the first in the UK secured without the victim’s body having been found. DNA fingerprinting, and Simms’s lies about his whereabouts when Helen disappeared, had convinced the jury of his guilt. Simms maintained his innocence throughout ([Macur and Chamberlain 2020](#)), and a parole panel decided he could be safely released ([Calvert-Smith 2020](#)).

His release had a high public profile because Helen’s mother, Marie McCourt, had campaigned against it for many years. Her key demand was that Simms reveal the whereabouts of Helen’s body. In July 2019, Justice Secretary David Gauke had indicated support for the general principle behind this demand, and ‘Helen’s Law’ ([UK Parliament 2020a](#)) was passed

in 2020 with government support. It required the Parole Board to factor in any failure to disclose the whereabouts of victims' remains into convicted murderers' release decisions (Macur and Chamberlain 2020 para. 29).

'Helen's Law' passed after Simms's release. Victims' groups called it "toothless" (Tanner 2020) and legal commentators castigated an "empty gesture" (Rozenberg 2020). Mrs McCourt had established the *general* principle, but her wish was *specific*: that *Simms* should not be released without disclosing Helen's location. But even politicians could not block Simms's release. Litigation in the 1990s had established that release decisions were, in effect, sentencing decisions, and hence a judicial power strictly protected from executive interference (Padfield 2002). The Board's release test was clear, and focused on risk; any retributive aims of the sentence were held to have been satisfied by the life sentence's 'tariff', or 'minimum term', and any moral obligations Simms might owe his victims were not the Board's concern, except insofar as they related to risk.

Although Helen's Law was not in effect, the Board *had already* carefully considered the risks posed by Simms's non-disclosure (Macur and Chamberlain 2020), and both the Board's new Reconsideration Mechanism (BBC News 2020), and Mrs McCourt's judicial review application to the High Court were rejected, for this reason. They could have succeeded only if the Board had broken the law, acted unreasonably, or exceeded its powers: Mrs McCourt's litigation was doomed to fail from the start, as predictably as the outraged headlines which followed when, in a bitter irony, she was ordered to pay Simms's legal costs from crowdfunding she had raised (Maxwell 2020). Simms died in 2022. He had neither admitted the murder, been recalled to prison, nor disclosed the whereabouts of Helen's body (BBC News 2022). While his name was in the headlines, it was also on the grapevine at Leyhill, where I was, at the time, interviewing lifers like him for this PhD.¹

¹Throughout this thesis, I refer to life-sentenced prisoners as 'lifers', for brevity, and because this is the term participants in this research most commonly used to identify themselves as a group. Simms did not participate in this research.

Prison release and moral obligation

If prison release is a sentencing decision, then it is also morally communicative. By restoring liberty and citizenship (albeit in qualified forms) it confers a form of symbolic restoration, going beyond mere psychological change. Fergus McNeill (2012 p. 32) has commented that what he calls ‘moral rehabilitation’ must recognise that “redemption needs to be earned”: “an offender needs to pay back before s/he can trade up to a restored social position”.

Simms, having served far more than the minimum prison term, and being highly compliant with risk management measures, *had* ‘paid back’, in the limited, formal sense required by the system. He presumably heard, and complied with, moral messages about the kind of person he was and ought to become, efforts recognised, symbolically, through prison release. Mrs McCourt, however, saw things differently. Only Simms could enable her to lay her daughter to rest. His formal guilt obligated him to do so, and the state, having interposed itself in her conflict with him (Christie 1986), ought to have enforced the obligation, by imprisoning Simms pending a disclosure. From her perspective, the following assessment of Simms by the Parole Board must have seemed quite beside the point:

[Y]ou are now heavily invested in presenting yourself as someone [...] innocent of the index offence and in avoiding any behaviour which would be inconsistent with this presentation of yourself [...] we consider that there is no prospect of you disclosing the whereabouts of your victim even if we kept you in prison until you died. That view is supported by the evidence of the psychologists and is really the only sensible inference that can be drawn.

Parole Board decision letter, quoted in Macur and Chamberlain (2020 para. 21)

To Mrs McCourt, then, Simms’s release ought to have been impossible: 32 years of compliance had still not induced him to do the right thing. The state’s priority (risk management) trumped her indignation over a renewed wrong.

The case encapsulates core themes which this PhD addresses empirically, and which can be summarised as follows. How is it that prisoners like Simms can insist, apparently without contradiction, *both* that their punishment is wrongful, *and* that they have taken responsibility in every sense salient to their moral rehabilitation through release? Granted, Simms’s incoherent position—that he was not a murderer, and yet was responsible for managing the risks associated with his being a murderer—is not universal among lifers. But nor was it unique, as the following chapters show. A few participants in this research occupied the same position; others opted to take responsibility for their crimes and their risk, but in ways sometimes diverging quite far from the ideals of meek contrition which so dominate lay opinion.

Most fundamentally, this PhD describes and explains how these varying styles of moral responsibility are produced by a penal system in which moral communication about the offence of murder (and the obligations arising from it) can appear inconsistent, incoherent, and unmoored from public sentiment. Its empirical argument, concisely, is that lifers in the fieldwork prisons who wished to represent themselves as morally accountable faced two major demands:

1. to reconcile themselves to the official view of them as residually dangerous; and
2. to comply with measures aiming to manage this risk.

Yet to Mrs McCourt’s chagrin, compliance with these expectations was not incompatible with a public claim of actual innocence, nor with ducking some of the responsibilities attendant on formal guilt.

The UK and life imprisonment

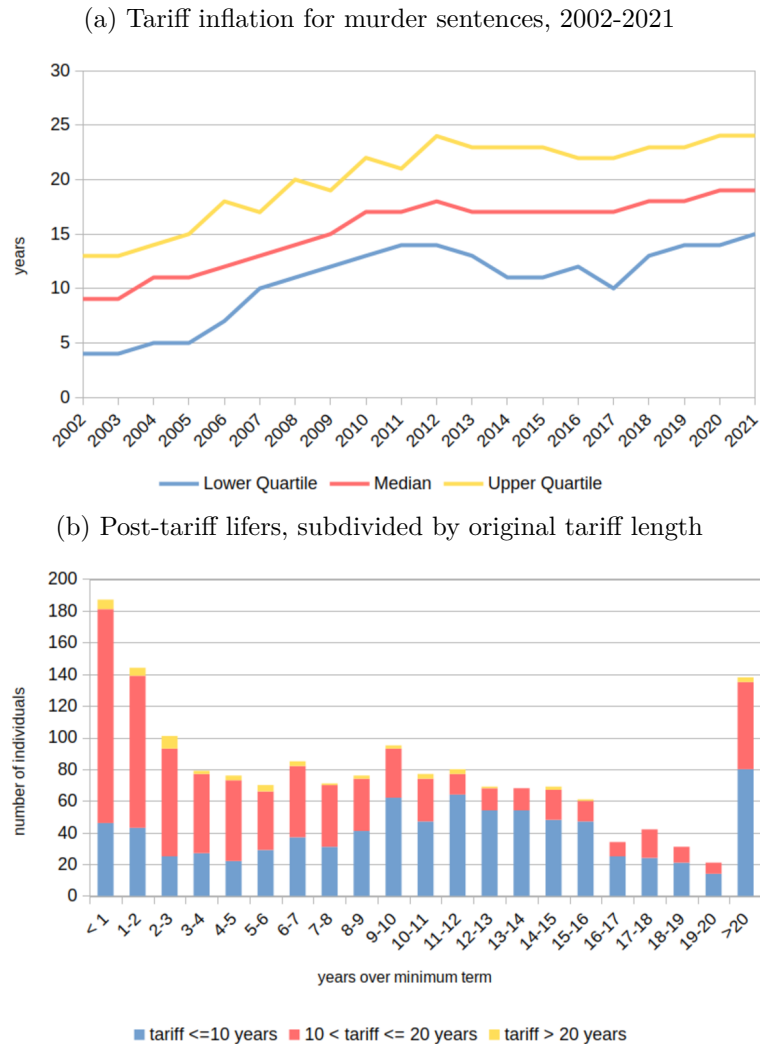
The impressive scale of UK life imprisonment, and its centrality to criminal punishment here, mean these are important questions. Research by van Zyl Smit and Appleton (2019 pp. 340–7) shows that the UK imprisons by far the largest number of lifers in Western Europe: around a third of the continental total.

Throughout the UK, life sentences (especially those imposed for murder) increasingly involve periods in custody approaching or surpassing Simms’s 32 years. Figure 1 plots data describing this shift. In 1a we see the inflating minimum terms deemed necessary to punish murder in England & Wales: the median grew from nine to nineteen years between 2002 and 2021. Such ‘life-trashing’ (Simon 2012) sentences have not registered with the public, who continue to believe in an opposite shift, towards greater leniency (Mitchell and Roberts 2012a, 2012b; Roberts *et al.* 2022). Sentences are not only inflating at the front end, but also at the back. This can be seen in the number of ‘post-tariff’ lifers (1b), a decent measure of how steep is the path to release. The 1,674 prisoners held over-tariff in England & Wales in late 2020 constituted 24% of the lifer population (6,954) around that time. 690 (41% of the over-tariff group) were imprisoned ten or more years after tariff expiry (Ministry of Justice 2020b, 2021a). Excepting recalled prisoners, post-tariff lifers imprisoned in 2021 were a median of 96 months (eight years) over the minimum term (Ministry of Justice 2021b). Fully 50% of the entire over-tariff population (841) originally received tariffs of ten years or less, including more than half of those still imprisoned twenty years post-tariff. On this evidence, proportionality—which links the seriousness of the offence to the severity of the sentence, a key indicator of penal legitimacy in retributive sentencing theory—is weak. Life sentences are increasingly severe *at both ends*, creating a class of extremely, even permanently, excluded citizens.

Existing research hints at the reasons. Liebling *et al.* (2011), among others, raised concerns that the institutional underpinnings of sentence progression are not functioning as they should, with attitudes towards long-sentenced prisoners marked by a pervasive, dehumanising distrust. Others, such as Armstrong (2020), have argued that rehabilitative practices originally intended to safeguard prisoners’ rights are now increasingly rationed: under fiscal austerity, progression and intervention are available only to those who merit them. The focus has shifted, subtly: rather than upholding a right to be rehabilitated following punishment, states now ‘responsibilise’ rehabilitation. Prisoners’ rights are not inalienable, but earned; and the impossibility of repaying the ‘debt’ incurred by a murder (see Levins *et al.*

2021) makes it particularly difficult for mandatory lifers to ‘earn’ rehabilitation.

Figure 1: The increasing ‘front-door’ and ‘back-door’ severity of life sentences in England & Wales²



As an empirical question, however, it remains unclear how lifers approach these questions as individuals. What happens to them in prison, ethically speaking? How do they hold themselves accountable? Do prisons promote accountability, and if so in

²Data from parliamentary questions (Ministry of Justice 2020b, 2022a).

what form? These are under-researched questions. Recent studies have broached the topic, but often without systematic attention to the nature of the offence or the obligations which prisoners perceive in it. The Simms case demonstrates that even a formal, compliant form of accountability can fail in other moral registers. When it comes to the release debate and the ethical worlds inhabited by lifers, ‘getting the description right’ (Liebling 2015) can generate a better conversation about their fitness for release. This PhD aims for such a description.

The remainder of this dissertation characterises existing research, and sets out the basis on which I contribute to it.

Outline of the dissertation

Chapter 2 reviews existing research literature. It asks: what are ‘ethical lives’ and why might we consider convicted murderers to have them? It also considers what the criminology and law of murder reveal about its moral and cultural status, and what research on long-term imprisonment can already tell us about how life and long sentences affect ethical life. In reviewing existing research, it identifies sources of moral communication during a long prison sentence, and asks how life imprisonment and the life course might be related. Finally, the chapter turns to anthropological texts from which its core concept of ‘ethical life’ is borrowed, identifying conceptual resources to be deployed subsequently in the empirical chapters.

Chapter 3 reports on the research design and methods, the two fieldwork sites, the research questions, the sampling strategy, and the sample itself. It describes the interview and documentary data used later in the dissertation. It then discusses how the research was affected by the murder of a friend during fieldwork, at an event where I was present. This experience cast a long shadow over the project, but also sensitised me to facets of the topic I had not been keenly aware of before.

Three empirical chapters follow, each with its own theme. Chapters 4 and 5 operate in tandem. Each examines one half of the ‘offence-time nexus’ which Crewe *et al.* (2020 p. 22) theorised as the principal driver of personality change among

people serving life sentences for murder. [Chapter 4](#) addresses the first half (“the nature of the offence of murder”), and [Chapter 5](#) the other (“the sheer amount of time that they have to serve”). Both use interview and documentary data to question whether the same sentence imposed for the same offence necessarily exerts the same adaptive pressures on any two given lifers. The approach used has a long history in prison sociology: it is to describe systematically prisoners’ ‘imported’ characteristics, using the description to add texture and nuance (or sometimes, contradiction) to an earlier theorisation in which imprisonment ‘flattens’ difference and exerts consistent effects. For the present sample, both ‘the nature of the offence of murder’ and ‘the sheer amount of time they had to serve’ were quite variable, experientially speaking. This, I show, affected how they perceived the conviction and the sentence.

[Chapter 6](#) considers how the prison classified lifers: not as individuals with lives, ethical commitments, and biographies, but instead into categories of ‘lower’, ‘middling’ and ‘high’ risk. This had consequences for the intensity, style, and character of penal intervention (and of moral communication). I begin by describing how documents reviewed in the two fieldwork prisons constructed prisoners as ‘risk subjects’ ([Hannah-Moffat 1999, 2005](#)), and communicated with them about risk. From there, I construct accounts of the distinctive moral climates evident in the two fieldwork prisons, and show that these represented distinctive styles of governance. I then develop a typology of ethical responses to risk governance.

Finally, the threads are drawn together in [Chapter 7](#). It revisits the questions raised by the Simms case, examines the limitations of the study, and considers what the research findings might mean for future academic research in this area, and public penological discourse more generally.

References

Ethical life and the long prison sentence

The existing research

This chapter asks what we can learn about the ethical lives of long-sentenced prisoners from existing research. First, it reviews evidence about the legal and sociological categories of murder and homicide. It describes how a morally variable—though invariably serious—offence receives a single penalty which flattens out its variability. Second, it asks how the penalty—a life sentence—has evolved since it became mandatory in the 1960s, seeking answers in the form (as distinct from the content) of the sanction. Third, it steps into the long-term prison as a setting for human life. Past and present research on long-term and life imprisonment are reviewed, drawing out how these sanctions might influence prisoners' ethical lives, generally or in relation to a specific offence. These materials are then synthesised, bringing them into dialogue with the anthropology of ethics, which, I argue, can help us understand how the messages 'spoken' by imprisonment and those 'heard' by prisoners can be made sense of.

[Chapter 1](#) suggested that the moral communication prisons engage in with prisoners diverges from that which members of the public and survivors of serious crimes *expect*. The Simms case can be understood as an example of penal policy becoming detached from the moral values it purports to enforce. It raises an overarching question: how and why did this come about? This chapter seeks answers in existing literatures, guided by three further enquiry questions:

1. What are the moral meanings of 'murder'?

2. Are they communicated to prisoners by life imprisonment, and if so how?
3. What part does this communication play in their ethical lives?

Section reviews evidence about the legal and sociological categories of murder and homicide.¹ It describes how a morally variable—though invariably serious—offence receives a single penalty which flattens out its variability. Then, Section asks how the penalty—a life sentence—has evolved since it became mandatory in the 1960s, seeking answers in the *form* (as distinct from the *content*) of the sanction. Third, Section steps into the long-term prison as a setting for human life. Past and present research on long-term and life imprisonment are reviewed, drawing out how these sanctions might influence prisoners’ ethical lives, generally or in relation to a specific offence.

These materials are then synthesised in Section , which brings them into dialogue with the anthropology of ethics—which, I argue, can help us understand how the messages ‘spoken’ by imprisonment and those ‘heard’ by prisoners can be made sense of.

Since moral reflexivity has only recently become an explicit topic of investigation, the first task is to introduce the concept of ‘ethical life’.

¹A note on terminology: the category of central interest here is ‘murder’. However, official statistics in England & Wales (mentioned in this chapter) report both on murder and on the broader category of ‘homicide’, meaning all illegal killings. Other sources use the two with seeming overlap, or interchangeably. Meanwhile, feminist scholars (e.g. [Widyono 2009](#)) have called for the addition of a third category, ‘femicide’, to reflect the aetiological distinctiveness of gendered violence. While acknowledging the empirical and moral arguments for treating violence against women as distinct, I have favoured fewer, broader terms for simplicity. In the chapter and the thesis, the gendered term ‘homicide’ is used broadly, to mean all criminal killing; the technical-legal term ‘murder’ is used to denote those killings seen as most culpable in law. Where I describe or present statistics or data from other sources, these terms are used as per those sources.

What is ‘ethical life’?

According to James Laidlaw (2017 p. 188), a significant figure in anthropology’s “ethical turn” over recent decades,² ‘ethics’ arises from the human capacity for self-interpretation, and “the fact that the self-descriptions this process gives rise to are necessarily evaluative”. Ethical life involves reflexivity, self-representation, and self-evaluation, and forms of ‘work on the self’ which connect self-representation with desired patterns of selfhood.

In *Ethical Life*, Webb Keane (2016) examines psychological and anthropological research on the origins of ethics. Psychology shows us that the capacity for ethical thinking arises in early childhood: in the capacity to intuit other people’s evaluations of oneself by comparing first- and third-person representations of particular behaviours (2016 Chapter 3). For example, a child who refuses to share a toy might encounter disapprobation, inferring thereby that sharing is ‘good’ or desirable. Crucially, though, ethics is *not only* innate and developmental; were it so, representations of ‘the good’ would be cultural universals. Anthropological research shows that while the *capacity* for ethics may be innate, its *expressions* are embedded in culture, and thus spatially and temporally contingent (2016 Chapter 5). Social identity and cultural belonging affect how we *apply* the sense of ethical obligation, shaping (for example) whether obligations are felt to self, kin, co-religionists, nation, species, or sentient life (to name but a few— 2016 pp. 177–180).

Put simply, most people have some notion of what would be ‘good’ in themselves and the world, and feel obligations towards at least some others. These ideas will consistently influence their conduct; but the groups and obligations will be contingent. Ethical life is therefore also open to change. Encounters with new representations of ‘the good’, or with people beyond an in-group who solicit moral attention, might bring existing commitments and relationships into question. Altered ethical beliefs might be difficult to translate into practice, if doing so means relinquishing commitments which have been constitutive of identity, or have provided material or ontological security. Conversely, enacting

²Discussed later in the chapter; for overviews, see Fassin (2014) and Laidlaw (2017).

ethical change might be easier, if a moral or personal crisis has already revealed an earlier mode of ethical thinking to have been mistaken, inadequate, or outmoded (Zigon 2007).

An ethical lens has two consequences for how material in the rest of this chapter is treated. First, it focuses attention on the moral messages prisoners encounter about *who they are* and *whom they ought to become*. Partly, these consist in formal censure: the labelling and sanctioning of offences and people as ‘bad’ or ‘wrong’. But other messages are also implicated. Imprisonment communicates *intentionally* and *vertically* via incentives, via rehabilitative intervention, and via the allocation of outcomes such as progression and release. But it also communicates *unintentionally* and *horizontally*, via the norms of prisoner culture, and via expectations communicated by staff not formally tasked with delivering censure or addressing offending behaviour. Though the sentence derives from a specific offence, not all (or much) of this communication necessarily centres on it; much of it is informal and indirect. A cultural lens, derived from moral anthropology, helps grasp this complexity.

Second, an ethical lens entails a focus on human particularity. Long-term imprisonment (hereinafter, LTI) does not create selfhood, but distorts and remoulds it; long-term prisoners’ (hereinafter, LTPs) biographies, including those parts they are sundered from, provide the materials. Previous biography shapes a person’s susceptibility, both to censure and to incentives. Not only the offence, but also the life course, will affect how moral messages are received.

Thus, two types of evidence will be particularly examined in this literature review: evidence about intended and unintended moral communication; and evidence about how this might be mediated by the life course.

Murder in law and society

This section appraises the moral meanings of murder in legal and sociological texts. It develops the point that what is understood as a uniquely and consistently serious offence, is in fact morally

quite variable, and (crucially) highly likely to be perceived differently by different observers.

Murder as a legal and moral category

[Murder is] when a person of sound mind and discretion, unlawfully killeth any reasonable creature in being, and under the king's peace, with malice aforethought either express or implied.

Edward Coke (1648), quoted in *Modernising Justice* (2018 para. 5.1)

Murder in England is still defined by reference to Coke's seventeenth-century commentary on uncodified common law. Definitionally, it is broad and imprecise: the *actus reus* can be either an act or an omission; the *mens rea* is satisfied by an "express or implied" intention *either* to kill *or* to cause serious harm. Neither ill-will towards the victim nor premeditation are necessary to convict. These points and others are poorly understood among the general public, leading to the suggestion that "[t]he law of murder is [...] enveloped in confusion, myth and misunderstanding"; it is "a contentious area [...] that politicians are scared to approach" (*Modernising Justice* 2018 para. 21.3).

Varied wrongs, uniform penalties

Since 1965, when capital punishment was suspended pending abolition ([UK Parliament 1965](#)), the penalty for murder has been a mandatory life sentence. Judicial discretion to adjust it by varying the minimum prison term (or 'penalty phase', or 'tariff') has been constrained by statute since 2003. The 'starting points' (see [UK Parliament 2020b](#), sch. 21) sentencers must now use, and the examples of aggravation and mitigation cited in statute, make important distinctions between more and less 'serious' murders. For current purposes,³ we can simply note the grey areas: 'seriousness' is not always determined by observable facts, nor by the actions of the accused, and the law

³Chapter goes into greater depth.

permits people to be blamed for factors not under their direct control.

Amendments to the sentencing provisions since 2003 have consistently inflated tariffs,⁴ under pressure from campaigners who follow a well-established pattern of argumentation via selective comparison: between the lighter tariffs allocated to murders they wish to see more severely penalised, and the heavier tariffs allocated to murders they perceive to be equally harmful.

These comparisons are predicated on the *harmfulness* of murder, not its *wrongfulness*, an important distinction in retributive penal theory. At its simplest, it identifies the difference between a setback to one's interests (a harm), and a particular kind of setback *experienced as an attack*: for example, against one's property, or one's person, or one's rights. Wrongs may be perceived whether a setback was inflicted intentionally or carelessly, though this affects the appropriate degree of blame:

...a victim of criminal homicide or wounding suffers essentially the same harm as does someone who dies or is injured in an accident, or from natural causes [...] [If] I have been injured [or] my property has been destroyed, I see this as a harm. If I later discover that this was the effect, not of natural causes or a wholly non-culpable accident, but of another's reckless or negligent conduct, I realise that I have been wrongfully harmed [...] [though] the harm remains the same. The difference is that I can now attribute that harm to the agent who caused it, as being "her fault" and something for which I can hold her responsible.

Duff (2001 p. 21)

Most importantly, wrongs produce demands for accountability: *some other person ought to answer* for the harm.

Set against the harms of murder—massive, irreparable, permanent, and uniform between cases—these distinctions might appear

⁴This has not registered with the public, who consistently underestimate the penalties for murder and do not understand the direction of recent change (Roberts *et al.* 2022).

beside the point. To the family of a murder victim, harm might be the major (or only) salient dimension of the event, leaving no obvious reason to care about wrongs. Homicide does not merely infringe rights or damage interests: it *physically negates* human beings, forcing grief and trauma through their networks. This may be why murder so often attracts the ultimate penalties a given society permits: the expectation not to be killed violently is surely a minimal precondition of civilised life in any well-functioning political community. It follows, both, that not to kill others is a fundamental obligation of citizens, and that its enforcement is a fundamental duty of good government.

So the hefty abstract category ‘murder’ describes real acts which *are* all truly harmful, but *are not* all equally wrongful; yet this may matter little to those most affected. This more or less guarantees specious comparisons, exacerbated where (as in England) there is a single definition of murder, and an undifferentiated punishment.

The victim-offender dyad

Understandings of how and why murder is wrongful also depend on context, motive, and the relationship between those involved (Wilson 2007 p. 160). Disparities of power and vulnerability between offender and victim independently alter perceptions of ‘wrongfulness’: where (for example) the victim was a child, or elderly, or female, public attitudes research shows that the crime is often perceived as considerably ‘worse’ than if both victim and offender were young men fighting (Mitchell and Roberts 2012a pp. 93–103). Imputed motive can also affect things similarly. This matters because, again, not everything which makes a murder ‘serious’ relates to factors under the control of the accused.

Summary

In practice, then, the English law of murder is “a mess” (The Law Commission 2004 para. 2.74) because it fails to separate more and less wrongful killings. By lumping them into a single broad category, and mandating a life sentence as the punishment, it

guarantees specious comparisons between unlike killings, based on the false equivalence of equal harmfulness.

Two points follow. First, the single penalty for murder elides meaningful distinctions between less and more serious offences. Second, this makes it probable that people convicted of murder might find their own evaluations of ‘seriousness’ diverging from how the law sees matters. They might identify morally salient features which (they believe) ought to recalibrate blame. Differences of outlook probably reflect what seems normative in the subject’s life. Section develops this idea, arguing that murders, as well as being more or less ‘serious’, can also be more or less ‘ordinary’, with consequences for their meaning.

Homicide and murder as empirical categories

Homicide “is incredibly diverse and it is not possible to explain its many manifestations with one theory or theoretical discipline” ([Brookman 2021 p. 53](#)); thus, social-scientific theory on this topic is as poorly integrated as the law. In this section, patterns in the *incidence* of murder are the topic. There are four interrelated patterns to unpack.

Gender

First, perpetration and victimisation patterns are strongly gendered. In the eleven years to March 2021, an annual average of 93% of convicted murderers were men, and 7% women. 69% of murder victims over the same time period were men, and 31% were women (calculated from [Office for National Statistics 2021](#), data worksheets 17 and 25). Around 60% of homicides in England & Wales are male-on-male, and around a third male-on-female; female-on-female offences are rare. The rate of female victimisation has been in steady decline since about 1980, when male-on-male and male-on-female murders were in rough parity ([Morgan *et al.* 2020 fig. 4](#)).

Age and ethnicity

Second, homicides are patterned by age and ethnicity. Fully 82% of homicides have a principal suspect aged 16-44, with nearly half of these (37%) aged 16-24 ([Office for National Statistics 2021](#), worksheet 28); those by older offenders are, as with most crimes, unusual. Most murders are intra-ethnic crimes. As Table 1 shows, Black people are over-represented amongst both offenders and victims, while White people are under-represented (less starkly).

Table 1: Homicides by ethnicity in England & Wales, 2019-2021⁵

Ethnicity	% of convicted principal suspects	% of victims	% of general population (mid-2016 estimate)
White	68	67	85
Black	18	16	3
Other	13	13	11
Unknown	1	4	not reported

Socio-economic circumstances

Third, homicide is strongly patterned on victims' and offenders' socio-economic circumstances. Between 2008 and 2019, over half of both groups were unemployed. Manual work predominated among those who worked; only around a fifth of offenders and victims were in non-manual jobs ([Brookman 2021 p. 31](#)). However, this patterning is less pronounced with gender-based violence: men who kill women are less likely to have histories of adversity and social exclusion than men who kill men, and are more likely to be employed/highly educated ([Dobash *et al.* 2009](#); [Dobash and Dobash 2015 Chapter 4](#)).

⁵Data from Office for National Statistics ([2021](#), table 30 and worksheet 5).

Substance misuse and the illicit economy

Finally, there are strong links between homicide and substance misuse, whether directly through intoxication, or indirectly (and increasingly) through behaviours associated with the illicit economy. Around a third of homicide victims and offenders in England & Wales in 2020/21 were under the influence of drugs or alcohol. Add in homicides associated with drug *markets*, and more than half (52%) of all homicides during the year to March 2021 had some connection with substance misuse, up from 36% in 2009 ([Office for National Statistics 2020 sec. 8](#); [2021 sec. 7](#))

Summary—‘ordinary’, ‘extraordinary’, ‘fathomable’, and ‘unfathomable’ homicides

‘Ordinary’ homicides, then, occur between young, socio-economically marginal, often unemployed, and often non-white men. ‘Ordinary’ victims are men similarly situated, and known to the offender at least as an acquaintance. Both parties are more likely than not to either be intoxicated, or to trade in drugs. They may use violence to solve problems, often in public settings, and hence will sometimes be known (and know themselves) for doing so. Less frequent, but still common, are killings of women by men. A domestic setting often conceals these patterns, perhaps facilitating a certain denial or refusal to identify with the violence involved.

‘Ordinariness’ is important in that it influences how and when violence can appear *morally intelligible* to third parties, even if it in no way appears *right*. ‘Ordinary’ homicides are rooted in patterns of interpersonal conflict which fit with established cultural scripts. By contrast, ‘extraordinary’ homicides are not merely less common, but also fit these scripts poorly. Offender and victim might be socioeconomically and/or ethnically distant, or so mismatched in power and vulnerability that the offence does not ‘read’ as interpersonal conflict. Such offences are more likely to appear ‘random’, ‘predatory’, ‘inexplicable’, or ‘unprovoked’. Motive can also render a homicide ‘extraordinary’. For example, prejudice, or sexual, financial, and sadistic motives,

appear to break the moral imperative, most associated with Immanuel Kant (2018/1785), not to *use* other people as the means to an end (see Kerstein 2023).

The suggestion taken forward here is that the empirical ‘ordinariness’ of homicides might be linked to their perceived ‘moral seriousness’, in ways the law might not reflect. Their seriousness is in the eye of the beholder (e.g. judges, journalists, victims, members of the public), and will depend on the degree to they find the violence involved ‘fathomable’: that is, attributable to some intelligible (if unwarranted) motive. ‘Fathomable’ homicides, on this view, signal *ethical* deficiency; ‘unfathomable’ homicides signal *ontological* deficiency, bringing stronger and more ‘staining’ (Levins 2023) sentiments and labels into play. ‘Unfathomable’ offences might particularly signal risk, since if actions appear unreasonable, they are also more likely to seem *caused* by dangerous forces within the actor, beyond their control or understanding.

Summary

Four interconnected insights emerge from this discussion. First, as a legal category, murder is incoherent, and its moral meanings are nuanced. Second, the perception that it is a consistently ‘serious’ crime derives more from its harmfulness than its wrongfulness. Third, the criminal law flattens and homogenises murders, partly because enforcing a strict general proscription against killing legitimates its very existence. Fourth, wrongs exist in the eye of the beholder, and intensify if unintelligible. How ‘fathomable’ a murder might be will vary according to who makes the evaluation, due to the flattening tendencies outlined in Section .

The evolving character of life and long-term imprisonment

Having noted the variable meanings of murder, this section examines the penalty in more depth. What does the UK’s use of the mandatory life sentence reveal about its relationship with

those it convicts of the crime? What moral communication inheres in the form of the sentence? As the sentence has evolved since it became mandatory, an overview of its development is the first step.

From the 1960s to the 1990s

In the UK, the creation of the mandatory life sentence ([UK Parliament 1965 sec. 1\(3\)](#)) aimed to ensure that a justice system no longer prepared to execute murderers held public confidence. But at first, the sentence was not yet the profoundly exclusionary sanction it later became.

The norm of a decade in prison

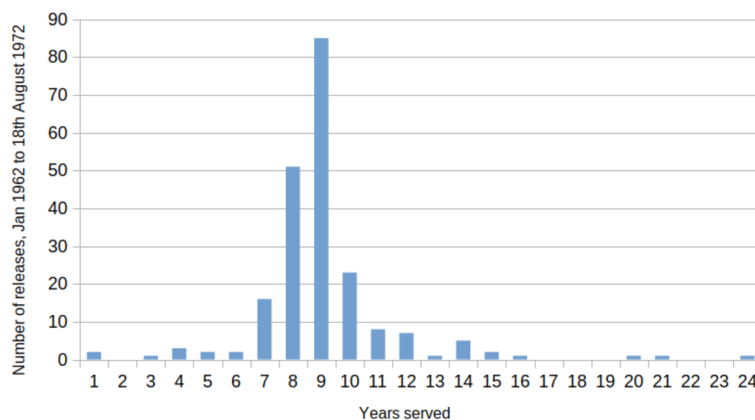
By today's standards, the normative life sentence involved relatively short periods, with, in most cases, an expectation of release after about a decade. As [Figure 1](#) shows, lifers released between 1962 and 1972 had served an average of 9.1 years, and only three of 212 had served more than twenty.

The readiness to release was not prompted by rehabilitative optimism, which was by then in steady if not terminal decline ([Bailey 2019](#)). Rather, it reflected pragmatism, and what might loosely be termed a liberal understanding of citizenship. The Advisory Council on the Penal System ([1968 para. 157](#)), in an influential report, recognised that many lifers were not recidivists, that most would commit no further serious offences, and that few required high-security imprisonment. Just two subgroups were expected to serve extremely long and explicitly incapacitative custodial terms: serial violent recidivists, and a small minority of lifers—chiefly the “very abnormal killers of small children or women” and “some sexual offenders”—whose safe release could not be assured ([1968](#), paras. 6, 16, 158). Questions of risk were balanced against rights and individual autonomy.

Pragmatic, liberal implementation

The life sentence at this stage was certainly retributive, in that it imposed deprivations to punish wrongdoing. But it also did something to rehabilitate most lifers, in the *judicial* and *legal* sense of restoring them to former status, rather than the *psychological* sense of imposing demanding forms of treatment (for more on these distinctions, see [Burke et al. 2019](#); [McNeill 2012](#)). Prisons aspired to provide options, trusting that prisoners would see the sense in taking these up (see [Advisory Council on the Penal System 1968](#), paras. 81-82).

Figure 1: Time served by life-sentenced murderers at release, 1962-72⁶



Situational obedience and ‘orderliness’ were the demands, not psychological performance. Long-term custody was neither permanently exclusionary, nor ‘tightly’ interventionist and ‘neo-paternal’ (see [Crewe 2009](#), table 4.1; [Crewe 2011a](#)), but flexible, pragmatic, and inclined to appeal to prisoners’ better natures. This situation persisted until the 1990s.

Stimuli for change

Matters changed under two influences. First, a series of politically humiliating incidents in long-term prisons catalysed new

⁶Calculated from Anonymous (1973 p. 214).

approaches to prison management ([Learmont 1995](#); [Lewis 1997](#); [Liebling 2005](#); [Woodcock 1994](#); [Woolf and Tumim 1991](#)). Second, sentencing changes exerted an increasing influence. ‘Penal bifurcation’ was well-established by the 1990s, whereby the UK began to deal more severely with violent and ‘dangerous’ offenders, while favouring more diversionary and supportive interventions with others ([Bottoms 1977](#); [Bottoms and Brownsword 1982, 1983](#); [Guiney 2019](#)). Public attitudes towards crime and criminality also hardened, demanding that governments *control* these social ills ([Garland 2002](#)). These factors tended towards incapacitation, but went along with a political trend, ‘populist punitiveness’ ([Bottoms 1995](#)), which was more retributive: politicians fought elections by promising to ‘crack down’ on offenders.

The result was an unrelenting and illiberal drive for security and control, which often used retributive language, but which, in its parallel commitment to incapacitation, undermined retributivist principles of parsimony and proportionality. Under these influences, life and LTI in England & Wales underwent both qualitative and quantitative changes, becoming quite distinctive in form.

Since the 1990s

Quantitative evidence—front- and back-door severity

Quantitatively, the change plainly relates to severity. Figure 1 noted the early norm of release within ten years. As Chapter showed, the median tariff for a life sentence still stood at 9 years in 2002, but had reached 21 years by 2021 ([Mitchell and Roberts 2012a](#); [Prison Reform Trust 2021](#)). Figure 2 shows how drastically this translated into time actually served: a median of 17.0 years by 2021 (2a) and an increasing average of time served *after* the tariff (2b). Two points emerge. First, life and long sentences have become far more destructive of prisoners’ lives, simply through temporal weight. Sentence inflation is operative at front and back doors, with lifer releases often highly controversial ([Annison and Guiney 2022](#); [Guiney 2023](#)). Second, the terms on which freedom is restored after release

are more complicated, qualified, and conditional. The logic of incapacitation makes prison release politically awkward—why take chances?—with risk management and public safety seeming to overwhelm objections based on proportionality and individual rights.⁷ Parole is derided in some quarters, as the remnant of a naïve, incautious, and elitist past.

Qualitative evidence—risk and the ‘new penology’

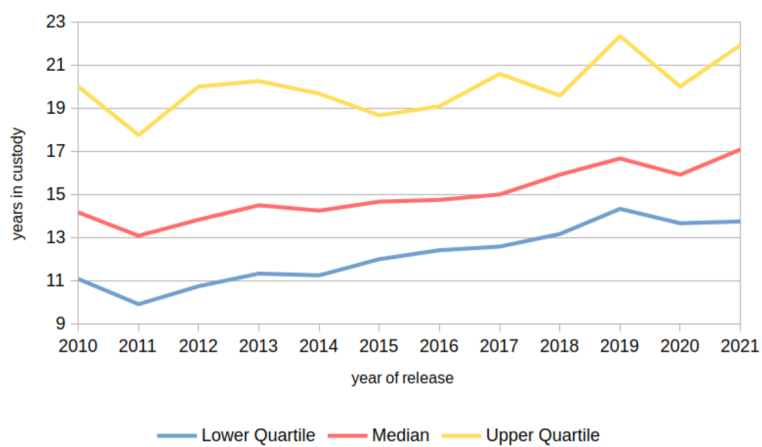
Shifts in the form of life and LTI can also be read from qualitative evidence, specifically on the key concept of risk. By the early 1990s, Feeley and Simon (1992 p. 470) suggested that a ‘new penology’ was “shift[ing] away from trying to normalise offenders and toward trying to manage them”; it was incapacitative, not rehabilitative. Robinson (2008) later argued that in the UK, this development marked not *the end* of rehabilitation, but rather its *mutation*, into a distinctive ‘late-modern’ form. It was utilitarian and managerial, in that it justified rehabilitation as a means to an end (reduced reoffending), and valued efficacy (‘what works?’) over justice (‘what’s fair?’—see McNeill 2009b). It treated rehabilitation *not* as an entitlement of rights-bearing citizens, but as an earned privilege, and it rationed or withheld intervention under austere rubrics emphasising offenders’ lesser eligibility (Bentham 2011/1787; Sparks 1996) and the retributive necessity of ‘hard treatment’ (Duff 2003; Matravers 2011). This deflected objections that prisoners are owed recognition of their dignity or their civil rights. The onus shifted:

⁷This is evident from the difficulty successive governments had in reforming the Imprisonment for Public Protection (IPP) sentence, despite growing consensus on its grave harmfulness and injustice (House of Commons Justice Committee 2022); it is revealing that even when ministerial intransigence shifted (Ministry of Justice *et al.* 2023), it did so under the pressure of prison overcrowding, not because of the damage done to individuals.

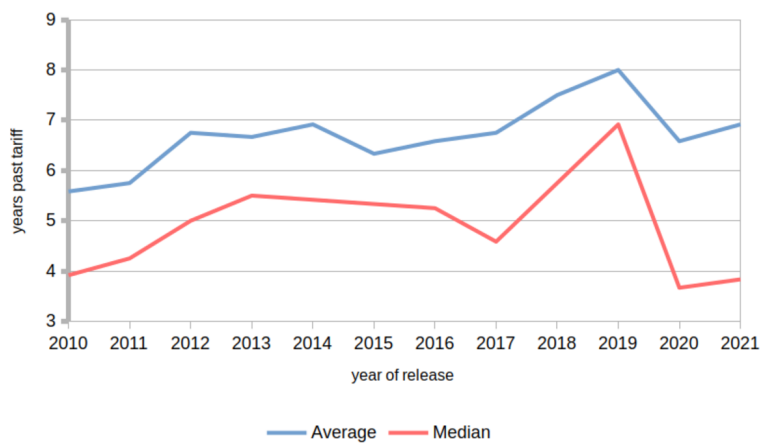
⁸From data placed before Parliament (Ministry of Justice 2022b, 2022c). It is not clear in these sources if the figures include all kinds of life sentence, or merely mandatory ones, and hence if the figures quoted reflect murder sentencing or life offences more generally. The sharp dip for 2020 and 2021 in Figure 2b reflects releases during the Covid-19 pandemic; the readiness to release lifers sooner abated soon after these figures were published, following direct political intervention (Dawson 2023).

Figure 2: Time served by lifers released between 2010 and 2021⁸

(a) Average time served at release



(b) Average time served after tariff



from whether the state was compliant with its rights duties, to whether prisoners deserve rights protections ([Armstrong 2020](#)). Significantly, the *non-criminogenic* needs of prisoners become an irrelevance: there were no public benefits, only costs, to addressing them.

The censure enacted here was not ‘spoken’ by the material conditions of long-term prisons, which are now generally far better than when the life sentence became mandatory. Rather, it ‘speaks’ through a *permanent reduction of status*: social exclusion fully backed by state power, so damaging as to represent an ending of prisoners’ former lives. In its permanent civil demotion, the life sentence resembles an imposed disability. Its *form*—rather than simply its *content*—is communicative. It suspends and removes rights, breaks relationships, constrains and polices autonomy, and proclaims reduced status. Yet as described thus far, its communication is also blunt and generic: we have no sense of how communication with specific individuals about their specific offences occurs. [Chapter 6](#) considers this empirically. Here, [Section](#) considers the penal contexts for moral communication, who engages in it, and what that suggests about its likely content.

Moral communicators

English prisons are often, as Mjåland and Laursen ([2022](#)) have suggested, strangely coy in their handling of the offence itself. It is a kind of “absence-presence”: criminal convictions are universal among sentenced prisoners, and yet are directly addressed only in selected settings. Which ones?

Moral communication is most explicit and direct when the sentence is pronounced. Judges are required to deliver remarks with the technical function of simply explaining the sentence. Although they approach the task differently, sentencing remarks are sometimes moralistic and condemnatory ([Hawker-Dawson 2022](#)), and at other times technical and bureaucratic. The sentencing hearing also ritualises condemnation: it entitles victims to a voice (though not a choice about the sentence). There is a good deal of evidence that sentencing hearings fail in their aim of communicating censure, since many prisoners

simply do not remember what was said about them (Crewe *et al.* 2020; Schinkel 2014b), and do not routinely receive a copy of the remarks (House of Commons Justice Committee 2023).

Afterwards, while punishment is *delivered*, moral communication about the offence becomes “oblique” (Garland 1991 p. 186). Some is unspoken: prison staff who feel strongly typically prefer not to deal in open condemnation, for practical and professional reasons (Ievins 2023). Some is unintended, deriving either from official treatment which carries implicit or thoughtless indifference (Crawley and Sparks 2005a), or explicit disregard (Seeds 2022a). Some comes from unofficial sources, most obviously prisoners, who often consider certain kinds of offence beyond the pale. Space is short for a full review, but two points are particularly noteworthy: a very strong general tendency among prisoners (as in mainstream culture) to abhor sexual offences, offences against children and vulnerable people, and (less consistently) violence against women (e.g. Cohen and Taylor 1972; Faccio *et al.* 2020; Kotova and Akerman 2022; Sparks *et al.* 1996); and second, a tendency for these patterns to be less pronounced, and more subtly expressed, in areas where people with dishonoured offences are numerically concentrated (since sociologically, it is not generally majorities who face ostracism—see Blagden *et al.* 2016; Ievins 2023; Mathiesen 2012/1965; Perrin *et al.* 2018)

Official and *intentional* moral communication which addresses specific offences and the obligations arising from them, and which directly articulates *the reasons for punishment*, is therefore largely the preserve of specialists. It is mediated through the central concept of risk, which is assessed and managed via a range of practical interventions.

Offending behaviour programmes

Broadly, there are two major styles of accredited offending behaviour programmes (henceforth, ‘OBPs’, see Correctional Services Accreditation and Advice Panel (CSAAP) 2019; ‘Offending behaviour programmes and interventions’ 2022): lower-intensity courses with a cognitive-behavioural approach, and more intensive therapeutic interventions, generally focused on

higher-risk offenders. The latter take a deeper and more holistic approach, often focused on early childhood, to inquire into how participants developed a predisposition to violence. Both forms of intervention examine the offence, but to differing degrees of psychological ‘depth’.

OBPs are scarce (and rationed), and not all prisoners experience them identically (or at all). The ‘responsivity’ principle (Bonta and Andrews 2017) means that only those believed likely to ‘respond to’ an intervention—that is, to experience a reduction in their risk—will be referred for one (HM Inspectorate of Probation 2020; Lester *et al.* 2020). Two prisoners with similar histories, experiences and offences thus might not be equally intervened with if for some other reason (e.g. age) they are not assessed as being of equivalent risk. Similarly, the ‘need’ principle means that only ‘criminogenic’ needs—those associated with risk, rather than merely those which occasion suffering, or guilt, or shame—are certain to attract intervention and support.

Forensic psychologists

Forensic psychologists exert power over prisoners because they are gatekeepers and arbiters, with substantial influence over progression and release decisions (Shingler *et al.* 2020b). Based on their assessments, intervention can be intensified or withheld; sentence progression and release can be recommended or denied; situational controls on relationships can be implemented or lifted; and so on.

Many are deeply aware of this kind of power, and uncomfortable about wielding it. Warr (2021) has described the ‘dual relationship’ between psychologists and prisoners: psychologists are required to control and assess risk, and sometimes to impose restrictions, but this works best through strong relationships and trust. This can feel to prisoners like trust is used to solicit information, which is then used in a way that feels like betrayal. Warr’s ‘duality’ goes beyond a mere tension between care and control: it can be ethically compromising for both sides (Shingler *et al.* 2020b, 2020a; Warr 2020), with incentives towards

performativity pushing against prisoners' sense of personal integrity, and psychologists pushed into behaviour that feels to them like double-dealing.

Less obviously, the power to allocate or withhold OBP participation—the means by which risk is reduced—communicates moral recognition, in the form of an implicit message that a person's risk (or needs) are *worth bothering with*. Crewe and Ievins (2021) have shown that risk assessments leading (or not) to treatment can bring about different reactions. Some prisoners feel objectified, controlled, or manipulated; others long to be brought under the prison's disciplinary control; others operate in different moral registers and seek to bypass or replace, rather than confronting or complying with, the prison's moral standards (see Ievins 2023 p. 62, on 'the redeemed').

Day-to-day communication—risk practice in practice

In theory (e.g. Ministry of Justice and HM Prison & Probation Service 2018; Ministry of Justice and HM Prison & Probation Service 2021; National Offender Management Service 2015), risk practice coordinates the roles of several professionals. Psychologists formulate and assess risk; Prison Offender Managers (POMs) design and implement individualised sentence plans; OBP staff challenge prisoners' attitudes, thinking, and behaviour, and impart the 'skills' of self-management; prison officers carry out one-to-one keywork sessions, monitor compliance, and ensure that prisoners understand and work towards agreed objectives.

In practice, though many of these expectations go unmet. A recent inspectorate report (HM Inspectorate of Probation and HM Inspectorate of Prisons 2022) found risk provision to be compromised by staffing problems, causing concern over the accuracy, relevance, and utility of assessments (see also Shingler *et al.* 2020b). Sentence planning was neglected, because POMs were required to service the urgent demands of the parole process (which takes place on a statutory cycle), not the less pressing requirements of earlier-stage prisoners. Keywork was often disconnected from offender management, involving little more

than “basic welfare checks” ([HM Inspectorate of Probation and HM Inspectorate of Prisons 2022 p. 7](#)). There was long-standing concern over the lack of diversity among offender management staff; a preponderance of young white women, particularly among psychologists, has been identified as a factor leading prisoners to feel morally judged by people lacking insight into the circumstances of their lives, and hence (as prisoners see it) moral standing to make the judgement.

For prisoners, risk assessments using inaccurate, out-of-date information, and lacking face-to-face contact, can appear capricious and performative. There are also inherently and unavoidably high rates of ‘false positives’ in individual violence risk assessments. This, combined with the weight of responsibility involved—high-profile failures can have terrible consequences including for the assessor—means that assessors face powerful anti-ethical incentives to be overcautious, at prisoners’ expense ([Roychowdhury and Adshead 2014](#)).

Moral communication through risk

Risk practice has been described, based on empirical evidence, as being *painful*, in a distinctively ‘tight’ way (because it entangles and harnesses the self in demands and expectations, see [Crewe 2011a](#)). This characterisation, however, was developed before interventions came to be so tightly rationed, to manage/suppress demand. Subsequent work has begun to suggest that as ‘firefighting’ and on-the-fly adjustment ([Shingler et al. 2018](#)) have taken hold, just as much may be communicated by the *failure* to intervene, as by the opposite ([Crewe and Ievins 2021](#)). Both ‘tightness’ and ‘looseness’ are painful.

As a result, the moral communication occurring through risk is hard to describe clearly. Despite the Inspectorate’s concerns summarised in Section , there are examples of excellent practice, in which risk practitioners form powerful and highly constructive relationships with prisoners, who in turn appraise intervention as legitimate ([Liebling et al. 2019](#)). This may be more likely in spaces of intensive intervention (such as PIPE units or high-security) where risk and resources concentrate,

and hence demand is met, but we lack structured empirical evidence on this front.

With risk specialists as with ‘ordinary’ prison officers, there may also be a basic level of professional competence required for prisoners to perceive ‘bureaucratic legitimacy’: to feel justly handled, and able to take their own futures and selfhoods in hand (Auty and Liebling 2020; Crewe *et al.* 2015; Fitzalan Howard and Wakeling 2020). Where this is lacking, hopelessness and feelings of injustice or alienation may follow (Crewe and Liebling 2017; Liebling 2013; Williams and Liebling 2023), and may even perhaps appear to *be the message*.

Summary—what does the form of the life sentence communicate?

Life and long sentences in England & Wales are now ‘life-wrecking’ (Simon 2012) both at the ‘front door’ and at the ‘back door’ (Padfield 2005; 2014 pp. 1850–54). Their sheer length, administrative complexity, and confusing demands (Liebling *et al.* 2011) complicate, and even thwart, attempts to reconstruct a life to replace what the sentence takes away. Evidence on the ‘tightness’ of risk intervention suggests that to escape this bind, prisoners must engage in a sustained identity performance, demonstrating ‘insight’ into their offending, and acquiring ‘skills’ (Andrews *et al.* 1990) to manage associated risks. All the while, they must maintain a formal record of positive behaviour, which means not falling foul of the prison environment. They must earn the lifting of security restrictions; but must do so in a context of ‘managerialism minus’ (Liebling and Crewe 2012), in which their (non-criminogenic) needs are a low priority.

Put simply, the bar is high. There is a high degree of ‘responsibilisation’. Because the sentence is so long, ‘tight’ forms of management may be intermittent, with ‘crunch points’ (see Chapter 6) of intense assessment and scrutiny, but also periods of ‘nothing time’ (Jarman and Vince 2022) in which prisoners are left to their own devices. Some dread these transitions, and deliberately plan their future lives within the constraints they envisage (e.g. Rennie and Crewe 2023; Wright *et al.* 2023). Risk management and supervision can communicate messages with

different valences: their presence (or absence) can communicate to prisoners that they are (or are not) worthy of attention. How these pains affect them has been an increasing focus of research (see Section), but the degree to which recent theoretical work (e.g. [Crewe and Ievins 2021](#); [Ievins and Mjåland 2021](#)) holds empirically requires further investigation.

The literature on long-term imprisonment

The effects of LTI are not easy to summarise, for the same reason that they are difficult to research. Reviews (e.g. [Bukstel and Kilmann 1980](#); [Kazemian and Travis 2015](#); [Liebling and Maruna 2005](#); [McKay *et al.* 1979](#); [Porporino and Zamble 1984](#)) have always commented on the methodological shortcomings of existing research, but there are significant challenges in remedying them. Longitudinal studies have been lacking ([Kazemian and Travis 2015](#)) and there are numerous conceptual and theoretical difficulties. The topic is daunting, and likely to remain so.

Early studies

Early prison sociologists were often intensely interested in the consequences of imprisonment for prisoners' normative outlooks. But they treated the prison, not the individual, as their primary unit of analysis, meaning that granular insights were lacking. The paradigm-setter was Clemmer ([1958/1940](#)), who found that inmates became 'prisonised' through exposure to the "mores, custom folkways and group behavior patterns" of other prisoners ([Clemmer 1950 p. 315](#)). Others introduced nuance to this picture, for instance Schrag ([1954](#)), who suggested that some groups (e.g. first-time prisoners and those convicted of non-violent crimes) resisted 'prisonisation', implying that more exposure to imprisonment—and lengthier sentences—might entrench criminal norms.

However, early sociologists can tell us little about ethical life. For one thing, they did not always make clear who was serving long sentences, making it hard to tease apart the effects of sentence length. More fundamentally, they theorised prisons

as self-contained structures in which particular adaptations ('roles'—see [Sykes 2007/1958](#)) were imprinted by a more or less generic set of challenges or 'pains'. The individuality of ethical thinking, the moral meaning of offences, and the moral communication engaged in by the prison, were only dimly visible. They yielded the important (but general) insight that prisons communicated demotion and dishonour by removing the trappings of adult citizenship ([Sykes 2007/1958](#)). They also showed that any moral communication occurring in prisons was not merely expressed by the authorities: prisons are morally plural places, in which the defects of power ([Sykes 2007/1958](#)) obstruct sustained and concerted efforts at moral communication.

Adaptation and adjustment in psychological research

By the 1970s, more careful research designs were being used to investigate the effects of LTI, though by today's standards, many 'long-term' prisoners spent short periods in custody. From pioneering studies using very small samples (e.g. [Taylor 1961](#)) to later examples with larger samples and more elaborate designs ([Banister *et al.* 1973](#); [Heskin *et al.* 1973, 1974](#); [Rasch 1981](#); [Sapsford 1978, 1979, 1983](#)), the underlying method was similar: psychometric measurements, taken from groups of prisoners who had served different quantities of time, and were sometimes (e.g. [Bolton *et al.* 1976](#)) followed up after an interval. Such studies rejected the notion that LTI caused 'deterioration' (in the sense of irreversible cognitive decline),⁹ but found some evidence of 'institutionalisation' (a learned dependency on the routines and structures of prison life—see [Sapsford 1978](#)).

Importation

There were echoes here of the earlier sociological finding that prisoners 'adapted' or 'adjusted' to LTI. 'Importation' sociologists, beginning with Irwin and Cressey ([1962](#)), had critiqued

⁹Liebling and Maruna ([2005](#)) and Haney ([2002, 2012](#)) offer overviews of how this consensus was later challenged.

the theory that prisons were monolithic social systems producing predictable effects, arguing instead for adaptive styles dependent on pre-prison biography.

John Irwin (1987/1970) made a key contrast, based on sentence length. Unlike shorter-sentenced prisoners, those serving longer sentences often began with few family or personal connections outside prison, and lost those they had during the sentence. They preferred ‘jailing’, a conscious decision to “cut [themselves] off from the outside world” (1987/1970 p. 68). This finding remains significant for at least three reasons. First, it drew attention to how *individual* responses to imprisonment can be. Second, it showed that sentence length was important not because ‘prisonisation’ followed a dose-response effect, but because of subjective calculation; sustaining a commitment to existing family life and identity is less easy, and more painful, where the sentence is long. Third, they emphasised the circumscribed freedoms prisoners retained. ‘Jailing’, though often forced on the individual, still appears agentic and deliberate, for all that its long-term effects may be harmful.

Problems, coping, and adaptation

Subsequent psychological research shed further light on adaptation. Barry Richards (1978) pioneered a systematic approach to the subjective patterns of thinking involved, by inviting two matched groups of eleven long- and life-sentenced prisoners to rank the problems they experienced by frequency and difficulty, and to describe coping strategies. Richards found few differences *between* the two groups (indicating relatively quick adaptation and no evidence of progressive effects).¹⁰ Timothy Flanagan (1980, 1981) used a similar approach with 49 maximum-security US prisoners who had served more than 5 years, and replicated a key finding of Richards: that the most severe problems related not to the prison, but to the outside world.

To emphasise this: ‘inside’ and ‘outside’ problems were separate, analytically distinct, and subject to different adaptive responses.

¹⁰One group had served eight years or more; the other eighteen months or less.

‘Inside’ problems related to the mistrust, ontological insecurity, and powerlessness of prison life. Coping involved treating friendships and staff relationships guardedly, selectively, and with emotional distance as the rule of thumb (see [Cohen and Taylor 1972](#); [Flanagan 1981](#); [Richards 1979](#)). This mitigated emotional and physical vulnerability, and increased the degree of control, an important outcome for people who have none.

‘Outside’ problems, by contrast, were harder to cope with. The relationships involved (e.g. with a career, a spouse, ambitions, friendships, feelings of blocked obligation) were inaccessible from the off, atrophying over time unless both parties made considerable sacrifices to sustain them. The preferred response described by many prisoners precisely resembled Irwin’s ([1987/1970](#)) ‘jailing’, but was a direct consequence of sentence length, not of the prior loss of family relationships among ‘state-raised’ youth.

LTPs, this research suggested, made conscious choices to exist in the here-and-now of prison life, not in the fading there-and-then of ‘real’ life. Psychometricians, similarly, found that lifers held later in the sentence scored higher for introversion, and took less interest in social activities, preferring instead to keep themselves to themselves ([Heskin *et al.* 1973](#); [Sapsford 1979](#)). One of them, Roger Sapsford ([1978](#), [1979](#), [1983](#)), commented as follows on his version of this finding, based on a sample of 50 British lifers subdivided into three sentence-stage comparison groups:

The greater tendency to talk and think about the past rather than the future among men who have served longer [...] probably indicates that men come increasingly to see their *real life as having ended* when they entered prison, and *themselves as in limbo*.

Sapsford ([1978 p. 142](#), emphasis added)

The idea of ‘real’ life is significant, drawing attention to the temporal, cultural, and spatial embeddedness of ethical life. Sapsford was pointing to what Crewe *et al.* ([2020](#)) later termed a social and relational ‘rupture’: long-term prisons, a domain of different challenges and distinctive adaptations, were so separate from ‘ordinary’ social circumstances that they were, simply, a different world; one in which different patterns of selfhood

became desirable than would otherwise have been the case. Ethically, LTI was, in some sense, a paradigm shift—or a form of “limbo”.¹¹

Sapsford (1978 p. 130) also pushed a clear analytical distinction, between indeterminate and merely long sentences. Both might involve similar periods in custody, but “in many other ways [they] are utterly different”. Life sentences, because they are indeterminate, add *disciplinary* pressure to ethical dislocation (Foucault 1979/1977). One possible result, adding to those described in Section , is that ‘coping’ might entail sharpening one’s reflexivity to a point: continual self-watchfulness.

[T]he lifer, though he may know the average sentence, can never count on release [...] This uncertainty weighs heavily on lifers [who] *can never know that they have not condemned themselves to a vastly extended term in prison because of one momentary aberration.*

Sapsford (1978 p. 130), emphasis added¹²

Indeterminate sentences, on this account, produce intensive self-monitoring *beyond* mere ‘hypervigilance’ (which is common among LTPs, and can become maladaptive after release—e.g. Grounds 2005; Haney 2002, 2012; Liem and Kunst 2013). Hypervigilance is an important, well-replicated finding, consistent with the characterisation of ‘inside’ and ‘outside’ problems in Section . But it relates to mistrust *of others*. Analytically, it does not fully register the mistrust *of oneself* evident among those who moderate their behaviour and limit their interactions lest these attract negative write-ups in prison files. Indeterminacy summons a *coerced reflexivity* not captured by the term ‘hypervigilance’, and this is a significant conduit for moral communication. Where intervention and surveillance are intensive and ‘tight’ (Crewe 2011a) and progression depends on them, we might expect deliberate projects of self-formation by lifers,

¹¹i.e. “any unfavourable place or condition [...] esp. [one] of neglect or oblivion to which persons or things are consigned when regarded as outworn, useless, or absurd” (OED 1989a).

¹²Sapsford here foreshadowed later findings on pains more associated with later forms of life imprisonment (see Crewe 2009, 2011b), which used indeterminacy to induce self-governance among prisoners.

though these may equally be performative forms of ‘narrative labour’ (Warr 2020) just as much as authentic or ‘deep’ forms of repentance (Bottoms 2019).

Summing up, psychological studies of adaptation during the 1970s and 1980s clarified something about the effects of *long-term* imprisonment, as distinct from those of imprisonment generally. What Irwin (1987/1970) called ‘jailing’ became more likely as the ‘reality’ of outside life receded. LTI was destructive, not merely interruptive, of relationships stretched near or past breaking point by the sentence.

LTI also appeared to have a kind of ‘flattening’ effect, and produced a distinctive form of subjectivity: inward, self-contained, strategic about relationality, guarded, and vigilant. This appeared *regardless of individual background*. Where sentences were indeterminate, intensive self-monitoring was also probable. Together, these changes help explain the commonplace finding (reported, for example, by MacKenzie and Goodstein 1985 pp. 408–411) that LTPs (and particularly lifers) typically become calm and compliant, following a period of crisis and volatility on admission (Toch *et al.* 2002; Zamble and Porporino 2013/1988).

Despite these theoretical advances, two specific influences remained implicit in these earlier studies. One was the offence; the other age at conviction. They are taken up in Section and Section .

‘Coping’ and guilt

Until recently, research on LTI did not usually consider the offence in any depth; puzzling, considering that some researchers clearly expected it to be a noteworthy influence on adaptation. Flanagan (1982 p. 82) perceived significant differences between ‘traditional’ lifers convicted of murder, and the ‘habitual’ offenders who were by the early 1980s increasingly receiving lengthy sentences in the US. Seeing the first group as “essentially non-criminal” (1982 p. 83), he expected them to respond in different ways, and to require different conditions and interventions. Similarly, Sapsford (1978 p. 132) (whose participants were all

serving time for murder) deliberately sampled participants who had killed different kinds of victim, believing this a likely factor affecting their response to the sentence. Yet he did not explore its influence further. Sapsford (1979 p. 7) also replicated the very widespread finding that men with sexual offence convictions, mostly ostracised in prison, experienced a different kind of moral communication. He reported them scoring higher for social isolation, and likelier to express morally valenced emotions such as shame and the feeling that there “must be something wrong with me” (1979 pp. 18–19; cf. Cohen and Taylor 1972 on the same point). For all that these researchers noted the *potential* significance of the offence in adaptation, though, none investigated it systematically.

Research on the effects of wrongful conviction added important, though still unintegrated, insights. Adrian Grounds (2004, 2005; Jamieson and Grounds 2005), a clinician working with exonerated former LTPs, described post-release effects similar to those observed among released lifers generally (e.g. problems adjusting, hypervigilance, etc.). What distinguished the wrongfully convicted, though, was a sense of purposelessness and meaninglessness, caused by experiencing a drastic loss of selfhood in such an unjust manner. They also faced distinctive difficulties relating to indeterminacy: official demands for accountability and personal change could not be fulfilled authentically, and seeking to progress threatened a loss of personal integrity.

Taken together, there is enough here to note that the offence is, potentially at least, a significant factor in adaptation, and that the reasons relate to an inverse relationship between guilt, and the perceived legitimacy of censure. These findings should sensitise us to varied ‘penal subjectivities’ (Sexton 2015) among people convicted of different offences, a topic returned to in Section .

‘Coping’ and prior experience

How do other aspects of prior experience (besides the offence) affect ethical life? Again, psychological research conducted during the 1970s and 1980s is insightful, through its investigation of the variable effects of prison environments. Hans Toch’s

(1992/1977 Chapter 10) concept of the ‘niche’ is particularly useful. ‘Niches’ were spaces within the prison having several characteristics:

1. they were created *by prisoners*, who made selective use of certain environments;
2. they were small and not usually open to prisoner movements, affording situational control and sometimes privacy; and
3. they were congruent with the needs of their occupants, so that not every niche suited every prisoner.

Toch’s discussion of prison workshops can explicate the concept. To prisoners convicted older, with histories of working before prison, workshops were spaces in which ‘outside’ identity could find expression. To younger and more subculturally-oriented prisoners, workshops felt like spaces of humiliation, offering only a pittance and closer staff supervision. The key point is that prisoners “use what is familiar” (1992/1977 pp. 240–241) to survive prison. Thus, although LTI disrupted prior relationships, aspects of earlier identity might well survive in the form of behavioural repertoires established by habit, and norms of ‘good’ behaviour in a certain role. Hence the older prisoners, while not still working in their old jobs or for their old bosses, still gravitated towards spaces in which they could perform as if they were.

‘Niches’ suggest that age at conviction will be an important moderator of adaptation, since many patterns of family and economic activity (and hence of habitual behaviour) are patterned on chronological age (Mayer 2009). We should expect to see ethical variation among LTPs, based on this variable.

The typology of responses to authority in *Psychological Survival* offers another seminal treatment of this issue. Cohen and Taylor (1972 Chapter 7) insisted that earlier biography drove adaptation, and used ‘ideology’ as the mediating concept, drawing parallels between how men in HMP Durham’s E-wing responded to authority before and during imprisonment. Two examples (from their original five) help to explicate the point.

First, former armed robbers, whose crimes involved daring and challenge and a ‘devil-may-care’ attitude to the law, ‘fought back’

in prison through confrontation: escape attempts and concerted, collective resistance. This was “obviously a carry-over from their outside authority relations” (1972 p. 154), and they also resisted ‘adjustment’ by refusing to accommodate themselves to prison conditions and demands. Resistant conduct attracted intensified controls, which grated and made prison life very frustrating. By contrast, former organised crime figures in the wing had operated in legal, semi-legal, and illegal economies, evading rather than confronting the law. Seeing themselves as respectable businesspeople, and maintaining close links with family outside, they were less oppressed by prison discipline and more willing to ‘adjust’; but found their lines crossed by restrictions on contact with loved ones outside prison, because of the link with former identity.

In each case, pre-prison repertoires of behaviour and moral norms were magnified or modified by several aspects of the prison regime. Ethical outcomes were patterned but unpredictable, because they are individual and subject to change: “ideologies may be partially or totally abandoned when they fail to help adaptation, or when they become unacceptable for other reasons” (1972 p. 179.)

With moral communication in mind, a secondary analysis by Fielding and Fielding (2008), based on archived letters between Cohen and Taylor and the Durham men, made intriguing additions. The Fieldings suggested that expressions of guilt, regret, and contrition from the prisoners had been underplayed in *Psychological Survival*, as had expressions of a readiness to change. Expressions of guilt were not (as Cohen and Taylor had implied) confined only to socially ostracised prisoners convicted of sexual offences. The Fieldings also showed that some prisoners attributed changes in their self-evaluation to reflection on their offending. This occurred in a specific ‘niche’: the education classroom, where Cohen and Taylor held their classes, which the men experienced as a more generative space for reflection than was available in what was otherwise an extremely impoverished regime. It afforded them a “chance to explore their [...] experience without worrying about being evaluated” by prison authorities (Fielding and Fielding 2008 p. 90).

This is significant: it indicates tensions between the forms of

subjectivity required to solve ‘inside problems’ and survive the sentence, and those implicated in further-reaching ethical change. Reserve, vigilance, introspection, and guardedness are certainly adaptive in the prison setting, but they are not necessarily compatible with undertaking a deeper questioning of one’s own reflexive self-image.

Summary—deterioration and adaptation

We can note several points to summarise the discussion in this section. First, the considerable variability in prison environments. Second, the same among prisoners. Third, the many possible styles of adaptation to imprisonment, with pre-prison biography an important influence on the ‘niches’ sought and the ethical practices they are used for. Fourth, that adaptive styles and meanings assigned to prison life will not necessarily be observable from outside; prisoners have many reasons to keep their thoughts to oneself. As with ethical life, adaptation is labile, and open to new representations taking root in the right circumstances.

All of this recommends an individual, *internal*, perspective on researching the life sentence. The following section explains how, following a lengthy pause during which the topic lay in abeyance, this perspective has become influential.

Recent research

Between the mid-1980s and around the turn of the current century, research specifically focusing on LTI tailed off, in part because it appeared that the most troubling moral question animating these investigations—broadly, whether LTI produced lasting harm—appeared to have been settled ([Wormith 1984](#)). A consensus had developed that it did not, and that at best, it acted as a behavioural and developmental “deep freeze” ([Zamble and Porporino 2013/1988 pp. 149–155](#)). Longitudinal findings ([Zamble 1992 pp. 421–2](#)) suggested that most LTPs found ways to “live in a world of their own” using niches and routines. As Zamble acknowledged, this finding could only be generalised to those serving sentences of up to ten years, but he suggested

that this group might in some ways be *better off* than shorter-sentenced counterparts, because the incentives of progression and release stimulated reflexivity and problem-solving. Under this consensus, research specifically on LTP populations largely ceased.

Research since around the early 2000s has challenged the ‘deep freeze’ consensus as flawed (for an overview of reasons, see [Liebling and Maruna 2005](#); for a subsequent restatement of key issues, see [Haney 2012](#)). More recent studies have tended to *subdivide* the long-term population (and prisoners generally), not seeking findings about prisoners as a homogeneous whole, but instead asking how specifically-situated people with particular backgrounds, aptitudes, and needs adapt. Since the present population of interest is male lifers, a full review of this wider literature is not the aim here, but key insights from some of these research subdivisions are worth summarising.

Gender

One relates to work on women lifers. Crewe *et al.* (2017b) showed that they found the pains of imprisonment more severe and more difficult to cope with than men. Among the reasons are the different aetiology of female violence, and the high likelihood that women who receive long sentences have experienced serial traumas and abuses before prison ([Crewe *et al.* 2017b](#); [Dye and Aday 2019 Chapter 6](#); [Leigey and Reed 2010](#)). Rehabilitative interventions for women appear particularly difficult to access, and are poorly operationalised in gender-sensitive contexts. Genders and Player (2022), for example, noted how women in a therapeutic programme had been directly questioned about why they had ‘tolerated’ violence and sexual abuse from former partners. Moreover, their ‘failures’ to control and manage emotions drawn out by therapy were associated by staff with elevated risk.

The insight here relates to male LTPs who have similar histories of trauma and serial victimisation. Such experiences are widespread among women, but present among some men, raising the possibility that similar patterns of emotionality and distress among male lifers might also be associated with risk. Simply

put, attempts to communicate morally about the offence and its background might, indirectly, summon distress and then punish it; but we lack empirical data which would say much about this question.

Trauma and mental illness

Another significant strand in recent research relates to mental illness and more specifically trauma. Chronic trauma and other mental illnesses can result in enduring personality changes, including mistrust, hypervigilance, and a predisposition to violence (Grounds 2005; Haney 2005; Maschi *et al.* 2011b, 2011a).

This has made trauma a prominent topic of practitioner discussion (of which Bennett *et al.* 2021 gives an overview), but the matter is complicated because to diagnose and treat trauma in the penal setting is not a morally neutral act, given its labelling and blaming functions. As the medical and moral anthropologists Didier Fassin and Richard Rechtman (2009 pp. xi–xii, 15–23, 87–94) have shown, trauma can moderate and dilute moral responsibility, where harmful actions were done under its influence. Trauma in an offender’s history can undermine the case for moral condemnation, and (like mental illness diagnoses in general) can mitigate sentences for even major offences like murder (UK Parliament 2020b sec. 321(10(c))).

The most crucial points to take from this discussion relate to the *moral* implications of trauma discourse. For an individual to have a trauma history recognised, acknowledged, and treated might be an extremely, even life-changingly positive experience: relieving shame or guilt, facilitating growth, building healing and generative relationships with staff, and serving as the foundation for later desistance (Hearn *et al.* 2021; Kazemian 2019; Petrillo 2021). On the other hand, if the same history goes unnoticed, untreated, is dismissed, or if intervention is slow or lacking, the message may be one of worthlessness or indifference. And either of these, if it softens blame and attracts sympathetic intervention, might dilute the censure delivered by the sentence.

Age and health

A good deal of recent research has also considered the specific effects of imprisonment on older people.¹³ One key insight is that prisons can be ‘institutionally thoughtless’ towards them. Coined by Elaine Crawley and Richard Sparks (2005; 2005a, 2005b), the term captured the criticism—now supported by a substantial body of research—that prisons fall short in supporting the physical health, associated care needs, and psychological and emotional distress experienced by older prisoners (e.g. Ahalt *et al.* 2013; Baidawi and Trotter 2016; Barry *et al.* 2015; Barry *et al.* 2020; Caie 2012; Harris *et al.* 2007; Hayes *et al.* 2012; O’Hara *et al.* 2016; Williams 2010).

For current purposes, though, the key questions relate to the impact of LTI as an existential problem, varying according to age at conviction. Evidence from phenomenological and ethnographic studies is mixed. Crawley and Sparks (2005b p. 349) noted that for people convicted for the first time late in life, imprisonment could be ‘catastrophic’: survival, never mind adaptation, was nearly impossible, since the “loss of status and respectability [...], privacy, loss of identity and loss of autonomy” were devastating, with further uncertainties and fears awaiting after release (Crawley 2004; Crawley and Sparks 2006; O’Hara *et al.* 2015; O’Hara *et al.* 2016; Tucker *et al.* 2019).

Set against this are studies finding that older prisoners sometimes adapt comparatively well. Emotional moderation, maturity, a disinclination to involvement with prisoner subcultures, and positive and warm relationships with prison staff have all been noted by scholars including Avieli (2021), who also showed older prisoners occupying roles associated with wisdom or mentorship. Significantly, Mann (2011 pp. 33–36), in a section discussing relationships with prison staff, attributes such adaptations to ‘imported’ characteristics.

Given this mixed evidence, it is likely again that the problems of imprisonment for the elderly are distinctive, but that, again, their responses will be quite individual. A key issue is how

¹³Research on older prisoners generally does not separate older lifers and LTPs from the broader mass. Some insights from this section are therefore inferred from undifferentiated studies.

the temporal burden of a lengthy sentence interacts with the life course. Ian O'Donnell (2014) uses the helpful concept of a 'pain quotient' (PQ): the proportion of life remaining which is expected to be lived in prison. But other factors are in play too. Research on older prisoners (e.g. Reed and Glamser 1979) has sometimes usefully distinguished between those who were *convicted when already older*, and those convicted younger who have *aged in place*. We saw above that Crawley and Sparks (2005b) identified the 'catastrophic' impact of a massive sentence on the first group. But it is significant that some of the examples they describe were people convicted of *historical* offences, who felt they had done nothing wrong (cf. Grounds 2005). Thus sentence length, age, health, questions of deservedness, and the hope or otherwise of an acceptable quality of life after prison, might all push individual prisoners into hope or despair. It is not *merely* age at conviction and prison time, but also attitudes towards the self and towards the legitimacy of one's predicament which are at issue:

Any prisoner's PQ can be ascertained objectively [...] [but while] the PQ indicates the scale of the challenge, it says little about how likely it is to be overcome. The second step requires the integration of this measurement with individual perceptions and preconceptions, the most important of which revolve around assessments of legitimacy [...] [C]onsider two prisoners of equal age and health status, who have arrived at the same point in sentences of identical length; the PQ will be the same [...] However, if one believes that the sentence received was comparatively light for the crime committed, and the other feels that their treatment was excessively harsh, the burden will be heavier for the latter.

O'Donnell (2014 p. 202)

On this evidence, age at conviction might influence adaptation and ethical life several separate ways. Prisoners convicted young might have more reason to hope for and work towards a post-prison future; there is evidence that this might motivate projects of work on the self (Crewe *et al.* 2017a, 2020). Conversely, for those given long sentences when very old, the sentence may

herald an ending with no new beginning. The key issue will not be whether life after prison feels ‘real’, but whether life in prison feels ‘real enough’ to be worth sustaining. Neither prison conditions nor sentence length, then, but the imagined futures which stretch before the subject, are the operative factor in adaptation. However, ethical life is not *conditional* on the prospect of release; prisoners serving life-without-parole sentences, who will not be released, demonstrate this by appearing to undergo many of the same changes as LTPs generally (Cunningham and Sorensen 2006; Johnson and McGunigall-Smith 2008; Leigey 2015; Sorensen and Reidy 2019; Sorensen and Wrinkle 1996). Put simply, LWOP prisoners are *coerced* into finding life *within prison* worthwhile, since the alternative is despair.

Perhaps the critical point here is that ethical action—in the sense of projects of self-change or self-care based on moral reflexivity—implies an imagined *telos*. It might be temporally and spatially distant, or near-at-hand, and within or without the prison, depending on circumstances. Either way, working with an idea of ‘the good’ implies a goal, and it is the temporal and spatial location of the goal that might be the significant factor. Yet again, systematically produced empirical evidence facilitating comparisons within the LTP population on this basis is lacking.

Subjectivity, interiority, and reflection

A final feature of recent research on LTI—not, this time, work subdividing the long-term population for evidence of effects on particular groups, but simply a distinctive strand—has been something of an ‘ethical turn’. There is a new focus on reflexivity and ethical thinking, and a recognition that prisons can be morally communicative environments.

Resistance through interior freedom

Some of this work has grown out of investigations of the intrusive, demanding forms of psychological intervention which characterise LTI in the UK in particular (Crewe 2009). An interest in reflexivity and interiority within this topic can illuminate

long-standing questions of interest to prison researchers, such as the location, nature, and meaning of prisoner resistance. For Crewe's (2009 pp. 179–191) 'stoics'—lifers later in the sentence, highly adapted and concerned to avoid what Sapsford (1979) described as 'aberrations' which might delay their release—resistance was no longer enacted through physical confrontation, but inwardly, through a kind of knowing, ironised response to the prison's demands. Suspicious that psychological power was setting them up to fail against impossibly high expectations, and aware that expressions of impatience, frustration or resistance could knock them back, they therefore (like adherents of the philosophy whose name they shared) "practise[d] repression of emotion, indifference to pleasure or pain, and patient endurance" (OED 1989b), moulding their wills to their situation and not *vice versa*. 'Stoics' longed to be released, but not at the price of their personal integrity. Here we see the value-defensiveness and backstage behaviours implicit in earlier accounts of institutional subcultures (Goffman 1961; Sykes 2007/1958), but expressed through private projects, rather than collective—and political—demands for recognition.

Similarly, Crewe *et al.* (2020 pp. 183–188) reported that lifers who were well-adapted and past the troubled early sentence stages demonstrated a conformity "oriented to the future more often than the present" (Crewe *et al.* 2020 p. 185). Concerned to "limit conflict and suppress frustration" (lest these show up later, damagingly, in prison files), they sought practices and outlets which helped soothe and manage troubling emotions, or which helped them disengage from provocative people and situations. Significantly, the non-compliance evident in Crewe *et al.*'s sample' *also* took future outcomes as its object: for instance, some participants took judicious, future-oriented risks by using illicit mobile phones to sustain a depth and intimacy of family contact which would otherwise have been impossible. They expected this to yield benefits after release, which in turn they expected to be worth the risk. Others, meanwhile, reported complying in prison because they thought it was, simply, the right way to behave, even though they were often frustrated and annoyed by how the prison treated them in response.

Interiority and solitude

Research on segregation and solitary confinement offers an uncluttered perspective on subjectivity and reflexivity. The effects of such environments are always controversial and can be extremely harmful (e.g. [Haney 2018](#)); but some prisoners nevertheless *choose* segregation and solitude ([Laws 2021](#)), and even some upon whom it is forced experience unforeseen benefits, along with inevitable pains and difficulties. As O'Donnell ([2014 pp. 60–64](#)) points out, outcomes such as the loss of self can be terrifying, but have also been the explicit aim of spiritual practitioners for centuries.

The importance of this work to the wider study of life and LTI relates to the dislocations enacted by imprisonment. Though not all prisoners face extended periods of solitary confinement, the fact that some do, and find in it a form of release, should sensitise us to the potential for even extremely difficult prison experiences to produce positive ethical change. One reason might be that they disclose the individual's capacity to survive *in extremis*. Another might be that they push people into a more elaborated and 'reinterpretative' set of personal practices, affording the practitioner "a bearable psychological environment where [...] tight confines [...] can be perceived and felt differently" ([O'Donnell 2014 p. 255](#)).

To take an interest in interiority as a form of 'freedom', then, is not to suggest that LTPs are at liberty to do as they wish, nor that prisons are any less dehumanising or painful than they are, nor to imply that the freedom they do stake out is always about resistance. However, it does indicate that private, and sometimes quite sophisticated, ethical projects can carve out zones of control and autonomy, within what would otherwise appear quite domineering environments.

Interiority and moral communication

Finally, in relation to reflexivity, there has been something of an increased focus in recent years on moral evaluations relating to the index offence, with a particularly strong emphasis (given its importance in the specific context of life sentences) on the moral weight of a conviction for murder.

Until recently, we had very little insight into these matters. Empirical penologists have tended not to consider participants' offences in detail, and penal theorists have tended to repeat the legal fiction that courts allocate censure and prisons deliver it. It is implausible to claim that the experience of punishment does not independently communicate censure, and hence it has been challenged by an increasing penological interest in reconceptualising and retheorising the experience of censure and moral communication during punishment (Hayes 2016, 2018; Schinkel 2014a, 2014b; Sexton 2015).

Murder and homicide feature prominently in studies taking this approach. What emerges is a strong picture of contrition and moral self-reform. For example, Crewe *et al.* (2020 Chapter 5) reported that many prisoners find the offence “unambiguously shameful” (p. 137), though in their work the variability of the offence of murder (see Section) is handled in passing, not as a structuring variable for the analysis. Irwin (2009), meanwhile, offers a fuller account of murder's variability. His interview data are used to challenge the idea that murder is *always* an event of equally “frighten[ing] and revolt[ing]” implications, and he makes contrasts similar to those made between “ordinary” and “extraordinary” murders in Section . He then sets out (2009 Chapter 3) an analysis of lifers' adaptive styles, and develops a widespread and fairly invariant theory of “awakening”, whereby lifers' contemplation of *the offence itself*—something which Crewe *et al.* (2020) concur is extremely difficult to face up to, and may be resisted for years—eventually leads them to “fully appreciate that there has been something fundamentally wrong with their former behaviour” (Irwin 2009 p. 43).

Meanwhile, Steve Herbert (2019 p. 15; see also 2018) states that his goal is not to *explain* the ‘transformations’ his sample underwent in prison—hence he does not draw contrasts between offences as Irwin did. But Herbert, too, posits a broad process of development whereby his sample of life-sentenced prisoners reflect on their offences (usually murder), and come to “see themselves as existing within a web of interdependent relations” (2019 p. 15), and as being obligated to take care of others.

Taken together, and allowing for variations they acknowledge among prisoners who partially or fully maintain innocence,

these studies and others (Appleton 2010; Ferrito *et al.* 2020; Liem 2016; e.g. Robinson-Edwards 2022) tend to emphasise expressions of moral responsibility and remorse in their samples, while doing so in a way that is rather undifferentiated. This seems at odds with other findings (reviewed in more detail in Chapter 4) to the effect that prisoners convicted of homicide often *dispute* and *deny* guilt.

There are exceptions to this general characterisation of offence-related reflexivity as an undifferentiated process. Martín Hernán Di Marco, for instance (2022, 2023; 2021), in a string of papers based on interviews with men imprisoned for homicide and femicide in Argentina,¹⁴ found that they did *not* find universal meaning in the offence, but instead expressed responsibility (and denied it) in a range of different styles, some shaped by official discourses about their violence, and some by wider discourses of masculinity and femininity.

This kind of variability is not always visible in the main strands of recent LTI research. Irwin (2009) and (to a lesser extent) Liem (2016) each present broad inductive typologies of their samples' offences; but in most of the other English and US research, the main variability in offence thinking which unambiguously appears to affect adaptation relates to prisoners in two groups: those who maintain innocence (who describe difficulties with progression and parole—see Burt 2024), and those convicted of murder using dubious doctrines of guilt such as 'joint enterprise' or felony murder (whose circumstances are diverse, but who usually describe difficulties adapting to serving a drastic sentence for offences in which they often played secondary parts—see Hulley 2021; Hulley and Young 2022).

In short, recent efforts to focus on the offence fall into two groups. One group describes responses to punishment, often brings these into dialogue with penal theory, and takes an explicit interest in the offence *in relation to wider moral communication occurring within the prison* (e.g. Ievins 2023; Schinkel 2014a). These authors describe the *form* and *content* of moral communication, and the messages that prisoners receive, which are often confused, or divergent from those delivered by courts or intended by the law, but they are nevertheless meaningful. Second, there

¹⁴Femicide is an aggravated form of homicide in Argentine law.

are descriptive accounts of adaptation to imprisonment and of concepts like ‘transformation’, which consider the offence as a factor within this process (and often accord it considerable importance), but without making structured links to moral communication, or necessarily subdividing it to produce systematic comparisons. The research described in [Chapter 3](#) sets out to push this situation forward.

Discussion: concepts and practices of ethics and their contribution to the field

In opening this chapter, I set out a brief sensitising definition of the term ‘ethical life’, noting several key features:

- Ethics arises from reflexivity and self-description concerning who one is and whom one ought to be;
- Ethics draws on:
 - innate capacities, exercised in encounter with others, and relating to the ability to see oneself through others’ eyes;
 - cultural representations about patterns of conduct and selfhood which are desirable or ‘good’;
- Ethics is culturally specific, and learned, but also open to change, particularly via personal crisis or shifts of perspective;
- Ethics sometimes discloses personal faults, producing projects of ‘work on the self’.

This discussion, in closing the chapter, attempts to synthesise key issues from the various literatures reviewed in earlier sections, and to show how conceptual and theoretical resources from the anthropology of ethics can help with understanding them.

Key issues in the literatures reviewed

Three key issues emerge from the review of literature on LTI and moral communication. In relation to *the offence of murder*, we saw how moral variability, arising from the different wrongs

involved in murder, is collapsed into a single sanction by the law. This suggests that we should expect to see a wide range of self-evaluations among people convicted of homicide, regarding the obligations arising from the crime. These will be patterned on their prior attitudes to and experiences of violence, but, in their diversity, not always well-reflected in the permanently disabling nature of the life sentence.

In relation to *the form of the life sentence*, we noted patchy and uneven forms of moral communication, occurring most explicitly, directly, and intentionally in relation to risk management practices, but also unevenly and inconsistently at other times and through other channels. Messages about the moral status of murder may come from a range of sources, in ways currently only partially illuminated by empirical evidence.

In relation to *the effects of LTI*, we noted a recent resurgence of interest in the topic, a growing interest in interiority, subjectivity, and reflection, and several key effects of the sentence: *first*, a broad tendency for crisis early in the sentence to segue into a reserved, self-controlling subjectivity; *second*, within this broad tendency, evidence of variability based on individual factors such as age at conviction, innocence, offence type, and pre-prison biography, not all of it fully explored; *third*, strong indications that within lifers' compliance may often be found a substantial exercise of freedom, occurring mostly privately and within the self; and *fourth*, a varied set of recent findings, some of which accord the offence a hitherto unacknowledged role as a major driver of adaptation, while others posit a more complex and variegated role.

Bringing the three together, we might suggest that people convicted of murder in England & Wales are all subjected to a very strong moral label, are likely to react to it in varied ways contingent on their personal histories, and may then have their attitudes challenged to varying degrees, with some receiving very intense intervention and others not, according to assessed risk. What we lack is: a) systematic empirical data from which the trajectories of ethical development could be sketched; and b) conceptual tools with which to make the sketch.

Borrowings from the anthropology of ethics

The anthropology of ethics helps to explore these questions for several reasons. This section outlines four key conceptual borrowings.

The immanence or ‘ordinariness’ of ethics

One lies in what Michael Lambek (2018) calls the *immanence* of ethics—the idea that, because the capacity for ethics is innate, and relates to interaction, thus it is potentially in play whenever we encounter others’ evaluations of us. The claim is that human beings *constantly* think evaluatively:

It is important not to confuse [this claim] with the quite different question of how often people meet or disappoint [...] expectations or hopes. The claim on which the anthropology of ethics rests is not an evaluative claim that people are good: it is a descriptive claim that they are evaluative.

Laidlaw (2013 p. 2)

This has obvious relevance in prisons, which exist partly to deliver evaluations of moral worth, and partly to subject prisoners’ actions to evaluative description. We should attend to how they do so. Yet as we saw in Section , moral communication in prison can be uneven, patchy, inconsistent, and haphazard: although evaluation may be constant, painful or unwelcome, interactions with it can be blocked out, and prisoners may make active ethical choices *either* to accept *or* to reject moral norms about their offending, for example those which hold that they ought to a) feel remorse and b) perform reformatory work on themselves.

A concept of freedom

Thus a second way in which anthropological work can help is with its concept of *freedom*. Laidlaw (2002) argues against understanding freedom as a structure-defying liberation from

constraint by power. Instead, drawing on the later Foucault (1986, 1988), he suggests a conceptualisation closer to Isaiah Berlin's (2002 p. 178) 'positive liberty': "the desire to be governed by myself, or at any rate to participate in the process by which my life is to be controlled". In these terms, freedom is not achieved by escaping power (which is never more a fact of life than in prison), but by reflecting on oneself in the light of the moral messages it promotes. For Laidlaw (2002 pp. 321–322), freedom is how one responds to "invitations or injunctions to make oneself into a certain kind of person".

The advantage of this way of thinking is that it frees us from stale questions such as whether censure is delivered clearly and received clearly (as if this were monolithic, or as if perfect transmission of the message would result in perfect reproduction within the individual). It focuses instead on what prisoners *do with the censure they receive*. Ethical life, to the extent that it is free, is not static or rule-bound, but consists in the meaning given to moral principles by individual subjects (Faubion 2012 p. 73). There is space, at the individual level, to reflexively investigate moral principles and to follow freely chosen 'modes of subjectivation'. For example, a subject might resolve not to follow a moral rule; or to follow it in an ironised or insincere manner;¹⁵ or to develop the capacity to submit to rules without experiencing humiliation. This kind of freedom can operate within even quite overbearing relations of power, and therefore has obvious applicability to prisons.

Ground projects

A third anthropological concept useful in our consideration of ethical life in prison is that of the *ground project*. Cheryl Mattingly (2014 p. 12) uses the term to describe ethical commitments:

...so deep [...] that [the holder] might not care to go
on with their lives without them, or would not know

¹⁵This recalls the anthropologist James Scott (1990 p. v), who described 'hidden' practices of resistance well summarised by the Ethiopian proverb he used as an epigraph: "When the great lord passes the wise peasant bows deeply and silently farts".

themselves if they no longer had them.

In Mattingly's work, they involve care—of the self and/or of intimate others—and they call upon individuals to develop qualities appropriate to the accomplishment of care. Crucially, ground projects are a kind of narrative, a mediation which helps moral principles find their way into 'first-person' ethics.

Ground projects are, potentially, subject to change, under the influence of the reflexivity and subjectivation described above. Ethical life does not simply consist in "inhabiting a fixed category and doing the things that [it] normatively prescribes" (Mattingly 2014 p. 20), and people do not experience the pull of ethical obligation simply because the associated principles are 'out there' (though they are). Rather, the force of moral rules is experienced at specific junctures in lived time, when they become relevant to 'ground projects'. Mattingly might suggest, for example, that the moral precept against killing might not strike everyone with full force at the same point in life, or in the same way. If the subject is a parent separated from children by lengthy punishment, for example, then it might be this pain, rather than the knowledge that one has broken an important moral principle, which becomes the focus for remorse and self-reproach. Perhaps the relationships involved can be rebuilt, perhaps not; either way, new personal qualities and new ways of thinking may be required.

The usefulness of the concept is, therefore, that it highlights the potential role of personal crisis, dislocation, and rupture (cf. Zigon 2007). Ethical thinking relating to ground projects might be unreflective much of the time, and even habitual. But habits can become compromising, if they degrade our ability to respond ethically to new circumstances or to fulfil our obligations; such situations call for what philosopher Sylvie Delacroix (2018) terms "teleological plasticity". Simply put, dislocations and ruptures are likely to summon reflection and re-evaluation, which may in turn push subjects to develop new qualities in themselves: for example, the ability to care for children from within prison—or the ability to accept estrangement. All this ought to sensitise us (as the study of solitary and segregation can) to pay particular attention to circumstances which generate pressure on the self.

Ethics and ‘morality systems’

A final resource from anthropology helps to handle the moral communication inherent in risk management practices, and the demands they make of prisoners. The entangling and alienating nature of these demands is a distinctively painful feature of indeterminate sentences, and can cause prisoners to ‘narrow down’ their aspirations (Crewe 2011a, 2011b; Rennie and Crewe 2023). Some scholars have also made the related argument that risk practices attenuate the civil and human rights of ‘risky’ subjects by undermining their autonomy (Armstrong 2020; Genders and Player 2014, 2022; Harris and Stanley 2018); these arguments make an implicit claim that to do this is immoral. Risk practice imposes burdensome and painful demands on prisoners, some of which are difficult or impossible to meet. This is crucial to the moral case against them. Yet controls are imposed under an *explicitly ethical* rubric: abstract goods—such as public protection, crime control, or the ‘prevention of future victims’—are invoked to make controls appear *eminently reasonable*. Further complication is added by the fact that some prisoners *appreciate* risk management, *willingly submit* to its demands, and *feel pain* when its communication is indistinct or absent (Crewe and Ievins 2021; Ievins and Mjåland 2021), suggesting potential legitimacy and illegitimacy in this, as in any other, exercise of power.

How can we best understand the moral demands made by risk practice, and their apprehension by prisoners into ethical life? Some help comes from the philosopher Bernard Williams’s distinction between ‘ethics’ and ‘morality’ (Chappell and Smyth 2018; Williams 2011). More broadly, the distinction is controversial, and has been approached differently by different anthropologists (for overviews, see Fassin 2012; or Laidlaw 2017); but for Williams (who influences many of them, including Mattingly), ethical considerations relate to human flourishing, and apply to individual lives *contingently*. Norms might be widespread, commanding broad assent and bringing obvious practical benefits, but (as Mattingly notes) individual human beings do not necessarily know they exist, or believe a given norm is relevant *to them*. For Williams, also, norms do not apply all at once. Balancing them, in practice, is a matter for

deliberation by persons in particular contexts—an argument for individual autonomy, and potentially for accountability. Since the Enlightenment, however, Williams argues that ethical considerations have increasingly been treated as though, always and everywhere, they produce *moral obligations* of a more universal kind:

[T]here is a pressure [...] to represent every consideration that goes into a deliberation and yields a particular obligation as being itself a general obligation; so if I am *now* under an obligation to do something that would be for the best, this will be because I have some *general* obligation [...] to do what is for the best.

Williams (2011 p. 175), emphasis original

On this view, *ethics* is “less about decisions and the rules that should govern them” and more about the development of virtue: how individual people reflect on what would enable them to flourish, and seek to develop or maintain the personal characteristics which would support this project (Keane 2016 p. 18). Ethics, then, relates to how people process the ethical considerations which apply *to them*. *Morality*, however, emerges from a species of ethical consideration: what Webb Keane (2016 p. 20) describes as “more or less context-free, more or less explicit, systems of obligations”, represented and promoted as authoritative by institutions. Elsewhere, Keane (2016 p. 200) adds:

...morality systems are typically easy to see—they announce themselves through their rituals, disciplines, rules, texts, authorities, slogans, laws, and justifications.

Morality, then, represents a kind of codification: an attempt to represent considerations in the form of ever-proliferating general rules, which trump and sideline more individual considerations. Williams had in mind the moral codes promulgated by religions, or the systematic ethical theories (e.g. utilitarianism, effective altruism, deontology) promoted by philosophers. But the body of rules and policies by which the state governs ‘dangerous’

offenders can also be understood as a ‘morality system’: it codifies norms about personhood and good conduct, treats them as obligatory, and (unlike most religious codes or ethical theories) backs its demands using the state’s monopoly over legitimate coercion. This is a vital component of how the life sentence communicates permanent demotion (see Section): it treats lifers’ *actual* ethical considerations as though they are permanently subordinate to the *potential* ethical considerations associated with their risk, and, as such, constrains the restoration of liberty which might be possible after the sentence.¹⁶

Research questions

From this review of research literature on murder, LTI, and moral anthropology, the following research questions were generated to guide the research:

- How do men respond ethically to being convicted of murder and to serving the mandatory life sentence?
 - How do they respond to the moral messages received, via conviction and punishment, about the offence of murder and their own past conduct?
 - What ‘ground projects’ and ethical priorities do they adopt as the sentence proceeds?
 - How do their personal ethical priorities interact with the demand to self-govern and ‘reduce risk’?
 - What are their experiences of hope and meaning, and how do these alter the experience of punishment?

Methodological and ethical aspects of the research done to answer these questions are described in [Chapter 3](#).

References

¹⁶This will be relevant to [Chapter 6](#)’s treatment of risk.

Methods and ethics

Researching life imprisonment in the shadow of murder

This chapter elaborates the design and methods used for research investigating the questions developed from the literature review in Chapter 2: a two-site, cross-sectional, interview-based study of life-sentenced prisoners ethical subjectivity. It goes on to describe the two research sites chosen for the study: one, a category-B training prison holding long-term prisoners, with a reputation for disorderliness and violence; the other, a category-D or ‘open’ prison undertaking the complex task of preparing high-risk prisoners for release at the end of very long periods in custody. The chapter goes on to describe how the research methods envisaged at the design stage were implemented and adapted in practice. A final discursive section reflects on the impact of an extraneous event which occurred while fieldwork for this study of punishment for murder was underway: the murders by a former prisoner of two people at a conference the author was attending.

Chapter 2 argued that the empirical study of long-term imprisonment can be enriched by focusing on prisoners’ first-person ethical lives, and developed a set of research questions for the PhD. This chapter elaborates the research choices flowing from those questions (see Chapter). Section describes the research design and methods selected, before Section elaborates on the choice of sites. Section describes the practicalities of carrying out the research. Finally, Section summarises key points in the chapter and reflects on the nature of the knowledge produced by the PhD. I describe the shadow cast over the research by the London Bridge attack of 2019, during which I was present

while a former prisoner stabbed five people, killing two, before being shot dead by the police.

Research design

I designed a cross-sectional study to be conducted at two contrasting sites. It aimed to produce a rich description of participants' first-person subjectivity, not neglecting the social contexts in which these operated. A cross-sectional design, with a sample varying more broadly and systematically on two variables (age at conviction and offence type), would enable the model of adaptation to long-term imprisonment posited by Crewe *et al.* (2020) to be tested against a broader sample.

Choice of methods

A focus on subjectivity made ethnographic interviews an obvious primary data collection method. These aimed to establish what Sherman Heyl (2014 p. 369) calls “respectful, ongoing relationships with [...] interviewees, including enough rapport for there to be a genuine exchange of views and enough time and openness [...] to explore purposefully [...] the meanings [participants] place[d] on events in their worlds”.

The choice entailed certain assumptions. First, that *personal engagement* between researcher and subject is the key to understanding a particular culture or setting (Hobbs 2006), along with an analytical perspective one or two (but not more) steps removed from research participants. A second assumption is that the researcher must *participate* in some way, at least in the research setting if not in the activities under investigation (Brewer 2003).

This PhD, however, is not ‘pure’ ethnography: neither principally observational, nor subjecting me to the same social constraints or pressures as participants. In ‘pure’ ethnography, accounts collected during participant observation are generally understood to be more valid (Hammersley 2018 p. 8). But I exited the field daily, not merely at the end of the study, and was

not subject to the same pressures or constraints as participants, some of whom will still be in prison when I am in my sixties.

On the other hand, neither was the design *non-observational*: as [Chapter 6](#) perhaps makes most clear, some of the findings rely on a characterisation of the ‘feel’ of the two fieldwork prisons, and from the start I expected the research process *around* the interviews, as much as the interviews themselves, to render some aspects of the research topics ‘intelligible’ ([Liebling 2014](#)). Hence, I used observational notes and notes on prison documents (see Sections and) to triangulate and contextualise the interviews. Documents, in particular, helped to perform what Mona Lynch ([2015 p. 277](#)) calls “translational work [...] between the institution and its clientele”. In this case, the translation related to risk, a topic on which documents offered useful, context for the interviews.¹

Approach to sampling

I aimed to sample for maximum variability among interviewees, on two variables: sentence stage, and the ‘moral seriousness’ of the index offence(s). Sentence stage was important because coping and adaptation styles vary over time during a long prison sentence ([Crewe 2009](#); [Crewe et al. 2020](#); [Schinkel 2015a](#); [Zamble 1992](#); [Zamble and Porporino 2013/1988](#)). The second dimension—‘moral seriousness’—was of interest for reasons outlined in [Chapter 2](#): because I expected the circumstances of the offence, the identity of the victim, and feelings of culpability to influence the experience of censure. Simply put, I expected distinct kinds of murder to produce different ethical ramifications. The sample had to facilitate comparisons on this basis.

[Figure 1](#) displays an early sampling frame. The original intention was to obtain a list of eligible prisoners from the prison, stratify it by sentence stage and tariff length as per the two axes of the

¹Risk is the major topic of [Chapter 6](#). I rejected, early in the research process, the idea of observing offending behaviour programmes (OBPs) or psychological interviews as a means of observing risk practice, reasoning that these interactions would be driven by institutional agendas, and hence undercut the kind of open, participant-led biographical exploration I wanted interviews to produce.

frame (with tariff length treated as a proxy for seriousness, see Section), and then to choose individuals at random to approach about interviews. I had used a similar approach with qualified success for the pilot research, believing it could mitigate the selection bias inherent with a convenience or snowball sample.

Figure 1: The sampling frame, as originally conceived²

	Early sentence/Swaleside	Late sentence/Leyhill
Heavier censure/tariff	approx. 15 cases	approx. 15 cases
Lighter censure/tariff	approx. 15 cases	approx. 15 cases

The sampling approach necessitated a two-site design, since prison environments vary substantially in their ‘depth’, or metaphorical distance from the outside world (see [Crewe 2021](#)), and (more prosaically) late- and early-stage prisoners tend not to be held in the same prisons. This introduced an additional layer of analytical complexity, in that different sites have different cultures; but it also produced strong contrasts, enabling the refinement of existing theory by testing it against more varied cases ([Becker 1998](#)).

²Section describes how the sampling method was adapted in practice.

Access

Accessing prisons for research can be difficult, particularly where ethnographic methods are used (e.g. [Jewkes and Wright 2016](#); [Stevens 2020](#)). However, in this case it was straightforward. My impression was that this was for three reasons: first, the networks and close practitioner links of my department and supervisor; second, that the topic (long-term imprisonment) was of known interest to HM Prison & Probation Service (hereinafter HMPPS); and third, because of my previous experience conducting prison research and working in long-term prisons professionally. All three seemed to open doors.

Expecting the access application process to be slow, I applied to HM Prison & Probation Service's National Research Committee (NRC) in February 2019, as early as practicable during the first year of the PhD. After responding to the NRC's questions in April, I received confirmation in May that I could proceed with the study. I contacted the governors of both prisons soon thereafter. They passed me to other contacts, and from this point planning for fieldwork began.

The sites

In this section, I describe the environment, function, population, regime, and climate of the two research sites: HMPs Swaleside (a category-B training prison) and Leyhill (a category-D open prison). Swaleside is the only prison in the Long-Term and High-Security Estate (LTHSE) lying within daily commuting range of my then home in London. Leyhill, meanwhile, was one of a few open prisons specialising in resettling lifers. I had worked briefly at both prisons in a previous job, and was familiar with the sites and a couple of staff contacts. Both, besides their differing functions and atmospheres, were said by prisoners to have distinctive characteristics, as compared to functionally equivalent prisons elsewhere in the estate. Their reputations were well captured by nicknames: 'Stabside' (or 'Stab City'), and 'Delayhill'.

Swaleside

Role, function, and population

Swaleside has been managed in the public sector since opening in 1988, and has always held men in the initial stages of long sentences. Long considered a ‘complex and challenging [prison]’ (HM Chief Inspector of Prisons 2019a, para 1.2), it is “unquestionably a difficult place to run” (HM Chief Inspector of Prisons 2019b p. 5). This is a result of its burgeoning size and complex functions. Abutting two other prisons on a sprawling rural site on the Isle of Sheppey in Kent, for many it is the first port of call following conviction. For others, it represents a step onwards and ‘down’ from the maximum-security dispersal prisons.³ Thus it mixes prisoners who are young, disaffected, and emotionally volatile with others old and experienced enough to be capable of concerted and organised resistance.

The four original wings (A to D) date from 1988, are of a cruciform short-spur design, and house 126 cells per wing. A-, C- and D-wings house main population prisoners, and B-wing those who are segregated for their own protection. Part of D-wing is an induction unit. Four more wings, added in 1998-9 (E- and F-wings) and 2009-10 (G- and H-wings), have since more than doubled the original capacity of the site. They are of a different design, with longer L-shaped spurs; E- and F-wings adding 120 cells each, and G- and H-wings 179 cells each. A substance misuse recovery unit operated by the Forward Trust occupied one spur of E-wing, and the whole of F-wing was the ‘Pathways Unit’, a Psychologically Informed Planned Environment or ‘PIPE’ managed jointly by prison and NHS mental health staff. G-wing and H-wing completed the residential provision, with G-wing having one lifers-only spur, and H-wing housing exclusively men convicted of sexual offences.⁴

Besides the wings, there was a range of other provision: a 25-cell segregation unit, an inpatient Healthcare unit, a large

³Swaleside, having previously been managed regionally or as a cluster with the other two Sheppey prisons, has since 2017 been with the dispersal prisons and other main category-B training prisons in a single management group (the Long-Term and High-Security Estate or LTHSE).

⁴Participants were recruited from every wing except H.

workshops block, an education department operated by Milton Keynes College, and an Attitudes, Thinking, and Behaviour (ATB) department delivering OBPs. Despite its diverse facilities, Swaleside has experienced persistent difficulties in delivering a full regime, with the prison scoring particularly poorly in recent inspections for placing prisoners in purposeful activity.

During fieldwork, its population stood at 1,077 ([Ministry of Justice 2020a](#)). There were just three releases during this period; almost all prisoner movements were transfers to and from other prisons. Figure 2 describes Swaleside's population during fieldwork, subdividing it by offence type (Figure 2a), ethnicity (Figure 2b), and age (Figure 2c). Three main points should be noted. First, that around seven in every ten prisoners there were serving sentences for serious offences involving physical and/or sexual violence. Second, reflecting the prison's proximity to London, that minority ethnic groups are over-represented in the population, especially the 282 Black prisoners who represented just over 25% of the prison's population. Third, Swaleside's population contained a substantial number of younger men: one-third were in their twenties and just under two-thirds were aged under forty.

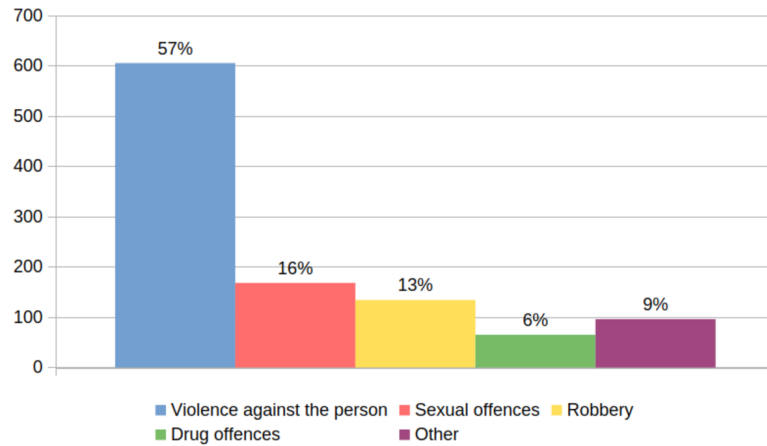
In 2018, 34% of prisoners at Swaleside were serving indeterminate sentences, with a further 58% serving determinate terms of 10 years or more ([HM Chief Inspector of Prisons 2019b](#)).

Culture(s), regime, and climate

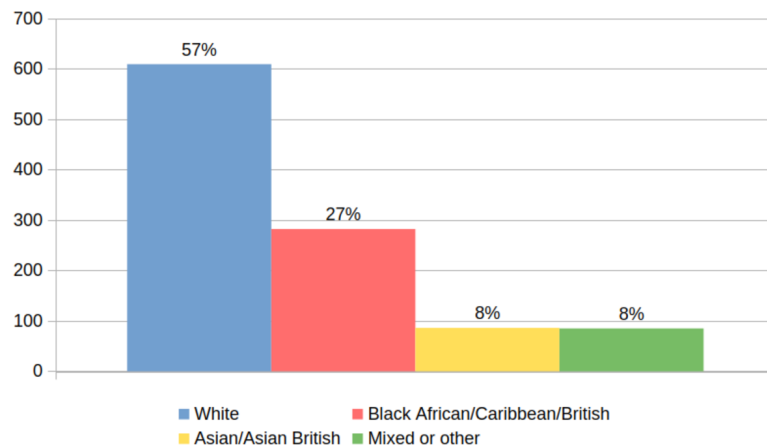
Swaleside faced many difficulties during the 2010s. These were driven partly by the growing numbers of young men serving very long sentences, and partly by persistent staffing problems: shortages, high turnover, and retention difficulties, particularly with experienced staff. By 2016, the prison was in a state of 'drift and decline' ([HM Chief Inspector of Prisons 2016 p. 5](#)) and was reputed for violence: assaults by prisoners and staff use of force were both high. There was a murder in 2015, and major disturbances in December 2016 and December 2017 largely fuelled by high levels of drug use ([HM Chief Inspector of Prisons 2019b p. 24](#)). By the time of the research, the prison had "beg[un] to emerge from years of turmoil" ([Liebling *et al.*](#)

Figure 2: Swaleside's population during Q4 of 2019 ([Ministry of Justice 2020a](#))

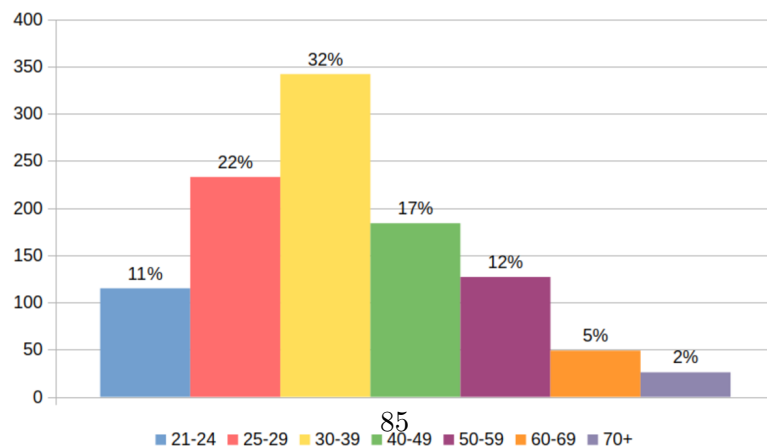
(a) by main offence (N=1,068)



(b) by ethnicity (N=1,062)



(c) by age (N=1,076)



2018). Its regime was more predictable, partly because of its 2017 reorganisation into the then-new LTHSE group of prisons, which brought a more generous staffing profile. Even so, low employment rates and insufficient purposeful activity remained a persistent criticism by monitoring bodies (HM Chief Inspector of Prisons 2019a, 2019b; Independent Monitoring Board 2019), and there were pockets of instability and disorder, but with staff more in control.

For LTPs, the prison also had its attractions: single cells and in-cell telephony, particularly, and some preferred its less controlled environment over that in dispersal prisons. Lifers at Swaleside, while sometimes criticising its disorderliness, seemed more concerned about *progression* than about *immediate safety*. These attitudes are explored further in Chapter 6.

Leyhill

Role, function, and population

HMP Leyhill is a category-D (or ‘open’) prison between Bristol and Gloucester, on an orderly, clean, rural site beneath the Cotswold escarpment, surrounded by green space and trees. Opened in 1946, it was completely rebuilt in the 1970s and 1980s, adding new residential blocks (A- or Ash and B- or Beech units) and a dining area and kitchen. New visits, reception, chapel, health-care, industries, education, and PE facilities were added from 1990; C- or Cedar unit, new accommodation, followed in 2002, as did a palliative care suite adjoining Beech. There are large contracts workshops, employing many prisoners on-site (rather than on day release). Despite the drab, icy weather during fieldwork (in January and February 2020), my first impressions were of a prison far more benign than Swaleside:

It’s so quiet! Staff and prisoners talk rather than yelling, and there’s birdsong everywhere. Though [Ash and Beech] are larger than some wings [at Swaleside], there is a blanket of hush [...] It’s sleepy. The first thing I saw today was a man sitting on a bench feeding monkey nuts to a squirrel.

(Fieldnotes)

During fieldwork, Leyhill housed a population of 510, close to its capacity of 515 (HM Chief Inspector of Prisons 2021 p. 5). Figure 3 subdivides them by offence type, age, and ethnicity. Three contrasts with Swaleside should be noted. First, the proportion convicted of sexual offences (Figure 3a).⁵ Second, Leyhill's status as a virtual ethnic and national monoculture (Figure 3b).⁶ And third, the skew towards older prisoners (Figure 3c): the most numerous group at Leyhill were in their fifties.

The prison's Independent Monitoring Board (2020 p. 7) reported that in late 2019, around two-thirds of Leyhill's population was indeterminately sentenced, with just over a third serving life sentences.

Leyhill's role, then, is to prepare long-term prisoners for release, including some who have been in prison for two, three, or even four decades. This is "a complex and challenging task" (HM Chief Inspector of Prisons 2017 p. 5) and typically not achieved quickly: at the most recent full inspection, 39% of the prison's population had resided there for over a year, and 12% for two or more years. The prison released 263 prisoners during 2020, an average of approximately sixty-five each quarter.⁷ Since this figure includes determinately sentenced prisoners, lifers in the prison are likely to be disproportionately represented among long-stayers; indeed, two participants reported stays of over five years.

Culture(s), regime and climate

Leyhill's resettlement function and population profile meant that it managed a different portfolio of risk to Swaleside. Prison

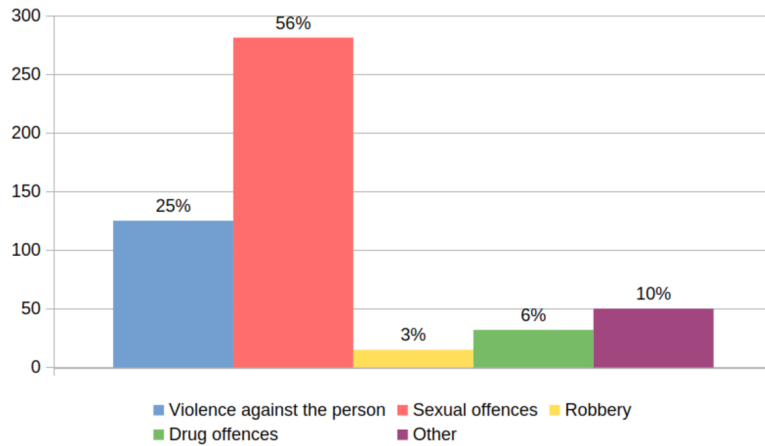
⁵Proportionally, this number had quadrupled between the prison's 2012 and 2016 inspections (HM Chief Inspector of Prisons 2012 p. 22; 2017 p. 5).

⁶This partly reflects the longstanding policy of deporting foreign nationals at the end of their sentences. Ministry of Justice (2020a) figures showed that, during fieldwork, just 7 people at Leyhill (1%) were foreign nationals, with the remaining 503 (99%) British; at Swaleside, around 15% were foreign nationals and 85% British.

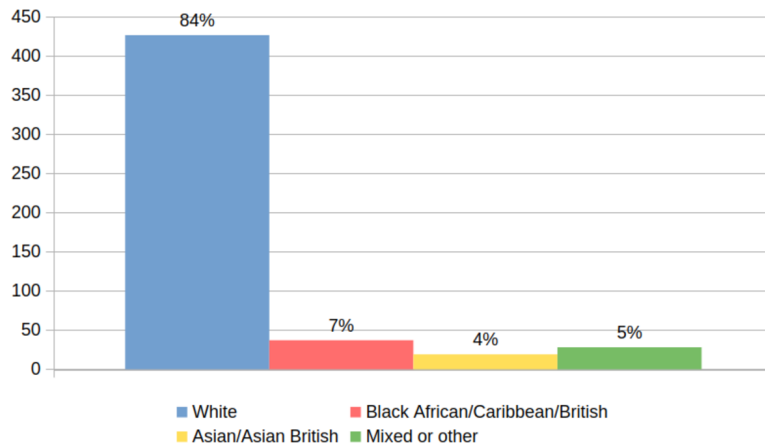
⁷This figure is likely to have been inflated by the Covid pandemic.

Figure 3: Leyhill's population during Q1 of 2020 ([Ministry of Justice 2021a](#))

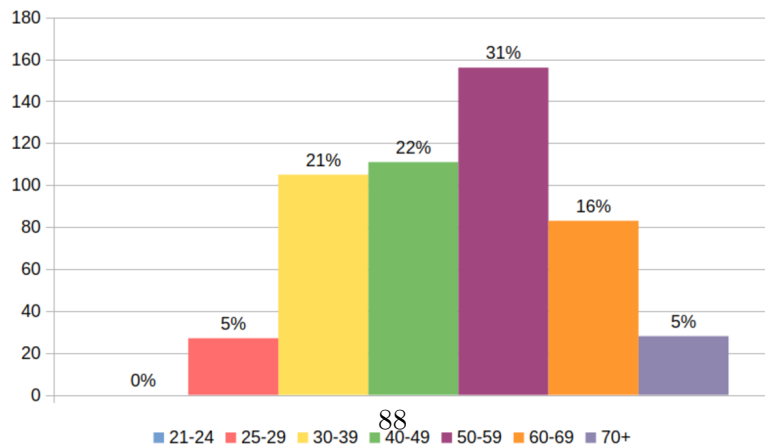
(a) by main offence (N=503)



(b) by ethnicity (N=510)



(c) by age (N=510)



release generally, and the parole process specifically, have become arguably *the* key source of recent penal controversy ([Annison 2015, 2020](#)). Officials had assessed that around three-quarters of Leyhill’s residents posed a ‘high’ risk of harm to others ([Independent Monitoring Board 2020 p. 15](#)).

Accordingly, worries about the risks of release saturated Leyhill’s regime, culture and climate, as well as prisoners’ attitudes towards the jail. As [Chapter 6](#) suggests, many saw the prison’s risk management as overcautious. Official sources, however, praised it, attributing delays not to the prison, but to downstream factors beyond its direct control, such as the availability of Approved Premises or work places.⁸ The wide range of purposeful activities available on-site was perhaps not coincidental: most prisoners could be and were employed there during the week, waiting lists were short, and teaching and learning was generally “lively and highly effective” ([HM Chief Inspector of Prisons 2017 p. 41](#)). Official evaluations of the prison were therefore split: it managed prisoners well *within* the prison; but, due often to factors beyond its control, did not perform its resettlement tasks quickly.

The following section describes the data collection phase of the research, and explains methodological choices made during it.

Carrying out the study: methods and ethics in practice

At Swaleside, my initial designated point of contact was the head of the forensic psychology department;⁹ its offices were my base. At Leyhill, the contact was the Acting Head of Residential, an experienced Custodial Manager. Both points of contact were unfailingly helpful and supportive, though the Leyhill contact was noticeably less interested in the research, and (apparently)

⁸i.e. “premises approved under Section 13 of the Offender Management Act 2007”, to which prisoners “who present a high or very high risk of serious harm” are initially released.

⁹She left Swaleside near the end of my time there, but this did not complicate the fieldwork.

far more deeply knowledgeable about the prisoners, and willing to talk. Fieldwork at each site followed three phases:

1. a week for familiarisation and to obtain an anonymised list of eligible prisoners for sampling;
2. many weeks to recruit participants, carry out interviews, make observations, and obtain participants' consent to my viewing selected documents from their prison records;
3. a week to read these documents and take notes.

Fieldwork at Swaleside ran from August to December 2019. On 29 November, with thirty interviews and nearly all the documentary research there complete, I attended an event in London at which a former prisoner stabbed five people, killing two, before himself being shot dead by police. As I discuss further in Section , the impact of this event was shattering, but in ways that did not play out predictably or immediately. I had at most a day or two's documentary research left to do at Swaleside, and decided to finish my work there, returning three days after the incident. I began interviewing at Leyhill in January 2020, according to my original schedule and following the phases described above. I conducted fewer interviews there than planned, for reasons covered in Section .

Adapting the sampling frame

The sampling frame summarised in Figure 1 required adaptation before it could be applied. Stratifying a sample by sentence stage was straightforward enough: tariff data were readily available and easily anonymised for sorting. Sampling for offences of varied 'moral seriousness' was less straightforward. The distinctions required are, fundamentally, qualitative, and reliable information with which to code cases proved hard to come by, as I describe shortly. Offence data held by Swaleside's OMU was not available in a format that could readily be queried, and (as Appendix shows) were not guaranteed to represent the prisoner's perspective on his offence clearly. Approaching prisoners simply to ask questions about their offences (thus 'filtering' them after a first meeting) would have felt highly insensitive and presumptuous, and could have put some in danger should these approaches—which would necessarily take place in public

settings such as wings and workplaces—be overheard. This all pointed to using tariff length as the best available, though still an imperfect, proxy for ‘moral seriousness’. It indexed murders that *sentencing judges* had found to involve greater and lesser degrees of culpability. As a continuous variable, it was suitable for stratification, and a ‘good enough’ heuristic. But it was not a ‘pure’ theoretical criterion.

On this basis, I obtained an anonymised list of eligible prisoners at each site, and key dates relating to their sentences, and subdivided it by whether the offence occurred before and after Schedule 21 came into effect.¹⁰ Having calculated medians and quartiles for the tariffs on both sub-lists, I then recombined the list and stratified it by tariff length quartiles, aiming then to produce a sample with roughly even numbers from each tariff quartile (low, low-medium, medium-high, high).¹¹

The eligibility criteria used to generate the anonymised lists also required some adaptations from what was originally envisaged. The lists were generated from prison records on the first day of fieldwork at each prison. Originally, the criteria applied were to be:

1. serving a mandatory life sentence;
2. not an appellant;
3. not maintaining innocence;
4. not convicted as a secondary party in a joint enterprise murder;
5. served at least two years since conviction; and
6. not on recall.

Criteria 1, 5, and 6 were easy for the prison to apply, and selected individuals who were all convicted of the same crime, would all be settled into the sentence, and were not imprisoned for breaches of the life licence.

¹⁰This was because identical murders committed before and after Schedule 21 came into effect would produce drastically different tariffs, thus mixing unlike cases into the same list if the list had not been subdivided. Further detail describing this change can be found in Appendix .

¹¹Section describes how the eventual sample represented these stratifications.

The others were less straightforward. I originally wanted interviews not to become bogged down in the merits of the conviction itself, and so Criteria 2, 3, and 4 originally aimed for a sample who ‘took responsibility’ for the offence. But at Swaleside it quickly became evident that applying them was far from simple. The information required could only have been added to the anonymous list generated from sentence data by laboriously cross-referencing against information from other sources, and then coding the list. I would also have needed unrestricted access to non-anonymised and extremely sensitive prison data over multiple days. A prison psychologist offered to help scope whether the cross-referencing might be feasible with her help. Already seeing the practical difficulties, I was not enthusiastic about the offer, but felt unable to decline. But this exercise also, usefully, made clear that prison staff who wrote the records required were not always clear what was and was not a case of ‘joint enterprise’, and there was also a hopeless degree of confusion regarding the term ‘innocence’ in criterion 3.¹² In short, meaningfully identifying prisoners who ‘took responsibility’ using information from prison data systems was not remotely feasible, and I abandoned eligibility criteria 2, 3 and 4. The eventual sample does, then, include participants who were maintaining what I describe hereinafter as a ‘strong claim of innocence’.¹³

At Leyhill, sampling followed the slimmed-down procedure, with further alterations. Compared to Swaleside’s, Leyhill’s mandatory lifer population was less numerous, whiter, much older when sentenced, and included a different mix of offence types. This all complicated the loose comparisons I had hoped to make between men convicted in similar circumstances but held at different sentence stages. I therefore over-sampled non-white prisoners at Leyhill, and those convicted aged under thirty, approaching them all for interviews while selecting other candidates randomly as before. Where I had a name in mind, I also searched online for press coverage of convictions, aiming to over-sample men *not* convicted of sexual offences. Most searches

¹²This is explained fully, with examples, in Appendix .

¹³i.e., they insisted that they were not merely not *fully* to blame for the offence, but that they were not to blame *at all*, for instance because it was a case of mistaken identity.

were fruitless: many of the offences predated the internet, and I lacked access to historical databases. Searching online also undermined my ethical stance of allowing participants to tell me their stories before I encountered them elsewhere (see Section), and I therefore abandoned this modification without having achieved much by it.

I planned to replace it with a twofold strategy: interviewing fewer than the 30 Leyhill lifers whom I had originally intended to sample, and then re-applying to the NRC for permission to carry out ‘top-up’ interviews in a third (open) prison with a population more like Swaleside’s. However, the Covid-19 pandemic put paid to this idea, leaving me with the sample described in the following section.

The sample

The eventual sample comprised forty-eight men: thirty at Swaleside, and eighteen at Leyhill, who were approached about an interview at random. However, it was not a ‘true’ random sample, but purposively and systematically constructed, with some risk of selection bias: prisoners less willing to speak about life before prison, including the offence, self-deselected.¹⁴

Table 1 displays basic information about the sample, showing how cases were distributed by tariff and sentence stage across the two sites (1a and 1b), and showing data on the sentence and the life course for the sample as a whole (1c). Overall, it demonstrates that the sample achieved the broad aim of wide variability on sentence stage and offence ‘seriousness’.

It is striking that the sample as a whole ‘skews late’ by sentence stage, and worth noting that this was *not* an artefact of selection effects. Appendix gives further detail on how the sample was broadly representative of the site populations, but the key point here is that Swaleside held many more individuals in the later and post-tariff stages than expected,¹⁶ while Leyhill held these

¹⁴My approach to recruiting participants and setting up interviews may have mitigated this somewhat; see Section .

¹⁶This may have been because of the PIPE, housing (among others) a number of post-tariff men who had become ‘stuck’ in terms of progression earlier in the sentence.

Table 1: Descriptive statistics on the sample, their sentences, and their life courses

(a) Tariff length distribution in the sample, by prison

	Swaleside	Leyhill
Tariffs above median	18 cases	7 cases
Tariffs below median	12 cases	11 cases

(b) Sentence stage distribution in the sample, by prison¹⁵

Sentence stage	Swaleside	Leyhill
Very early	5	0
Early	7	0
Mid	9	1
Late	3	8
Post-tariff	6	9

(c) The sentence and the life course; asterisked values are obfuscated to protect anonymity.

	Average	s.d.	Min	Max
Age when sampled	46.4	13.6	22	> 65*
Age when sentenced	33.2	13.4	16	> 65*
Age at tariff expiry	50.3	14.5	27	85
Tariff in years	17.9	5.3	< 10*	30
Age at first conviction	22.9	13.5	12	> 65*
Tariff ÷ age when sentenced	0.60	0.28	0.11	1.47
Years served ÷ tariff	0.80	0.59	0.07	2.50

groups nearly exclusively. Indeed, as Chapter 4 indicated, this ‘late skew’ also reflects an important feature of the *national* lifer population: just over a quarter of all lifers in England & Wales were over-tariff in December 2020 (Ministry of Justice 2020b), and they had (in 2021) exceeded their minimum terms by an average of 110 months (Ministry of Justice 2021b). This is a consequence of sentence complexity, risk assessment, and back-door severity.

Interviews

Semi-structured interviews were the principal data collection method. This was appropriate not merely because the study was qualitative and sought to understand prisoners’ *experiences*, but also because the subject matter was human interiority: thought processes that are private, internal, and may be tacit and unarticulated. The research aimed to apprehend what participants thought about when they reflected on themselves. Of course, there is a risk of grandiosity in stating this aim: it is impossible to look directly inside another person’s head to access thoughts of this kind. Nonetheless, interviews, particularly if well contextualised and attentive to language, come closer to the mark than most other methods.

Schedules, structure, and the choice of a two-part interview

I wanted the interviews to allow time for rapport, respect, and a measure of trust to develop, and designed interview schedules comprising separate ‘life history’ and ‘prison history’ sub-schedules: in reality, more like two interviews. I also designed a ‘prison timeline’ activity (as a ‘way in’ to the second interview), and separate sheets to record demographic and consent data.¹⁷ The rationale for a two-part interview was part-practical, part-ethical. I was interested in prisoners’ experiences *during the sentence*, but wanted to situate these in a longer temporal context, particularly with respect to the offence and its antecedents.

¹⁷Templates for all of these, along with the participant information sheet, consent forms, and samples of two contrasting timelines, are in Appendix .

Rather than broaching such a sensitive topic as the opening gambit in a single interview mostly focused on prison life, I preferred to build gently towards it through a narrative first interview, in which I invited participants to tell me their story up to the point of admission to prison. This first sub-schedule was at least as focused on rapport and relationship-building as on answering any of the research questions. The second invited asked participants to bring the story to the present day using the timeline (see Appendix), before going into more thematic questions about ethical life *now*.

The second interview was the core of the inquiry. It was more structured, tending to solicit shorter and less digressive answers. As such, it lacked some of the forward momentum of a narrative; but the jumps from topic to topic felt easier because of the rapport and patience built up during the first. It quickly became clear that time spent on the first interview had not been wasted. Most importantly, it established (for participants) a measure of trust in my willingness to listen without expressing judgement; and (for me) a broad sense of who participants now felt themselves to have been before conviction. One specific question in the first interview (“If a stranger were to ask you to describe yourself at the time of your index offence, what would you say?”) was important in this respect, often giving me a strong intuition for the tone and valence of the second interview.

I wrote the schedules before fieldwork, and although I altered the wording of some questions on the fly, I used them largely unamended. Some sections borrowed from schedules used in the pilot research ([Jarman 2017, 2020](#)); most were written for this project. With forty-six participants, there was at least an overnight break between the two halves of the interview, but at Leyhill (where employment and Release on Temporary Licence (ROTL) made scheduling more complicated) two men asked to schedule both sessions on the same day, and I agreed. The schedules (see Appendix) were used flexibly where necessary. For example, I agreed to a few requests to do the second interview first (and in one case, not to do the first interview at all).¹⁸ In the second interview, I played around with sequencing

¹⁸In these cases, the more structured and ‘jumpy’ second schedule felt

when I could see thematic connections between something just said and later questions. I occasionally dropped questions altogether (for an example, see Section) and sometimes changed my wording, especially where the participant was not a native English speaker. Transcription and data protection procedures are described further in Sections and .

Recruiting the sample and setting up the interviews

Having identified potential interviewees randomly, I usually visited them in their workplace or on their residential wing to introduce myself, answer questions, leave an information sheet about the study, and canvass them about an interview.

My first-year reviewers and supervisor advised me to approach this process with great care, given that it would involve telling people, directly, that I would seek a description of their offences. In practice, their responses varied a great deal. There is a strong norm among reformers and prisoner advocates (e.g. [Stevenson 2014](#)) that people are “more than the worst thing they have ever done”, and ought to be recognised as such. I agree strongly, in the abstract: it is a worthy and important corrective to some of the worst and most abusive tabloid moralising about prisoners. But I also knew from professional experience that prisoners sometimes *volunteered* information on this topic, including when it reflected poorly on them. Further, for some—including me—trust in another person is reinforced, not undermined, by knowledge. On the other hand, I also believe, strongly, that people should be accountable for their actions, not an easy demand where those actions have demonstrated a gross disregard for the personhood and rights of others.

Though researchers have sometimes analysed prisoners’ attitudes to their offending, they have not often reflected explicitly on how they broached the issue. I cannot recall sociological research on prisons which *specifically* and *directly* solicited details about the offence, though in many examples it is obvious that the topic came up, bidden by the researcher or not. The interactional dynamics of an interview—including some of mine

more stilted and sometimes required more explanation and exposition, underlining the role played by the first interview in building rapport.

with participants who preferred not to describe their offences—can lead to situations in which it becomes increasingly difficult *not* to talk about the offence: it becomes a haunting presence in the room, something live and yet absent. Other criminological researchers, beyond the prisons subfield, have described prisoners’ opinions on their offending (e.g. [Dobash and Dobash 2015](#); [Dobash and Dobash 2020](#)), often with an overtone of disapproval. Beyond criminology, papers in the psychiatric/clinical literature have also addressed the offence directly (e.g. [Adshead et al. 2018](#); [Ferrito et al. 2012, 2020](#); [Gilligan 2003](#)). These were generated in interactions not purely driven by research, often explicitly therapeutic. Here, the topic may not be *easier* than in an ethnographic interview, but an offer of ongoing support is certainly more built-in.

My own view, based on professional intuition from past work, and the pilot study, was that many lifers would be accustomed to thinking (and perhaps to a lesser extent, to talking) about the index offence. I never expected it to be an *easy* topic, but the caution with which I was counselled to approach it struck me as unlikely to be warranted in every case. Informed consent seemed a sufficient protection against the ethical problems inherent in asking about it, with two provisos: first, that I informed wing staff about whom I was approaching (and allowed them a veto, since they were better-placed than me to judge if a particular individual was capable);¹⁹ and second, that I backed away from interactions where I sensed cues indicating reluctance or incapacity.²⁰

I tried, therefore, to be available for a preliminary conversation with each person I approached. I would ask if they had a few minutes and tried—using the affordance of having keys—to take them aside somewhere quiet. I made three things clear. First, I said the interview would cover “the events that led to you being in prison now”, wording I used absolutely consistently. Second,

¹⁹This veto was only exercised by PIPE staff at Swaleside, who were more protective of prisoners in the unit, and more likely to think of themselves as caring for them, than in the rest of the prison.

²⁰A few examples: one man I approached said he might have been willing at another time of year, but as the anniversary of his offence was approaching, he could not; another man agreed to participate but was obviously highly intoxicated; and another man whose friend offered to translate for him, but who spoke not a word of English.

I said they could decline to answer any question in an interview, without an explanation, including about these “events”. Finally, I asked them—even the several men who offered verbal consent almost before I had begun my spiel—to mull the decision over for a day or two, saying I would return for a decision at a time and in a place agreed in advance. This was an opportunity to demonstrate interpersonal respect, either by keeping my word, or by failing to before apologising, with an explanation. I hope this afforded participants time to think, and to seek advice if they wanted.²¹ Generally, I felt confident after this initial conversation about what the eventual answer would be, and I was rarely wrong.

Conducting the interviews

I interviewed in a variety of locations. At Swaleside, most were interview rooms or offices on wings, with one interview each held in an unused education classroom and a storeroom adjoining a workplace. I asked if participants preferred any particular space, requiring only that it be likely to be private and minimally interrupted. Some spaces, even designated interview rooms, were not good for the purpose: that on F-wing, for example, was private but very close to the area where prisoners gathered before movements, and the noise—voluble banter and officers bellowing down the spurs—could be overwhelming. Transcribing interviews recorded in this room was often painful.

At Leyhill, I had near-exclusive access to an office in the Beech unit. It was perfect—quiet, private, large, light, airy, with a desk and a range of easy chairs—barring one detail: a locked cabinet containing nursing supplies for the prison’s palliative care unit. Many interviews were interrupted by nurses arriving to collect items. They were always cheery (and gracious in allowing me, for two months, to occupy what was unambiguously their space), and they never intentionally made matters difficult. But they also ignored or forgot my repeated requests to knock and wait before entering, and once or twice, their timing was exquisitely

²¹Some did: two, for instance, agreed to interviews but said that based on advice from their solicitors, they preferred not to address the offence except in very broad terms, while a few indicated they had discussed it with friends or (in one case) family members.

bad. One burst in just as an interviewee, hunched over in shame, speaking in a near-whisper, and having first taken a breather to prepare himself, was describing a post-mortem sexual assault on his victim. Failing to prevent this embarrassed me profoundly, and I apologised profusely after the nurse left; but we both seemed to accept that it was beyond anyone's control, and after composing himself, he carried on.

By and large, however, the interviews worked well, with noise and momentary interruptions the worst of the difficulties. A few, mostly at Leyhill, were marked by interactional dysfluencies. I cut short two of these, with Phil and Harry. The following field-note, made just after the conclusion of Harry's first interview, captures something of the struggle for control he had apparently just been engaged in:

He's obliging and eager, but overbearing in his keenness to share his story. He wants absolute control of the interview space; is a stickler for the story remaining strictly sequential and chronological; was annoyed when I checked details or anticipated what was coming; and kept slipping [into] speaking as a narrator, with statements like, "as you'll see clearly when we get to X" [...] He has strong expectations of me (based, I think, on readings of social class) [...] and refers once or twice to how "someone like you must be shocked" by this detail or that [...] He gets annoyed when I intervene to move things along; for instance, when he spent thirty seconds trying to remember where [village] was near and listing possible candidates, I suggested [city]. He snapped back, tetchily, "No, it's between [town] and [town]". It's going to be a long interview.

Fieldnotes

As it turned out, Harry did not accept my invitation to withdraw from the research, but made and missed appointments for the second interview, until time ran too short to conclude it before the end of fieldwork. These tussles over control were subtly present, though less explicit, in a few other cases. Phil seemed put out by the transition from the first interview's open-ended,

chronological questions to the second's thematic, non-narrative questions. I thought he was experiencing these as a refusal on my part to draw the self-evident conclusions from his narrative, and his annoyance became increasingly obvious. Because we were accomplishing little beyond riling him, we cut the second interview short.

At Swaleside, expressions of emotion mostly did not complicate the interview interaction itself. I recall only one (with Robert) which temporarily rivalled those with Harry or Phil for awkwardness. Robert, a white, former professional in his fifties, who was early in his first prison sentence and with whom I had hitherto had a good rapport, expressed forcefully and repeatedly his view that prisoners who assaulted or verbally disrespected officers should be dragged away to segregation and beaten until they complied: as he put it, "the only language they understand", and how things "used to work in the old days", before prisoners were mollycoddled. The previous week, I had listened to another man on Robert's wing narrate just such a beating, sustained in the segregation unit at HMP Wandsworth in (approximately) the late 1980s. The description he gave of this humiliating experience was nauseatingly precise, and I felt vicarious and useless outrage. Having taken many weeks to recover from his injuries, he said he had learned, "never, ever [to] trust a screw", and appeared still to live by this rule. Whether for this or another reason, I failed to mask my feelings about Robert's tirade, and he seized on this, insisting that people like him (and the officers) had to "put up with these animals" because people like me overcomplicated matters. We agreed to disagree, and the rest of the interview went off without incident, but not without Robert aiming some more jocular (though pointed) digs at my effete, self-indulgent ideas.

I occasionally found myself concealing my own reactions more successfully when participants expressed racist or sexist views, as when Matt (for instance) generalised about "coloured lads" on his wing, or Nasim dismissed various women in his family as "gold-diggers" and "cunts". I felt (and feel) that pushing back against these opinions was neither conducive to a good interview, nor likely to have any positive effect, but was uneasy about my silence when transcribing these exchanges months later. Generally, though, my own mask seldom slipped, in part

because I had heard many such opinions before and was used to keeping my thoughts to myself.

I kept handwritten notes during interviews, typing them up as a biographical portrait at the first possible opportunity afterwards, usually during lunch breaks or in the evening.²² They were very helpful in retaining impressions of body language, posture, vocal inflection, and similar, and I referred to them often during data analysis, since in their brevity they were better at jogging my memory than the transcripts.

Participant wellbeing

No participant in either prison took me up on the routine offer of a referral for further support after the interview (as described in Chapter). However, some situations caused me to pause, and sometimes, to back off in my questions. At Leyhill, Grant became increasingly upset while trying to describe how his marriage had turned very unhappy, culminating in him killing his wife. He referred several times to “cycles” of grief and depression throughout his sentence, and it was plain that he missed his children terribly. He asked for several short breaks, returning each time to find himself, once again, lost for words and choking back tears. Sensing that he felt obliged to help me with the research by describing what resembled an open wound more than a scar, I suggested curtailing the interview: he had already indicated the outline, and found the details so upsetting. His relief and gratitude were palpable, and we completed the first interview on another day, resuming the story after his arrest. I never approached the offence narratives expecting tidiness, a stiff upper lip, or a sense of closure, so it was not Grant’s tears that seemed the problem to me; it was that my questions were hurting him. Other expressions of strong emotion could be as intense, but were less obviously a direct result of

²²Some quotes attributed to prisoners in this thesis come from these portraits, usually either because the subject did not consent to an interview being recorded and transcribed, or because the quote came from the first interview (which was not always transcribed in full, see Section) or (rarely) because my notes offered a more succinct version than a longer anecdote of the analytical point being made. Where quotes come from notes in this way, they are marked as such in the attribution.

my questions. Gerald wept about the coldness with which his mother treated him in boyhood, some seventy years earlier. I was witnessing, rather than directly probing, a vulnerable spot, and Gerald declined my offer of a break, composed himself, and continued.

One specific incident raised a much trickier dilemma. Around fifteen minutes into our interview, William spoke about cutting off contact with his family, a consequence of his shame at having fallen back into heroin addiction. He said he owed thousands of pounds to dealers on his wing, felt worthless, asked rhetorically whether it was “worth carrying on” (fieldnotes), and wondered aloud whether his family might not be better off without him. I had switched my voice recorder off by this point, and deleted the recording before I left the room.

As with everyone, I had explained to William beforehand that my pledge of confidentiality had limits, and would not apply if I believed he was at risk (see Appendix). I reminded him of this, asking if he might be letting go of these feelings because he *wanted* someone to see his desperation. He agreed that he was. We then spoke for around an hour. I understood that (quite apart from any suicidal feelings) his debts made his situation genuinely dangerous, particularly if I made a disclosure. I wanted to understand more about the situation on his spur, one of the most uncontrolled at Swaleside, before acting. William did not trust the prison’s possible response, and worried what his creditors might do if, following a disclosure, he were suddenly to be whisked away to another wing. I asked, directly, if he had been thinking of killing himself (yes) and whether he had made plans (no). He wanted me not to do anything; I said that this wasn’t really an option. Eventually, we arrived at an idea: earlier, he had mentioned a staff member whom he had previously found supportive, and whom he seemed to trust. I said that if I did pass on my concerns, I could do so by seeking out this person face-to-face. He agreed. I asked what, specifically and precisely, he wanted me to say. I said I would have to consult my PhD supervisor, but that if he agreed, I would pass on William’s message, and find a discreet way to inform him when I had. I also said this might take me a few days.

When I did find the staff member William had mentioned, they asked me a couple of questions, to which (at William's request) I gave vague answers short of the specifics I knew about. The staff member seemed to infer, immediately, the nature of the underlying problem and said someone from their team would contact William. William later rescheduled the interview, and we set a date some weeks later. When it came around, William disclosed that he was now under police investigation, having been caught with a large quantity of contraband in a cell search. He said he had been holding this for others on his wing (which, if true, was a plausible imposition for his creditors to foist on him).

I have no idea whether my actions precipitated the search. I hope not, and I balanced my own ethical obligations with respect for William's superior knowledge of the dangers and constraints he was under. But I certainly bypassed officers on his wing, to whom I should probably have passed this information directly. In this respect, my actions might seem collusive, and my commitment to comply with prison rules in bad faith.²³ On the other hand, it seems unlikely that William would have raised the issue at all in the course of his ordinary interactions on the wing, or that every staff member might have taken time to negotiate a form of disclosure he found acceptable. I cannot be sure, but my impression was that he would not have sought help in another way (if indeed this is what he was doing).

The episode underlined the degree to which Swaleside (in particular), and prisons (generally) are ethically confounding environments, in which the way to act appears foggy, and there are often only bad choices.

Documents

Prison documents were reviewed relating to all participants, barring the four who did not consent.²⁴ From documents, I

²³Another, less creditable instance: I declined to fill in an intelligence report after a staff member told me I should, having seen a prisoner who was obviously intoxicated. This was because I was concerned any consequences from this would become known on the wing, and compromise my ability to recruit prisoners for the interviews.

²⁴See consent form in Appendix .

could usually form a clear view about judicial censure,²⁵ the facts of the offence and the prisoner's current risk profile, as the prison understood both. I deliberately consulted them as the last act of fieldwork at each prison, preferring as far as possible to come to interviews 'sight unseen'. Even so, participants who consented knew that I would eventually encounter the 'official version' of their offences and risk. If I sensed their hesitancy, or was asked directly why I wanted to do this, I explained that I was interested in comparing how they saw themselves and how the prison saw them; and that I was not trying to catch them out on details.

Different documents were reviewed in each prison. At Swaleside, I read and noted the transcript of the sentencing judge's remarks on the case, a printout from the Police National Computer (PNC) listing previous convictions, and the RC1 form, a *pro forma* record of the prisoner's last annual security categorisation review and (as I was told by an OMU manager) the most readily available single-document overview of risk assessments, information from the Offender Assessment System (OASys), and recent data entries in the P-NOMIS database during the review period.

RC1 forms are not produced for category-D prisoners. Thus, at Leyhill, I read and noted the sentencing remarks (where available) and the PNC printout, and Enhanced Behaviour Monitoring (EBM) and ROTL risk assessments. Though the ingredients were similar (i.e. they summarised OASys assessments, recent P-NOMIS entries, etc.), these documents were *vastly* more detailed than the RC1, and much subtler in their description of risk, one reason being that the EBM is written by forensic psychologists, not OMU workers. But the ROTL assessment—also very much more detailed—is an OMU document, and in general, the Leyhill documents offered unambiguous evidence that worries about risk are not *absent* in open prisons, but in fact may *intensify*, in that physical security measures are no longer available to manage them.

Four participants did not consent to my reading their prison records. Three of these declined to answer questions about the

²⁵Except in cases where the sentencing remarks were missing, or merely very brief. See Appendix .

offence in the interview, two on the advice of their solicitors (both had case reviews active with the CCRC). I saw offence details as essential to the contextualising analysis undertaken in [Chapter 4](#), and did not feel that it breached my ethical commitments towards these three men to search the public record for details of their cases after leaving the field, something I did by searching online for press coverage. I was able to confirm at least the identity of the victim, the participant's relationship to him or her, and the broad outline of what had happened.

Neither documents nor online searches facilitated the trigonometric precision implied by the term 'triangulation': placing two partisan accounts of past events side-by-side does not tend to confirm one or rebut the other. Nonetheless, interviewees' *attitudes* towards their files—evident in references during the interview—were of great interest.

I noted attitudes of four kinds. First, some participants referred often to the 'official account', identifying points of fact and interpretation within it, and indicating agreement or disagreement, with reasons. In these cases, the offence was present, efforts to define them by it felt assaultive, and the response alternated between defensive crouch and counterattack.

Second, other participants gave a detailed account of the offence going *further* than the prison's records, and often including further discrediting details. One, Daniel, said that though it would always remain "awful" to talk about assaulting a vulnerable, terrified victim in her home, he had made an explicit ethical commitment to himself, early in the sentence, to speak honestly about it to anyone who asked him, however unpalatable or difficult he might find this. In this and similar cases, the offence was present, defining, and close-at-hand. Participants *chose* to 'go there' in describing it, seeing this as a painful and deserved obligation.

A third group mostly did not dispute the official account; some listed interpretive but not usually factual disagreements, while making clear these were not major points. They did not dwell on them for long, and sought neither to communicate the badness nor the not-so-badness of the offence. They simply said, in effect, "you can read all that in my file" (Ron). For them, the offence

was present, and defining, but held at a safe distance. Narrating it in the interview was an administrative formality, and my consulting the authorised version offered formal accuracy.

Finally, a few men declined to answer any questions on the offence at all, but completed the rest of the interview obligingly and with interest (including sections on rehabilitative provision, where we skirted the topic carefully). Most consented to my viewing the official record (and hence their attitude resembled Ron's), but it was as though they felt that to describe it themselves would be fruitless. Only one (Jeremiah) said directly that he found his actions upsetting and difficult to talk about; the others offered no reason (as I had made clear they were entitled to do). Here, the offence was present, defining, and (crucially) produced a sense of persistent alienation from self. It struck me later that with *all* of those in this final group, some or all the actions described in prison documents seemed, in some sense, unfathomable: cruelties such as mutilations, torture, or psychological humiliations of the victim, for example. Others had simply been attacks against someone weaker and unable to resist, such as an elderly person or someone with disabilities.²⁶ Put simply, I could imagine no narrative which would explain away the discredit these actions piled on their author.

In two cases, prison files included details a participant had omitted to mention, which were (to my mind) relevant to his account of himself and the offence. One insisted that he had never previously been a violent person, but made no mention of a previous prison sentence for domestic violence. Another made no mention of a concurrent conviction which was highly relevant

²⁶I found a few of these details profoundly disturbing, mostly in relation to mutilations and sexual assaults. Some surfaced later in dreams or recurrent thoughts, and spring to mind unbidden when I think of the individuals concerned. They surfaced regardless of any sympathy I felt towards individuals, and for me at least, were indelible. In one case I have written about elsewhere (Levins *et al.* 2021), I could see only too well how appalling experiences of abuse in childhood had left the participant disposed towards the extreme violence he visited on his victim. My feelings towards him blended deep sympathy with a very uncomfortable residuum of disgust, which itself provoked guilt in me. If certain deeds can so thoroughly pollute subsequent perceptions of the doer, this hints at why these men might have found it futile to try and narrate the offence.

to his index offence, and which cast into doubt his claim that the latter had been a one-off. Barring these two examples (and those who preferred silence about the offence), I was not often struck—during fieldwork or afterwards—by the feeling I had been hoodwinked, or misdirected away from details I would subsequently encounter elsewhere. This does not eliminate the risk of factual inaccuracy in the interview data, but reviewing documents still shaped the interviews indirectly as meaning-making events, in two ways. First, it signalled to participants that I intended to ‘do my due diligence’, and hence that I would make sense of their interview in light of the official record. Second, it indicated that what participants said in interviews sometimes resembled a kind of *public stance* in relation to their punishment.

In other words, what was significant about taking interview and documentary data *together*, was that it focused me squarely on the conviction as a narrative object, contributing (or not) to a social identity. A term participants occasionally used in talking of the offence was whether someone was willing to ‘wear it’. The metaphor seems significant. It draws attention to how the offence resembles a *garment*: something put on or taken off to suit different circumstances, but which, unless there is a minimal relationship of proportionality and ‘fit’ to its wearer, cannot effectively represent the self. That participants decided to ‘wear’ their offences does not predetermine *how* they did so—as a base layer or a shell, for example. Garments, by virtue of their characteristics, and of the environment (e.g. changing weather) become more or less comfortable. Similarly, the design and materials make some easier, and others harder, to put on and take off. It sometimes appeared that some offences were ‘scratchy’, ‘hot’, or otherwise discomfiting to wear; and it certainly seemed that some participants moved fluently in theirs, while others were desperate to cast them off. What was unambiguous, however, was that most of these men *were* ‘wearing’ the offence described in their documents; this was unsurprising, given the immense labelling and defining powers of punishment. I chiefly used the interview data to understand *how* they did so: assessing the cut, colouring and style into which they fashioned the offence, and evaluating the fit.

Informal observations

I used informal observations primarily to contextualise data gathered by other means; they were never the primary method of data collection. I made more fieldnotes at Swaleside, partly because I was there for longer, partly because the complexity of the prison needed more thinking through, and partly because the number of prisoners who declined an interview meant I spent far longer around the prison, engaging in the kinds of preliminary conversations I describe in Section . These were much less important at Leyhill, where, proportionally, more of my time was spent one-on-one in the interview room. Observational notes were therefore always the result of my fortuitous presence in a particular space.

I also made near-contemporaneous notes of conversations I had with prison staff. Again, I made far more at Swaleside: I was based in the forensic psychology department when not moving around the prison, and the team there were friendly, welcoming, and curious, especially early on. I was reliant on them for information used in sampling, for explanations of jargon, and for help navigating the prison. I also engaged in, and overheard, many conversations there, and could not help forming impressions about how they approached their work. These notes enriched my understanding of the data. Something similar was true during my shorter but more continuous period spent noting documents in Swaleside's OMU, where, again, I noted things said to or around me.

At Leyhill, by contrast, I spent less time in the prison overall, and was more isolated when I did. I had next to no routine, unstructured time around staff members. The psychology team indicated on my first day there that they preferred neither to host me nor interact with me, while the OMU consisted of individual offices in prefabricated buildings, in contrast to Swaleside's larger open-plan office. Consequently, there was simply less to observe, and the fieldwork felt more isolated and isolating.

I have taken care that no one quoted through my fieldnotes is identifiable. They are used chiefly to contextualise information gathered by other means.

Ethics

I used the British Society of Criminology (2015) Statement of Ethics as a starting point for thinking about the ethical procedures, which received clearance from the Institute of Criminology's Ethics Committee and were also reviewed by HMPPS's National Research Committee.

Three primary concerns shaped the ethical planning for the study: participants' informed consent; their anonymity, confidentiality, and data protection; and their wellbeing.

All participants consented both verbally and in writing, but the degree to which they sought to be 'informed' varied. Some agreed to an interview immediately, in which case (as noted in Section) I asked them to give me a firm answer later. Others sized me up with great care, for example by negotiating qualified opt-outs from some aspects of the study (e.g. having me review their documents, or recording the interview) during lengthy, iterative conversations leading up to their decision to participate. It was evident that, across the sample, people participated for a variety of reasons; read the information sheets with degrees of attention ranging from cursory to microscopic; and had a wide range of ideas about what 'research' was.

Besides simply securing signatures on a consent form, I tried to make clear what participation would involve. Questions, when not straightforwardly about safeguards and precautions concerning anonymity and confidentiality, often probed my motivations: they presupposed (or sought to establish) that I wanted to "make things better", implicitly evaluating the research on whether it would do this. I tried to make clear that a PhD was primarily a piece of professional training. However, I also spoke freely and sincerely about a strong personal belief: that life in long-term prisons was woefully poorly understood in the outside world, and deserved wider and deeper consideration. I said that research funders, including my own, usually wanted to see real-world impact from the research, and that I would explore opportunities in that direction.²⁷ Finally, however, I tried not to overclaim: one PhD, and even one research project,

²⁷My doing so (Jarman and Vince 2022) was one reason this PhD has taken so long to complete.

does not generally shift the dial on so contested and emotive a topic as life imprisonment.

I believe these measures—particularly my insistence on at least a brief conversation and a pause for thought *before* arranging an interview with even the most eager participant—secured some trust in me. I harbour doubts about the idea of ‘informed consent’, given that I cannot predict or describe the outcomes of the study and hence could not accurately inform participants about what might come of it. However, I tried to remain available for further interaction after the fieldwork if participants sought it. The participant information sheet stated that participants could withdraw their consent at any time before the 30th June 2020, and gave a correspondence address. I received a letter from Liam during the first pandemic lockdown:

I have made the decision to withdraw from the study,
I don't like the idea of data regarding me being
published on journals or websites.

It struck me on reading this that Liam might have no conception of what such journals looked like. I wrote back, enclosing some examples of anonymised prisoner quotes excerpted in PDF printouts, and saying that if I heard nothing more by the original 30 June deadline, I would delete his interview as requested. I subsequently received another letter in which he outlined how another research experience had prompted him to worry about how his interview with me might be used:

I felt she had been half sly [...] and my mind then
went into overdrive wanting both her and your data
I'd given removed. She still has not got back to me
even though I've spoken with her twice on the wing
and written. Anyway Ben as for your work with me
please I'd be happy for you to use it.

I received few other letters and no other requests to withdraw from the study, but the correspondence with Liam reminded me how an interview on topics as sensitive as this could linger, causing later concern.

Consent for those who appear in the research anonymously via observations and quotes in my fieldnotes was less easy to obtain.

I was questioned on how I would do so by the NRC, and replied to them saying that I would not formally record written consent, but outlining structured rules of thumb short of it which I would follow to ensure that interlocutors knew who I was, and had an opportunity to tell me if they preferred not to appear in the study. Because all observations were taken ‘by chance’, rather than deliberately in a particular setting, seeking explicit written consent never became necessary. On this basis, and because those quoted in a smattering of fieldnotes are carefully anonymised and not identifiable, it is ethical to have used these data.

The data, self-evidently, fell into the university’s Level 3 data security classification (Chambers 2019). Thus, while I safeguarded participants’ confidentiality using standard precautions—de-identification, obfuscation, and pseudonymisation—I took *extreme* care with digital copies, mindful of the tendency for murder trials to receive some press coverage and the resulting elevated risk of deductive identification in case of data loss. Unwilling to spend £400 on an encrypted voice recorder, I minimised the risk that I might mislay an unencrypted device containing many hours of interview audio by applying for permission to take my laptop into the prisons with me. It remained locked in my ‘base’ office, and I transferred interview audio onto it at the first opportunity after each interview. I then backed interviews up to an encrypted external hard disk at the end of each day, placing a further backup into an encrypted container stored on the university’s SharePoint cloud storage. The encryption protocols chosen (BitLocker encryption on my personal devices, on-device encryption prior to upload using keyfiles on an external USB storage, and no unencrypted data uploaded at all) ensured that, from the moment the interview audio was transferred to my laptop, it and all other personal and sensitive data were accessible to me alone, even when stored remotely.

I sought to safeguard participants’ wellbeing by offering breaks, water and tissues if they became upset, and by asking how they were feeling at the end of the interview. I offered to notify staff that they would like to see a Listener on the wing (or another person they trusted) if they wanted me to. As described in Section in relation to sampling, NHS staff on the PIPE at

Swaleside asked for a veto on participation by prisoners they saw as being ‘at risk’; they also asked me to debrief with a member of clinical staff after each completed interview with a PIPE resident there. I made clear to interviewees on F-wing that I had agreed to make these brief reports, and did so, though no interview with any participant on that wing gave me particular cause for concern.

Data processing and analysis

Towards the end of the fieldwork my original goal—transcribing and coding both interviews in full—started to look extremely daunting. I transcribed the second (prison history) interviews first, keeping records of audio length and word counts to estimate the size of the task, and it was soon plain that to fully transcribe all 176 hours of interview audio would be impractical. Making and coding transcripts from the second interviews alone took me a year, and these transcripts alone ran to 897,000 words—more than the King James Bible. I therefore coded only my notes of the first interviews, to retain a topic overview which I could search later, and then listened to the life history interview recordings repeatedly during long lockdown walks during the pandemic. I divided the audio files into titled chapters and made brief summaries of each, to facilitate retrieval and spot-transcription of sections that came to mind later, during the write-up.

For the most part, however, interview data presented here come from the second interviews, and notes on prison records were used mostly to contextualise them. The documents themselves are highly structured and hence easy to navigate; I did not code them, and use them mostly in paraphrase or in short verbatim fragments, to reduce the risk of identification through cross-reference (since documents were either held by HMPPS or were court records in the public domain).

I used Atlas.ti software to code the data in three cycles. First and second, I used *descriptive coding* and *concept coding* ([Saldaña 2016 pp. 102, 119](#)) to mark transcripts, interview notes, and fieldnotes. First, I marked the text with nouns identifying the

topics of passages of text (i.e. what was being talked or written about rather than the substantive meaning of the longer passage—for example, “prison”, “category-A”, “family”, “offending behaviour course” and so on). Then, I added *concepts*, indicating the broader meaning of larger chunks of text. These were mostly compiled from my reading of the anthropological literature on ethics, and were used to mark *modes of ethical thinking* (e.g. “moralising”, “invoking God”), *methods of ethical development* (e.g. “self-care”, “subjectivation”), and *narrative tropes* (e.g. “moral tragedy”, “not who I used to be”) suggesting change or continuity over time. Third, I marked parts of the interview 2 transcripts (those describing life in the fieldwork prisons) using *process coding*, a method suited to noticing “the changing and repetitive forms of action-interaction” associated with “reaching a goal or solving a problem” (Saldaña 2016 p. 111). This involved marking selected passages with short phrases beginning with a gerund (e.g. “going my own way”, “learning to cope”, “resisting temptation”). I composed these inductively as I read, trying to summarise the *self-work being described* by a given passage of speech. I aimed to re-sensitise myself to the participants’ *own* routines and rituals, not the more theoretical language used for the *concept coding*. Since I was not undertaking properly ethnographic research, and since much ethical practice lies in the largely unreflective ‘ordinary’ or everyday aspects of life (Lambek 2010), my aim here was to notice what the speaker was *doing* and *thinking about* when describing daily life. The main benefit of coding in this way was to keep the participants and their lives present in my mind, and to give me a mental map of the interviews. This map—not the codes—has been the main means by which I have navigated the findings.

Of more use in structuring the analysis was the use of demographic and sentence information to filter and sort rows in a spreadsheet. Using a few basic data points (see Appendix), I calculated other figures (e.g. average tariff length, age at tariff expiry), and added columns summarising key details from prison documents (such as risk scores, guilty pleas, and so forth). The ability to filter and sort cases facilitated tasks such as comparing outliers to ‘typical’ cases. The spreadsheet served as a discovery tool, showing me patterns that were otherwise less than obvi-

ous, for example in official assessments of risk (see [Chapter 6](#)). The spreadsheet, combined with the codes, permitted a process of analytical discovery more flexible and malleable than the codes alone. Much analysis consisted of filtering and sorting the spreadsheet until an interesting pattern stood out, then generating code reports in Atlas.ti fitting that structure, to test and refine it. For example, [Chapter 5](#) discusses the life course and the sentence; it draws on comparisons between code reports filtered according to whether cases were in the top, middle and bottom terciles for “age when convicted”. Those code reports were then read repeatedly. As a whole, the approach was adaptive ([Layder 1998, 2013](#)), in that it used a mixture of deductive and inductive reasoning to develop previous theory.

Discussion—researching murders after murders

In the middle of fieldwork, I attended an event at which Usman Khan, a former prisoner previously convicted of terrorism offences, stabbed five people, killing two and nearly killing a third. In custody, Khan had studied with the prison-university partnership project I was also deeply involved with. He had been invited to the event, and after carrying out his attack was overpowered by other attendees and shot dead by police outside the venue. One of his victims, Jack Merritt, was a friend. So were several witnesses, some of those who confronted Khan, and most of those who worked most closely with the project. I witnessed the after-effects of this atrocity up close, both on the day and as it rippled through various legal and institutional processes over the following two-and-a-half years. In one sense, its effects on the research were minimal. I had already nearly finished the research at Swaleside (see Section), and I began work at Leyhill in January 2020, almost exactly to the original plan. There were vigils and funerals in December, but over the Christmas break I had much too much time dwelling on what happened, and did not like the moods that seized hold of me. Continuing with the research felt like a way of shoring up my vague commitments to rehabilitation, education, and prison reform, and so continue I did. But it would be absurd to

suggest that because data collection continued mostly to plan, the research was unaffected.

Alison Liebling (1999 p. 164) has suggested that “[e]motional experiences can be crucial clues” in the research process, and “do not need to be reconciled with our so-called data [but] constitute data”. I take this to be as true of experiences *around* the field as it is of those *in* the field. The incident at Fishmongers Hall filtered into my broader orientations and shifted my instincts about some of the human and policy issues around the research. The contradictory feelings and divided loyalties involved remain difficult to write about, and cannot be fully explored in the available space here, but this section, in closing the chapter, picks out a few effects over the shorter and longer terms. They are described with the benefit of hindsight.

Professionalism and denial

What happened at Fishmongers Hall was immediate national news. The divide between public prominence and private grief was stark, persistent, and (I think) led me quickly to compartmentalise my feelings.

In public, it led rapidly to demands for highly illiberal changes in prison release policies, of a kind Jack himself might well have opposed. His family immediately and publicly criticised the government’s kneejerk response, as the 2019 general election campaign was in full swing. The moment felt urgent and the sense developed that we were suddenly in an intense fight for what we (and Jack) thought was important. Polarised narratives developed in the media around the desirability, naivety, and legitimacy of prisoner rehabilitation, and I felt embattled and self-righteous. This, I now think, aggrandised the tragedy, displacing crushing feelings of loss and defeat which would otherwise have dominated.

Continuing the research, in these circumstances, suppressed emotions which nevertheless poked through. Fatigue and demotivation took hold, paradoxically, alongside obstinacy and a determination to continue. I was commuting weekly while living alone in a borrowed house near Leyhill, and experiencing

intermittent difficulties with sleep and intrusive recollections. I took up smoking again having quit some time before, ate poorly, drank more alcohol than usual, became very run-down, and (in mid-February) fell ill with what I later realised may well have been Covid-19 (which was then not widely known to have been circulating in the UK). I returned to Leyhill sooner than I should have, still feeling absolutely determined to carry through my plans.

Worn paper-thin by this point, I also began to find the interviews more emotionally affecting than at Swaleside. The attack and related topics came up obliquely in interviews, often in the form of resentment that one ex-prisoner's actions tainted and inconvenienced all ex-prisoners. I had disclosed my own involvement at Fishmongers Hall only to Leyhill's governor (who asked), to my main staff contact there (who was in the room when he asked), and to another worker there from an outside organisation, whom I knew from a previous job and trusted. Beyond this small group, it felt better not to wear any of this on my sleeve, since the research involved holding space for interviewees, and not vice versa. But keeping what was happening to me to myself was not easy, and an impulsive desire for connection crept into my interactions around the prison. Though it was bitterly cold, I took to walking around the site during breaks, and chatting with passers-by. One January afternoon I passed a prisoner wearing *salwar kameez* and a fleece bearing the distinctive logo of a Swaleside mentoring scheme. I stopped to ask him about this, and we discussed Swaleside for a few minutes. The following extract comes from my fieldnotes, and describes what happened shortly after he mentioned a recent parole knockback:

He spoke about being a Muslim. He had received a parole knockback while a long-ago entry on his NOMIS was reviewed in light of events at London Bridge. He had, while at [another prison], learned that a book in his possession had been added to the banned list. He went to hand it in, and was written up as "found in possession of a banned book" [...] The panel questioned him about this at length, asking directly what he thought about what had happened

at Fishmongers Hall. He told them he did not support it [...] He said “that person” who had “killed those students” used Islam to seek justifications and rationalisations for unjustifiable acts. They knocked him back anyway [...] He said [...] his faith helped him “manage his ego” and to remain “patient” and “stoical”. He tried to see this setback as a test of his faith—that this was part of God’s plan for him [...] I said I appreciated his honesty, then found myself saying I had been at London Bridge, and that my friends had been killed and injured. He seemed flabbergasted, and was lost for words. He didn’t *need* to say more, but it made for an awkward parting [...] It angers me that [his] hopes are dashed because of what Usman did. It has its own logic, but plays into the hands of those who want to paint the system as prejudiced. And I felt sad: faith both used to justify unjustifiable actions, and to discipline oneself into conformity.

Somewhat in denial that what had happened had affected me as deeply as it had, and determined to act ‘professionally’ in getting on with the research, my main reflection after this conversation was that my disclosure been injudicious and unprofessional, foisting my feelings on a stranger.

Public and private wrongs

I was exhausted towards the end of my time at Leyhill. It came as a relief when, for the sampling-related reasons described in Section , I broke off fieldwork there, initially with the intention of interviewing in a third prison. I felt further relief, when, by the summer of 2020, it had become clear that further interviews would be impossible. Distance—both from the murders, and from the field—was also shifting my perspective, bringing novel issues into sharper focus.

One, which I doubt I could have noticed at all without having been so close to these events, was the divide between private and public wrongs. This idea is explored further in [Chapter 7](#), but its seeds were planted in me at Leyhill and germinated over

the following year-and-a-half, not mainly through work on the PhD but because I was trying to support friends and colleagues struggling in the aftermath of what had happened.

The attack shattered what had previously been a close-knit community around the Learning Together project. Within it, there had been support, contacts, and advice on difficulties provoked by some of the boundary-spanning friendships which grew from the project. It had felt a safe enough container—to a greater extent than it was—but was now gone. Everyone in it was separated by pandemic quarantines, and had their own priorities and their own grief to attend to. Subtle differences of response opened, and became hard to talk about, as did rumours of serious divisions within the department.

Some friends and colleagues who had worked for the project were preparing for their decision-making to come under nanoscopic scrutiny in inquests, which in turn were anticipated with relish by some pundits with whom I had been periodically arguing online. Others were severely affected by trauma and by the destruction of the support networks they had counted on. Some spiralled back into the lifestyles which had put them in prison to start with; others were destitute and fighting deportation; others were recalled to prison. I felt utterly trapped: by loyalties to my friends, some of whom might have saved my life; by the memories of the dead and what I felt they stood for; and by the values and aspirations I associated with the project, which (absent its safe container) were impossible to uphold. It was easier to memorialise the project and the values it stood for—inclusivity, rehabilitation, hope—than to confront the idea that these might have been illusory, and were in any case gone.

These emotions were complex, messy, difficult to work through, and resisted easy packaging. It felt clear to me from an early stage that the institutional processes by then underway—chiefly, a series of university reviews of the project, and the inquests themselves—would focus, as they had to, on questions which matter to institutions: liability, risk, responsibility, what should have been foreseen, what to do in the future, and so on. These questions related to the future; I was trying to make sense of my past and present loyalties. To me, the institutional questions occasionally provoked revulsion when they communicated

indifference to private grief, private emotions, and private experiences.

On the first day of the inquest hearings, sections from a witness statement I had given to police shortly after the attack, including a minor but (to me) highly significant factual error which I would not have made in the statement, were read into evidence, entering the public record. I received no warning that this would happen, and had no understanding on giving the statement that it might. This was a specific, and in the scheme of things, a minor issue. But it cemented the view that official processes wrap messy, inconsistent, and complicated private emotions into simplifying narratives which name a problem so as to facilitate its management. This tendency—the appropriation of highly personal and grief-laden events—is described consistently in accounts of criminal procedure written by family members bereaved by violence (e.g. [Moreland 2001](#); [Partington 2016/2012](#)). In the inquests and subsequent coverage, both Khan and the project were reduced in this way. Khan was cast, sometimes, as a masterly deceiver; at others, as a confused, prison-raised man, mismanaged by bumbling professionals. The project and those involved in it were presented, sometimes, as naïve, credulous dupes; or as tragically well-intentioned actors unable to overcome the coerciveness and impoverishment of prison regimes. These stereotypes were inexorable, and infuriating. They abstracted private and very personal experiences into procedural fodder, much as happens to prisoners when they are tried or subjected to offence-focused interventions. This point is explored in [Chapter 6](#).

I have since come to think of all this as the result of divergence, between the *private* wrongs caused by an offence, and the *public* wrongs the state sees fit to respond to. The contrast is explored most fully in [Chapter 7](#), but I believe it is the reason I found the Simms release so revealing and fruitful as a symbol of the wider tendency. But it was only over the long term that the effects of these events on my research became clear. One was a growing interest in sentencing theory. I developed a greater respect—not a liking—for retributive justifications for punishment, and came to feel very strongly about the *wrongs* of murder, given that at its worst, it involves the unacceptable act of setting out to kill another person. At the same time, I was still friends with some

people who had committed this crime, and I felt more sharply about this fact; what ‘moral repair’ (Radzik 2009), other than to manage future risks, could legitimately be expected of them? It all crystallised into a simple question: who *deserves* to be released, and how would we know? Finally, the incident focused my attention on how prisons *respond* to murders, as public or private wrongs. These questions are implicit in the empirical chapters which follow, but their implications are drawn out in [Chapter 7](#).

References

Becoming ‘a murderer’

How does a murder conviction shape the ethical self?

This chapter contributes to recent research on the place of the index offence in ethical reflection by men convicted of murder, by adding nuance to that research. Recent studies of long-term and life imprisonment have taken an interest in how a conviction and sanction for a serious offence, generates a striking form of ethical reflexivity, which, it has been argued, drives adaptations to the sentence. The chapter’s central argument is that this focus in recent research has been imprecise in its descriptive approach to the offence of murder. Building on other works which have increasingly sought to consider moral communication and retributive theory using empirical evidence about prisoners’ moral thinking, the chapter’s main methodological contribution is to use an existing murder typology to structure its analysis of prisoner accounts of the offence, whereas other studies of long-term imprisonment have tended to use *ad hoc* inductive typologies, or instead to treat broad legal categories of offence as though they were a single undifferentiated kind of act. The resulting analysis generates a description of moral thinking by men convicted of murder, differentiated by offence type. It identifies different styles of moral reasoning among the different offence type groups, but also identifies some cross-cutting factors which, regardless of offence type, seemed to lead to variations in feelings of guilt and shame.

[M]urder is, like many ‘social facts’, not necessarily easily defined or understood [...] Although virtually always a major crime [...] most, if not all, societies appear to have a moral hierarchy of murder, both with reference to its victims and its perpetrators.

[Even if] all killing is proscribed, particular forms are given harsher punishments than others.

Morrall (2006 pp. 43–44)

Both penologists (Crewe *et al.* 2020; Herbert 2019; Irwin 2009; Leigey 2015) and forensic clinicians (Adshead *et al.* 2015, 2018; Ferrito *et al.* 2012) have been struck by ethical reflexivity among those convicted of serious violence, especially murder. Many lifers, it appears, “recognise the moral harm of [their] actions and build a new life in response” (Herbert 2019 p. 13). Some have also linked this with the passage of time during a long sentence (Crewe *et al.* 2020), and others have theorised a more *general* acceptance that blame was deserved, and punishment legitimate:

...[w]hen an offender acknowledges responsibility, they are accepting of their offender identity [though] they may also need to redefine and ‘discover’ a new identity.

Ferrito *et al.* (2012 p. 328)

These recent findings are somewhat at odds with findings from homicide research (discussed further in Section) that, despite the seriousness of the crime, those convicted tend to minimise and contextualise blame.

This chapter examines the space between the two. Its argument is that recent research has overplayed how consistent the ethical consequences of murder are for those held accountable. It makes the argument through comparisons: I subdivide the sample by murder type (using existing legal and empirical evidence to generate the subdivisions), and then describe how participants in these subdivisions were affected by the conviction and sanction. Where Crewe *et al.* (2020 p. 137) found that a “great majority” of their sample expressed “deep and ongoing remorse about [...] their actions”, I note *patterned variation* in how participants negotiated with censure, and *not* consistent expressions of remorse.¹

¹“Remorse” is understood here to mean intense regrets centred on those most directly harmed. In the remainder of the chapter, the following distinction is made between ‘remorse’ and ‘regret’. Warr (2016 p. 232)

Disaggregating a diverse offence

To ground the analysis, the next two subsections address censure: what generates it, who receives it, and what they are typically censured *for*. One reviews how *the law* constructs the ‘seriousness’ of murders; the second reviews *empirical* evidence on the people typically associated with specific murder types.

‘Seriousness’ in sentencing law

Schedule 21 of the 2003 Criminal Justice Act ([UK Parliament 2003 sec. 321](#)) specifies how the ‘seriousness’ of murders is to be converted into the penalty of imprisonment. Its impact on retributive severity has been noted (e.g. [Crewe *et al.* 2020 Chapter 1](#); [Independent Commission into the Experience of Victims and Long-Term Prisoners 2022 pp. 19–23](#); [Mitchell and Roberts 2012a Chapter 3](#)) but, though penalties grew, the mitigating and aggravating factors influencing a determination of ‘seriousness’ were mostly unchanged.² They can be classified (barring a few outliers) into four loose groups, summarised by Table 1:

defines ‘regret’ as an unpleasant emotion prompted by the divergent outcomes of “a chosen versus an unchosen option”. For de Wijze (2005 p. 459), its constitutive thought is, “how much better it would be if it had been otherwise”. Remorse, by contrast, for Warr (2016 p. 234) denotes an intense species of regret occasioned by “hurting a living being (not excluding oneself)”; for de Wijze (2005 p. 460), it is constitutive of the thought, “I ought not to have acted in that wrongful way”. The key distinction therefore relates to feelings moral responsibility for wrongdoing, and not merely to outcomes one would have preferred to avoid. This chapter will sometimes refer to the *objects* of remorse and regret, meaning to what or whom these emotions attach.

²Originally part of the 2003 Criminal Justice Act, its subsequent amendments have been codified, with other sentencing law, into the 2020 Act. Further detail on how these provisions developed can be found in Appendix .

Table 1: Factors determining the ‘seriousness’ of murder in sentencing law³

Factor	Aggravation examples	Mitigation examples
The offender’s motives and intentions in the wider ‘homicide situation’	1. Murders “done for gain” (§3(2)(c)) 2. Murders motivated by hostility to victim’s race, religion, gender identity, disability or sexual orientation (§§3(2)(g,h))	1. Offender intended to cause serious harm, not to kill (§10(a)) 2. Offender believed the killing was an act of mercy (§10(f))
The victim’s identity and conduct, usually in relation to vulnerability and power disparities with the offender	1. Victim was abducted (§§2(2)(a,b)) 2. Victim performing a public service (§§2(2)(c), 3(2)(a), 9(f)) 3. Offender abused a position of trust (§9(d))	1. Offender acted “to any extent in self-defence” (§10(e)) 2. Offender was provoked in specified ways which fall short of a legal defence to murder (§10(d))

Factor	Aggravation examples	Mitigation examples
The nature of the violence used (e.g. cruel, gratuitous, premeditated, or excessive, esp. if victim(s) suffer intensely)	1. Murder of two or more persons (§3(2)(f)) 2. Substantial premeditation or planning (§§2(2)(a), 9(a)) 3. Destruction or dismemberment of the body (§9(g)) 4. Murders involving “sexual or sadistic conduct” (§3(2)(e))	1. Offender intended to cause serious bodily harm not to kill, or believed the killing was an act of mercy (§§10(a,f))
Weapon use	1. Firearms or explosives used (§3(2)(b)) 2. Knife taken to the scene with intention that it be available as a weapon (§4(2))	None

Several points emerge from Table 1. First, ‘seriousness’ relies in part on inferences about intent (see rows 1 and 3). As philosophers have argued (e.g. [Anscombe 2000/1957](#); [Cobb 1994](#); [Schwenkler 2019](#)) intent is a complex matter: socially constructed, and thus liable to be perceived differently by the law and by individuals. There is potential for assessments of culpability and ‘seriousness’ to diverge.

Second, ‘seriousness’ also depends on the identity and actions of victims (row 2). Empirical studies (e.g. [Luckenbill 1977](#); [Miethe et al. 2004](#); [Wolfgang 2016/1958](#)) find that victims, in some

³The evolution of these sentencing provisions is summarised more fully in Appendix . Entries in table refer to Schedule 21 ([UK Parliament 2020b sec. 322](#)).

forms of homicide, may be “direct, positive precipitator[s] in the crime” (Wolfgang 1958 p. 2). Later scholars (e.g. Timmer and Norman 1984) increasingly rejected the victim-blaming implicit in this finding, without dispelling the underlying impression that some homicide victims are more ‘ideal’ (i.e. weaker, smaller, and attacked by a ‘big, bad’ offender—see Christie 1986); whereas others are active participants in a conflict leading to their demise. It is notable, therefore, that most of the aggravating and mitigating factors relating to victims in Schedule 21 position the offender as more powerful and the victim as weaker. There is aggravation if this is so, but no mitigation if (for instance) the victim provoked the offender, or if the offender acted in fear (rather than in self-defence).

The basis of ‘seriousness’ as seen in rows 3 and 4 of Table 1 is more objective, resting on (for example) whether someone carried a knife or what violence they used. Yet the ‘excessiveness’ or ‘cruelty’ of violence (for example) is a matter for interpretation, especially where people act under deranging influences such as extreme emotion, mental illness, or substance abuse. Moreover, aggravations based on weapon use (row 4) are arguably deterrent more than retributive, in that they ‘make an example’ of the offender, whose reasons for acting as they did are treated as irrelevant. While unquestionably illegal and dangerous, carrying a weapon might appear rational under some constrained circumstances, such as when people are engaged in activities like drug dealing, or when they perceive a risk of violence against them and do not trust that it will be prevented. The point is not to justify weapon-carrying, but to point out that its ordinariness and fathomability are highly contingent on context.

To sum up: censure in Schedule 21 derives largely from an observer’s inferences, suppositions, and cultural beliefs in applying the aggravating and mitigating factors; that is, on their beliefs about what could have been ‘going on’ in a homicide situation. The law discards or ignores information which participants in it might consider essential to a fair evaluation. The result is to open space in which blame may be disputed.

Because the law does not make clear and consistent distinctions between cases, it is to empirical typologies that we must turn

for the classification to be applied in this analysis.

‘Murder types’ in empirical typologies

As Chapter 1 showed, the incidence of murder is patterned on other variables. Murder typologies do not agree on how to classify homicide events (Skott 2019 p. 4), and take diverse approaches to the task.⁴ Most typically, typologies

...emplo[y] rudimentary categories such as age, sex and ethnicity of victims and offenders as well as geographic locations where homicides occurred. While such information is essential for comparing rates of homicide, it is basically a list of attributes [...] [which does not] examine more closely what happens in murder events and why they might have occurred.

Dobash and Dobash (2020 p. 26)

Classifications based on ‘murder events’ (or ‘homicide situations’) offer a more useful basis for the analytical comparisons attempted here. They classify using data on participants *and an account*—a sequential causal narrative of the offence. One, by Russell and Rebecca Dobash (2015; 2020), was developed from case records and interview data in a British sample of 866 cases. It takes the victim’s gender as the most fundamental structuring variable, then subdivides cases by features of the ‘murder event’. Only major categories from the original set are used to subdivide cases in this chapter—subtypes were ignored, along with major categories not represented in the present sample. Thus the present sample is subdivided into four ‘murder types’ for analytical purposes: first, confrontation/fight murders; second, money/financial gain murders; third, intimate partner murders; and fourth, intensely stigmatised murders. The final item comes not from the Dobashes’ original classification, but gathers three of theirs and adds another they do not cover, as follows:

- sexual murders of women (2015 pt. II);
- murders of victims aged over sixty-five, whether

⁴Miethe *et al.* (2004 Chapter 2) offer a helpful discussion of the methodological difficulties of classification.

- women (2015 pt. III); or
- men (2020 Chapter 6); and
- murders of infants.

The following paragraphs sketch the main features of four ‘murder types’ in turn.

Confrontation/fight murders

‘*Confrontation/fight*’ murders (Dobash and Dobash 2020 p. 39) are “linked to disputes involving the personal character and identity of perpetrators who [...] view fighting as a means of obtaining respect and/or enhancing their reputation.” Often, the violence involved is performative: finding it intolerable to let a perceived slight pass unavenged, those involved imagine violence to be retaliatory, even when the slight is trivial. Confrontation murders commonly occur in public places, with multiple perpetrators, witnesses, and bystanders. They can appear sudden and spontaneous, but the antecedent disputes need not be: offenders and victims are acquainted in around three-fifths of cases. In the Dobashes’ sample, those convicted are young (average age 27), tend to be working-class, are unemployed, or work in unskilled manual occupations.⁵

Money/financial gain murders

Financial gain murders, meanwhile, share some features in common with those in the ‘confrontation’ group: working-class, unemployed principals, averaging age 27, who tend not to act alone (67% of cases) (2020 pp. 75–77). They are more often committed against strangers (2020 p. 102), but otherwise, the underlying relationships and situations are heterogeneous. The Dobashes (2020 Chapter 3) and others (e.g. Miethe and Drass 1999) caution against a sharp division between ‘instrumental’ and ‘emotional’ violence, one making confrontation murders

⁵The Dobashes treat murders associated with other criminality (e.g. drug dealing) separately, in a separate category, ‘money/financial gain’, while acknowledging that they are often like confrontation murders. See Section .

‘expressive’ while financial gain murders are ‘calculated’. Instead, they argue, heightened emotional and physiological states are common to both, though the motivation to obtain “money, resources or commodities” and the higher degree of preparation (with weapons brought to the scene in 90% of cases—see [Dobash and Dobash 2020 pp. 75–77](#)) can make financial gain murders appear more deliberate, and hence more culpable.

Intimate partner murders

Intimate partner murders are analytically and aetiologically distinct from the previous two. Victims can include female partners, but sometimes also their children, family members, new partners, or friends, cases the Dobashes refer to as ‘collateral’. This is a gendered, hidden, and specialised form of violence ([2015 pp. 47–9](#)), typically occurring in private settings such as the home. Though it is often extreme ([2015 pp. 51–57](#)), men who kill women tend not to identify with it, and often deny their capacity for it ([2015 p. 67](#)). There is typically a pattern of escalation, with earlier violence against the victim or against previous partners; Dobash and Dobash ([2015 p. 39](#) and, more generally, pp. 40–47) link this to emotions of “possessiveness, jealousy, and infidelity [...] These are acts in which men attempt to possess women and ‘keep’ them and may be followed by acts of revenge when possession, control, and authority are lost.” Intimate partner murderers are less likely to have been socially and economically marginal than with other forms of murder, and they are also usually older at conviction—around 40, on average ([2015 p. 40](#)).

Intensely stigmatised murders

Finally, three further murder types present in this sample and described by the Dobashes are grouped together as *intensely stigmatised murders*. Across the Dobashes’ underlying categories, those responsible are typically young, highly socially marginal men, often acquainted with their victims but not close to them. Troubles at school, early alcohol abuse, early-onset offending, early experiences of institutionalisation, and (in some

cases) physical and/or sexual abuse or neglect commonly featured in their histories (2015 pp. 153–186, 221–41). Usually unemployed as adults, many misused alcohol, or drugs, were persistent offenders, and had no (or a violent) history with former partners. These offences were almost always committed alone in the victim’s home or a secluded public location. In prison, these men were highly likely to be shunned by others, and to be assessed as dangerous by prison staff, and commonly denied either the murder, a sexual offence relating to it, or both (2015 pp. 172–182, 235–237).

Index offences in the sample

Having described the categories used to structure the analysis, the chapter now describes the sample in these terms.

It shows descriptive statistics on their ages and sentences (1a), and their evaluations of their own guilt (1b),⁶ both subdivided by offence type. It is noteworthy that neither unambiguous expressions of guilt nor more severe sentences were evenly distributed, with the ‘intimate partner’ group serving the heaviest sentences, and the ‘intensely stigmatised’ group most likely to admit their guilt.

Confrontation murders

Twenty participants (42% of the present sample) were in prison for ‘confrontation/fight’ murders. Eleven (55% of the group) were convicted with one or more co-defendants. All their victim(s) were male. Ethnically, they were heterogeneous: thirteen were White, nine were of Black or Mixed, and one of Asian, ethnicities. With very few exceptions, they fitted the Dobashes’ characterisation of this group: most were young when convicted (median age 27) and unemployed or intermittently employed.

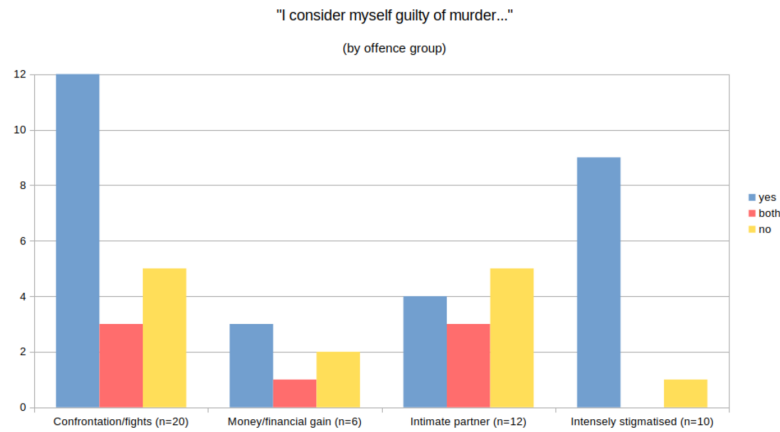
⁶The demographic information sheet used in interviews (see Appendix) included the question, “do you consider yourself to be guilty of murder?”, offering only ‘yes’ and ‘no’ tick boxes. I invited interviewees who hesitated over this question to tick both boxes if they preferred, taking this to indicate equivocation.

Figure 1: Descriptive statistics on the sample and their index offences

(a) The sample by offence type and sentence characteristics

Murder type	Participants	Age at conviction (avg.)	Tariff (median, yrs.)	Time served (median, yrs.)
Confrontation/ fight	20	28	15.5	10
Intimate partner	12	41	19.5	7
Money/financial gain	6	27	19	11.5
Intensely stigmatised	10	24	16	19.5
All	48	30	17	10.5

(b) Self-evaluated guilt, by offence type



Many were accustomed to violence: twelve had served previous prison sentences, and six had at least two prior violence convictions. Two had previously faced homicide charges, though with neither previously convicted of murder. These were, then, mostly men willing to use violence and who saw in it a means to resolve disputes. Thirteen (or 65%) unequivocally admitted murder. Of the others, three equivocated, and five denied guilt, of which three were technical and two were strong claims of innocence.⁷

Slights, provocations, and co-offending

In accounts of the offence among this group, the victim often appeared as an active participant. Interviewees nearly all suggested that retaliation against a slight was justifiable in the abstract, even if they admitted with hindsight that a lethal outcome was excessive. The slights they described varied, but gradations of status and hierarchies of worth were in the background of most:

[Speaking rhetorically to his victim] I don't BELIEVE you've done that to me.⁸ That's what... That's the truth, isn't it? People don't hit me. It doesn't happen, in my world.

Robert (Swaleside, fifties, early)

Heightened emotions—especially anger—were a common theme. Gary's shifts of tense in the following quote, and his slippage from first to third person, personified his anger as a force overwhelming his faculties of self-control:

I don't know how we end up fighting, but somehow
I must grab the knife [...] And I stabbed him [several

⁷A 'technical' claim of innocence denotes admissions of involvement in the 'murder event' without an admission of guilt; a 'strong' claim denotes the claim not to have been involved at all.

⁸A note on the typographic conventions used for quotes: where participants words are *italicised*, this represents emphasis I have added. Where their words are IN CAPITALS this represents emphasis in the original audio. In quotes which report dialogue between me and the interviewee, my words are italicised, but as entire lines/paragraphs.

dozen] times⁹ [...] all I can remember now, in my head, *it kept saying*—my anger—“don’t let him get away with it” [...] For some reason, *it could not let it drop* [...] Red mist, they call it.

Gary (Swaleside, fifties, early)

William’s offence escalated around a drug debt he owed to his victim, but their relationship was multifaceted. His account of it vividly suggested fear, an emotion which, like anger, was prominent in these accounts:

I genuinely felt it was either me or him [...] No matter what the judge said, I know. I know what happened [...] I’d understand manslaughter, but [...] [I wish the court could have seen] [w]hat kind of a person he was. How intimidating he was, and how... how I, personally, felt... and how I could be intimidated and... so, how I was scared, how scared I can be [...] And how much of a horrible person he is. Or was.

William (Swaleside, forties, early)

Other narratives echoed William’s “me or him”, suggesting contingency in who survived and who died. Victim and perpetrator appeared morally interchangeable, prompting frustration for participants who felt wrongly blamed as aggressors:

Some people I interview tell me, “When I started the sentence I knew I had to change,” or, “I knew I wanted to change,” or something. It doesn’t sound like that’s your—

[angrily] Change from WHAT? Listen, I was in my house, mate [...] You get what I’m saying? He came to my house. He was threatening me. It happened at the front of my doorstep. [If] they’d given me manslaughter, then maybe.

Courtney (Swaleside, forties, late)

⁹Specific details obfuscated for anonymity.

Anger or fear; provocation or intimidation; the presence of strong emotion diluted feelings of responsibility. So, too, could the involvement of multiple co-defendants:

From [more than five] assailants in the CCTV footage, the police only identified and charged [some].¹⁰ [They were all] acquitted except him [...] [Today] he would choose to plead guilty to manslaughter to get out of prison sooner, but he was not guilty of murder because he hadn't stabbed anyone. Said the police "got away with doing whatever they wanted".

Yakubu (Swaleside, thirties, early), from notes

These were not *denials* of responsibility, exactly: as noted in Section , nearly two-thirds of the group expressed unequivocal guilt when asked a yes/no question. It was more that their narratives spread blame: by sharing it with the victim, or with co-defendants. Expressions of regret were not uncommon, but usually centred on parties other than the victim, particularly family members (of both participants and the victim).

As Courtney (quoted above) said most directly, even when they admitted they had taken life, this group did not always feel obligated to change; enduring the punishment seemed enough. Correspondingly, when they acknowledged that they *had* changed in prison (as was inevitable considering the spans of time involved), they seldom attributed this to the sentence, but used terms like 'growing up' or 'maturing'. Some were ambivalent about sentence progression, lest projects of self-preservation and survival be mistaken for an admission of guilt, or co-opted by the prison as evidence of its reformatory success:

I ain't changed who I am. You understand what I'm saying? So, you ain't rehabilitating shit [...]

Is that what you meant when you said it felt odd to get your C-cat?

Yeah, yeah, yeah. It pissed me off because, obviously, it's a great thing to have. But it's, "hold on, does

¹⁰Specific details obfuscated for anonymity.

people really think I'm doing this fucking bird?"¹¹
[...] Like, I'm not TRYING... I'm not HAPPY to get
a C-cat [...]

You don't want a pat on the back, you mean?

Yeah. Why am I happy about a C-cat? I shouldn't
even be in jail.

Reuben (Swaleside, thirties, mid)

This subsection has reviewed how slights, provocations and co-offending—all of which are common in confrontation murders—affected feelings of responsibility. These men tended to accept they had lost control of themselves, but did not necessarily accept that this was their responsibility, rather than someone else's. The next subsection briefly examines one kind of confrontation/fight offence which produced deeper feelings of remorse.

Acquaintance with the victim: friends, acquaintances and strangers

Some participants convicted of confrontation/fight murders had killed someone they either cared about, or recognised they ought to have done. Expressions of remorse and regret *centred on the victim* were more the norm here. It was evident that such acts could be judged harshly in prison:

[My friend] said, "He was your best mate, Bill. How could you kill your best mate?" [...] He was deliberately making me realise what I'd done [...] I needed somebody to say, "Fucking hell, Billy, that was fucking bad, that"—to actually put it in context.

Billy (Swaleside, forties, late)

With known victims, there was also greater awareness of *who else* had been harmed, via ripple effects:

¹¹"Doing bird": serving the sentence.

I've just took away their brother, their uncle, their... well, not their son, the parents are gone, but do you know what I'm saying? [...] I wouldn't tell them [in court] what he done [to provoke me] because, come on, that's not fair, is it? So, I said, "I'm not saying anything," just to show a bit of respect [...] He weren't a stranger, he was someone I grew up with.

Ron (Leyhill, fifties, post-tariff)

My daughter, my youngest daughter, and my mate's daughter—the [mate] who I killed—they was out shopping that day [...] They were best friends [...] [My family] had to move house, the kids move school, everything.

Terry (Swaleside, fifties, mid)

Thus grief and guilt magnified one another, and tightened censure's grip. Participants had harmed real, concrete people, rather than simply transgressing abstract legal/moral principles.

Ethical work—attitudes to confrontation

Those who had killed friends aside, men convicted of Confrontation/fight murders expressed regrets centring not on their victims, but on the damage to themselves and their loved ones caused by their propensity for violence. Since prison life abounded with provocations, slights, and fear, and also with opportunities for reflection, there was scope for them to reconsider how these stimuli—which were also those that produced the offence—affected them.

Thus, despite feeling a dilute form of responsibility, many of these men described shifts in their attitudes to violence. A kind of relational strategising drove this process. It involved neither a profound shift in moral attitudes, nor a reorientation towards interdependence, but instead a more calculating, self-distanced mode of being in the world, best characterised by self-control and the practical wisdom of 'choosing battles'.

To describe this shift in greater detail: some early-sentence prisoners described provocations as something to be courted. Establishing a reputation for violence offered power, of sorts: to intimidate others, and to extract concessions from Swaleside, a prison trying to reduce violence rates. For Levi, prison life reproduced the moral logic of street violence; reputation was a means to an end. Thus in his case, ethical work involved acculturating himself to segregation, which from his vantage point seemed the only (and a very short-term) consequence of prison violence:

I can get a move [off the wing if I want one]: I can go on the wing, right now, knock out a screw and get moved off the wing [kisses his teeth]. There's no difference. I ain't getting no extra days... Block's my second home.¹²

Levi (Swaleside, twenties, very early)

Participants later in the sentence, however, mostly understood the 'power of the pen' (Crewe 2009). They cared to keep a clean record more than Levi did, and some were also fearful of prison violence. For them, provocations and confrontations were to be avoided at any cost:

[Anything I do outside of my cell, I do] just to get some money, so I can have vapes and treats [...] [My cell is] my rock. It's the one place where I can relax, where I don't have to think about anything [...] The door's shut, there's going to be no aggro, no trouble on the wing, nobody messing me around.

Billy (Swaleside, forties, late)

Others handled provocations not through disengagement, but via judicious engagement. Understanding one's own limits and social dynamics on the wing became the ethical priority. Many participants described themselves as astute judges of character, and prison as the whetstone on which this faculty was honed:

¹²i.e. Swaleside's segregation unit.

I'm observant now, more than I've ever been [...] I suppose I'm just watching everyone. Thinking, oh, he's being a bit of a prat today. You know, over an orange, or over a Penguin or something stupid. People getting stabbed for it.

Gary (Swaleside, fifties, early)

Minor debts served as a test of relationships and of one's own reactivity, with several men describing borrowing and lending as a *deliberate* test of character:

It's who you let in. So obviously, I give people one chance [...] I will borrow you a bag of rice and then if you don't pay it back then I would be like, aight, cool. I'm not even gonna run you down for that rice, but I'm not gonna borrow you rice again [...] I'll give you one chance.

Reuben (Swaleside, thirties, mid)

A bag of rice was self-evidently worth less than sentence time added through being classified as risky prison violence. Iterated, such insights could produce deeper transformations: shifting attitudes to the importance of 'face', 'reputation', and provocation itself. An ethics initially responsive to incentives, which dealt in cost-benefit calculations, sometimes provoked further-reaching examinations of the beliefs underlying participants' emotionality. This was real change, but did not necessarily involve "deep remorse" centred on harms done to the victim. It could foster a sense of autonomy and self-respect, won through growing self-control and (perhaps) self-mastery. It was telling that many in this group were particularly committed to their health, following strict regimens of physical training, and habitual routines building self-discipline and self-esteem.

About half six... get up, tidy my bed up, the usual stuff [...] These are like rituals I do every morning. If I don't get up and drag myself out of bed and I don't do the tidy, I know that depression's kicking in [...] Then I come out, go to the gym, train as hard as I can [...]

What does it mean to you, the gym?

Oh, it's everything. That's my medication, that's what keeps me... [...] [When] I come to prison I was fucking... [...] I'll have to show you a picture, I was a big fat fucker. I was always slim and athletic as a boy, but in my twenties [I got] lazy, with drinking and eating and whatnot. Since I come to prison I've trained practically every day.

Tony (Swaleside, thirties, mid), from notes

Summary—confrontation/fight murders

To summarise: men convicted of Confrontation/Fight murders typically entered prison seeing violence as normal and rational, if also context-specific. They were used to it. Some sought opportunities to demonstrate what happened to anyone who 'mugged them off'; others were fearful of victimisation by others, and sought pre-emption. Most, though, identified with violence to some extent, and did not find it difficult to think of themselves as (formerly) violent men. Most also admitted at least some involvement in causing someone else's death. But their offences, often not committed alone, felt less blameworthy than the hefty 'murder' tag often implied.¹³

In prison, few had relinquished the general feeling that they had been *provoked*. Nonetheless, unless they maintained innocence, or were very early in the sentence, they were not unregretful, and their thinking about the costs and benefits of violence had shifted. They 'turned around' or 'turned away' from their past actions—consistent with repentance as defined by Bottoms (2019 pp. 129–136)—but were unrepentant in the 'deep' sense advanced by Duff (2003), which involves a broad, heartfelt commitment to projects of reform and reconciliation. They commonly expressed feelings of regret and remorse, but only for those who had killed someone they cared about were these centred closely on the victim.

¹³Those who denied guilt usually did so either because they were secondary parties in joint enterprise cases, or because they admitted involvement but felt that morally relevant circumstances had not been considered.

In most cases, then, these men responded to a message of deterrence, not to one demanding reform. In prison, they increasingly tried to avoid provocation by keeping their emotions at arm's length. This was not easy, but as an environment, Swaleside at least afforded many situations to test their resolve. Ethical change centred on beliefs about provocation, the value of reputation and 'respect', and the costs and benefits of violence. It did not necessarily result in a far-reaching recognition of human interdependency, nor in profound moral realignment.

Financial gain murders

Six men (13% of the sample) were convicted of financial gain murders. Their victims included one woman and six men. Like the Confrontation/Fight group, their median age at conviction was twenty-seven. Two maintained a technical claim of innocence;¹⁴ one equivocated; three admitted guilt. Four had prior convictions, and three of these were serving at least their third prison sentence. Their median tariff was 19 years. None of these men had acted alone. In most cases, co-defendants been part of the underlying conspiracy (to rob or burgle), but had usually not been charged with murder.

Panic and (mis)calculation

Again, the emotional content of offence narratives in this group was striking. Most spoke in ways not suggesting 'calculation' or 'instrumental' thinking, but intense agitation: neither shame nor possessiveness nor jealousy nor anger (as with other groups), but panic, whether prompted by the offence situation itself, or some wider circumstance. Commonly, they had lost control of situations they believed they could handle:

As soon as they were in the house he remembers thinking, "I'm miles out of my depth here". [The victim] started screaming to raise the alarm. He panicked, and [tried to silence them] [...] He learned

¹⁴Both were secondary parties in joint enterprise cases, convicted for not foreseeing what others involved in the originating offence would do.

later that [they] had died [...] He never meant harm, but said, “that’s not the point, is it?” [...] He found the tariff shocking but accepted it quickly: “right from the day” of the offence he knew [...] it was wrong, and he’d pay a heavy price.

Liam (Swaleside, forties, mid), from notes

Ebo, similarly, had not expected the target of a robbery to resist:

I got a knife in my hand... the guy... He was sixteen stone, I must have been about ten stone, eleven stone... I’m not saying I’m a kid but I’m a young... a teenager... fighting a sixteen-stone man [...] But I’m not saying... I’m not trying to say... I mean, I know I shouldn’t even have been there... I don’t know... I didn’t know... how to put across that my intentions were not to harm. I didn’t know how to do it then. I still probably don’t know. I probably still wouldn’t know how to explain about... There’s no way I can put it across to them.

Ebo (Swaleside, twenties, mid)

Ebo’s hesitations were revealing. His difficulty in “putting across” his lack of malign intent recognised that, on some level, the effort was futile: he “shouldn’t even have been there”. As both he and Liam recognised (Liam more explicitly), a fatal outcome rendered intentions moot: they had not been “carrying out any respectable project” and the people they were robbing “could not possibly be blamed for being” where they were (Christie 1986 p. 19). They were ‘ideal victims’, meaning that explanations (like Ebo’s) which centred on “victim-precipitation” (Wolfgang 1958) rebounded immediately on the narrator. Panic shifted responsibility—from one’s deliberate actions to one’s uncontrolled reactions. It made the offence appear less willed, and more a consequence of unwilled internal states.

In other accounts, things had still ‘got out of hand’. However, not panic, but more powerful forces beyond the individual’s control, were presented as having narrowed the scope for ethical choice.

These forces could be internal—the insatiability of addiction, in one example—or external, as in the following case:

[Co-defendant] phoned him and said they owed [a six-figure sum] to the [organised crime financiers of their illegal activities]. They demanded repayment the following week. Threats were made: their creditors let it be known they knew where Frank’s family lived.

Frank (Swaleside, forties, post-tariff), from notes

This account suggested that Frank’s capacity to “act otherwise” had already passed (see [Bottoms 2006 pp. 259–60](#)). Situating his ‘loss of control’ temporally further from the murder, however, pushed Frank into a different kind of reflection: on his capacity for premeditation. Knowing he would be recognised by the victims of the robbery, Frank’s ability to *actively suppress* his own moral emotions had become, years later, the detail which troubled him the most:

I shot them in cold blood. That’s not nice, but it’s the truth. The only way you can do something like that is to dehumanise the person, see them as an object you need to move out of your way. Otherwise you won’t do it [...] I thought about it in the car, all the way there [...] I didn’t want to do it. I knew it was wrong. And I did it anyway. It took me years—years—to face up to it.

Frank (Swaleside, forties, post-tariff)

Like the confrontation group, these men pointed to the actions of others, or to relevant features of the surrounding context, to explain their violence. But it did not ‘work’ to share blame with the victims, because the implicit claim was paradoxical: the narrator had *come prepared to use violence*, but had not *intended harm*. Events had spun out of control, but these men recognised that this offered no justification: the wider situation was of their making.

In one case where the victim was less ‘ideal’, a theme of moral interchangeability was present, more reminiscent of the ‘him-or-me’ accounts described in Section :

All I wanted her [a risk assessor] to understand was that this guy was... You know, was the threat credible? [...] The deceased had a firearm on him [...] It's not like man's making up porkies. These guys was armed. We was armed. [...] None of us didn't have any qualms about shooting the other person. So it could have been easily him sitting here interviewing with you today [...] Even though I was a bad person, the way that she was making it look... like, just, we went out just to kill this guy, do you understand? That wasn't the case.

Leon (Swaleside, forties, mid)

Leon's demand was that his offence be seen in context: conventional morality and the law offered no guidance in a 'him-or-me' situation. The risk assessor had challenged Leon's insistence on this point, suggesting that he was presenting himself as a vigilante hero, and thereby minimising blame and evading responsibility. For Leon, this missed the point: *no one* emerged with credit from his account of the offence; both he *and* his victim were "bad people", and his job was to make the best of having survived.

Generally, this group struggled to justify an unjustifiable situation, but wanted to describe the few, stark, choices they had perceived at the time. The killing was not the defining ethical moment in their accounts; it was a consequence of long-prior decisions—to become involved in crime, to use drugs, and so on. Only Frank, who had deliberately and calculatedly suppressed his moral emotions, described more intense feelings of remorse, suggesting that he saw the causes of his violence as internal, not external.

Moral difference and role-taking

No participant in this group had acted alone. Thus, as with the confrontation/fight group, the involvement of multiple actors was again significant, though it could intensify or lessen blame, depending on the circumstances. In two cases, official records

made clear that a co-defendant had struck the fatal blow. These interviewees did not feel responsible:

I never intended to kill him, and I didn't kill him, so I don't lose any sleep over it. It's a tragedy and I'm sorry that he's died, but that was out of my control.

Dalton (Leyhill, thirties, mid)

Dalton, lacking previous convictions, found it difficult to rationalise the sentence as a form of cosmic justice for past misdeeds, as other joint enterprise defendants have done (Hulley *et al.* 2019). Nixon's lengthier record of previous convictions offered more to work with in this respect, and his view of the sentence was more akin to cases described by Hulley *et al.*, in which secondary parties constructed narratives in which they deserved punishment for *something*, even if not for the index offence, and by doing so made more sense of their predicament:

There's a thing with me called swings and roundabouts. I'm doing this bird, and in the past, I've done a lot of stuff that I got away with, so this makes up for it [...] Like, sort of, balancing the books, yes? [...] [and then] I come out and live my life.

Nixon (Swaleside, forties, post-tariff)

Secondary parties, then, accepted no more than secondary roles, though sometimes invoked karma to make sense of their position. The other four men admitted guilt in the murder (one equivocally), but recognised that the lesser convictions handed down to co-defendants had been aggravated by the murder. Some felt responsible, and expressed guilt relating to the severity of sanctions received by *others*:

He basically had nothing to do with it [...] with the planning [...] He wasn't active [...] So in the robbery, he was just watching. He didn't think what happened would happen.

Frank (Swaleside, forties, post-tariff)

One of my co-d[efendant]s, he was the lookout man. He had... not to say he had nothing to do with it, but he didn't know nothing [...] I feel it's a bit harsh. He got manslaughter and conspiracy to rob. My actions shouldn't have led him to be convicted to a manslaughter.

Ebo (Swaleside, twenties, mid)

With this group, then, unlike with the Confrontation/fight group, co-offending did not *necessarily* spread blame. It *did* lead, naturally, to moral comparisons, some centring on questions of desert and procedural justice, and some on roles in the homicide event. But expressions of remorse or regret centred, as with the Confrontation/Fight group, on how the sanction had impacted them and their loved ones.

Ethical work—taking responsibility while rejecting judgement

A good person isn't made in here; a good person arrives here, and they either stay good, or they don't.

Dalton (Leyhill, thirties, mid)

For Nixon and Dalton, secondary parties who denied guilt, life was on hold. Ethical development occurred elsewhere; prison could only make you worse or (at best) impose an ethical stasis. Ethical work in these circumstances consisted in surviving, and resisting taint. In keeping with this preoccupation, both were fluent in their contempt for certain categories of prisoner:

It's draining being around all these fucking nonces¹⁵ [...] having these fucking dirty bastards staring at you [...] They're ready to go and put a note in the box, or say something: [contemptuously, in a wheedling tone] "His music was a bit too loud. He didn't say hello to me."

Dalton (Leyhill, thirties, mid)

¹⁵'Nonce': sex offender (highly derogatory).

An instructive contrast was evident with the other four in this group, who admitted guilt. They took a more sanguine view of moral status, while also preserving the view that prison was not a place for ‘real’ ethical life:

We’re all just people. We’re all in prison [...] No one’s better than anyone else [...] I mean, some... I know some people have done worse things than others, I get that. But... I’m not here [...] [to take] on board all everyone’s done and all that [...] I’m not interested. They’re not my family, they’re not even my... I mean... like... They’re not even real friends, they’re just friends because I’m here.

Liam (Swaleside, forties, mid)

These men wore the ‘murder’ label pragmatically, feeling responsible for the offence but rejecting outside judgement by people who did not understand its circumstances. Such moral fault as they diagnosed in themselves centred less on the offence and more in the lifestyles which culminated in it. These men were not *eager* to perform the identity of ‘reformed characters’; but they were strongly responsive to the incentive structures of the sentence, complying and engaging pragmatically:

You need to wake up and smell the coffee, innit? I’m doing life, and the chances of me getting out before my tariff is slim to zero, innit? So obviously, *I need to do what’s best for me*, to progress and go home at the earliest opportunity. So if that means if I need to do seven courses, I’m going to try and get to do these courses, if I need to buckle up on behaviour, I’m going to do whatever I need to do to get to go home to my family, innit? *Eyes on the prize*, innit? That’s the most important thing.

Leon (Swaleside, forties, mid)

To aim for a ‘prize’ necessitates playing along, even if one would ideally prefer not to be in the game at all. Dalton and Nixon could not do so authentically. Leon, who could, avoided seeing his sentence as an irretrievable loss by ‘gleaning’ (Irwin 1987/1970) from it. He and some others in this group were very

interested in education and knowledge, pursued for intrinsic reasons and not mainly because it was expected to lead to employment or work opportunities:

What did you get from doing your degree?

It kind of opened up my eyes a little bit that I had been... let down by society, in that if I had been given the opportunities as a youth, then... my life might have been turned out different. That I actually could have, you know, become something other than what I had become [...] Obviously, you don't really know what you can achieve until you [...] set your goals high.

Leon (Swaleside, forties, mid)

Summary—money/financial gain murders

No financial gain murder in the present sample was committed alone, and the roles played by participants were important to their ethical meaning. Those who were secondary parties to joint enterprise murders, like those who maintained innocence, found it hardest to think of the sentence as being in any way meaningful. Nixon had constructed a 'cosmic justice' narrative; Dalton had not; and both characterised the prison as a parallel, meaningless world: a non-place in which to live non-life while passing non-time (Levins 2024). Other participants recognised that their offences had been wrong. They struggled to varying degrees with the idea that their intentions (which most characterised as more benign than 'murder') no longer mattered after someone had died. They suggested they had lost control, or miscalculated. The defining ethical moment—when it seemed they could have done differently—was often long gone by the time of the offence. They blamed neither the victims nor provocation, instead describing morally compromised circumstances, and outcomes they had not foreseen. Ethical work involved pragmatically taking what one could from the wreckage, while rejecting imposed identities.

Intimate partner murders

Twelve participants (25% of the sample) were in prison for intimate partner murders. Only three cases featured co-defendants, only one of whom was party to the violence (rather than the related charge of ‘assisting an offender’). Nine of their victims were adult women, all either partners or ex-partners; the other three were adult male associates of current or ex-partners. This was, by far, the oldest group at conviction: the median age was forty-one, ranging from sixteen to sixty. Ethnically, eight of the twelve were White; three were Asian; and one declined to describe his ethnicity. They admitted guilt less than other groups, just four (33%) doing so unequivocally, with three (25%) equivocating, three (25%) making strong claims, and two (17%) technical claims of innocence. They had the longest minimum terms of any group, at a median of 19.5 years. Yet all twelve were also serving their first prison sentence. Six had previous convictions, most dating to the 1980s or earlier. Two related to earlier relationship troubles; two were fines imposed in the 1970s for contact sexual offences certain to have been handled more severely today. Accordingly, although they did not think of themselves in this way, some had histories of controlling behaviour and/or violence towards women.

Possessiveness and control showed up less in their accounts of their relationships, and more in their curation of their own narratives. They implicated victims in the offence, and minimised their own responsibility, more consistently than other groups. Sometimes, this was straightforwardly victim-blaming. Others situated the offence in emotional dysfunction, as if the relationship, not the victim, had been to blame for what happened. What was clear, throughout, was that publicly ‘wearing’ the offence was very difficult: there were fewer moral discourses within which claims of provocation would ‘work’.

Locating responsibility in intimate partner murders ‘proper’

Without co-defendants, sharing blame around was difficult, and involved a choice: to deny involvement entirely; to blame the victim; or to accept responsibility. Much of how the group reflected on their offences should be understood in this context.

Two participants maintained strong claims of innocence. Like those in every group who made such claims, they went to great lengths in narrating and questioning the case against them (as if to relitigate it). By contrast, questions dealing with moral obligations were answered tersely. There was, simply, nothing to discuss:

Do you perceive any kind of moral judgement or message coming from the conviction?

Never.

Olivier (Swaleside, sixties, very early)

Olivier would be very old by tariff expiry. He saw the post-release period as worthless, and perceived no reason to compromise on his stance, implying that suicide was a preferable choice:

I would have more chance of being dead than alive [by the parole eligibility date]. So no, I'm here by choice [to win my appeal]. I think I would have done myself in without it.

Olivier (Swaleside, sixties, very early)

Ian, who had been in prison for far longer, but also had more potential post-prison years ahead, saw more reason to compromise. This entailed finding past forms of behaviour he did consider morally faulty, and working these around a narrative still premised on the claim of innocence:

[I realised that] even though I was innocent, there are always aspects of your life that you can't be proud of. For you to then apply for the [offending behaviour] course shows your enthusiasm [...] Instead of getting the hump [about participating], you're making a conscious effort, and I think you get a better response.

Ian (Leyhill, fifties, post-tariff)

Thus Ian, while continuing to deny any responsibility for his ex-partner's death, admitted past infidelities and parlayed this admission into a reform narrative, addressing the risks officials associated with the murder. Others claimed technical innocence, usually by reference to self-defence:

There was no intent to harm my wife. Never ever. She is aggressive, she stab me once before [when we argued] [...] I was scared, I was blackout, I don't know what happened, it's just a dream.

Aftab (Swaleside, thirties, early)

Thus even where guilt was admitted unequivocally, narratives of intimate partner murders often questioned blame more subtly. The extract above and others like it usually culminated very long narratives, the effect of which was to present their partners as conniving, manipulative, spiteful, or unfaithful, and thus to implicate them in some way. Finances were particularly commonly presented as a 'trigger':

Probation did not understand some offences are "true one-offs". His wife, a "nymphomaniac", was constantly having extramarital affairs. Despite these troubles he [...] "loved [her] to the end" and "she was only dead because she tried to steal the house" from him.

Emlyn (Leyhill, seventies, post-tariff), from notes

I didn't go there with any intention to harm a single hair on her head. I went to find out why she took the business from me. And that's what I wanted to find out. But unfortunately, what happened happened.

Alan (Swaleside, fifties, very early)

In some respects, these exculpatory implications echoed those in the confrontation/fight group. However, as with the financial gain group, there appeared to be few narrative templates available which excused their violence, this time in the domestic context; intimate partner murders, in prison as in wider culture, seemed particularly blameworthy. This might have been the

reason the accounts quoted above deflected blame by constructing their victim as a threat to their life, limb, and livelihood. Self-defence, more than provocation, offered moral cover against censure, to the extent that the claim was credible.

Only a few participants in the group threaded this needle by explaining the offence *without* suggesting that their victims were to blame. They narrated the relationship as a kind of ‘toxic dyad’ which brought out the worst in both parties. What also stood out was the emotional connection these men continued to cultivate with the victim’s memory. In some sense, the relationship lived on:

It’s an offence against her, her family, but also my family, and God [...] [Murder] is a massive sin, you know? It’s one of the gravest sins that you can commit in Islam [...] *If you’ve sinned against an individual, you’ve got to earn their forgiveness.* Now, I can’t go up to her and say, “sorry”, but in bettering myself [...] all the character flaws I had [...] if I improve all of that, then maybe somehow [my wife] will find a way to forgive me.

Rafiq (Swaleside, thirties, early)

Paradoxically, Rafiq felt that he could only expiate his ‘sin’ by obtaining his late wife’s forgiveness. Feelings of this kind perhaps reflected a ‘disenfranchised’ form of grief (Doka 1999): one unlikely to attract recognition, support, or sympathy from others, and thus harder to process. Grant, too, maintained a close relationship with his late wife’s memory. When we started the second interview, he checked the recorder was running and then said he wanted to ‘set the record straight’, having described at length in the first what had become a dysfunctional and very unhappy marriage:

I met Elena¹⁶ when I was [age]. Didn’t get married till I was [age]. So that’s [quite a few] years, right? She was lovely. Alright? [voice cracking] And that’s why I still love her today. Alright? I’m not stupid. I wouldn’t have married her if... [pause] Things

¹⁶Name changed.

changed... Alright? So I just want to put the record straight. I'm not saying it was always like it turned out... She was lovely. And that's... [crying]

I'm sorry... [pause] if I kind of gave the impression I thought something else.

No, no, no, no. It's just that I thought about it last night and I thought to myself... in talking about how it went wrong... I've come across... I don't want to slag her off, that's all.

Grant (Leyhill, fifties, late)

Across the intimate partner group, there were three broad stances regarding blame. One (denial) was straightforward. A second (formal guilt with 'implicatory denial'— see [Cohen 1996 p. 522](#)), accepted responsibility but narrated the offence so as to lessen blame. A third stance, moral guilt, accepted responsibility but situated it in a context of tragic (and mutual) dysfunction.

Locating responsibility in 'collateral' intimate partner murders

It was suggested, in describing the confrontation/fight and money/financial gain groups, that the victim/offender relationship could alter the moral and emotional ramifications of the offence. Contrasting intimate partner murders 'proper' with 'collateral' offences underlines this point. Compared to those who had killed their partners—especially where those relationships had lasted many years—those with 'collateral' offences seemingly encountered less difficulty in explaining their violence, and their accounts could seem glib by comparison. For example, in one case, the claim was that the offence was done in a noble cause:

I killed that guy because I was in love with her. Not out of jealousy [but] to save her [...] The best outcome, for all of this—forget me, you know?—is for her to go and flourish and be as good as she can possibly be. That would be, you know, the

best outcome. Because then *my job is complete, the mission is a success*.

Matt (Swaleside, fifties, very early)

Others treated their guilt as a private matter. Having not harmed someone within their family, they were under less pressure to acknowledge harms beyond their immediate circles of concern:

To this day he can't really understand his motives. He talked about having spent his life solving problems, and how perhaps he saw [the victim] as a problem to be solved [...] He hasn't had "opportunities to discuss it", and feels the "reaction of men" has been "vindictive and unsympathetic", while that of God has been "love and forgiveness". It was "a major thing" to have taken life in this way; and yet he has maintained innocence from the start.

Gerald (Swaleside, seventies, mid), from notes

These instances demonstrate how important are both the 'depth' of the relationships ended by the offence, and the cultural 'templates' at hand to narrate it.

Ethical work—compartmentalising and controlling the narrative

For those convicted of intimate partner murders, ethical work resembled a kind of compartmentalisation. How they saw their offences was well captured by Emlyn's words (quoted in Section): "true one-offs". The murder was an aberration: something out of character, and discontinuous with the self:

I've always been well-behaved, I don't get into fights,
I've never been violent except for my crime.

Timothy (Swaleside, twenties, very early), from notes

It followed that they also felt less obligated to become (and to be seen to become) *formerly* violent men. Indeed, most set little store by ‘reformed’ or ‘rehabilitated’ status as a marker of moral worth. Instead, they emphasised that they were *already* morally worthy: other prisoners, not them, needed major reformatory change:

All the charity work I’ve done on the outside for various people... you know, with regards to [my business], all the things I’ve done to help other people and stuff. And in seeing that, there’s an opportunity here to be a Listener [...] Well, that’s something where *I can still continue to help people* [...] [But] *so many people are trying to do it for all the wrong reasons*.

Alan (Swaleside, fifties, very early)

The sense of themselves as morally worthy people perhaps also explained a marked tendency towards censoriousness ([Mathiesen 2012/1965](#)) regarding the prison’s failures to perform its rehabilitative function with those who really needed it:

It’s a nonsense, the whole system. There’s no rehabilitative improvement, really. And above all, it seems to me that self-control is one of the fundamental aims of rehabilitation. Set in a context, a framework of standards... so they recognise the standards and they’re trying to aim for those standards.

Gerald (Swaleside, seventies, mid)

Some members of this group—including Gerald—identified participation in the research with an opportunity to contribute to a conversation about prison reform. They were drawn to prisoner consultation initiatives, and were fluent and assiduous users of the ‘rehabilitative culture’ terminology in vogue with prison managers at the time (see [Mann et al. 2018](#)): ‘residents’ not ‘prisoners’, ‘rooms’ not ‘cells’, and so on. Subtly, this signalled their moral alignment with ‘the system’, in contrast with the many other participants who scorned this language.

Only Grant and Rafiq, who admitted moral (not formal) responsibility and saw their offences as *culminations*, not *aberrations*, fully accepted that *the conviction itself* rendered the demand for ethical self-change a legitimate one. They spoke sincerely about change, but this did not mean they accepted wholesale the psychological theories of domestic violence causation promoted by OBPs. Rafiq, in making sense of his offence, preferred a tragic language of distress, remorse, and emotional dysfunction over one of ‘abuse’ and ‘violence’. Nevertheless, he and Grant felt obligated to engage with official terminology, prompting ambivalence:

They will throw those words like “abusive”—that’s a very strong word [...] To me [...] [it’s] where you’re going out of your way to abuse this person, whether it be physically or verbally. That was never my intention, *that was never me*. And maybe that’s why I felt bad [...] *because I did become that person* [...] “Minimisation”, “justification”, “denial”, “excuse”, “not taking responsibility”, “shifting the blame”. Those are key words that prison psychologists, facilitators use. It’s hard. *I can see where they’re coming from, but also not having my side acknowledged, it’s painful.*

Rafiq (Swaleside, thirties, early)

The ‘pain’ was that of being defined from outside. Rafiq’s emphasis on his good intentions rhymed with similar protestations across the sample, and were a way of disowning the act. Nonetheless, he admitted having “become that person”, only later discovering a language of emotional dysfunction which helped him explain how. In relinquishing control of the narrative, he and Grant were unusual in the intimate partner group as a whole; they accepted what Rafiq (elsewhere in the interview) called “kind of a new moral compass”. However, his words also suggested feelings of objectification, and a desire for moral recognition, having undergone the painful task of performing ‘narrative labour’ (Warr 2020). Grant, similarly, had demanded recognition in an interaction with a risk assessor, by asserting his ethical worth, and insisting that the assessor reciprocate by taking responsibility for his own faults:

He said that he was a great believer in fate. And he said it wouldn't have mattered who I married, he believes I would have killed them. Now [...] all he knows is what I did. He doesn't know the background [...] So he's just going on the records. Which I understand he's got to do. That's his job, I understand that, I'm not knocking that. But his personal thoughts and his personal beliefs about fate, I think he should have kept to himself [...] I said to him [...] "the courses that I've done [...] about changing my beliefs, adapting them, dropping my beliefs completely..." I said, "isn't it about time you looked at your beliefs?" And he went silent. He just did not know what to say. Because I think he felt that maybe I was right.

Grant (Leyhill, fifties, late)

A few men in the post-tariff stage of the sentence, or who were earlier in the sentence but expected a low quality of life after release, were much less concerned to develop a repentant performance. They questioned what they would gain by admitting responsibility. Demands for accountability were characterised as a kind of assault, not as something which could yield a better selfhood:

I used to feel bad about what happened. And a lot of these [i.e. prison staff, clinicians, providers of treatment], *they tried to drive me into depression, almost*, over [my offence]. "You must feel bad. You must fucking have remorse [...] You're such a bad person." They ain't said that, but it's kind of that mentality [...] They do go, "well, you haven't got any remorse." [And I reply,] "I used to have. And you bashed it out of me. I used to care. I don't give a fuck any more."

Chris (Swaleside, sixties, post-tariff)

Chris drew attention to something important: that to fully accept blame—to take responsibility without explanation or context and incorporate a wrong into one's identity—is to be in others' hands, and to conform to their expectations. To accept

blame generated an expectation of reciprocity: that there would be some moral recognition for the major step of doing so. Chris, having been denied parole repeatedly, doubted that this would ever happen.

Summary—intimate partner murders

The intimate partner group were more diverse in their backgrounds than those in other groups, and had been convicted older. Their biographies snagged on the offence: in other domains, many had lived highly conventional lives, and most denied earlier involvement in violence or other crime; indeed, their moral attitudes to both were explicitly condemnatory. Prison life, meanwhile, sequestered them away from the kinds of relationships which had produced the index offence, amidst men they saw as far ‘worse’. Against this backdrop, their own violence felt incongruous and unreal, and taking responsibility coherently felt difficult, since it was so discrediting of broader feelings of worth and identity.

The controlling, coercive dynamics said by the Dobashes (2015) to drive intimate partner murders were largely absent from their stories, though my view was undoubtedly impeded by the one-sided accounts I heard. What was striking, instead, in terms of ‘dynamics of control’, was the control many of these men wanted *over their stories*. Those in the confrontation/fight and money/financial gain groups were more content to be thought of as violent, or as regretfully and formerly violent. The intimate partner group, by contrast, often appeared to be in a kind of denial, characterising their victims (or, less commonly, their relationships) as having been so dysfunctional as to push even a level-headed, conventional, reasonable man over the edge. Their accounts certainly conveyed desperation and overwhelm in domestic conflict, but also often strayed into victim-blaming.

Intensely stigmatised murders

Ten members of the sample (21%) were imprisoned for intensely stigmatised murders. Four had killed adult women, in circumstances recorded officially as involving a sexual motive. Four

had attacked elderly people, including five women (whom, in two cases, they also raped) and two men. Finally, two had been convicted of killing infants.¹⁷ All charged and tried alone, with no co-defendants, two were of Black ethnicity while the other eight were White. They were the youngest group by average age at conviction, with a median of twenty-five and a range from seventeen to thirty-eight. Nine admitted murder unequivocally, and only one made a (strong) claim of innocence.¹⁸ True to the Dobashes' account, most of these men had been highly marginal: unemployed, and with adverse early experiences common. Seven reported physical or emotional abuse or neglect by one or both parents; five had witnessed violence in the home; four had experienced sexual abuse in the home and elsewhere; five had been taken into local authority care and/or lived in custodial institutions in childhood. Four had no prior convictions and were serving their first prison sentence, but six had served at least one (and four at least two) previous custodial sentences, for offences ranging from theft to (in one case) rape.

The 'intense stigma' label is applied here because of the status of their offences in prison and wider culture.¹⁹ Nine of the ten admitted guilt unequivocally, and yet four (more than in any other group) declined to describe the offence at all in the interview.²⁰ This, perhaps, hinted at an awareness that what they had done might seem 'unfathomable'. However, some, mostly those who had confronted the dismal legacy of their childhoods while in long-term therapeutic units, spoke with a qualified positivity about their prison experiences; relief, at

¹⁷To avoid doubt: neither was recorded as having any sexual motive, and both were prosecuted for causing death by shaking.

¹⁸Convicted by majority verdict after a retrial, he insisted that his child had died naturally. Sudden infant deaths are difficult to investigate, murder convictions often rest on complex and contested medical evidence, and some in the past have produced major miscarriages of justice (Fox 2019).

¹⁹It is worth acknowledging here a distinction between the two men convicted of infant murders and the rest of the group, relating to their backgrounds. Put simply, they were less marginal, and less profoundly marked by the egregious actions of adults in their early lives. What they had in common, however, and what unites the group as a whole, was their awareness of 'stain' (levins 2023) relating to the conviction.

²⁰Three of these four consented to my reading their prison records; in the other case I searched online and found details (see Chapter , which also reflects briefly on why some of these men may have found it so difficult to describe what they had done).

having tamed the after-effects of early trauma, was evident. Although this group accepted responsibility more than any other, many perceived that prison authorities tended to view them cautiously, as ‘damaged goods’: stigmatised, vulnerable, dangerous, and neither autonomous nor responsible. This grated with some.

Dissociation and responsibility

Though this group readily accepted their guilt, these offences remained difficult to contemplate, and to describe or explain. Accounts of the offence in interviews were often matter-of-fact, emotionally detached, unelaborated, and described with a coldness which nonetheless seemed somehow protective:

I went upstairs [...] I opened this room, she was in there, but she was asleep [...] So I’ve [...] opened the thingy, and she must have heard me [...] She was starting to scream. I said, “listen, you don’t have to scream, innit.” So I punched her [...] [and then] I raped her. And then I ended up strangling her.

Jeff (Leyhill, fifties, post-tariff)

Dissociation and detachment related to the offence were sometimes described explicitly:

He remembers thinking he was going to [kill] her but felt as if he was outside his body [...] [and] “far from myself” [...] [He had] no sense at the time that what he was doing was right or wrong and didn’t pause to reflect [...] [but] simply “acted on what came into my mind” and “went with the flow”. He didn’t feel angry with her, but distant, cold, and detached. It was only when police later questioned him that it sank in: it was “impossible to explain”.

Derek (Leyhill, fifties, post-tariff), from notes

The words at the end of this extract, a direct quote, are highly significant. Actions that are “impossible to explain” are also deeply isolating. Like all stigma ([Goffman 2022/1963](#)), they

discredit the subject. When these men described the early sentence stages, they often referred to extended periods of self-seclusion, in which the impossibility of accounting for the offence cut them off from the world:

It was, “oh fuck, oh fuck, what have I done”, sort of thing. I was in complete denial, complete and utter denial [...] I was in denial for, what, three years? Just point blank, “nah, it weren’t me” [...] Looking back now it’s mainly because I was so deeply ashamed of what I did.

Adam (Swaleside, twenties, mid)

Social exile was often reinforced by condemnation from others; fear of other prisoners was often evident, and was a cause of self-seclusion for some:

[HMP X] was “a living nightmare”: he received beatings from officers and other prisoners. Members of his family sold stories about him to the press, then cut him off.

Derek (Leyhill, fifties, post-tariff), from notes

[I transferred to another prison] but there is no video camera [on the wings] there, so basically within two days I was behind my door with people threatening my life [...] and I spent half a year behind my door with no access to really anything. There were times when for ten days I could not get out for shower and phone calls or anything.

Janusz (Swaleside, thirties, mid)

In most cases, then, dissociation or denial had been the *public* stance, but these men felt deep shame *in private*, of a kind which felt impossible to reckon with because it was so hard to offer an account which was both truthful and morally coherent.

Ethical work—finding explanations

Coming to terms with the offence entailed finding ways to turn private shame into public responsibility. It did not necessarily neutralise or deflect internal feelings of shame centred on the offence:

It's pretty brutal. I mean, I still get upset about it, but I've managed to sort of... Not forgive myself, exactly, but move on, to be practical and pragmatic about where I was then, and where I am now. Yeah. But it's something I'll have to live with for the rest of my life [...] I deserve to be in prison.

Daniel (Leyhill, fifties, late)

The impossibility of explanation was most evident when participants preferred not to describe the crime at all. They could (and did) revisit factors which had played a part, including violent and sexual victimisation, substance misuse, or mental illness. But they stopped short at the offence itself. Jeremiah, who had previously been accustomed to violence among his (male) peers, said that nothing had prepared him for the psychological impact of murdering a woman in her home using extreme forms of violence which had greatly aggravated his sentence:

Before, there were times when I felt really angry, that I felt like, yeah, I could actually have hurt someone... But like... the person that I killed... you know, the way... you know... I killed them... and stuff like that... Like, I didn't think that... you know, you know... that would have happened as well [...] I felt like, you know... Just like... I kind of lost myself [...] Or maybe like, I felt like, you know, I lost part of myself [...] after I committed that crime.

Jeremiah (Leyhill, thirties, post-tariff)

The notion of 'losing part of oneself' captures the sense of psychological and personal disintegration caused by trying to incorporate an intensely stigmatised act into one's story. Yet, to not do so risked allowing self-seclusion to congeal into permanent exile. Most of these men, eventually, recognised what Nicholas

expressed most clearly: that there was a frontier, beyond which dissociation became fantasy, and withdrawal became detachment from reality:

At that beginning stage it was easier [to] place myself in a chain of thoughts [...] where what had happened never really happened [...] eventually it [got] to an extent *where you find yourself too far gone* [...] I was living in the past, okay? And living outside [the prison], but it was not the life that I had lived [...] I was kind of re-living my life but with... you know, making up a different kind of history for it.

Nicholas (Leyhill, thirties, post-tariff)

What made explanation difficult for men in this position was not *that* they had killed someone, but rather a combination of *who* they had killed, and the cruelty or indecency legible from the *how* and the *why*. This was most evident with offences recorded as involving a sexual motive, which, more even than the killing, could seem the unfathomable detail. Only three of the six participants with offences of this kind readily admitted the sexual element, and one other had changed his stance:

I denied the rape. To me, to me... All right, taking somebody's life is bad, yeah. But, but... raping an old lady, to me, it's not acceptable. And I thought that... that was... that was worse. So I denied that for years, and I just said, "I admit the murder".

Jeff (Leyhill, fifties, post-tariff)

Owning up to a sexual motive was extremely difficult, both for internal and external reasons. Even in treatment settings, such disclosures could bring lasting repercussions:

Ever since I have done that [i.e. disclosed], there are [...] prisoners who are aware of it and it's been passed on year by year to different establishments [...] it rebounds in the prison wherever you go and then it follows you through word of mouth [...] [People think:] "that guy has got no standards and no morals, he'll do whatever he wants" [...] *You can start*

believing that you're a bad person from what they say. It can taint your thoughts and ruin your mental state.

Derek (Leyhill, fifties, post-tariff)

Derek's words recall the finding that highly stigmatised offences 'stain' those responsible with a sticky, persistent taint (Ilevins 2023). 'Stained' people are impugned with not moral but *ontological* deficiency;²¹ the conviction "sets [them] apart, pollutes [them]", feels "impossible to escape", and is "indelible and communicative" (Ilevins 2023 p. 43ff). Offences in the confrontation and financial gain groups were often more 'serious' by the crude metric of tariff length, but intense stigma was its own burden.

A couple of men, however, both with experiences of long-term therapeutic intervention, accounted for the offence more fluently and with fewer signs of continuing dissociation. Therapy, it seemed, had bridged the gap between early trauma and subsequent violence. In telling their stories, they seemed less preoccupied by how others perceived them:

Have there been people during your sentence you have looked up to or admired?

[24-second pause] No. Not in prison, no. I have sat there and thought, "Oh, I wish I was like you." I used to do that a lot [...] But then after [...] therapy it was all about me. It was all about accepting me for who I was, and it was about that journey being my journey, not other people's journeys. So—*although this sounds a little bit selfish*—it was about me from that point onwards.

Nicholas (Leyhill, thirties, post-tariff)

Nicholas's suggestion—that self-possession might be perceived as "selfish"—was significant, drawing attention to limits on where these more fluent offence narratives could *go*. Therapy, to be sure, relieved some kinds of pain, and these men certainly found relief from shame in this. It could not, however, enact a deeper form of moral repair, something Harry regretted:

²¹I owe the useful wording of this distinction to Scambler (2019 pp. 25–27).

[I] found out [through an] impact statement the perceptions of the [victim's] family... that they perceived me as someone who's not taken responsibility [...] That troubled me greatly because whilst I can appreciate their grief it seems to me that that letter that I wrote, [...] in fact it [must have] never reached the family. Because part of that letter was to impart to them how much sorrow and regret I have, how much how much pain I'm experiencing, because—*that's selfish*—but I didn't [...] want them to think I didn't have any remorse [...] I feel sad [...] for them because I didn't want them to think I've wasted my time in custody.

Harry (Leyhill, fifties, post-tariff)

Having come to terms with shame, men who authentically took responsibility for intensely stigmatised murders wanted to assert a kind of dignity. Others, in preferring to keep them safely ostracised, continued to deny them this:

You get moral judgements all the time, even from cons every day. They're all, "nonces this," and, "nonces that," and "nonces this." And I think, "You've still got trouble in your soul. You've not come to terms with who you are, what you're doing. You're blaming everybody else. Just get on with your own shit." [...]

[...] Are you open with people you associate with about what you're in for?

Yes. A lot of people don't like that, either [...] They resent your inner strength, for some reason.

Fred (Leyhill, fifties, post-tariff)

Thus far, we have seen that men with intensely stigmatised offences felt shame, and found it difficult to account for the full gravity of their actions. Those who had experienced intensive long-term intervention fared best in this respect.

Explanation, progression, and ‘ethical loneliness’

The situation described above was a double-bind: those who ‘went deep’ in explaining their offences arrived at answers nobody wanted to hear. Therapeutic discourse could appear to shift them from one form of isolation into another: from dissociated seclusion, into what (they worried) might seem an inappropriate self-absorption, or even solipsism.

As a whole, the intensely stigmatised group skewed heavily towards the later and post-tariff sentence stages.²² Many were disappointed or disillusioned, because after repeated parole knockbacks they perceived that taking responsibility had yielded them no reward:

Surely, they can see when enough is enough? [...] I vent a lot because I’m very frustrated [...] I’m ready to go. I want to get on and live my life and settle down. Maybe meet somebody, make some new friends. Re-establish ties with my family and do the things I like to do.

Fred (Leyhill, fifties, post-tariff)

If I had my parole and they said, “We would like you to do another course”, I will tell whoever it is on the parole board they can shove it up their fucking arse. That is it. They have had me for [over twenty years]. I have done everything they wanted me to do and more. If they want me to do more courses to prove it to them, then they can all fuck off, they can all jump off a cliff.

Tom (Swaleside, fifties, post-tariff)

Fred and Tom questioned, in effect, the implicit dialectic underpinning retribution, with its emphasis on responsibility: that there will be a two-way moral dialogue; that penance or repentance or self-reform is appropriate; and that punishment will one day end (see, e.g., [Bottoms 2019](#); [Murphy 2011](#); [Tasioulas 2006, 2007](#)). Instead, what they found at the end of this road was

²²This was largely because most of them were interviewed at Leyhill.

further indeterminacy, hemmed by the unpredictable demands of ‘soft power’. This was ‘ethical loneliness’,²³ because it showed signs of having lost “trust in the world”. Gone was

...the certainty that by reason of written or unwritten social contracts the other person will spare me—or, more precisely stated, that he will respect my physical, and with it also my metaphysical, being.

Jean Améry (1964), quoted in Stauffer (2015 p. 16)

The closing summary of this section unpacks this idea further.

Summary—intensely stigmatised murders

The philosopher J.L. Austin’s seminal treatment of excuses has inspired several strands in the anthropology of ethics (e.g. Das 2012; Keane 2014; Sidnell 2010). Austin’s insight was that, in ordinary language, *the giving of excuses is central to the construction of responsibility*:

I do not exactly evade responsibility when I plead clumsiness or tactlessness, nor, often, when I plead that I only did it unwillingly or reluctantly, and still less if I plead that I had in the circumstances no choice: here I was constrained and have an excuse (or justification), yet may accept responsibility.

Austin (1956 p. 7)

Put simply, excuses delineate “what we should say when” (ibid.). Hence, they also refer to culturally resonant explanations which others are liable to accept as being coherent, morally responsible accounts of action.

To parse this differently: people *must* offer intelligible excuses, if they are to establish socially that their actions are governed by reason—or, ‘responsible’. Excuses refer to ordinary discourses of moral responsibility, for example the widespread belief that violence in self-defence is less, or not, blameworthy. However,

²³The term and definition come from Jill Stauffer (2015), based on the writings of Jean Améry.

some acts are inexcusable (or unfathomable): they are *inherently* discrediting, so far removed from ordinary moral experience that everyday language cannot coherently explain them, necessitating specialist discourses such as psychotherapy to develop a more convoluted account of responsibility.

Without intelligible excuses, it is difficult to establish that one is governed by reason. Instead, one may appear *unfree*: not fully responsible, not a moral agent, with actions that are *caused*, not *reasonable*. This is not a theoretically rigorous claim about causation—*what actually causes* human action—but rather one about the social construction of responsibility, and about how cultural preconditions prepare the ground for expressions of remorse. Actions which are *caused*—for example, as the distant consequences of profound childhood suffering—may be harder for others to perceive as ethical.

The result is lasting mistrust. Men in this group admitted their guilt, and took responsibility for intensely stigmatised murders. But they often gave the impression that it was not the taking of life, but the taking of life *in culturally indefensible circumstances*, which stained them. Not being able to explain left them exposed. Offences against a vulnerable person (e.g. an infant, someone elderly), or against someone they appeared to have *used*, generated taint.

Yet most of these men had themselves *been used*, earlier in life: serially, sustainedly, and often when highly vulnerable. That earlier abuse had mostly gone unpunished, and while none of them used it directly to mount a defence of their violence, it had obviously shaped their development. Some expected that their willingness to shoulder blame and responsibility would earn them moral recognition from risk assessors. But it did not. Most were assessed as highly risky, and their situation resembled ‘ethical loneliness’—suffering compounded because it goes unacknowledged.

Sometimes perpetrators are also victims. Sometimes context makes a mockery of our ideas about criminal responsibility. And sometimes our assumptions about both hide our own responsibilities from us.

Stauffer (2015 p. 157)

Where they took responsibility, they received little credit, and some faced dire consequences for truthful, responsible disclosures. This appeared, in part, to be because their offences were of a sort others simply preferred not to hear explained.

Discussion—nuancing accounts of the offence in studies of long-term imprisonment

An interest in the offence is relatively new to prison research. Recent studies find that during long sentences, shock and denial yield to responsibility. Some (e.g. [Irwin 2009](#); [Leigey 2015](#); [Liem 2016](#)) have differentiated between offences of different kinds, in the form of *ad hoc* descriptive overviews, but they have not usually linked this variability to distinctive ethical responses. Others (e.g. [Appleton 2010](#); [Crewe 2009](#); [Crewe *et al.* 2020](#); [Herbert 2019](#)) have taken a more direct interest in ethical development, but without systematically distinguishing index offences. Both sets of findings underplay the substantial variations—in offences, and in ethics—which are discussed here.

These studies have often been written by scholars explicitly disquieted by penal excess. Many, more or less explicitly, oppose the representation of long-term prisoners as a uniformly dangerous and unrepentant group. But claims on such matters should be stated (and substantiated) precisely, if they are to make a compelling case for penal moderation. This chapter has used an empirical murder classification to analyse ethical responses in a British lifer sample, and nuances earlier theorisations of how the offence features in ethical reflection. It makes two main findings, summarised and discussed below.

Reviewing ethical responses to the offence

Participants differed in the circumstances of their offences, and in their readiness to admit guilt. Across all four groups described here, some individuals maintained innocence. They typically resisted ‘narrative labour’ ([Warr 2020](#)) and the idea of ethical obligation, but some identified ‘risks’ pragmatically

so as to progress. Others (in every group) took varying degrees of responsibility, with differing views on whether what they had done was ‘really’ murder, and on obligations flowing from that.

These views varied by group. The confrontation/fight and money/financial gain groups typically felt regret, not remorse. They often saw their offences as having been reasonable, given their then beliefs about violence and interpersonal respect. Their emphasis on provocation, and the group nature of these offences, often seemed to deflect or minimise blame. But for many, imprisonment *had* prompted re-evaluation, often through repeated exposure to in-prison provocations which they readily understood as offence-paralleling situations.²⁴ Eventually, meeting provocation with violence came to seem like a waste of life: the consequences were not worth incurring. Ethical narratives among these groups emphasised change and the need to avoid returning to custody, but did not typically delve deeply into the foundations of selfhood.

The intimate partner group felt regret, and sometimes remorse, with the latter more common in ‘proper’ than in ‘collateral’ cases. Claims to ethical worth rested on continuities with the pre-prison self, but also seemed tenuous because the prison setting was ill-matched to their sense of themselves as ‘respectable’ men. Without usually identifying longer patterns of harmful behaviour, they insisted on their *existing* moral status; in accounting for the murder, they referred to the pathologies of the victim or the relationship, not usually the self. This perhaps underestimated the expectations of risk assessors and parole boards for ‘insight’ (Dyke *et al.* 2020; Greene and Dalke 2021; Paratore 2016; Shammass 2019).

Finally, the intensely stigmatised group struggled to account for their offences. Most described a stunned disbelief and self-alienation, reinforced by external messages of disgust and contamination. Extremely aware of these, some remained silent,

²⁴This was perhaps particularly evident because of Swaleside’s reputation as a ‘street’ prison, in which social life more closely replicated pre-prison norms for these than for other groups. I owe this insight to a perceptive question from Professor Helen Johnston of Hull University, following a paper I presented on an early attempt at the arguments in this chapter (Jarman 2021).

some recounted the offence with a detachment suggestive of an enduring and toxic shame, and only a few narrated it more fluently. Fluent, coherent accounts of the offence mostly centred on how major adversity had formed their characters in early life. The resulting depth of biographical detail meant that some worried about appearing ‘selfish’—too self-involved, and too insensitive—when they offered these accounts. Beyond the therapeutic setting, few detected much recognition for how what they had suffered might have shaped their capacity for unfathomable acts. The offence, instead, seemed to render moot a lifetime’s experience of injustice.

Four factors explained *within-group variations* in how ‘serious’ participants perceived their own offences to be. First, attitudes relating to ‘ideal victimhood’ (Christie 1986) softened blame, where the victim seemed an active participant in the murder situation. This was especially obvious with confrontation murders, where scripts were available to contextualise violence and attempt justifications. Claims of provocation were harder to sustain in money/financial gain cases, because situations like (for example) an armed robbery were a poor fit for the ‘equal combatants’ template.

Second, some participants understood themselves and the victim to have been morally interchangeable. This reduced the burden of becoming a murderer, and was again most common in confrontation cases. One or two individuals from the intimate partner group also made similar claims, alleging self-defence or emotional conflicts with their partner. These claims were impossible to verify, but even if not literally true, at least indicated the participant’s unease in situations of emotional intimacy.

Third, relationality: guilt was heavier when victims were valued, or when the ties with them involved normative obligation. Some individuals, in both the intimate partner group and the confrontation group, bucked the general tendency towards minimisation and contextualisation, by accepting a ‘deeper’ form of blame founded on their esteem for their victims. Conversely, those who had less of a history with their victims often expressed remorse and regret, but did so in relation to the harms dealt by punishment, and not principally those dealt by the offence.

Finally, premeditated, excessive, or sexual violence all added weight to the offence, most evidently in the intimate partner and intensely stigmatised groups, but also to some extent with those responsible for financial gain murders. Participants across all four groups hinted at some of the trauma associated with killing someone, but greater extremes of violence seemed particularly difficult to contemplate, since the questions they posed of the self were so unnerving.

Qualifying the ethics of the offence

Most participants (thirty of forty-eight, or 63%) unequivocally admitted murder. Their regrets did not always centre on the victim or the offence, nor always translate into remorse. However, in contrast with earlier studies, neither a consistent attitude to the offence nor a consistent ethical approach to obligations arising from it were evident here. True, some participants attained a growing ‘recognition of interdependency’ and wished to contribute to the prison, family, and wider communities (see [Herbert 2019 pp. 25–8](#)); but others kept their feelings about their offences more to themselves, withdrew somewhat from prison social life, and followed more private practices of penance; and others still continued to insist, angrily, upon their innocence.

This variability is inconsistent with what Irwin (2009 p. 66) described as an ineluctable ‘awakening’, in which most lifers eventually “fully appreciate[d] that there ha[d] been something fundamentally wrong with their former behaviour” and that it was “their actions [which] brought them to this disastrous end”. Dramatic journeys of this kind were present in the sample, but had been produced partly by guilt and partly by the intensity and nature of penal intervention (see [Chapter 6](#)). Ethical change was neither even, nor monolithic.

This chapter therefore challenges the view that personal change is centrally driven by reflections on the offence: the connections were variable, and often indirect. It would be a mistake to say that these men *did not undergo* ethical change simply because not all of them reflected deeply on the offence, or felt remorseful about it. The overall picture, then, went somewhat against

earlier research. But it was also incongruent with the tabloid stereotype of the unrepentant lag, cocking a snook at society's disapproval. On the contrary: more participants than not identified themselves as men guilty of murder. But they also wanted recognition for the fact that their actions belonged in a certain context, and that they had sometimes acted under constraint and with imperfect self-knowledge. Simple wellbeing required them to preserve a certain self-regard:

Like other human beings, most offenders want to see themselves as 'good' people who have made mistakes, or been provoked into doing wrong.

Adshead (2015 p. 8)

If this need for self-respect seemed inappropriately self-centred, given their offences, this was because they had been *punished by the state*, not *held accountable by those they had harmed*. Formally, they had been sanctioned for breaking the law forbidding murder, not for harming and wronging *real people*. Victims were no longer able to speak for themselves, and few in the sample had encountered the living persons bereaved by their actions, outside the highly ritualised and formal court setting;²⁵ doubtless, they might have preferred not to. Some participants, granted, *had* arrived at a more remorseful selfhood, especially where there was some prior emotional connection with the victim. But this was a haphazard outcome, not one the prison pursued as a matter of policy. They were not *pushed* to see the offence in terms of specific private harms, but were instead held accountable for abstract *public* harms.²⁶

Seen in this light, the 'tough on crime' claim—that in punishing murderers, the state acts in victims' interests—rings hollow, at least to my ears. Unless a participant's victim was someone who mattered to them, or whose death harmed other people they cared about, very few men dwelled (as Terry had, for example) on the families and relationships sundered by their actions, or described (concretely, as Grant and Rafiq did), what others had lost through their actions.

²⁵Those with experience of some victim awareness interventions were a partial exception.

²⁶Chapters 6 and 7 develop this idea further.

What the life sentence demanded of participants, then, was that they become willing to perform a reformed selfhood, and to mould this performance to official expectations. As [Chapter 6](#) shows, it offered varying degrees of support, but mostly without explicitly demanding accountability for the specific acts which generated the sentence to begin with. Participants' understandable reluctance to engage in these deeper forms of reflection—and the official disinclination to insist on them—are both well described by restorative justice practitioner Danielle Sered (2019, p. loc. 30.3%), in her excoriating critique of US imprisonment:

[W]hat is required in acknowledging the impact of our actions can be harder—even scarier—than prison. It is not more violent, not more demeaning, not more debilitating to one's future. It does not expose people to greater degradation or pain. But it does require [...] the one thing prison almost never does: facing the people whose lives they've changed, as a full human being who is responsible for the pain of others [...] Most often the experience of violence includes the responsible party being indifferent to, appearing indifferent to, or even taking pleasure in the pain they cause [...] [But in situations of true accountability] the truth that is told [...] is not the technical truth of what happened, but rather the moral truth—that the responsible party had no right to hurt the other person, that the harmed party was undeserving of that pain, and that the pain was the responsible party's choice and therefore their fault. And if it was their fault, it was not the harmed party's fault.

References

The life course and the life sentence

Prison time and the ethical self

Recent research on life, indeterminate, and long-term imprisonment has produced new theorisations of adaptation. Sometimes, their authors have described adaptation to long-term imprisonment using a language emphasising the development of emotional and other forms of ‘maturity’. Since much of the relevant research also appears to have been conducted with samples who were relatively young at conviction, and who, therefore, might have followed these pathways of development anyway, a question arises: will the same patterns of adaptation to long-term imprisonment be observable among people sentenced well into adulthood? This chapter attempts to answer this question. It describes patterns of adaptation in a sample of men convicted at widely variant ages, comparing and contrasting interview data from those convicted above and below the sample’s median age at conviction (30). Using these contrasts, it suggests that different patterns of habitual activity before prison, including in the domains of family and work, influence how people approach the existential challenges of a long prison sentence, and respond to its censuring message that they have done wrong, and ought to change. The chapter finds that people convicted at different ages do in fact follow different trajectories of adaptation. It identifies the significance of this finding, and points to directions in future research.

This chapter reports on how life imprisonment imposed at different points in the life course poses varying existential questions. It accounts for the differing forms of ethical selfhood which can

appear as a result, developing and nuancing previous findings about the sentence's 'life-warping' (Crewe *et al.* 2020 p. 324) effects.

The sentence is life-warping in that it ruptures relationships, patterns of habitual activity, relations of care, and reflexive and developmental situations. Recent research has theorised a process whereby lifers, faced with this gradual confiscation of social identity, recognise that prison is where they now live, find areas of their situation they can control, identify responsibilities arising from their predicament, and begin to construct new forms of agency and selfhood *within prison* (Crewe *et al.* 2020). These shifts resemble a kind of narrative reconstruction: detached from previous lifeways, they 'let go' of the past.

While well-supported by empirical data, this theorisation of adaptation was developed from age-restricted (or undifferentiated) samples. Its applicability across the life course is unclear. Some changes attributable to prison maturation—such as increases in self-control—are also associated with 'ordinary' maturation (Rocque 2015). There is a potential conflation of concepts here, and a more context-specific and precise description of cases would help to clarify developmental trajectories.

This chapter presents an analysis of how lifers convicted at different ages thought about the life sentence's place in their life courses. It shows that the life sentence disrupted different ethical projects and relationships of care for those aged under and over thirty when convicted. The chapter notes evidence for different ethical 'ground projects' (Mattingly 2014) among prisoners convicted when older and younger. Throughout, attention is focused on experiences of family and working life, with family life particularly central. The chapter attempts to specify the normative patterns of obligation and identity 'ruptured' by the conviction. By doing so, it identifies what forms of ethical selfhood were *denied* by the conviction and the sentence. The chapter closes with a discussion of what these findings add to the existing literature on adaptation.

Conceptual foundations

What is ‘the life course’?

The ‘life course perspective’ in the social sciences coalesced around the observation that socio-economic roles relating to family and work, and associated habitual activities, are patterned by chronological age. So too are cultural norms about the kind of pasts, presents and futures a person might imagine at various stages in their lives. On this basis, differences between individuals reflect not merely their personal characteristics, but also the social activities and relationships distinctive to their genders, ages and socioeconomic backgrounds ([Mayer 2009](#)).

There is not *one* life course. Those of given generations are stratified by wealth, and distinctive to historical periods. In ‘WEIRD’ (Western, Educated, Industrialised, Rich and Democratic) societies (see [Henrich 2020](#); also [Haidt 2013 Chapter 5](#)), the notion that there ever was one ‘normative’ life course reflected the institutional stability of the post-WW2 West. As family forms later became more plural, working life less stable, and risks intensified for those at the social margins, the unity of ‘the life course’ has fractured. Nevertheless, the major finding of life course sociology—that there are ‘typical’ ages associated with family and career structure and that these reflect the socio-economic and historical conditions into which people are born—remain compelling ([Mayer 2009](#)).

What is ‘maturity’?

If there are typical stages in a life course, then there will be corresponding markers of transition. ‘Maturity’ is a state attained during the transition from childhood into adulthood ([Kazemian 2019](#); [Prior et al. 2011](#)), and ‘maturation’ is the process of attaining it. Historically, its lower age boundary has been mobile ([Ariès 1996](#); [Cunningham 2005](#)). It is both a general and a domain-specific concept, read from a range of personal and social markers, including social roles, civic/citizenship roles, psychosocial personality traits, self-identity, and neurological and cognitive developments ([Rocque 2015](#)).

Crucially for current purposes, imprisonment disrupts many social markers of maturity—for example, social and care roles such as parenthood, economic activities such as waged labour, or citizenship roles such as taxation or the franchise. This deprivation of adult roles and responsibilities is morally communicative, a central feature of the prison experience (see [Sykes 2007/1958](#)). To be censured through imprisonment is, in part, to lose moral recognition, which, with a life sentence, is restored only partially, gradually, and with caveats.

Dividing the sample by age at conviction

Fundamentally, the analysis which follows compares how participants who were *already* more (or less) ‘mature’ on admission to prison thought about their sentences. The central analytical contrast is therefore between participants convicted over, and under, the median age at conviction for the whole sample (30). This section unpacks how the patterning of social relationships and habitual activity by age—that is, the life-course variability introduced in Section —was evident in the sample. It introduces three major contrasts, which are shown in Figure 1.

The first relates to sentence severity. At conviction, participants ranged in age between sixteen and over sixty-five.¹ Figure 1a represents the tariffs of those convicted over and under thirty; it plots them both plainly, and in relation to the life course.² Neither group was sentenced more severely, in the simple sense of possessing longer tariffs: the averages for both groups were identical to within a rounding error, while the minimums (8/11 years) and maximums (30/30 years) were also similar. However, the contrast to note relates to the *subjective* burden of prison time. Life sentences have different ‘pain quotients’ (see [O’Donnell 2014 pp. 200–205](#)), not only because lifers convicted when older will, on average, spend more of their remaining lifespan in prison; but also because those convicted when younger face

¹Maximum age obfuscated to protect anonymity.

²Minimums, maximums and averages are shown separately for participants convicted either side of age thirty. Tariffs are plotted both as absolutes in years (blue bars, left-hand Y-axis) and as a proportion of age at conviction (red bars, right-hand Y-axis).

unimaginable (because not yet lived) spans of prison time. For those convicted younger, tariffs averaged 78% of their lifetimes to date (minimum 39%, maximum 147%); for those convicted older, by contrast, tariffs averaged 43% of their lifetimes to date (minimum 11%, maximum 61%).³

Age at conviction is important not only because of its relationship to the pain experienced *during* the sentence, but because of associated patterns in life *beyond* prison time, both beforehand and afterwards. Section 4 noted that family and work relationships are patterned on chronological age. This is evident in Figures 1b and 1c, which contrast the family and work circumstances of sample members aged over and under the median age at conviction. 1b shows that the younger group were much less likely to have had children: only seven (30%) did, with roughly equal numbers among these having daily custody, shared custody, or no custody.⁴ Contrastingly, twenty-two of twenty-five participants in the older group (88%) were fathers at conviction, again with a range of cohabiting and non-cohabiting arrangements.⁵ Varied family circumstances entail varied normative obligations relating to care, which imprisonment disrupts in varied ways.

A similar picture emerges from Figure 1c, which shows employment status at conviction. Fourteen of twenty-three men in the younger group (61%) had been unemployed;⁶ two more (9%), convicted as children, had been in full-time education. The remainder were in lawful, albeit usually precarious and unremunerative, work. By contrast, twenty of twenty-five men

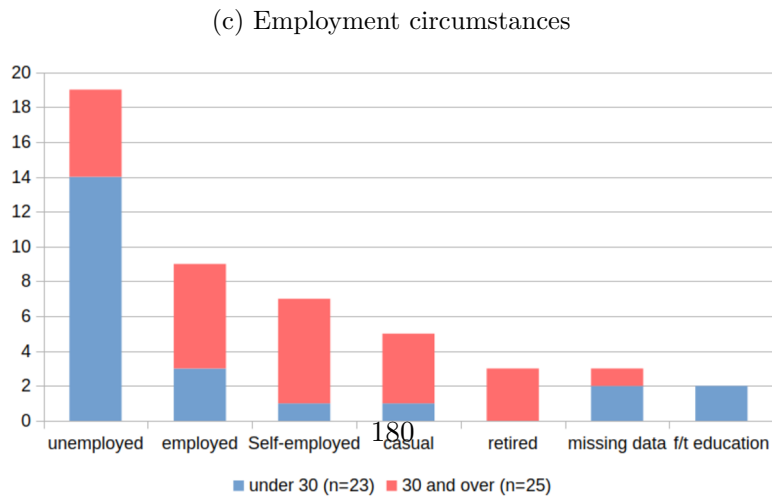
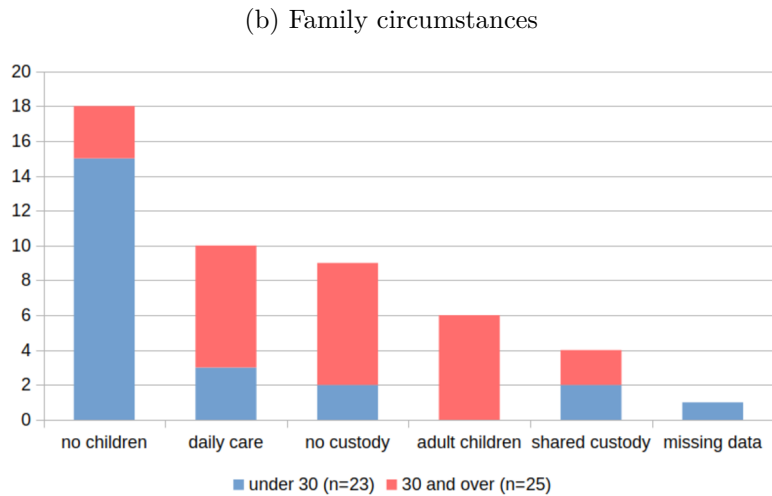
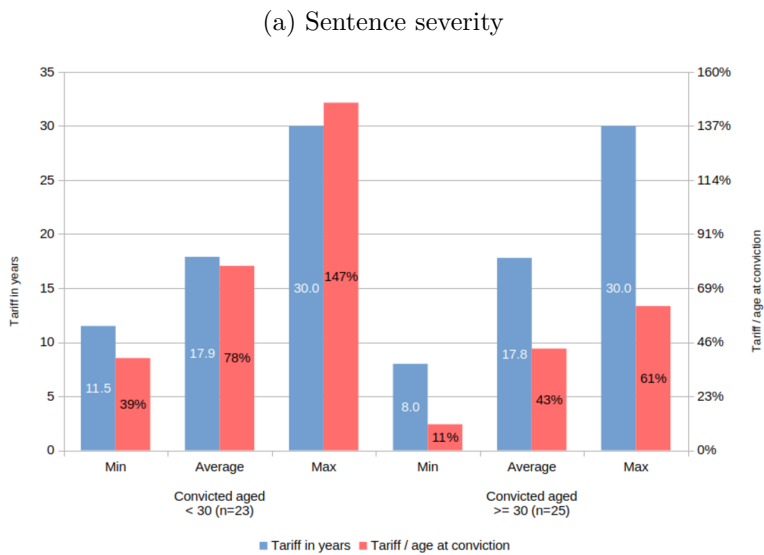
³Of course, sentences averaging nearly 18 years will *all* pose adaptive challenges. The point here is not to suggest the sentence will be ‘easy’ for the second group, but to distinguish a sentence which detaches a person from a lengthy past, from one which detaches them from a lengthy future.

⁴The children two men reported they had ‘no custody’ of before prison were in fact still *in utero* when they were arrested.

⁵The families described in this section were all heterosexual families; I did not ask interviewees directly about their sexuality, but it was clear from the first biographical interview that most of the sample were heterosexual (or wanted me to think so).

⁶This label masked diverse activity, some of it unlawful and highly lucrative, but the group is coherent in contrast with men convicted older, most of whom had worked lawfully for many years.

Figure 1: Key contrasts between sample members convicted below and above the median age at conviction



in the older group (80%) had been employed,⁷ in occupations ranging from degree-educated, regulated professions to unskilled casual labour. Several, in fact, had employed others. Three more (12%) had retired and were living off private pensions;⁸ they, and several others, owned property. They were, in short, far likelier to have participated in the mainstream economy. It would follow that their ethical outlooks would be likelier to align with its norms, and certainly, *no one* in the older group said they had been making a living through crime, whereas many in the younger group did.

Thus the sentences imposed on both groups were broadly comparable, but what they had ruptured was not. Participants convicted younger were loosely integrated with mainstream society and the lawful economy, were single and/or childless, and few could sustain any strong claim to the conventional markers of maturity. Participants convicted older had nearly all raised children, had been integrated with mainstream social and economic life; and had in some sense mostly been mature men at conviction. Though some described lonely, troubled, or miserable lives leading up to the offence, this was not their entire adult story, and it was often narrated as a slide downwards from earlier, happier, times.

The following sections explore this core contrast qualitatively. They are structured, like this section, around the two groups: first, those convicted before the median age at conviction (30); and second, those convicted afterwards. The analysis explores differences centred on two main themes: parenthood and work. Each is further subdivided into subthemes.

Participants convicted aged under thirty

In the younger-when-convicted half of this sample, we might expect to see consistent accounts of breakage, discontinuity, “acceptance [...], agency and resignation” (Crewe *et al.* 2017a p. 530). In fact, however, the maturation evident here was more qualified. Themes of rupture and breakage were indeed

⁷Two of these were living off lawfully acquired wealth.

⁸In one other case, data was missing.

dominant in roughly two-thirds of cases. However, among the rest, it was clear that *a few* saw themselves as having been well on the way to ‘mature’ adulthood before the offence, and they were less willing to accept that the sentence had erased their past achievements and characters.

The following sections set out this finding by considering a) the family, and b) the economic circumstances of participants convicted before age thirty.

Family relationships

As noted in Section , participants convicted younger were less likely to have had children. Fifteen were not fathers. They came from varied domestic contexts: some were homeless, others lived with friends, some cohabited with partners, and two, still children, were living with one or both parents. These men had not been ‘mature’, in the sense that they were living amid the ethical obligations (e.g. caring, financial) associated with parenthood. Because of this, the relationships which mattered to them most as the sentence went on were those with their birth families. As will become clear, the term ‘rupture’ was not entirely apt to describe how the sentence affected these relationships.

Support from birth families

A major difficulty participants aged under thirty often associated with the conviction was that of explaining their actions to their families. Many converged on the word ‘shock’ to describe the effects of their arrest, conviction, and sentencing:

Everyone was shocked. Everyone, everyone was shocked. Because, obviously, from my family’s perspective, they’d only seen one side of me. The big brother, the brother who takes care of everything, the uncle who takes us out every day, the friend who’s always there, who’s dependable—if you need his advice, he’s there. So that’s what everyone saw. The guy who never hurt a fly, kind of thing.

Rafiq (Swaleside, thirties, early)

They were shocked, man. I'll say they were shocked
[...] Obviously they knew I was not a bad kid, but
[...] I haven't heard this from them, but what they
heard at the trial, I could tell it upset them.

Ebo (Swaleside, twenties, mid)

These words gesture to two prominent features of relationships with families which had remained strong. First, a sense that the offence must have led loved ones to question their character, despite (in these cases) offering unstinting support. Second, a certain sense of obligation: to acknowledge—to 'own'—aspects of their characters they had previously preferred to disown. What Ebo's parents "heard at the trial" related to a robbery conspiracy, culminating in murder; Rafiq, meanwhile, suggested that he had preferred to conceal the emotional immoderation most evident in his turbulent marriage. 'Owning' these and other discrediting aspects of the self could be shaming, provoking intense self-awareness and the fear of rejection:

They were supportive, very supportive, yeah, and
they still are. But at the start the reason I didn't
admit I did it was fear.

*Did it feel as though their support was conditional
on you saying you were innocent?*

It did at the time, yeah [...] I thought if I admit to
this, that's it. But it was completely the opposite.

Adam (Swaleside, twenties, mid)

At the outset, Adam had insisted upon his innocence. His admission of guilt had a surprising outcome: it showed the relationship's true premise to be not his innocence, but his parents' unconditional love. This is to say, it *deepened* the relationship, and sustained a self-respect he had, for a while, lost. In a few other cases, it was clear that family members endorsed blame-deflecting narratives of the kind discussed in [Chapter 4](#). However, most pushed participants to accept the legal consequences of their actions, even when they harboured doubts about the full extent of their culpability:

I didn't want to go to the police station. But my dad and his lawyer basically talked me round and basically I've agreed and they've taken me to the police station and I've turned myself in.

Simeon (Swaleside, twenties, late)

Strikingly, only one of these men described this as if it had harmed the relationship (rather than deepening it):

I didn't know what to do [...] it's like I was a baby again, a little boy, and what does a little boy do, when they're in trouble, he goes to his mum [...] Fucking stupid decision [...] she started crying, and [...] she's, "Oh, Lord, God, Jesus Christ, Dalton has killed somebody. Fuck, what are we gonna do?" All that kind of shit [...] Next thing she's grabbing the phone, I'm like, "yo, what are you doing?" [...] "Son, you've killed somebody, we have to do the right thing." I'm like, "Do the right thing? [...] what the fuck? Are you trying to call police on me?" [...] I'm thinking, black people in this country, what police do to us [...] and you're gonna call them on your own son?

Dalton (Leyhill, thirties, mid)

Between other participants and their birth families, however, it was more common for relations to deepen and strengthen.

Family support facilitated an understanding of the offence as 'a mistake'. Legally, mistakes are hard to define, but relate to "an actual real belief, whether explicitly formulated or not, which can be proven at the time it is acted on to be correct or incorrect, true or false" (Sheehan 2000 p. 565). Strictly, the definition was hard to apply here: participants' accounts of the decision to kill did not usually conjure a picture of anyone involved acting on "actual real beliefs", but instead rashly, emotionally, intoxicatedly, uncontrolledly, or some combination of these. However, family support helped set these 'immature' traits in context, situating them in a longer narrative. Rashness, uncontrolled emotion, poor judgement, pride, intoxication could all be attributed to factors in the individual's longer biography,

neutralising the threat they posed by making the self appear 'bad'.

These were relationships 'ruptured', but not obliterated, by the conviction. A *negotiated continuity of selfhood* was possible. To think of the offence as 'a mistake' by characterising it as the act of an immature person cushioned the full force of censure and of labelling; but came at the price of an admission of bad judgement *to someone they cared about*. The price of the admission was an implicit commitment to *do better*. 'Mistakenness' cushioned the impact of censure, but entailed a certain moral deference to those who provided the cushion, something Dalton was unique in being unable to accept. More usually, men who were younger at conviction found it easier to describe the sentence as a learning experience, and did so under the influence of their families. This was so even if their private views about their culpability diverged from the official account—which many did.

Given a supportive family, then, and no major caring obligations thwarted by the conviction, at least some constructive ethical work was possible. It consisted in trying to become a better, more mature adult in future, a moral obligation which (they implied) might eventually have arisen even had the offence never happened. As Warren (Leyhill, thirties, late) stated that "if I could take it back, I'd still do the jail", suggesting a recognition of incompleteness, of immaturity, which would have disclosed itself within his family setting regardless of the offence.

The continuity of care coming from his family, and the link they provided to his biographical history, meant that his rupture from an imagined future was not total. Indeed, another common feature here was that many expressed a strong reciprocal loyalty to parents, often in the form of a determination to repay familial support, or to live up to parents' perceived values (such as a commitment to hard work):

Having a job. Doing normal things [...] What people take for granted, like coming back from a hard day's work, and stuff like that. People take that for granted and people moan at that, but that's what I want to do when I get out. I want to go out and work

and provide for myself. I don't want to get out and do the whole benefits thing.

Adam (Swaleside, thirties, mid)

A view of the offence as a 'mistake' also clearly placed its ethical implications in the domain of moral, and not ontological, deficit (Scambler 2019). The former is remediable; the latter is 'staining' (Levins 2023). Situating guilt in moral deficit, or in immaturity, helped participants to look ahead, rather than behind:

Obviously, I feel ashamed. Obviously. It shouldn't have happened *but it's not going to stop me from doing certain things or wanting to do certain things* and stuff like that [...] I just really... just want to be a better person [...] It's not easy [...] I'm not going to say, "well I shouldn't have been in jail" or "I don't deserve it" [...] It's just... It's happening now. I'll get on with it.

Ebo (Swaleside, twenties, mid)

Thus far, I have suggested that participants in the younger-when-convicted subgroup who retained birth family support often used narratives of personal development and maturation to make sense of their predicament. They emphasised youth, immaturity, or poor judgement. But doing so involved admitting a moral deficit, and hence also an obligation to hold themselves accountable for future improvements. Families typically expected—and facilitated—this process, by softening the impact of censure and leavening it with narrative elements which facilitated explanation.

The analysis now turns to two small subgroups whose relationships with family differed from those described in this section. For one, relationships with family members had *already* grown distant (or ceased) before the offence. The other, despite their relative youth at conviction, already had children. How they characterised the sentence differed: the first subgroup emphasised their individualism and resilience as 'men alone'; and the second were only too conscious that the sentence was disrupting

their role as fathers, and hence also that it was *blocking* the unfolding of family life.

The life sentence without the anchor of family support

Six participants had little or no contact with their birth families. They did not always give explicit reasons for this, but based on the wider interview materials I formed the impression that they included the impact of the offence itself, parental abuse or neglect in childhood, or (more simply) geographical and relational distance, for foreign national participants far from their home countries. In most cases, too, temporal distance overlapped with these other factors: five of the six were in the late or post-tariff stages of the sentence.

The effect was to make these men accountable, but *on terms they decided for themselves*, rather than *through negotiation with family*. Dalton's case was described in Section . Having initially experienced his mother's insistence that he take responsibility for the offence as a betrayal, he had come to think of his lack of family ties as an advantage:

People will be like, "Oh, I'm down, man. I've just had a visit. My family is going on holiday, and I'm stuck here. My people have just gone [...] I wish I could've gone with them." None of those things affect me.

Dalton (Leyhill, thirties, mid)

Men like Dalton came to reframe their independence and lack of accountability as an advantage, even a virtue. Where family members did not soften or moderate censure, participants felt less obligated to take it on board. Under these circumstances, attitudes to the conviction were less pressured to change: though perhaps the courts had disapproved of their actions, it did not follow that any deeper, more authoritative norms had been infringed, nor that personal change was called for. Nixon, in describing his frustration with the parole process, used an analogy which vividly illustrated the transactional form of retributivism he understood to be the purpose of punishment:

Right, see in prison, if I took something from you and I owed you a tenner and I couldn't pay you and you came and punched me in my face, I wouldn't do anything [...] If I've owed you, taken something and then I've been a cunt and said I'll give it to you and I didn't give it to you and you give me a slap, I deserve it. *But once you slap me, what I owe you is done and dusted. [...] That slap has taken what I owed you.*

Nixon (Swaleside, forties, post-tariff)

It was not that attitudes about the offence *could not* shift in these circumstances, but that they did so more haphazardly, sometimes through encounters with an exemplary figure, who coaxed out participants' feelings of responsibility, while also (as families tended to do) emphasising their enduring ethical potential. Frank described one such encounter:

Well, there was a time when I used to say, "oh, I killed him, so what?" But that was bravado [...] Father Michael,⁹ he helped me with that [...] [he said,] "don't walk into the future and be ashamed of it. You can't change it. So don't be ashamed. But... do the better thing in the future. Do the right thing in the future. And don't do the right thing when something big occurs. Just look for the small things, and try to do right in them at all times."

Frank (Swaleside, forties, post-tariff)

Anthropologist Joel Robbins (2018 pp. 179–180) argues that human beings encounter moral values in the world through 'exemplars': people or institutions who "solicit a special kind of attention" by embodying an abstract value (e.g. forgiveness, persistence, integrity) credibly enough to inspire emulation. This, in effect, was what family members did, by loving participants even when they felt guilty or ashamed, and supporting them knowing what they had done. For those who lacked family

⁹An Anglican priest and anti-apartheid activist maimed in an assassination attempt by the South African government, who went on to preach a ministry of reconciliation, in prisons and elsewhere (see Lapsley and Karakashian 2012).

support, by contrast, exemplars were fewer and farther between. Prison experiences felt more accusatory, and an attitude of defensive unease was ill-suited to risk-taking and ethical change.¹⁰ It militated against expressions of accountability.

The pains of parenthood

Raising children is, normatively speaking, a signifier of maturity, in part because it entails obligations to provide (not receive) care. As desistance scholars (e.g. [Bersani and Doherty 2018](#); [Meek 2011](#); [Schinkel 2015b, 2019](#); [Weaver 2016](#)) have long recognised, parenthood and marriage bring changes in day-to-day habitual activity, and thus also the potential for changes in the kind of person someone aspires to be. That said, not all parents live out the associated obligations successfully: relationships break down, families become estranged, or there are simply competing priorities and claims on their time.

Seven men in the group—the second subgroup departing from the younger-when-convicted norm—had become fathers by the time they were convicted. One was in the early stage of his sentence, one in mid-sentence, and the rest either late or post-tariff. What was striking in these cases was how thwarted they felt, ethically, by being in prison. It was as though a ‘real’ ethical life was impossible, because imprisonment prevented them from performing obligations which were central to their sense of who they were, and which—because these were ‘ground projects’ ([Mattingly 2014](#))—they were unable to relinquish.

Of course, in some ways the frustration this engendered was unremarkable: nearly all participants, like nearly all long-term prisoners (e.g., [Crewe *et al.* 2017b](#); [Flanagan 1980](#); [Hulley *et al.* 2016](#); [Richards 1978](#)) said they missed people outside prison. However, these pains had a particular intensity in relation to children, the more so the younger they were. Yakubu, who shared custody of two very young children when he was arrested, pointed to the immediacy and intensity of their needs—and

¹⁰Prison regimes might conceivably produce more or fewer such encounters with virtue, as well as predictably more and less desirable outcomes (see [Auty and Liebling 2020](#); [Liebling *et al.* 2019](#); [Liebling and Ludlow 2016](#)).

his inability to meet them—as the ‘tough part’ of his prison experience:

If you got young kids and you’re always there [on the phone...] You’re always trying to talk to them... They want to see you. They’re starting to cry so they want Daddy. That’s the tough part.

Yakubu (Swaleside, thirties, early)

These difficulties were *specific to the disruption of care*; these were pains specifically associated with thwarted caregiving:

I was taking care of him because my wife was very tired and usually one of us was sleeping downstairs with him because he was crying a lot at night.

Janusz (Swaleside, thirties, mid)

Daily involvement in care-giving activities had often produced the self-identity of a (sometimes-nascent) ‘family man’. It was central to whom these men felt themselves to have been at conviction. For those missing their children, imprisonment did not seem like an opportunity to make the best of a bad situation: it simply *was* the bad situation. It thwarted their most important commitments, and raised the thought that the labels associated with the offence sullied them as fathers:

[When people] talk about that... [puffs out his chest, affects a swaggering posture] “oh, yeah, I was in this jail, and yeah, yeah, do you remember this, yeah?” Nah, nah, nah, nah, nah... that’s DEAD. That’s LONG.¹¹ Or trying to say how they’ve changed, got better... I’m not proud of being in jail! This is EMBARRASSING! I’ve got KIDS! The only thing I want is to prove to my kids is that their dad didn’t do this crime [...] Even though my kids know... But I just want them to really know... Like officially, with the appeal.

Reuben (Swaleside, thirties, mid)

¹¹‘Long’: a lot of effort, not worth the effort.

The challenge expressed here was to reconcile the identities of a life-sentenced prisoner, and a caring, loving father. Reuben found doing so doubly difficult because he maintained innocence. Even for those who admitted their offences, prison life persisted in obstructing their capacity to perform the ethical obligations of parenthood.

There were, nevertheless, contrasts within this subgroup. For some men, the identity of a ‘family man’ had not ‘bedded in’. Jeremiah, who had never met his son, wanted badly to get to know him, but accepted that his conviction and sentence had been entirely deserved. Because he had not been caring for his son daily, they had not thwarted his ethical practices to anything like the same extent. His relationship with his son offered *future* potential, not a lost past or a thwarted present:

If I lost, like, you know... my son or something...
before I even got time to kind of build a relationship
with him... that would be terrible, you know what I
mean?

Jeremiah (Leyhill, thirties, post-tariff)

Here, the significant contrast lay in attitudes to the offence. Jeremiah (unlike Reuben or Yakubu) accepted that his less-than-ideal relationship with his son was his responsibility. He said that his wish to build the relationship drove his attempts to use the sentence for his own betterment; this contrasted sharply with Reuben’s characterisation of the sentence as “an embarrassment”, despite his innocence. When Jeremiah was convicted, there had been no existing ethical practices associated with fatherhood. Rather than thwarting his ethical practices, the sentence could motivate him to develop new ones.

The experiences of this subgroup demonstrate how parenthood can produce ethical change, placing obligations before the self, and ‘asking’ whether it can live up to them. It was not that these men saw themselves, always, as perfect fathers before the conviction; they did not. But imprisonment thwarted their work on the relationships they wanted the most, even more so when they had been caring for young children at conviction. Attitudes to the offence were an important moderator here, affecting *who they held responsible* for this situation; but regardless of its

effects, being prevented from caring for children made it more difficult to focus ethical attention on the self—because the self had already come to experience its obligations to others, and to view these as self-constitutive.

Work and economic participation

As noted in Section , most of those who were convicted younger (fourteen of twenty-three or 61%) had been unemployed at the time of their offence. Of the remaining nine, just three had been in steady employment, one had been self-employed, one had been doing casual work, and two were still at school.¹² Their average age at conviction was 22.7 years, with a range from 16 to 29. This group of twenty-three was also more likely to be from minority ethnicities than their older-at-conviction counterparts: twelve (52%) were of Black or Mixed ethnicity, and eleven (48%) were White. They differed clearly by site: those held at Leyhill were nearly all white British men born in the 1960s and early 1970s; and those held at Swaleside were mostly Black British men born from the late 1970s onwards. The group hardly talked about work or career achievements, which for most had not been positive experiences, nor about educational experiences, which for most involved leaving (or being excluded from) school young, with few or no qualifications.

Highlighting these themes, and contrasting them in Section with the older-at-conviction half of the sample, helps to emphasise that the pain within indeterminate sentences is not merely a question of time *within* prison, but also of time *before and after* prison. That is, pain is experienced from specific subjective/biographical standpoints, and these are influenced by age. Men convicted young *all* described their lives before prison as though they had *a difficult past to overcome*. Those with shorter tariffs, for whom release while relatively young still seemed possible, expected work to play a part in their futures, and their ground projects were anchored in this possibility. By contrast, those with longer tariffs, or whose tariffs had long since passed, spoke of themselves as relics of a lost industrial world, in which the

¹²Data was missing in two cases, both men who declined to give a first, life-history interview.

possibility of working as they wished to with their hands was receding, and in which work was merely a way of paying the bills.

The following subsections elucidate these points.

The aspiration to work

Participants with shorter tariffs, who expected to be released in their thirties or forties, tended to describe work as something they were actively using the sentence to prepare for. Many sought out manual work in prison, expecting to find similar opportunities after release:

I've done most of my time [working] in carpentry shops [...] It's good, it makes you think. It passes the time really fast [...] I like that type of stuff [...] It's a sense of achievement when it's finished as well [...] Plus I did construction work beforehand, so I can take it on with me again [after release].

Warren (Leyhill, thirties, late)

An idea of oneself as someone who 'works with his hands' shaped educational choices, too. Taylor, having listed the many qualifications he had gained in prison, later said he was 'not into' education. I sought clarification:

Can I ask... because you said, "I'm not going to do education, I don't do courses"... But [you've just described many qualifications]. And you've mentioned others.

In [HMP X], as well. I did manufacturing, operations, and warehousing storage as well.

Right. So these are all things that—

Benefit me.

Mmm, that's what I was thinking... but [...] they also sort of line up with how you see yourself, if that makes sense? Like, you might not do, I don't know, an Open University degree.

No, that's not who I am.

Taylor (Leyhill, forties, late)

Taylor's intention of getting straight into a job after release was a major component in his 'desired self' (Paternoster and Bushway 2009), and he favoured applied and vocational over abstract and educational topics. He and others understood a committed attitude to work—the selfhood of a 'grafter'—as a marker of maturity. Similar attitudes were expressed, even where the work itself was less credibly rehabilitative:

Wing cleaning is something that I like doing because I'm my own boss. I don't have somebody breathing down the back of my neck. I'm left to get on with it [...] They don't pester me. They know, when I get up and everybody's gone to work[shops], that's when I work.

Adam (Swaleside, twenties, mid)

The point here is, again, to underline how participants convicted younger constructed narratives which imagined *a better future*, and attempted to find resources enabling them to pursue it. Warren, Adam, and Taylor, however, had all received shorter tariffs of fifteen years or less. All would reach parole eligibility in their early forties, at the latest.

The burden of work

Something different was evident among participants convicted before thirty, but whose tariffs exceeded twenty years. They would be at least in their late forties by tariff expiry. Not yet within a decade of release, their attitudes to the world of legitimate work and the lawful economy were less positive. What had mattered before the conviction—the key virtues—had been entrepreneurialism, acumen, and hustle. They were practised through both lawful and unlawful activities:

He left school and did [a course] in college, then went on to university [...] He did this mainly to please his mum [...] [but the course he chose] also left him time

to work in a gym (which he liked but didn't pay well), and to hustle, dealing drugs [...] [Hustling] brought in around £1.2k a day. He was able to buy cars and things he wanted—he mentioned once spending £5k on a jacket.

Yakubu (Swaleside, thirties, early), from notes

The work they had engaged in (which, as Yakubu's case shows, was not *all* illegal or actively dangerous) was nevertheless often precarious and (if lawful) unremunerative. Crime was often described as a question of opportunity: lawfully, there were “no opportunities” for “people like me” (Leon) to get on and make money:

Where we come from and that, like, a high goal is not being fucking sent to prison, let alone being killed. That's it, that's your goals, innit, that and making large amounts of money. You don't really have, like, goals of, you know, owning property [...] having a family and moving out the community and bettering yourself, innit [...] [It was only later I] opened up my eyes that my life could have been different.

Leon (Swaleside, forties, mid)

Often serving the sentence for confrontation or financial gain offences, many of these men with longer tariffs had been involved in illegal activities relating to drug-trading. Their tariffs were lengthy because of weapon use or imputed motive, and many, though they regretted the offence, perceived their social and economic exclusion to have been born in structural racism.¹³ Put simply, they felt responsible for *what they had done*, but not for *who they were*. They were also less persuaded that waged work could provide the foundation of an ethical life after imprisonment, in part because there would be less time in which to work. Lawful work (skilled or not) was seen as a route to persistent marginality, and at best a means of making ends meet; their ethical work consisted not in acculturating themselves to

¹³In this younger-when-convicted half of the sample, all participants who were not White were of Black British, Black Caribbean, Black African, or Mixed ethnicity.

the norms of hard graft, but in imagining how to make money without it:

I read quite a lot—about business ideas, plans for the future. Right now I am reading something about how the stock market works. I want to understand that so I can make my money work for me in the future, to look after my family after how they’ve looked after me in here.

Mark (Swaleside, thirties, post-tariff), from notes

Ethically, there were strands of continuity here: business acumen and entrepreneurialism were still the key virtues, but they imagined practising them along lawful lines.

Thus narratives of maturity were sometimes tied to work, and sometimes not. Men in this second group, who expected work to be burdensome, also characterised themselves as having matured in prison. But they were reluctant to identify with the unremunerative, precarious work on offer in prison, and anticipated after release. The demands of work were there to transcend, not internalise. Instead of saying they were “their own boss” in prison jobs, these men were often censoriously critical of the skills, certifications, and training on offer to them, perceiving not dignity through toil but low expectations, and resenting the lowered status it implied:

Have you been to the packing workshop?¹⁴

Yes.

What are [prisoners] learning from that? That same room that they’ve got it in, you could do an electric workshop, you could do mechanics, you could do bricklaying, you could do plumbing... You could do things in there that are going to give these guys skills [...] [But instead] I’ve been here six, seven years now. I could’ve learnt something. I’ve learnt nothing.

Ebo (Swaleside, twenties, mid)

¹⁴A workshop at Swaleside where prisoners spent all day performing menial and unskilled packing and assembly tasks.

The ghost of work

A handful of participants, most at Leyhill, had been convicted under thirty, but were now well over-tariff, and into a cycle of parole knockbacks. Most were serving time for intensely stigmatised offences. Ethically, work haunted them: they espoused the working-class masculinity they had absorbed in the deindustrialising Britain of the 1970s and 1980s, but knew that these kinds of jobs had vanished. They expressed hopelessness and victimisation, as though Thatcherism, not the murder conviction, had broken their lives:

The factories in Britain was closing, the coal mines gone, the steelworks, the fishing industry [...] [I] passed all the tests [...] Then I went to do my final exam for [job] and was told we don't want you anymore, [...] try applying in a year or two. It was crushing for me [...] And that's just before I went to borstal.

Fred (Leyhill, fifties, post-tariff)

I got a job down in the pit, as a miner. My dad got me that job [...] [But] then, I started not going to work then, because I was, like, drinking a lot [...] I was drinking a lot and getting in trouble. And then... I think I was about seventeen or eighteen... I went to borstal.

Jeff (Leyhill, fifties, post-tariff)

As these two quotes suggest, comparisons to family members, who offered exemplars of the lives they might have been leading had things not gone off track, were common:

Who do you admire?

[...] My uncle [...] We're close in age. Back when I left school, me and him worked together at [company] [...] And since I got locked up, he set up his own business [...] He's settled. Which he never was [...] What I admire is the fact that he's set up his own

business. He's doing well. He's got married, he's settled down. He's got a good life.

Frank (Swaleside, forties, post-tariff)

In these cases, aspirations were sometimes expressed towards manual work, but there was more of an air of defeat than was evident among those in Section , for whom release felt more tangible. Some of these men—Fred and Frank, for instance—had chronic health conditions, and were increasingly aware that their bodies might not endure the kinds of work they aspired to. Complex and restrictive licence conditions also sometimes required the disclosure of stigmatised offences which undermined a traditional masculinity. Put simply: where work was aspired to, but felt intangible, identification with the work of the past was more likely.

Summary

When men under thirty were convicted, support from birth families played a crucial role. It helped realign ethical selfhood, by reaffirming the value of existing relations of care, and moderating the most destructive messages of censure. It sent participants a message about enduring moral worth, which came rarely and haphazardly from the prison.¹⁵

This, perhaps, was where the present sample most closely evinced the kind of maturation-as-personal-growth that Steve Herbert (2019 p. 19) has described in a sample of US lifers. His participants, in coming to terms with their sentences, recognised “that they were not isolated individuals but instead were situated in interdependent relations with others”, and came to “see themselves not as social atoms but as members of social groups”. Here, maturation along these lines appeared to be preconditioned by family support and a certain level of humility or submission towards the conviction and sentence.

Without some moderation of censure, attitudes to the offence tended to harden, usually among those whose families were

¹⁵See [Chapter 6](#) for further discussion of how risk-reducing interventions sometimes offered such messages.

already distant, or became unable to support them given their feelings about the offence. For such men, the sentence appeared as a kind of transaction, trading penal for criminal harm. It carried no authoritative moral message about the necessity of change, and the kind of social atomisation Herbert and others link to the early sentence stages deepened, rather than yielding to a desire for interdependency.

Another exception to the pattern of maturation and a growing desire for interdependence was fathers who had cared regularly for children before prison. They struggled with separation, and with missing their children's development. The sentence could not be narrated as an opportunity to mature, but thwarted the maturity they had already tasted. On the other hand, participants whose relationship with their children did not involve daily care longed for a future relationship with them.

Attitudes to work also offered evidence that the painfulness of the sentence ebbed and flowed according to participants' specific ethical outlooks, as well as the nature of their sentences. Some began with the view that work was a surefire route to marginality, something to be avoided through entrepreneurialism and acumen. They retained this attitude, but imagined themselves practising it lawfully. Others saw work as a dignifying and ethically valuable activity, and actively prepared to engage in it after release. But where this possibility receded owing to age, health, and repeated parole denials, they began to be haunted by, rather than inspired by, work.

Participants convicted aged thirty and over

On the whole, participants who were older at conviction suffered neither the dissociations from former selfhood nor the highly expressive emotional crises which recent research has seen as part and parcel of the adaptation process among those convicted when younger (Crewe *et al.* 2017a, 2020; Hulley *et al.* 2016; Wright *et al.* 2017). They 'settled in' to the sentence, and apparently struggled less to do so, than their younger counterparts. Instead of trying to move into a new kind of selfhood, many seemed content to remain the person they were. They

were certainly not delighted to be in prison, nor in agreement with every detail of the conviction. However, they set aside such feelings more quickly, and complied more readily.

This section interrogates interview data for clues about why this was. It suggests that imported life experiences are part of the explanation. Conviction later in life produced different ‘ruptures’ than with younger counterparts. Maturity was more lastingly and concretely instantiated in career achievements and family relationships, most importantly children (cf. [Crawley and Sparks 2005b pp. 348–9](#); [2006 pp. 68–71](#)). These men viewed past family and working relationships selectively, treating them as a resource and as a marker of ethical status, rather than finding the effort uniformly painful and deciding to relinquish past identity as a result. Correspondingly, their attitudes towards the future, and to the good that might feasibly be salvaged from the sentence, also differed.

Family relationships

Twenty-two of the twenty-five men in the older-when-convicted group—88%—were fathers when they were convicted.¹⁶ Six had children already in adulthood; seven had been living with partners and caring daily for children; two shared custody with a former partner; and seven had children but no custody at all. All these subgroups could claim (though not all in the same way, or equally plausibly) to have performed one of the normative duties associated with maturity: parenthood.

Losing the parental role as a loss of self

Just as younger men missed their children, so too did older men:

¹⁶The *expectation* of parenthood was even more widespread: of the three non-fathers convicted after their thirtieth birthdays, two were married and believed they might one day have children. Barring the other non-parent convicted after the age of thirty (whose offence came in early adulthood but who was a fugitive for some years before his arrest), this meant that *everyone* in the sample aged over 30 at conviction either had children already, or expected to.

The start was, you know, bumpy [...] Imagine you love someone... love your children so much, and they stop from you see your children. Obviously, you gonna frustrate. I mean, you're gonna be stressed. Because I love my children. Everybody loves his children.

(Saeed, Swaleside, forties, early)

Separation brought bitter regrets, detaching these men from a well-established part of themselves. But though these pains and regrets were like those of fathers convicted younger, they were also more tempered by feelings about the offence. Whereas most of those convicted younger had killed other men in confrontation murders (many of them joint enterprise cases), men convicted over thirty were far likelier to have been convicted of intimate partner murders. As [Chapter 4](#) showed, they had mostly offended alone, and tended also to have few or no prior convictions. These convictions deeply disrupted their sense of themselves as family men, and the older group more often blamed themselves for their regrets.

It is worth acknowledging that participants *at any age* who maintained a strong claim of innocence could not admit such thoughts. They saw restrictions on family contact (including with children) not simply as *unnecessary*, but also as illegitimately punitive. Such feelings often flooded their descriptions of interactions with the prison:

[They made] contact with my family more difficult [...] And they would for example keep lying to me about the contact with my son, [saying] that the social services are refusing it [...] when I found out [later] that the social services had nothing against it. And [...] then they would not let me send out [application forms and appeals] and they would keep lying that [they] had gone missing.

Janusz (Swaleside, thirties, mid)

Sometimes, however, obstacles to family contact lay elsewhere: not with the prison, but with ex-partners. In such cases, the

loss of contact was *painful*, but it did not tend to be blamed on the prison:

Well, I don't see my eldest lot because of this [i.e. the conviction]. It's... I'm gutted [...] But if they don't want to see me [voice breaks, crying] then they don't want to see me.

Terry (Swaleside, sixties, mid)

For Terry, the pain of being cut off by some family members rebounded on the self; it was not imposed by the prison and hence was not part of what Lori Sexton (2015) terms his 'penal consciousness'; not *part of the punishment*. For those with older children, also, social and geographical distance were less insurmountable obstacles to meaningful contact than for the younger-when-convicted fathers; older children were more capable of adapting to contact mediated by telephone. Such brief, episodic interactions could be preferable to the more confronting forms of intimacy associated with visits:

My eldest had a grandson [...] I did let her come up then, when she had the baby [...] My mum says, "you should let them, you should let them." And I always just say, "I just want them to get on with their life. I'm here." [...] I justified it to myself, saying... if I lived in Australia, then that would be the way it was [...] And just because I live in prison, and I'm only a few hundred miles away [...] I just don't want them coming to these places, you know? They had nothing to do with this. It was nothing to do with them. Why make them?

Liam (Swaleside, forties, mid)

In a few cases, participants' sense of themselves as fathers had *strengthened*, part of a wider shift in their ethical narratives. These reorientations usually presented deprivations—of material goods, or financial autonomy, say—as a blessing in disguise. By subtracting choices, they suggested, imprisonment made good choices easier. Saeed, for instance, contrasted his attitudes to money before and after prison in the following two quotes. The

second hinted, subtly, that he was now both a better provider than before the conviction, and a happier man:

I got like two, three grand in my pocket all the time [...] Do you understand? And I was thinking, “Yeah, I’m a bad boy” [...] I start paying bills. Everybody’s going McDonald’s [...] Paying drink for everybody. Buy coke for everybody. Buy weed for everybody. Girls. Three, four girls with me all the time.

I was cooking food for those three [other prisoners]. They was giving me money and that money I was sending to my kids. That was HELPING me, you know I mean? *Because I used to be so arrogant!* [...] These three send me money and *now I give money to my kids*. I was SO HAPPY! [...] My sister-in-law ask me a question, she said, “What you doing inside? What you selling there?” And I said, “I not sell anything, I save up!” She said, “Who is this man I am talking to? Let me talk to Saeed!”

Saeed (Swaleside, forties, early)

In such cases, fatherhood was unmistakably still a ground project—but with the proviso that whoever was caring for their children needed to play along for the story to ‘work’. Some had gone through lengthy battles with the prison over risk assessments which had initially blocked contact with children; or they had adapted to letters and the telephone. Either way, fatherhood remained something without which they would find it difficult to go on:

If I couldn’t see my family [...] If I didn’t have nothing to go home to... I don’t think I’d be mucking about here. I would have left this place a while ago...¹⁷ It’s only my family [...] What’s the use of wasting your life in here?

Terry (Swaleside, sixties, mid)

¹⁷I understood this to refer to thoughts of suicide.

Some fathers, however, looked back on family life with clearer regret. They assessed the loss of family contact more holistically than men convicted younger, often understanding themselves to have let their children down. Liam—one of the few in this group with more than one previous prison sentence—regretted not having turned into a different man, and a better father, before it was too late:

I just knew I could make money [...] get money to buy drugs [...] That was what mattered, yeah. That was my life [...] It was wrong, honestly. Especially when I'd had kids. Do you know what I mean? Really wrong. Like, even if I was running around like an idiot when I was sixteen, seventeen, as soon as I had kids, I... That should have opened my eyes.

Liam (Swaleside, forties, mid)

William, meanwhile, felt lasting shame about relapsing into heroin addiction in prison, seeing this (and not his conviction), as his most salient failure:

My mum and my daughter... I want them to be proud of me. But it hurts to think... yeah... why would they? How could that ever happen? I mean, I know they love me. I just let them down so badly [...] how could I do that to them, how could I... How could I [start using] again? [...] I often think they'd be better off without me [...] Say... with my daughter [...] any faults that she has, I'd feel is my failure as a father, really...

William (Swaleside, forties, early)

In other cases, the offence itself fatally undermined family-man identities. Describing his marriage, Grant said that “my wife and I were happy, or so I thought”. He equivocated because any narrative rooted in his family life had somehow to incorporate an incongruous ending: Grant had killed his wife. Even many years later, he and others like him clearly still found it extremely difficult to ‘move on’. Days from a parole hearing at which prison staff were recommending his release, Grant said his only source

of hope was that his children might one day choose to make contact.¹⁸

I was going through the Salvation Army, they can do a search on your children [...] And I chose not to because, like I say... okay, not knowing is not nice... but I [...] go to bed at night-time and I just hope I'm going to get a letter tomorrow morning. I can't write to them. I don't know where they are. You know, I don't know where they are living [crying] [...] I mean... God forbid that they go through a bad time and they think, oh, shit, I wish Dad was here, yeah? I don't want them to do that. *I don't want them to need me*, you know? But it's that two per cent hope.

Grant (Leyhill, fifties, late)

Thus, past identity lingered, even for those who acknowledged that the conviction had exploded it. Grant expressed the impossible bind of both identifying with his children, while feeling unworthy of them ("I don't want them to need me").

Even offences which did not touch so directly on the family could produce comparable results. For his family, Daniel's offence against a vulnerable (but unrelated) victim had been a bombshell. The resulting consternation terminated all his family relationships, save that with his parents:

My sister has never spoken to me since, and we were quite close [...] Mum and Dad were with me all the way through. They never wavered, not once.

What about your wife and your kids?

No. Mum came up on a visit with the divorce papers. I signed them no contest. The agreement was, if there's anything significant, Mum would relay that information [...] If [my kids] want to contact me when they're over eighteen, they can [...] I'm always hopeful, every day, but I kind of accept the consequences

¹⁸His proposed licence conditions stipulated he could initiate contact only with permission.

of my actions. When Mum died [...] my sister went to the cremation and I went to the interment of her ashes so we wouldn't cross. She arranged all of that with them because she still doesn't want any form of contact.

Daniel (Leyhill, fifties, late)

This subsection has shown how participants convicted after thirty often had children whose lives they had been deeply and prolongedly involved in. Having established these relationships and come to identify with them fully, they found it just as painful as younger men did to lose contact, but found it harder to shift towards a focus on the future. Guilt over the offence (which was more likely to have involved violence against a partner) often bore directly on the sense of themselves as caring, loving husbands and fathers. But feelings towards their children tied them to the past. Some lived in a kind of relational limbo: unable to move on, but also unwilling to risk a conclusive break. By contrast, where the offence had not impinged on their identity in this way and where partners or carers were cooperative, a few men did their best to parent from within prison.

Participants with older and estranged children

Something different was evident with a subgroup of men whose children were adults already, or (in a few cases) estranged before the conviction. In total, thirteen men were in this position. Seven had children but no custody (or no contact at all); six had children who were already adults by the time of their offence. The common factor was non-involvement in caring obligations at conviction, which did not form part of their habitual, day-to-day identity.

Some men who had lost contact with their children were aggrieved by their estrangement. They blamed former partners, not the prison, with a sense of generalised victimisation that marked numerous relationships they described:

[That's] how poisonous [my ex-wife] was towards me, that she'd get the kids to say something [...] I had words with [my daughter] on the phone and she told

me, she said, “we used you, dad, we used you just to get what we wanted [...] Now there’s nothing left, we don’t want to know you anymore, now fuck off.” Now, when your own daughter says that! [...] *[You know, there’s] a connection there, [my wife] and [my kids] were very, very similar, you know? Take, take, take... grab as much as I can and then they’re off. And it’s what [my victim] done as well.*

Alan (Swaleside, fifties, very early)

Most, however, made nowhere near as much mention of their estranged children: these relationships were long gone. Ron’s daughter would have reached adulthood while he was in prison, but he had split from her mother many years before the conviction, and he described a conscious decision to let go, and ‘swim with the tide’ (Crewe *et al.* 2017a). Unlike Alan, he managed any feelings of rejection brought up by this situation, and did not ruminate. Hence, he also expressed no blame. His words made clear that his daughter’s transition to maturity marked an explicit shift in his obligations towards her, and hence also in the painfulness of estrangement:

As you go further along, obviously, things go, don’t they?

Feelings, kind of, dissipate, you mean?

It doesn’t come up, so you get into it [i.e. the sentence] [...] *You start thinking about life again—your own life—don’t you?* See, I’ve given up on my daughter now. She’s an adult, I’ve given up on that one, trying to contact her, so that’s gone [...] You’re here now. You start thinking about progressing, don’t you? Getting somewhere to live, getting a job, starting again, but afresh.

Ron (Leyhill, fifties, post-tariff)

Something similar was true where children were not estranged, but had been adults when participants were convicted. These fathers emphasised their *achievements* as parents: their children were now successful adults in their own right:

I'm in touch with them, well, Amelia, every week, really... Oliver not quite so much [...] Oliver was [...] chief executive of [a large organisation]¹⁹ [...] And so he's a very well-balanced man [...] Amelia and her husband bought into a business and they [...] also have lectured in Bristol University.

Gerald (Swaleside, seventies, mid)

I'm very pleased with the way it's worked out because my daughter had a good education. She's got a good job. And she's now married with [children] of her own. And [my son] is the same, he's got a good job. Really good job. And so I'm ever so pleased the way things have worked out.

Alf (Leyhill, eighties, late)

Because it was possible to see their caring role as parents as being, in some sense, complete, the destruction of normative caring obligations was a far less recurrent theme in these interviews. Adult children were often fulfilling caregiving obligations of their own. If contact were less frequent than these imprisoned grandfathers might have liked, this could be explained away: it was attributable to their children's *own* virtues as parents, something which subtly pointed to the interviewee's own success as a father:

I feel I don't see them as much as I'd like to, of course, but they [i.e. his children] have their own lives to do, their own families to bring up. And I see [them] once a year.

Gerald (Swaleside, 70s, mid)

It was not that separation from family was not painful; far from it. Often, the lack of contact with grandchildren prompted regret:

[It takes them] three and a half hours to get here [...] So by the time they get back, you know, it could be ten hours, twelve hours [...] In [local prison] I did

¹⁹Names and places changed.

every single family visit, I never miss one. Here [...]
I do not have a single family visit since I'm here.

Olivier (Swaleside, sixties, very early)

The result was that many of these men, particularly those who were very old and not in contact with their children, could seem extremely lonely. Emlyn said he had two cousins, both a decade or so older than him; if they died before he was released then he would have no one left:

He spoke about a parole hearing when he was asked about empathy, sympathy and remorse; he said he started crying when talking about the grandchildren he was never going to meet.

Emlyn (Leyhill, seventies, post-tariff), from interview notes

Nevertheless, even in these cases, children were often discussed as a marker of worth. Adult children also took greater responsibility for their imprisoned fathers as they entered old age—another life course transition, and demonstrating that not all relationships were obliterated by the life sentence.

Oliver is arranging accommodation of a property in [city] [...] there will be a flat... two flats, one which could be let as an income [...] It's not what I would have chosen to do, but I'm not in a position to just tell [him] that no, I don't want that, thank you very much. You know, they're doing their best for me.

Gerald (Swaleside, seventies, mid)²⁰

The house is let [...] Bringing in quite a lot of money [...] I shall try and live with [my daughter] for a little while [...] Until I can get some sort of accommodation [...] Because the rental for the house is a high rental.

Alf (Leyhill, eighties, late)

²⁰Names changed.

The underlying point is this: that obligations affecting those with adult children differed from those affecting men with no children, which differed again from whose habitual patterns of care for young children had been ended by the sentence. Having cared for children was a marker of normative status; their attainment of adulthood suggested that family life and the obligations of fatherhood were, in some sense, fulfilled.

Work and economic participation

As well as being older, this group as a whole were ethnically far more homogeneous than their younger counterparts: twenty (80%) were white, and four (16%) of Asian ethnicity.²¹ Only one in the latter group (Nasim) dwelled on overt experiences of racial discrimination during the interview (in striking contrast to younger Swaleside men, who referred to them often); and while two other Asian participants had occupied highly marginal status as recent migrants to Britain, racism and structural discrimination still did not feature prominently in their accounts of life before prison. This is not to suggest they were unaffected by inequality, but to emphasise that they did not attribute their marginality to factors beyond their control (such as race or ethnicity).

In general, across the whole older-at-conviction group, experiences of work had been more positive, and there appeared to be greater acceptance of the basic premise that hard work and being seen to ‘play by the rules’ would secure better outcomes, including in prison. As noted in Section , the twenty-five men convicted when 30 and over were also *far* more likely to have been active in the lawful economy. Only five (20%) reported unemployment at the time of the offence. Few were living by crime, and few had long criminal records: most were serving their first prison sentence (fourteen or 56%, with five or 20% having previously served one sentence of a year or less). Among the six who had served two or more, only two appeared to have been prolific and persistent in their offending so as to suggest

²¹One more man in this group declined to describe his ethnicity, and objected to being defined by it. His was recorded as ‘missing’.

that they lived from the proceeds.²² The other four, however, had acquired multiple convictions early in life, desisted for many years, and then received the current sentence.

Age, status, and distancing

Significantly, these men did not typically think of themselves as ‘criminals’, a term they reserved for younger prisoners whom they saw as immature and lacking in self-control, and from whom they tended to distance themselves. The incongruity here was striking, given their own convictions and the setting. But they made these evaluations anyway, and expressed something close to disdain for these younger men:

I’m quite long in the tooth, and I’ve been about quite a bit myself [...] But to see sometimes what goes on in... [...] Look at last week, for instance, look at all the cells were searched.²³ Look at how many weapons and how many phones they found... You’d never find anything like that in my cell. And that’s why they don’t bother searching me. I’ve had so many people say, would you hide this, I’ll give you fifty quid... I ain’t interested in your money [...] I don’t want it. I want nothing to do with it because *I’m not interested in that type of person.*

Alan (Swaleside, fifties, very early)

Intolerant attitudes towards other prisoners sometimes shaded into prejudice and scorn. The underlying impulse, however, was consistent. It was to distance the speaker from behaviour he saw as beneath him:

You get idiots that push in on dinner queues and stuff [...] [and] my mate was getting wound up—I said... “Look, it’s just evolution.” [...] I said, “you know, you don’t see animals queueing for their food.”

²²Both had dozens of convictions for property offences, such as frauds and burglaries.

²³A reference to a three-day lockdown with targeted searches during the fieldwork at Swaleside; see Chapter .

[laughs] And then we just laughed about it... Because look at it, yeah, because half of the people that are pushing in, they're all the coloured guys, you know?

Matt (Swaleside, fifties, very early)

Comments of this kind invariably positioned the speaker as more experienced and of superior status. Some made their point more softly, as when Terry qualified the blanket incomprehension he had just expressed towards younger men by extending a quasi-paternal tolerance:

There's a kid here... [...] he's adopted me, like he calls me his adopted dad... [...] Just what I'll do to my kid, I'll do to him [...] [laughs] If he's playing up, I'll tell him he's playing up and he's an idiot and he should wind his neck in a bit.

Terry (Swaleside, sixties, mid)

Prison work as an ethical practice

With or without moral distancing of this kind, men in this group often linked their compliance in prison to their identities as working men. Put simply, they seemed to say that because they had a work record, they were better able to adapt to what prisons expected from them. As [Chapter 6](#) explores further, compliance with expectations (especially at Swaleside) consisted largely in showing interpersonal respect for staff, staying out of trouble, participating in required interventions if asked, and not 'pushing ahead' in various administrative and literal queues. In this sense, Matt's reference above to turn-taking norms was significant, even if the underlying racial prejudice was not. His willingness to keep a low profile conformed to expectations. He appeared not only to have adapted more easily, but also found himself more normatively aligned than most with the prison's broad aims.

An attitude succinctly summarised as 'buckle down and don't cause trouble' was not difficult for these men to sustain, given their life and work histories. Their past lives had imparted a degree of resilience, and an ability to improvise and make the

best of bad situations, which made some aspects of prison life less demanding:

You know, it's almost like everything I've ever experienced has kind of set me up for doing well in here. You know, because I can see situations before they arise, you know, because of life experience, you know? [...] I'd love to be able to share the vibe with everybody and make them realise that they're missing a trick.

Matt (Swaleside, fifties, very early)

Experience left them better able to navigate the challenges of day-to-day life in prison, compared with men who entered prison younger and had to build character using only the experiential materials available there. Many mentioned their respect for staff, and it was clear that rubbing along with officers could secure other perks and advantages:

I definitely admired some of those chaps [i.e. officers]. Because we conferred, we talked to them [...] Oh, what was his name? [...] Ever such a nice man. A Senior Officer, and he got me into [a highly trusted job] [...] You're only allowed to hold [it] for three months [...] because there's not enough work. And he came to me, Mr Whatever-his-name-was... and he said, "Alf", he said, [...] "Where would you like to move to?" And I said, "well, I quite enjoyed being on [another trusted and responsible job]. And off he went on the telephone, came back about ten minutes later and he said, Alf, you can go on [that job] provided you come back to us afterwards [...] That's how well we got on!

Alf (Leyhill, eighties, late)

More self-aware participants could see that their affinities with staff helped them navigate the regime more easily than younger prisoners:

I'm very good at manipulating... No, hang on a minute, that's the wrong word... I'm very polite, I

tend to get what I want... But that's not through manipulating, that's through being... If you're polite, people dislike you less, and it's less hassle.

It greases the wheels?

Exactly right [...] I'm not blatantly manipulative... I do it through being nice to them [...] That's how I got a job paying thirty-five quid a week, too. That's pretty good, considering.

Robert (Swaleside, fifties, early)

Prized jobs, such as 'red band' roles involving freer movement, or mentoring and orderly roles supporting staff, made prison feel less oppressive. Men convicted older were often in such roles, though they needed them less from a rehabilitative perspective; their self-control, moderation, and willingness to get on with the job were already in place, and were valued by staff. These were not qualities these men had to work hard towards, and their involvement in these jobs did not preclude more self-serving motivations:

So I'm wondering around [inaudible]... It's a lovely job! [...] I get to walk around the prison, I get to go and see a mate, have a cup of tea, I get to talk to the girls as I go past, you know? Got a little red pass, makes you a little bit special, can go and sit in the library, get my DVDs out all day... Cracking! Cracking job!

Matt (Swaleside, fifties, very early)

In some cases, prison jobs were recast as a means for self-preservation, even where specific goals were being impeded:

It's getting the money to rent, that's my biggest thing [...] That's why I'm so annoyed about [not getting ROTL to work outside the prison.] ²⁴

²⁴Prisoners at Leyhill who worked on ROTL (day release) in 'real world' jobs could earn the national minimum wage (with deductions) and save towards their release. However, the necessary permissions (from the prison's risk board) were (anecdotally) hard to come by.

So what do you do?

I work on the grounds up there [...]

What do you like about it?

Being out in the fresh air, isn't it? [...] I use it as exercise too. So I sweat, and everything. You know the football pitch? I mow it by hand. I don't have to, there's a ride-on, but I'd rather do it by hand, pushing it along [...] It keeps me fit [...] *I don't do it for the prison, I do it for me.* Obviously, I do it for the prison, but that's not my first thing. It's for me.

Ron (Leyhill, fifties, post-tariff)

The point advanced in this section is about normative alignment: between behaviours the prison incentivised, and behaviours *already* in the habitual repertoire of men who entered prison later in life. Pre-prison experience helped them adjust to the sentence, but also hardened them against the idea that it would improve character. Rather than helping them work towards a better future, it posited a kind of game, in which past experiences (especially in work) conferred advantage. Many, significantly, explicitly linked their ability to adapt in prison to habits they had acquired before prison:

[strongly emphasising every syllable] I AB-SO-LUTE-LY LOVE MY JOB. [...] It's therapeutic. Very therapeutic. [...] If you look at my work report that [my boss] gave for my latest OASys report, it says in there that I'm very conscientious and I always, always want to do a good job [...] *That's just the person I always was.*

Alan (Swaleside, fifties, very early)

Such qualities—a work ethic, a willingness to submit to the demands of the prison regime and not (as Robert put it) to ‘fight these bars when you will never win’—eased adaptation. It also reinforced the view that they were ‘better’—or, at least, more aligned with institutional norms—than many younger prisoners.

Having nothing to ‘work towards’

Not coincidentally, and especially at Swaleside, between a half and two-thirds of participants convicted over thirty had possessed wealth and social status before prison. They saw themselves as fundamentally decent, non-criminal people, notwithstanding the murder conviction.²⁵ Most acknowledged they were responsible for taking life, but unless they had undermined their self-worth by killing someone who really mattered to them, this translated into few obligations beyond ‘taking their medicine’—that is, enduring the punishment. Gerald put this pointedly, when he asked what he could ‘work towards’:

I was never wilful, never rebellious. I might have been naïve. I always thought well of people generally. I was following the rules generally. I brought up a very good family. I had a very good job. You know, a respectful [sic] job [...] There’s nowhere I can really go [in prison], to be honest with you [...] I do a good job. I do my work. Where can I go?

Gerald (Swaleside, seventies, mid)

If these men had trouble in prison, then, it was not with the fundamental expectation to buckle down, work, and comply with the regime, because they accepted this readily and their existing behavioural repertoires facilitated compliance. There was none of the acting out or emotional volatility of men convicted younger. Prison time was easier to imagine, too, because it could be compared with spans of time already experienced. Their difficulties were instead with accepting the lost esteem and status that went with the sentence:

The [work]shop is extremely well-equipped, I’ll give it that. It could be a professional outfit on the out [...] But [the work’s] too basic. It’s what I was doing thirty-odd years ago. Longer, even. *I don’t find it hard now, like I did.* Getting instructed by people...

²⁵Men at Leyhill had a different offence profile overall, and had been subject to more intensive intervention; hence they might have experienced more negative moral sentiments about their offences than at Swaleside, which was relatively uncommunicative.

that's hard, because... I've been my own boss now for many years. Now, I have to respect a boss [...] I've had a couple of issues with the [instructors]. *But I've dropped all that now.*

Robert (Swaleside, fifties, early)

Gerald expressed similar feelings about dismissal from a prison job he had valued because it reinforced his sense of professional status:

Tell me about your work, now.

Well, I've fallen from a great height [...] [Previously,] I worked in [workshop], which is almost the highest paid job in the establishment [...] I was sat in front of a computer all day in an office with [...] four or five others. Controlled the thing from the point of view... as I was one of the main inputs [...] collating all the requirements [...] But there was a lot of pilfering, it was appalling... And so we all got chopped.

Gerald (Swaleside, seventies, mid)

What is evident in these two quotes is discomfort. Far from wanting to transcend or surpass who they had been before prison, these men were *proud*. It irked them to be lumped in with other prisoners, but expressing this in prison did them no good.

Summary

Men convicted later in life often understood themselves to have possessed social and economic status before imprisonment, through work and family life. They experienced pain at losing it, but also adapted more easily because of maturity already attained. They saw themselves as good men *despite* the conviction. Their former selfhood was a *resource*. It informed their view of who they *really* were, and sharpened their resentment at being confused with 'real' criminals. But it went *unrecognised*.

There were exceptions: those who had been convicted older but for whom life before prison appeared to have been so dismal (or

whose offences undermined their former identity so profoundly) that the sentence came almost as a kind of relief. In such cases, following lives blighted by abuse, trauma or addiction, basic emotional wellbeing was a significant achievement, but did not appear to be the means to something else. If anything, life after prison summoned a kind of anticipatory nostalgia:

It sounds like the TC²⁶ was kind of...

It's my saviour.

Your saviour?

What I want to do when I get out, I want to get my daughter to write me a letter to [the prison where I did TC] and ask them if I can go and visit them for the day. And take my daughter. She can drive me, and [...] they can see how I've progressed.

Phil (Leyhill, fifties, late)

Phil's stance, however, was unusual. Men convicted older mostly understood that their best opportunities for social and economic status had been before prison. If the sentence was a game, and if they played it with a certain head-start, there was still no sense in which their present circumstances compared favourably with those they had experienced before, and hence their identities were backward-looking. Those with property or financial means to rely on after release did not expect to leave prison as 'reformed characters', but they would at least experience a cushioned fall.

Discussion—maturation before and during a life sentence

This chapter began by noting that recent theorisations of adaptation to imprisonment were developed from samples convicted when still young. This is not the first study to ask how people make sense of imprisonment *within a longer lifespan*. For example, there is now a large body of research into how older

²⁶Therapeutic Community.

people's experiences of imprisonment are distinctive (e.g. Aday and Wahidin 2016; Avieli 2020, 2021; Crawley and Sparks 2006; Hayes *et al.* 2013; Leigey and Aday 2022; O'Hara *et al.* 2016). It finds, among other things, that they are particularly prone to depression and a sense of hopelessness; that imprisonment imposed late in life can be an especially catastrophic rupture to one's sense of self; but conversely also that some older prisoners successfully parlay their long life experience into a set of adaptations facilitating better experiences of custody.

However, it approaches the analysis in a way which—to my knowledge—is new: a systematic comparison of how people narrate the rupture of a life sentence if they are sentenced at different ages. The analysis has been complex and qualified, partly because its structuring variable—age at conviction—is only an indirect marker of maturity, and itself a loose and multidimensional concept. It is not straightforwardly possible to say that someone was or was not 'mature' at conviction. But it is possible to say, based on their later telling, whether with hindsight they believed themselves to have been immature, or to have needed to develop their characters.

Ethical re-evaluation is the essence of many other recent studies, which have focused on how prisoners re-imagine the self and re-orient it towards a different future, including by re-narrating past actions. They have characterised these re-narrations using various theoretical terminology: quests for 'redemption' (Irwin 2009; Kazemian 2019); ways to 'make sense of the changing self' (Crewe *et al.* 2020 pp. 266–277); or struggles to ensure that 'one moment in their life didn't define them' (Herbert 2019 Chapter 4). Such characterisations mostly emphasise that *successful* adaptation to long-term imprisonment involves findings ways to *let go* of past identity, the better to reconcile oneself to an altered future. This chapter has redrawn the theoretical picture, in two ways. First, it posited a novel theorisation of adaptation, by contrasting adaptations based on age at conviction. Second, it offers new lines of inquiry about why, in the words of Crewe *et al.* (2020 p. 277), not all prisoners in this sample "reflected on, and found meaning in, their experiences" in prison.

Different forms of adaptation among those convicted younger and older

The novel theorisation of adaptation draws on contrasts between people convicted with more of their lives already lived, or more yet to live. Participants convicted under thirty, though they found it hard to adapt to imprisonment in the first place, shifted eventually towards a re-evaluation of their past lives. For some, the reasons were straightforward: shame, regret, or remorse about the conviction itself. They were more likely to have killed someone they did not know. Thus the harms to victims and victims' families were less vivid and less real, and those to their own loved ones more so.²⁷ If their families were supportive, the most striking re-evaluation was in these relationships, producing a renewed and powerful sense of reciprocal obligation towards natal families and the ethical values they exemplified. This *was* ethical change, but around a core of *continuity*, which the subject often experienced as a kind of return to “the real me”. Contrastingly, participants without supportive families, or whose families were geographically distant, were not anchored to anything like this notion; they were more ethically autonomous, and could (and did) simply tell their story however they wanted.

Narrative rupture—discontinuities of identity—were more evident among younger-when-convicted participants who could not fully accept the conviction: because they maintained innocence, for example, or because it thwarted nascent relationships with very young or unborn children. Although some retained support from natal families, they typically deeply resented the sentence as an *obstacle* between them and the selfhood they wished to occupy. This pain was not easily circumnavigated by narratives emphasising just deserts or the need for growth, and the ethical work they wanted to perform was beyond their control, *because it lay in relationships*—a classic ‘outside problem’ (see Section). Or they wished to overturn the murder conviction

²⁷The point here is not that participants did not *care about* unknown victims, or that they always played down the seriousness of the offence; but rather, that their victims were somewhat *abstract*: present only episodically and not as actually existing people, and usually in highly ritualised contexts (such as court).

itself, a ground project for which means and ends were again beyond the prison. All of this was quite intractable.

As a result, those convicted younger with children, or with unresolved feelings about the conviction, found it far harder to adapt. Like victims of wrongful conviction (see [Grounds 2005](#)), they experienced the rupture from their former lives as a permanent, unwarranted and inescapable trauma: something impossible reconcile oneself to. Only release from prison could offer a 'return to the real me', but it would do so having robbed the 'real me' of years of development in the relationships which mattered most. Their deepest ethical commitments were irreconcilable with the realities and definitions the conviction and sentence imposed. For these men (who were, nevertheless, mostly coping in prison, in the minimal sense of managing and containing their distress without self-destructive or self-harming behaviour) ethical progress was resistance: *against the grain, in name only, communicative of innocence*. These were high bars, considering the immutable practical effects of the sentence.

By contrast, participants who *did* consider themselves to be 'mature' at conviction had a more settled sense of their own identity and their selfhood, before the time of their offence. Convicted after thirty, and with quite different backgrounds to those convicted younger, they were less willing to narrate their sentences in terms of maturation and amelioration. They favoured instead a framing of their story which asserted the *past*, not the future, as the site of their best potential, worth, achievements, and status. Although nearly all had children, their approach to this biographical fact sometimes differed from that of men who were convicted younger. Nearly all regretted the conviction and its impact on family life, but they were also far less inclined to bemoan it or dwell on its illegitimacies than younger counterparts. One reason was that they were more likely to have killed (and to admit to having killed) someone they knew. Some continued to experience grief for their victim, no less real for having been self-inflicted; often, their offences were highly stigmatised in prisoner culture. They often reversed subcultural moral hierarchies, distancing themselves from 'real' criminals, who in turn often reciprocated with contemptuous epithets such as 'wife-killer' and 'rapist'.

Nonetheless, men convicted in maturity generally appeared to *accept* the basic facts of punishment, and were less resistant to their classification as a ‘murderer’. In fact, they directed evaluative attention elsewhere, emphasising their own worth and status, pointing to their past financial or educational or career achievements, emphasising their achievements as fathers, or (most commonly of all) contrasting themselves favourably with other prisoners. It must be acknowledged that these attempts to establish conventional status could have been motivated by the wish to present themselves favourably to an interviewer ‘from Cambridge’ whose values they might have sought to appeal to. Notwithstanding, my impression was that their wish to distance themselves from peers would have been present without me. It was reflected in the fact that so many of them had worked their way into favourable prison jobs, removing themselves from the ‘mix’ of prison subculture as far as they could.

New lines of inquiry about ‘finding meaning’ in prison

The discussion in Section indicates a second area of significance for these findings, and a line of inquiry for future research. If ethics is inherently connected with biographical narrative, as anthropologists, most notably Cheryl Mattingly (1998, 2012, 2013, 2014) insist, then this divide in how people adapt to and make sense of life during a life sentence is significant. Murder sentences in England & Wales are indeterminate and lifelong; they also now involve unprecedented periods of prison time. They disrupt lives, restore freedoms only conditionally and uncertainly, and cause lifers to think very deliberately about how not to fall foul of licence conditions and be recalled to prison (Rennie and Crewe 2023). Such thinking causes some to severely dial back their ambitions and aspirations, in conformity with the very limited restoration of status on offer.

Lifers in this study who were convicted young and made the experience meaningful did so by seeing it as an opportunity to mature. Their maturity was context-specific: its ambitions were prison-bound, not connected to specific plans to pursue careers or to start families after release. Few described such plans, instead waving away my questions about the future with

prison truisms such as that wanting things could only bring disappointment. True, this was because so many were a long way from their tariff date (with planning of this kind representing a fantastical indulgence). Partly, it was because so many were so far over-tariff, vehement in their attitudes to the parole process, and thus similarly inclined to associate planning with certain disappointment.

But planning what to do with maturity was also lacking because the materials for more ambitious ethical thinking—for making something out of maturation, rather than it becoming an end in itself—were sparsely available and difficult to access. Only two men among the twenty-three convicted under thirty had managed to begin or complete degrees in prison. As we shall see in the next chapter, their sentence plans generally envisaged little for their post-prison futures beyond bare existence: minimum-wage employment opportunities and the avoidance of recall. The finding that younger men here (as in other samples) adapted by focusing on their futures needs to be understood in this limited context. It represents a systemic insistence on meek compliance, and a transfer of responsibility for anything more onto prisoners themselves. These men yearned (as have other samples) for interdependency, redemption and moral recognition, and many were very seriously concerned with changing themselves. But they did so largely without receiving the recognition they hoped for, and largely with the underlying understanding that this support, too, might only come from their immediate loved ones.

Meanwhile, those who were convicted older found it harder to make the sentence meaningful. If they did, it was generally so because it had relieved a burden (of a life lived in traumatised misery, for example), or because interventions had helped them come to terms with the harms and wrongs they had done. Some said they were happier or mentally healthier than at any time before, and *looked forward* to life after prison, albeit while acknowledging that their days of starting families or pursuing career success were now behind them. And those with property or wealth expected, if released, to be able to live out their last years at home: a literal return to past identity. But more struggled to imagine a life that was meaningful after prison, at least one that would compare to what they had had before. It

was to their past lives—often now distant—that they looked for markers of their status.

Both lines of inquiry—relating to the importation of biographical factors relevant to prison adaptation, and relating to the foreseeability of different futures after release from prison—offer fruitful avenues for future research on life imprisonment.

References

Risk and self-governance

Moral communication through offender management

The ‘ruling concept’ through which English prisons communicate with prisoners about the moral obligations associated with their punishment is risk. Risk thinking and risk talk pervade the management of lifers and prisoners generally, and the management of risk is a primary conduit for the operation of power. This has been said to produce distinctively ‘tight’ prison pain, for those governed through risk. This chapter reviews how risk factored in the sample’s ethical lives: how they made sense of the concept, or in some cases, dismissed it as a bad-faith imposition. In doing so, it summarises official documents to describe the risks associated with the sample by risk assessments, which broadly suggested that the participants were ordinary and ‘easy-keeping’ lifers: compliant, mostly self-governing, adapted to imprisonment, and posing few risks to others in custody. This, the chapter argues, means they were subject to discontinuous, and varying, kinds of ‘grip’, with ‘tight’ conditions prevailing for some, but ‘loose’ and ‘lax’ treatment for others. The analysis points to variations in how far the sample were conscious of these variable and inconsistent expectations, and shows that some felt their ‘lax’ treatment to be ‘neglectful’. It produces a typology of ethical responses to moral communication about risk, and, in a closing discussion, suggests what an ethical approach adds to our understanding of risk governance.

Increasingly, prisoners are no longer objects of punishment, but made instead into potential subjects of self-change, thus creating prisons characterized by what Crewe has called ‘neo-paternalism’. The feeling of ‘tightness’ [is] connected to the perceived need

to self-govern, take responsibility and show credible change and growth.

Ugelvik and Damsa (2018 p. 1028), referencing Crewe (2009, 2011a)

Punishment enforces twin obligations, backing each with the threat of coercion. One is retrospective: to confront culpability. The other is reformatory: to take responsibility for future conduct. They are not entirely separable, but whereas Chapters 4 and 5 examined participants' approach to the first obligation, this chapter focuses more squarely on the second: their attitudes to official attempts to induce self-governance, largely through the medium of 'risk', the central organising concept in the prison's moral communication.

The finding that risk governance is entangling and painful, particularly for indeterminately-sentenced prisoners, is perhaps most associated with the work of Ben Crewe (2011a). In this sample, however, the pains of being tightly 'harnessed' by the prison were not uniformly evident. This was partly because risk-related expectations—the *content* of moral communication—differed between the two sites. It was also because moral messages were *heard differently*, too: some participants saw risk-reducing intervention as a legitimate attempt to offer them needed help, while others found it illegitimate and oppressive, resenting interference in their attempts to prepare for future life.

This chapter explores the contrast, by four steps. First, I set out key concepts used in the empirical analysis. Second, I sketch a descriptive 'risk profile' for the sample. Third, I describe the characteristic styles of moral communication evident at Swaleside and Leyhill, and exemplify the guidance (if any) they offered on risk. I characterise Swaleside as generally 'loose' and 'neglectful' (albeit with pockets of 'laxity' and 'tightness'); and Leyhill as extremely 'tight', unexpectedly so for many participants. Finally, I develop this into an analysis of adaptation styles, identifying four 'ethical responses' to risk governance evident in the sample. A closing discussion suggests that whether prisoners find risk governance painful or not may often be a consequence of imported factors in their personal

history, including the offence. This finding adds nuance to existing accounts, which tend not to differentiate systematically between how prisoners with distinct characteristics respond to risk-based forms of rehabilitative intervention.

Conceptualising experiences of risk intervention

The empirical analysis in this chapter borrows conceptual terminology from two main sources. Table 1 summarises them.

One is Ben Crewe’s influential ‘tightness’ framework (see, variously, 2011a, 2015; 2021). It suggests that indeterminate sentences are distinctively punitive because they entangle prisoners in risk-management structures, which demand compliance and self-governance, but are also hard to understand and comply with. The conceptualisation has recently been revised to reflect new findings (Crewe and Ievins 2021; Ievins and Mjåland 2021): relating, first, to the differing demands made by different penal regimes, and the varied support offered to help prisoners meet these demands; and, second, to the observation that not all intervention is unwelcome. Often, Crewe and Ievins (2021 p. 65) argue, prisoners welcome “supportive rather than coercive” interventions which “engage with [their] full personhood rather than trapping [them] in the amber of the past”. The reformulated framework distinguishes between the forms of ‘grip’ exerted by risk-reducing interventions in different penal circumstances. Table 1a summarises its key terms.

A second conceptual touchstone comes from Fergus McNeill (2009a), in a discussion of how supervisees experience probation supervision (see also McNeill *et al.* 2018), which links the pain/supportiveness question to notions of dignity and moral recognition. For McNeill, supervisees might feel *helped*, *held*, or *hurt* by supervision. To feel *helped* is to believe that, despite the status loss which inheres in punishment, one’s own needs are nevertheless recognised as meriting support. To feel *hurt*, conversely, is to believe that one’s needs are unrecognised: that punishment is only demotion. To be *held* is an ambivalent and intermediate position: constraints and demotions are frustrating,

Table 1: Conceptualisations used in the chapter

(a) Conceptualising the demands made and support offered by risk governance¹

Demands made			
Assistance offered	More	Less	More
	Less	Supportive Loose, neglectful	Tight, firm Lax, inconsistent, deficient

(b) Ways of experiencing penal supervision²

Term	Description
Helping	Supportive style of communication by supervisor (regardless of content)Supervisees feel seen/liked for
Holding	Supervision understood as “quasi-parental guardianship”Being ‘held’ for protection (of others, of/ for
Hurting	Surveillance and constraint feel as if they are exercised with malign intentSupervision feels undeserv

but tolerable to the extent that they are recognised to serve some legitimate wider purpose. The experience of being *held* may be prolonged, but is also temporary: that is, it depends on a tangible notion that *after* punishment, ‘moral rehabilitation’ (McNeill 2012) might occur. Table 1b summarises the key contrasts.

In this framing, risk-reducing intervention might be ‘hurtful’, in the sense that it pushes for confrontation with the individual’s capacity for harm. But crucially, it might also feel like being ‘held’, if the subject believes the end is worthwhile. Conversely, to quote McNeill (2009a p. 10), if being ‘held’ fails to “bring about change”, then those who are held may conclude that their captivity aims for nothing more than the “contain[ment of] trouble”.

Assessed risk in the sample

This section summarises risk in the sample using an overview of different classificatory systems described in prison records. It shows how as a whole, the sample were believed to pose few risks of harm to others in custody, but that considerable uncertainties were prompted by the prospect of their release.

The Offender Assessment System (hereinafter, OASys) calculates actuarial risk scores for all lifers. Figure 1 summarises them, subdivided by assessment methodology (1a) and sentence stage (1b). Between half and two-thirds of participants posed a ‘low’ risk of reconviction. None posed a ‘high’ risk of reconviction for violence, and those assessed as ‘low’ or ‘medium’ risk outnumbered the remainder (which included missing data) by at least two to one.³ It is not evident from Figure 1b that risk was lower among those later in the sentence: higher risk scores were evenly distributed across sentence stages, except in post-tariff, where missing data made it hard to discern a pattern.

Lifers in the sample had also been the subjects of Risk of Serious Harm (RoSH) assessments. Generated using a structured professional judgement (SPJ) methodology, the RoSH is more open to the assessor’s bias, but is also more responsive than the purely actuarial scores to dynamic risk factors. Its risk levels are more like categorical than continuous variables, in that they represent qualitative categories, though all RoSH assessments start from an actuarially-derived reference score.

Figure 1c summarises the sample’s RoSH classifications. Two main points should be noted. As the rightmost five bars show, over 80% had been assessed as posing a ‘low’ risk of seriously harming anyone in custody; only one individual had a ‘high’ or ‘very high’ assessment for any custodial group. These ‘low’ custodial RoSH scores are noteworthy given Swaleside’s reputation for violence, which lifers in the sample were not typically expected to participate in.

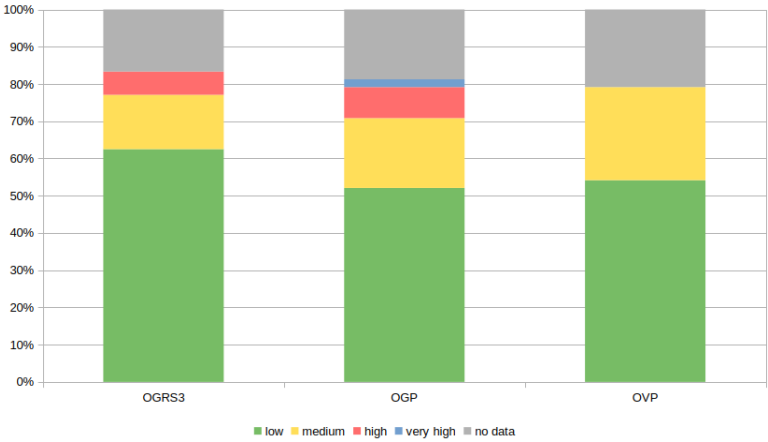
By contrast, the leftmost four bars of Figure 1c describe com-

³‘No data’ refers both to men who did not consent to my reviewing their files, and to cases where individual data points were missing. Level descriptors (i.e. low, medium, high, very high) come from prison documents; further information on these and other aspects of risk assessment and documents used in this chapter can be found in Appendix .

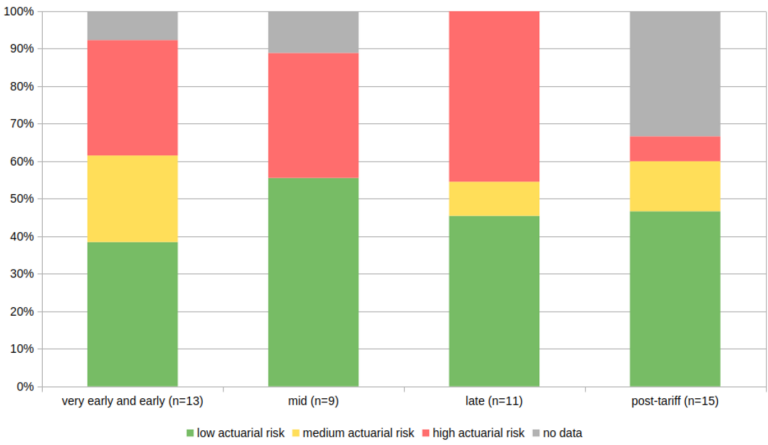
⁴In Figure 1a, 12- and 24-month reconviction scores for the respective assessments are aggregated. In Figure 1b, for simplicity, the three actuarial scores (OGRS3, OGP and OVP) are summarised as follows: participants shown as ‘high’ risk had zero or one ‘low’ risk classifications; those shown as ‘medium’ risk had two ‘low’ scores; and those shown as ‘low’ risk had three ‘low’ scores. Further details on the underlying methodology for the assessments shown in Figure 1c, and on how to interpret risk bandings, can be found in Appendix .

Figure 1: Risk assessments for the sample⁴

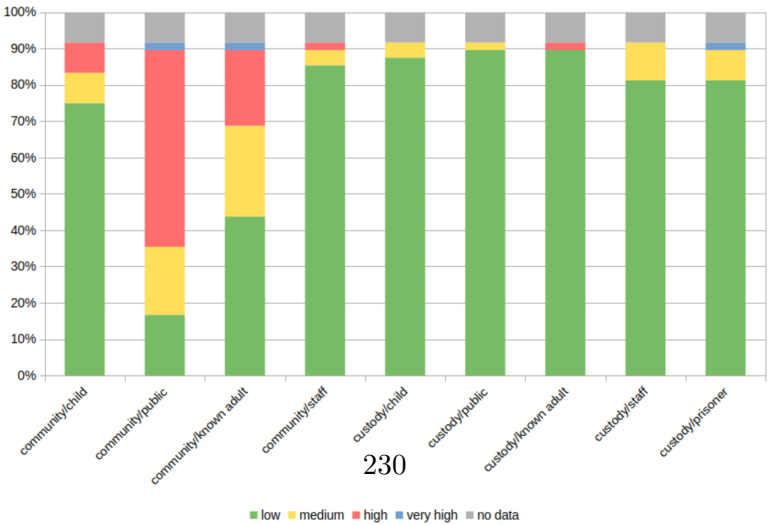
(a) Actuarial risk by assessment method



(b) Actuarial risk by sentence stage



(c) Custodial and Community RoSH classifications by type



munity risk. Around half the sample were assessed at the ‘medium’, ‘high’ or ‘very high’ levels for RoSH to ‘known adults’, and more than 70% fell into these bands for RoSH to ‘the public’. Far fewer were expected to pose a risk of serious harm to children or staff, but those risks again exceeded those foreseen in custody.

Summary

What can be drawn together is only a crude sketch, which a random sample and a more methodical analysis would improve. At least, though, it is notable that staff expected *over half* of the sample to pose a ‘high’ risk of serious harm after release; but *over half* were forecast *by actuarial methods* to be at a ‘low’ risk of reconviction for violence. To draw out the implications: ‘high-risk’ status was assigned more because harm might be ‘serious’, than because there was a high statistical probability of it occurring.

The next section begins to explore risk communication at both prisons, by describing how they communicated with prisoners, and what they were like as morally communicative environments.

Swaleside and Leyhill as morally communicative environments

Offender management in custody, as described in the relevant policy framework, aims to “co-ordinate and sequence an individual’s journey through custody and post-release”. Its “primary purpose” is to “motivate [prisoners] and provide them with opportunities to change their lives and promote rehabilitation”. Staff are to work collaboratively with prisoners on a sentence plan “which is monitored, implemented, reviewed at points of significant change in circumstance from reception to the end of licence and post-sentence supervision” . Prisons should foster a ‘rehabilitative culture’: harmonious, collaborative, resource-efficient, minimally painful, and “reducing reoffending, protecting the public and preventing victims by changing lives” (all

quotes from [Ministry of Justice and HM Prison & Probation Service 2018 pp. 5–6](#)).

The impression formed by these quotes is that the sentence plan and the activities it prescribes are an explicit moral code describing ‘pro-social’ conduct. Though its demands may be neo-paternal and ‘tight’, it offers ‘institutional hope’ ([Seeds 2022b](#)), by implying that conduct aligned with its prescriptions will result, eventually, in moral and judicial rehabilitation. In fact, however, offender management communicated with participants in wildly inconsistent ways. This section describes how.

Swaleside—‘loose’, ‘lax’, or tight?

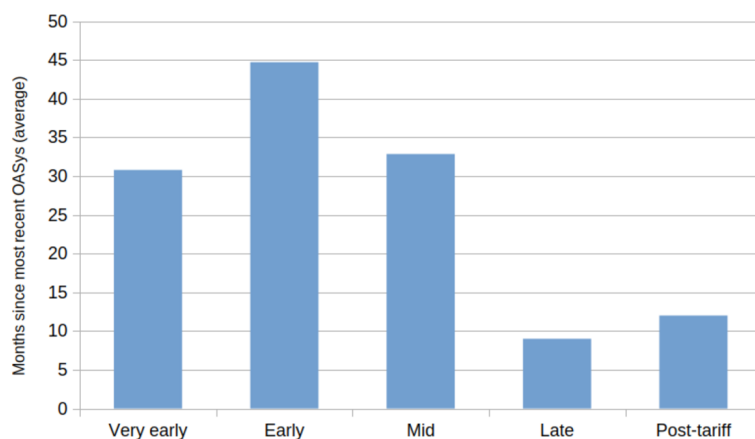
As Section suggested, Swaleside’s OMU was struggling to implement offender management policies in line with policy. Casework backlogs were common, and the OASys (a key building block of the sentence plan) was often out-of-date. Figure 2 plots the average time elapsed since Swaleside participants’ most recent OASys assessment, subdivided by sentence stage. Only those in the late and post-tariff stages were being reviewed at less than two-yearly intervals,⁵ reflecting the prioritisation of high-risk and urgent cases described by the Inspectorate (see Chapter).

The result for many was confusion over how life sentences worked. One man expressed the belief that he was serving a determinate sentence, and that his parole eligibility date was a determinate release date. Many others were uncertain whether they *had* a sentence plan, or were certain they did not. This was not ‘tightness’, in the form of an “all-encompassing and invasive” power operating “closely and anonymously” and leaving prisoners with “the sense of not knowing which way to move, for fear of getting things wrong” ([Crewe 2011a p. 522](#)). Instead, its demands were few, half-hearted, and tenuously connected with risk and the offence.

⁵This is probably because biennial reviews by the Parole Board commence three years before tariff expiry.

⁶Calculated from RC1 forms provided by the prison. Data missing in five cases.

Figure 2: Average months since most recent OASys for the Swaleside sample, by sentence stage (n=25)⁶



Swaleside's moral communication through documents

According to policy, *all* prisoners should have a sentence plan, listing recommendations intended to promote their progression (Ministry of Justice and HM Prison & Probation Service 2018). Yet of the 29 RC1 forms I reviewed at Swaleside, only four (all prepared for men in the late or post-tariff stages) listed specific 'sentence plan recommendations'.⁷ The lists were short, vague, and sometimes seemed condescending, containing instructions such as "make constructive use of time", "demonstrate appropriate behaviour", and "understand likely consequences of offending". They were targets calling for cooperation, not agency.

For the 25 RC1 forms which lacked 'specific' objectives such as these, the main explicit demands concerned 'risk reduction work'. They, again, demanded vague and passive compliance, not agency. They also focused mostly on offending behaviour courses. The following is a typical example, quoted verbatim and in full. It is broadly representative of forms a) lacking sentence plan recommendations, written for b) participants not in the late and post-tariff phases, who had c) not yet 'done their courses':

⁷For details of the RC1 form and its purpose, see Appendix .

- Risk reducing work completed
 - No completed RR work
- Outstanding RR work
 - Offending Behaviour - Appropriate accredited intervention programmes
 - * Resolve, if suitable
 - * TSP
 - * Kaizen if suitable
 - * Engagement with the Psychology team (ongoing)
 - * Engagement with the prison regime. Maintaining Enhanced status. Positive use of time. No adjudications or behaviour warnings.

Noteworthy here is the use of conditional (“if suitable”) and negative (“no adjudications or behaviour warnings”) objectives. ‘Success’ in attaining them entails no more than acquiescence to the basic routines of prison life, and engagement with programmes when the time comes.

Where the subject of the form *had* ‘done his courses’, the list was, if anything, even briefer. The following example is broadly representative of forms a) lacking sentence plan recommendations, which had been b) prepared for men not in the late and post-tariff phases, who c) *had* ‘done their courses’:

- Risk reducing work completed
 - [list of completed courses obfuscated for anonymity]
- Outstanding RR work
 - ETE⁸ (ongoing)
 - Resolve (unsuitable)
 - Pro-social modelling, gain enhanced status and use time constructively, remain adjudication free

None of the quoted objectives is SMART (i.e. specific, measurable, achievable, realistic, and time-bound), as the policy

⁸‘ETE’, Education, Training and Employment, an umbrella term for a range of regime activities.

requires; moreover, none of them list required actions supporting each objective in order of priority ([National Offender Management Service 2015 para. 2.7](#)).

These documents, for many participants and for years at a time, represented the only form of contact with the OMU about risk. They communicated little, and were detached from a meaningful assessment of day-to-day conduct. Many participants could not see any relevance between them and progression decisions. Grant, looking back to his time at Swaleside, put this crisply:

I just used to dutifully fill it in, put my little bit on there, post it back, and I'd get knocked back.⁹ The reason given is because my OASys isn't up to date [...] No fault of my own, it's just that they haven't done their job. I thought, "okay, fair enough, they're busy", you know? So the next one come through, I done it again... I've done about four or five... [...] I was filling these bloody forms in and sending them back. I got another one, the OASys still wasn't done, thought, "oh, fucking bollocks to that", threw it in the bin. That's when I got my C-cat! [laughs]

Grant (Leyhill, fifties, late)

The key point here relates to Swaleside's moral communication. It demanded 'risk reduction', but did little to give these demands substance, or to link them with outcomes prisoners themselves found worth pursuing. It communicated broadly and vaguely, inviting but not expecting a response. Active participation by prisoners in the review process—another explicit policy expectation—appeared rare, and Grant was unusual in reporting having made such a response. Of the 29 RC1 forms I read at Swaleside, only one included written representations. These (paraphrased to protect anonymity) are worth reproducing in full:

What can I say? Last year, this form said you haven't seen a change in me, but the person who wrote that has only met me in passing. I don't see OMU staff though I make requests. If I take drugs

⁹'Knockback', an adverse decision.

or get in a fight you'll take an interest and see a change, but I'm not ticking your boxes for the sake of it. I have changed: I help other prisoners with life skills, I'm self-controlled, calm, and I stay out of trouble.

Gary (Swaleside, fifties, early)

Of course, policies and RC1 forms represent aspirations, not manuals. Nevertheless, Gary's reference to 'box-ticking' was significant, reflecting an impression that the OMU was interested only in changes fitting a template, not in changes prisoners might consider important. Also significant was that participants who (like Gary) accepted their guilt were often (like Gary) *resentful* of the OMU's distance and lack of interest in them. They *accepted* the demand that they ought to change, but perceived indifference towards their efforts to do so.

The RC1 summarised one further form of explicit moral communication: positive and negative staff entries in P-NOMIS during the previous 12 months, reflecting conduct that staff wished to take the trouble to record formally, or which required censure. Almost without exception, positive comments related to compliance: courtesies to staff, facilitating the smooth functioning of the prison, or representing Swaleside positively to outsiders. The following items, selected from three separate RC1s, are representative:

- compliant and polite while uncuffed on escort
- worked additional hours
- always very helpful and polite to staff
- helped me greatly by meeting with the family of [name] who recently died
- always polite to staff and if asked to do something never says no or complains
- alerting staff to an offender who was found unresponsive in his cell
- active role in wing spring clean and engaged in plenty of banter

Only the first item in this list directly indicates anything about the prisoner's capacity to manage his risk, and then only in a very specific situation. Correspondingly, negative entries (which

were much more numerous) mostly related to obstructions of official control over prison life. Discourtesy to staff, incidents of non-compliance, specific rule breaches (such as failed drug tests), and adverse adjudications were all common themes, and usually recorded without context.

A vague sense of pro-sociality lies beneath the positive entries. Doubtless the praise and appreciation expressed were genuine, and many negative entries recorded similarly undesirable behaviour. But the point to note here relates, again, to communication and ‘tightness’. Neither Swaleside’s OMU nor its uniformed staff were communicating ‘tight’ demands in relation to risk, and the overall impression is one of low, undemanding expectations. It was *extremely* unusual for case notes to record achievements participants themselves rated as personally important, even when these reflected major changes of lifestyle or when (as in Gary’s case above) they tried to positively influence others:

Prisoners seem to give you more kudos than the staff and the establishment [...] Like, they’re quick to slap you down for the least little thing [...] [but] I checked, and [my Open University degree] wasn’t even on my NOMIS [...] They take no account [of] it.

Leon (Swaleside, forties, mid)

Summing up, it is helpful to think of these encounters—between individual lifers and their documents—as ethical interactions. Particularly in interpersonal contexts, but also between persons and institutions, anthropologists have shown interaction to be:

...in itself a moral and ethical domain. When persons interact they necessarily and unavoidably assess whether they are being heard, ignored, disattended, and so on. Is this person really listening to me? Paying attention to me? And, in so doing, acknowledging me as a worthwhile person who merits such attention?

Sidnell (2010 pp. 124–5)

Swaleside's implementation of the offender management framework was distant, unresponsive, and inattentive. It made vague demands, and rewarded compliance unpredictably. Many participants understood risk to be the prison's (not their) concern. They often accepted the idea that their offence meant they ought to change; but in the face of disregard they looked elsewhere for ethical validation.

This was, then, the overall style of communication at Swaleside. The following sections consider how three different prisoner groups perceived it, differentiating them by how they understood Swaleside's distinctive way of communicating with them.

Perceiving 'looseness' or 'neglect'

How prisoners at Swaleside *perceived* the prison's communication depended largely on their sentence stage and prior custodial experiences, especially whether *Swaleside alone* had shaped their 'penal consciousness' (Sexton 2015), or whether they could compare it with other prisons. Two subgroups perceived the prison's treatment of them to be 'loose' (in the conceptual terminology unpacked in Section).

For one subgroup, held in the early stages of the sentence and usually having come directly to Swaleside from a remand prison, the prison's communication felt 'loose', in the sense set out in Section . They felt the prison proffered little assistance, but also that it was making few demands:

I don't know what my sentence plan is [...] I just get my recat paper [i.e. the RC1] every year and they tell me you ain't done no courses. I ain't got a clue what I've got to do [...] [T]hey just leave you to it.

Yakubu (Swaleside, twenties, early)

Some described this treatment as "neglectful" (Ebo)—a suggestive term, pointing to a more powerful party's failure to fulfil obligations:

[I hate how] they are so blasé about it [...] My probation came to me and said, "I've only got your

pre-sentence report.” I’ve been in jail TEN YEARS. How is the only thing you’ve got on me my pre-sentence report? I’ve done so much [...] to better myself, to get myself in a good position. They turn around and say to me, “Oh, well, I don’t really know what you’ve been up to.”

Ebo (Swaleside, twenties, mid)

Ebo’s complaint was not *that* the OMU made moral demands, but *how*: vaguely and without interest in his response. Swaleside’s laxity felt to him like a failure of reciprocity (a psychological foundation of the capacity for ethical behaviour—see [Keane 2016 pp. 39–58](#)). Ebo (and others) felt that working to improve oneself ought to attract recognition. These criticisms tended to focus not on staff but on ‘the system’, or the state. Its failures fell short of outright abandonment,¹⁰ but by withholding moral recognition and a map to restoration, it communicated indifference and disregard, weakening its claim to the moral standing to deliver censure. The subgroup to which Ebo and Yakubu belonged—mostly, men from London, convicted young, now in early or mid-sentence in their twenties and thirties, and resident at Swaleside for at least a few years—felt ignored. For those later in the sentence, the resulting frustration metastasised into a kind of sullen cynicism, and refusal to engage:

This jail here, this jail is a dumping ground. They don’t care about you, you’re just here, you’re paying their wages. Do you think they really care? [...]

So any priorities [OMU staff] might say they’ve got for you...

[Angrily] They haven’t GOT any priorities. This jail—any jail—they blow smoke up your arse.¹¹

Nixon (Swaleside, forties, post-tariff)

¹⁰In Crewe and Ievins (2021), the original referent for the ‘loose’ descriptor is prisons in Latin America, where states largely allow prison gangs to govern inmate life. Swaleside was not a ‘zone of abandonment’ in this sense, but was perceived as neglectful because its rehabilitative demands were more earnestly and loudly expressed.

¹¹i.e. they manipulate you using fancy talk/flattery.

It seemed to them that the prison expected little more than a performance:

You know what I noticed? When you get sentenced, they want you to spaz out—20,000 nickings, fighting, kicking off, phones, drugs. They WANT to see that. Then the last 5, 6, 7 years of your sentence, now you change, get Enhanced for a few years. You go get your mandatory piss test; you pass it. You know what I'm saying? They're thinking, "Oh yes, we've seen a change now".

Courtney (Swaleside, forties, late)

A second analytical subgroup who perceived 'looseness' in Swaleside's communication with them comprised men convicted when older. Their assessed risk was typically lower, and they had either been found unsuitable for offending behaviour programmes, or had completed them willingly only to find the prison's grip on them relaxing. As with those who bemoaned the prison's 'neglect', there was an underlying desire: to be recognised as ethical individuals, not as the representatives of impersonal, risk-bearing groups. But they, too, found that the OMU communicated few explicit demands and made few attempts to discipline their subjectivity. Its prime demands were obedience and compliance:

Does it feel like they make demands on you?

It's just the courses I get told to do. [...] And then they come back: "he's not eligible for it." And then it's, "Terry keeps himself to himself, he's polite". And all that.

So what really matters to them?

Don't go out there messing around the system and playing up.

Terry (Swaleside, fifties, mid)

I have nothing more to do, I've completed my sentence plan. [...] My latest sentence plan basically

just says stay Enhanced, keep working, and follow what they call the pro-social model. That's it.

What do you think they mean by that?

Just be a good boy [...] The OMU system is not set up to recognise anything more.

Rafiq (Swaleside, thirties, early)

Not everyone at Swaleside perceived the prison to be 'loose'; two subgroups perceived matters differently.

Perceiving 'laxity'

The first was the handful of men for whom Swaleside represented a progressive move. During many years in maximum-security prisons, they had encountered clearer, higher expectations, and (more importantly) intrusive, even oppressive staff supervision. Such conditions were paradigmatically 'tight'; progressing from them required an intense, unyielding commitment to play the game in one's own interests:

A decision comes: either you lock off the past, you decide you're gonna move forward, and you do your courses and work for your own future, or you don't. You can stay in prison and be a wanker, or you can lock off and get out.

Mark (Swaleside, thirties, post-tariff), from interview notes

As we saw, lifers who had *only* spent time at Swaleside tended to believe that risk management was a kind of charade, unrelated to their actual sentence progression. This was far from true for those with past experience of cat-A conditions:

Obviously my last sentence plan at [category-A prison], they set me goals. I've achieved most if not all of those [...] So *they need to set me some new ones* [...] It's like, "stay out of trouble, continue education", yeah? *That's kind of vague.* [...] *I do believe I need a bit more structure.*

Leon (Swaleside, forties, mid)

Former cat-A prisoners at Swaleside were typically also well-informed about national policy, and some used complaints to force their own case management into line with policy. They also took care to curate, manage and correct information in their files, a striking habit evident only among this group:

My last OASys was in [category-A prison] because they only do it every three years here, which is bollocks. Now, eventually I'm going to move on somewhere else. Who's going to put all that into my OASys, all the good stuff I've done on this wing? It's going to get lost. Obviously, there'll be bits and pieces on NOMIS, but there won't be no reports done. I'll get to another jail and they'll talk about, "what did you do off the plan?" *No one in that jail's going to know what I did unless I tell them.*

Tony (Swaleside, thirties, mid), from notes

It was not simply experience of category-A status which mattered here, but more generally, experience of the 'crunch points' associated with recategorisation and progression. Life sentences are now so long that periods of 'dead time' may be unavoidable, but 'crunch points' are periods of intensified scrutiny. Those at Swaleside who understood this had either downgraded from category-A, or been knocked back for progressive onwards moves, because past incidents on file had complicated their progression in unforeseen ways. A 'crunch point' increased their awareness of the pervasiveness and reach of risk assessment—the 'power of the pen' (Crewe 2011b). Those who had spent most of the sentence at Swaleside appeared more unaware of this. Crunch points—when risk was sharply in focus—were exacting and demanding, unsettling the feeling of 'neglect' which prevailed at other times, and rendering the prison's indifference hitherto both less benign and more damaging, in hindsight. Former category-A prisoners understood that not just compliance, but a formal record consistent with a narrative of reform, were preconditions of progression. To them, Swaleside felt not 'loose' but 'lax' (Crewe and Ievins 2021). It made demands, but those with experience

of ‘tighter’ conditions understood only too well how vaguely and unhelpfully they were communicated.

Perceiving ‘tightness’

A second subgroup who experienced something other than ‘looseness’ at Swaleside were receiving treatment in the PIPE unit. Often having been recategorised as category-C prisoners, but still held at Swaleside, they usually had sustained experience of other prisons and earlier ‘crunch points’, and many were in the PIPE specifically to ‘catch up’ with risk-focused sentence plan objectives. They, like the former cat-A men, were accustomed to being gripped ‘tightly’. However, the additional clinical resources in the PIPE meant their *current* experience was of a close—and supportive—style of communication:

My clinician said, “all those were just feelings you brushed off because you did not understand them”. She made me look at them all. But not just, “there they are, now move past it.” It was, “Look at them.” And you look at them through a pair of glasses, then through binoculars and a magnifying glass [...] Bloody hell... She was so good. So, so good.

Tom (Swaleside, fifties, post-tariff)

Even in the PIPE, though, there was a sense of diminishing returns. *Too much* intervention could tip over into outright resentment:

I eventually got to this fucking place and then they come to see me. And then I said, “well, how long am I going to be there?” “Twelve months.” Yay, twelve months, alright!

When was that?

Three years ago! Well, a bit more [...] They said I don’t have any remorse. But I don’t give a fuck any more [...] I mean, I’ve... I used to feel bad about what happened [...] They tried to... drive me into depression, almost... [...] And then they go, “well,

you haven't got any remorse". I used to have, but you bashed it out of me. I used to care. I don't give a fuck any more.

Chris (Swaleside, sixties, post-tariff)

Leyhill—'tight', demanding, and entangling

Where Swaleside communicated a morally minimal indifference (comply, keep out of trouble, but otherwise do as you like), Leyhill *intensified* supervision and conveyed distrust.

This place is scared of its own shadow.

Fred (Leyhill, fifties, post-tariff)

Leyhill's treatment of risk entailed a very different style of communication. Participants arrived expecting something close to 'moral rehabilitation' (McNeill 2012): restoration to a more trusted, less dishonoured form of subjectivity. Yet in being labelled as 'risky' and subjected to supervision, they perceived renewed condescension and stigma. Lacking Swaleside's situational security controls and suite of interventions, Leyhill's resettlement function involved a structured, cautious restoration of trust, backed with careful monitoring. The prison 'responsibilised' participants, and its individualised behavioural expectations far exceeded Swaleside's in specificity and scope.

However, there was a profound ambivalence about risk there. Any one of a number of several explanations could explain the widespread compliance of prisoners there. Which explanation was 'true' was difficult to interpret. Compliance might signal genuine reform; or that a prisoner was 'gaming' the system; or that he was concealing risky behaviour; or that offence-relevant situations which might bring risk into focus were absent.¹² Mistrust was therefore institutionalised at Leyhill, because it was so hard to know whom to trust.

¹²For example, there was no easy way to observe whether heterosexual lifers who had killed their partners were exhibiting risky behaviour, since few such relationships were now open to them.

As a result, the move to Leyhill did not long retain the impression of being a ‘progressive’ one towards freedom. Several recent arrivals expressed surprise at how they felt there:

...he expected it to be “less like a prison” [...] the OMU “would still make your life pretty difficult if they don’t take a shine to you”

Jeremiah (Leyhill, thirties, post-tariff), from notes

Many participants believed the prevalence of sexual offence convictions at Leyhill was the key issue driving this caution. Among the evidence they offered was the lack of good-quality ROTL work opportunities:

There’s no [outside] work here, It’s all bollocks [...] It’s not like other D-cats. I can understand why, because of the clientele, but no, it’s not helped with me.

Ron (Leyhill, fifties, post-tariff)

Leyhill therefore felt not only ‘tight’, but also staining (Ievins 2023). Stricter risk controls prolonged and reinforced a message of lowered status. For participants who *did* have sexual convictions, life there resembled a kind of non-life or undeath (Ievins 2024), offering existence but not space in which to pursue what really mattered:

It’s Groundhog Day [...] guys [here] that know each other, every time we pass each other, we go, “Unnnngghhhhh!” [miming a lifeless demeanour] Zombieland—it’s Zombieland! Because there’s nothing to look forward to here, nothing. [...] I’ve got friends that [...] actually fucking dread [day releases] and the rigmarole they’ve got to go through, and the mistrust they endure when they come back [...] They go, “it’s more hassle than it’s worth.”

Fred (Leyhill, fifties, post-tariff)

The mention of ‘mistrust’ here points to a significant gap: between the *expectations* and the *realities* of resettlement and preparation for release. In policy, the purpose of ROTL is clear: to test compliance with licence conditions, and thereby to gauge risk. Prisoners, however, were impatient to make up for lost time, and to put gains during the sentence to effective use:

I’ve gained an education. Like, better qualifications. I didn’t have anything when I came inside [...] You know, I want to do good. I want to, you know, complete things. Don’t want to start something and not finish it [...] Like, work and stuff... [...] Yeah. So, like, [release] just opens up, like, so much possibilities.

Jeremiah (Leyhill, thirties, post-tariff)

Leyhill’s moral communication through documents

The risk documents reviewed at Leyhill—principally, Enhanced Behaviour Monitoring (EBM) assessments¹³ and ROTL risk assessments—corroborated the impression that conditions ‘tightened’ upon arrival there. It is impossible, for reasons of space and anonymity, to quote these records at length. But an indication of how differently risk was constructed at Leyhill than at Swaleside can be seen in Table 2. It presents a composite of two participants’ records, paraphrased and intermingled (to obfuscate identity) as though they described one person. Both participants’ actuarial risk scores were “low”, and their RoSH assessments were “low”, except for “high” risks of harm to the public:

¹³The EBM assessment is briefly outlined in Chapter 3, and further details are given in the Appendix .

Table 2: Typical risk elevation and risk reduction indicators in documents reviewed at Leyhill

Behavioural indicators of risk elevation	1. Evidence of rumination or resentment, e.g.: • Can't let go of things said to him • Perception of unfair treatment compared to others • Belief of being ignored or rejected 2. Poor management of emotions, e.g.: • Self-isolation • Skipping work • Does not seek advice from appropriate staff • Attention-seeking 3. Lack of open engagement with staff, e.g.: • Self-isolation • Not talking about problems • Not engaging • Perceives rejection or exclusion 4. Indicates a negative self-image • Believes others are favoured over him • Sees himself as unloved or unwanted • Expectations too high • Sets impossible deadlines, punishes himself for not meeting them
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Behavi-
oural
indicators
of risk
reduction

1. Manages unhelpful thinking:
 - Such as:
 - Challenges own distortions
 - Stops his train of thought
 - Seeks distraction
 - Can express emotions if unhappy
 - Can manage vengeful impulses
 2. Manages distress by:
 - Uses the coping skills learned previously
 - Discusses emotions with others
 - Solves problems using consequential thinking and assertive communication
 3. Positive relationships with staff:
 - Discusses emotions and thoughts
 - Explores problems and notes his progress
 4. Friendships and positive relationships
 - Without attention-seeking
 - Or engaging in friendship for positive feedback
 5. Develops a positive self-image
 - Seeks help when needed
 - Recognises his strengths
 - Can see his own progress
 6. Develops realistic plans for the future
 - Foresees problems and finds ways to overcome them
-

The examples in Table 2 focus mostly on emotional self-management. With other records, the underlying structure was the same, but the behaviours they classified as encouraging or concerning differed. Substance misuse, perceived misogyny, or

personality traits such as ‘argumentativeness’, along with many others, were all associated with variable risk. Also noteworthy is the importance given to positive relationships with staff, who are presumed to be able and willing to offer time for support and guidance. Staff are presumably also given some discretion about what constitutes “helpful” or “unhelpful” thinking, or “appropriate” problem-solving. Participants are placed in a relationship of quasi-dependency on them, who are to be relied on for advice, guidance, and (presumably) identification of further needs.

Just as for former category-A prisoners at Swaleside, then, the transition to open conditions represented an ethical ‘crunch point’. The removal of situational controls brought new risks into focus, specifically those associated with the resettlement process. Risk assessors approached their task with a renewed caution, and the transition entailed an unexpected element of prescriptiveness in the risk controls applied to participants, some of whom expected them to be relaxed. The freedoms of the open environment, anticipated by some as the forerunner of restored trust and greater moral recognition, therefore in fact signalled conditionality, surveillance, and constraint. Leyhill felt to them much closer to ‘tightness’ as originally described by Crewe (2011a), than to the ‘looseness’ or ‘laxity’ identified here with Swaleside.

Differing attitudes to ‘tight’ constraints

Although cross-sectional data can only offer pointers, it is not implausible to think of crunch points—i.e. periods of ‘tight’ high expectations—acting as a kind of sorting mechanism. Some participants at Leyhill had spent prolonged periods in ‘looser’ and ‘laxer’ prisons. Left comparatively free to dream about the future and develop their own plans and expectations, many had developed ground projects and ethical practices featuring redemptive, optimistic narratives familiar from desistance research. Dalton’s aim was to make a living from music. But as he put it:

They’re saying, “Yes, but what is the achievable goal?” I’m saying, “Well, that is achievable. How

do you think there are artists? Because they set out to achieve it, and they've achieved it. It's not achievable if I don't try to achieve it." They're like, "Yes, but [...] it's not going to look realistic [...] What else could you put?" I'm saying, "How do you know I can't do that? Don't tell me what I can and can't do."

Dalton (Leyhill, thirties, mid)

For some, then, 'tight' risk management smothered ambition and imposed alienating lifestyles of minimal risk and minimal reward. Some found this difficult to accept, pushing back and laying claim to bigger ambitions:

I have got an [offer of work with a professional firm] on an unpaid basis. [...] I would sooner do that than work in a placement where I am making low-end money, but no personal progression going on. Whereas, if I went and worked with [them] my CV starts to build and I start networking [...] I am not automatically barred [...] I have looked into it [...] I have had the paperwork sent through [...] But it is [outside the travel radius] [so the prison said no].

Dario (Leyhill, forties, late)

Those harbouring ambitions of this kind had generally been relatively young at conviction, and expected to be released during their thirties and forties. Older men, or those so far over-tariff that they had learned not to hope, found 'tight' risk management more of an irritant than a kind of thwarting. Most said they wanted little more than a simple life after prison:

They want to put me in a hostel on home leaves to watch me, but they're not going to see anything. Just an old man going to church and reading the newspaper.

Emlyn (Leyhill, seventies, post-tariff), from notes

I mean, obviously, I'm going to have to go where I'm told to go, basically. Earn some money—I don't

mind how. Get a German Shepherd dog. Take it for walks. That's all, really.

Grant (Leyhill, sixties, late)

The contrast here was between younger men who wanted to transcend their sentence, and saw risk conditions as an obstacle, and those who wanted simply to enjoy life within constraints. Similarly, those who had internalised the view of themselves as damaged and dangerous described patiently continuing in their ground projects of disciplinary self-monitoring:

At the time of my oral hearing we were requesting release or open conditions. I am glad I didn't get my release now. Even more so now I am here, and I am gaining that experience to what it is like outside and how that affects me as a person.

Nicholas (Leyhill, thirties, late)

The difference here—between those at Leyhill who were frustrated by 'tight' controls and those who were not—tended to relate to the moral status of the offence for each individual, or to their position in the life course. Either variable could make the risk controls appear reasonable or absurd.

The remainder of the chapter sets out a typology of individual ethical responses to risk management. First, however, I briefly summarise this section on how the two prisons communicated morally with participants.

Summary—moral communication across the two sites

Moral communication at Swaleside used a language of risk, but substantive demands were few: be available for prescribed interventions, reproduce prison order, and engage constructively with staff. Prisoners who complied, made few demands, and challenged officers infrequently were left alone; those who did not were written up. Few could see how this might generate negative consequences later, when 'crunch points' arose in relation to their progression, but some—chiefly former category-A prisoners—did, and sought to work on their records as a consequence.

Leyhill, by contrast, used a ‘tighter’ application of power than Swaleside. Some there felt entangled, perceiving a thwarting of plans their record of compliance had earned them the right to pursue. Others largely accepted, and sometimes even found benefit in, the ‘tight’ measures of risk management they were subject to.

Understood via a synthesis of evidence considered in this section, moral communication at the two prisons can be described in relation to the overriding concerns of the respective OMUs: to reduce and contain threats to prison safety (Swaleside) and to gauge and manage threats to public safety (Leyhill). These are neatly characterised as ‘correctional risk’ and ‘community risk’ by Kazemian and Travis (2015 p. 363), who note that LTPs “do not necessarily pose a significant threat to either”, and suggest that politicians and the public are more typically concerned by the latter.

The contrast is critical here, too. Most participants at both sites, like most lifers in general, were ‘easy keepers’ (Herbert 2019) compared to shorter-term and more volatile populations. Containment, not transformation, was a feasible and logical response to their risk, with sentence lengths putting disciplinary ‘crunch points’ many years in the future. This was most evident at Swaleside, which intervened parsimoniously, making few, and mostly formulaic, demands. Some prisoners perceived ‘looseness’ in this (i.e. few demands, little support), others ‘laxity’ (i.e. high demands, low support). At Leyhill (and among some late-sentence and post-tariff prisoners at Swaleside), the potential drawbacks of this distant, vague communication became apparent. Since the *real* determinants of sentence progression seemed beyond their control, many of the sample followed moral codes *not* linked to risk, but to their own understanding of the offence and their personhood. But shifts in official thinking, from managing ‘correctional’ risk to assessing ‘community’ risk, brought with them different and far ‘tighter’ forms of governance. Many participants found this perplexing, following many years in which they had been allowed to think that remaining ‘easy to keep’ was enough to progress.

These insights, crucially, arise from being able to consider the issue through two kinds of evidence. Mona Lynch (2015 p.

277), describing research on a 1990s US parole office, noted that documents sought “to keep track of and manage” parolees, not “transform them”. In this study, as in Lynch’s work, the key analytical contrasts are between documentary and interview data, but the contrast between sites also points to moral communication which varied in style, intensity, and individualisation depending on prison type and function.

Why did ‘loose’ or ‘lax’ conditions feel comfortable to some, while others found them neglectful, absurd or complacent? Why did ‘tight’ conditions fit some participants comfortably, even as they chafed or entangled others? These questions—relating to the perception of risk governance, and the ethical stances taken up by individuals in relation to its demands—are taken up in the next section.

Four ethical responses to risk governance

This section typologises four ethical stances towards risk management, characterising each in terms of whether participants felt ‘helped’, ‘held’, or ‘hurt’ by it. The focus is on how participants appropriated the demands of penal power. I sketch four styles of engagement with the sentence plan, differentiated by how they articulated feelings about the offence, the intervention, and the future, as follows:

- Prisoners who **‘resisted the tide’**, for whom:
 - the sentence persecuted them, as innocent men
 - risk interventions offered nothing but ‘hurt’
 - ethical self-care managed the resulting pain and frustration
- Prisoners who **‘trod water’**, for whom:
 - the length of the sentence was its most salient aspect, with progression temporally distant
 - risk interventions, expected to be ‘hurtful’, were best delayed
 - ethical self-care consisted in putting off its demands and making the most of ‘dead time’

- Prisoners who **‘drifted’**, for whom:
 - the sentence communicated censure they chose not to accept, and dangled incentives which did not interest them
 - risk interventions neither ‘helped’ nor ‘hurt’, and could be safely ignored
 - ethical self-care consisted in marking out and pursuing private, and often metaphysical, accounts of ‘the good’
- Prisoners who **‘swam onwards’**, for whom:
 - the sentence felt legitimate, and hope felt credible
 - risk interventions could be ‘helpful’ or ‘hurtful’, but were at least yielding progression
 - ethical self-care consisted in harnessing their purposes to those of the sentence

‘Resisting the tide’

With few exceptions, those who ‘resisted the tide’ also maintained innocence. Resistance to blame entailed resistance to classification as a dangerous person who ought to change:

So they said that Nasim’s past and current convictions are evidence of a lack of respect for society and the law [...] And this is all nonsense because there’s no evidence in this conviction [for me having] a lack of respect for society and law.

Nasim (Swaleside, forties, post-tariff)

Descriptions of risk management among those who ‘resisted the tide’ conveyed little, beyond a sense of being ‘done to’ by hostile, uncaring structures:

They decided that I should do TSP, because I don’t have any previous [...] They also suggested that I should do Victim Awareness and Healthy Relationships. There’s no arguing with them [...] I’ve told them that they are basing this on OASys that’s full of mistakes [...] but they said, “Well, we don’t have

anything else to go on so we'll use that and we don't care."

Janusz (Swaleside, thirties, mid)

Claims of innocence rendered the prison's methods intrusive and coercive. Janusz's resentment was particularly strong ("if I don't, I won't be released"), and he was aggrieved by the prison's indifference to dialogue ("there's no arguing with them"). Constraints imposed to manage risk were 'hurtful'; the idea that they might be 'helpful' was alien to the sense these he and others had, that they were *already* ethical beings:

This is where I'm trying to say to them, "Look, what do you want me to change?" [...] You can't change a violent or bad person by leaving them in this environment.

Courtney (Swaleside, forties, late)

Attitudes to the offence, then, were centrally implicated in how participants responded to demands for change. Attitudes to the future could also affect engagement with the sentence plan. This was stark with older participants, who were nonplussed by the prison's interventions to manage risk, since they usually expected to be very old by the time of their release:

I can't understand why [if] you don't do the course you can't be released. You are still the same person either way. If I knew I had to do twenty years...¹⁴ Pfffff... I don't think I would bother to do it, you know. What would be the point? [...] Easier to have done myself in.

Olivier (Swaleside, sixties, very early)

A governor here on a risk board said it was going to be on my licence that I could never get married again. Fine! I'm not at that stage of my life, am I?

Emlyn (Leyhill, seventies, post-tariff), from notes

¹⁴Olivier was referring here to his faith that an appeal would eventually succeed.

When incentives linked to progression and release had a genuine appeal, attitudes to intervention could shift, and ‘resisting the tide’ could give way to a kind of strategic bargaining. Ian (whose decision to take responsibility for his risk, but not for murder, was described in Section) and Saeed both wanted to rebuild relationships with family members. They found ways to accommodate the prison’s demands via a balancing act: compromising on the notion that they ought to change, but not on the claim of innocence. This meant ‘wearing’ aspects of the selfhood defined by prison records, and working on this in OBPs:

I think I’m the only one on the [offending behaviour] course who talked about a different crime, my ABH.

Saeed (Swaleside, forties, early)

The subject position of the ‘innocent but reformed’ lifer was striking. There was no sense of ‘redemption’ regarding the offence, nor an *internalisation* of risk. However, strong moral codes emphasising gratitude, humility, reciprocity, and interdependence were often evident, and fostered a virtue well-suited to the wider situation: that of making the best of a bad lot.

I still... I eating every day. Alhamdulillah, shukr alhamdulillah, praise to God!¹⁵ If you go to my cell, I have everything. Milk, cereal, fruit... All fruit. You see my bed. Nice bed. TV. Phone. Alhamdulillah, there’s some people that have worse than this life outside!

Saeed (Swaleside, forties, early)

Such expressions of gratitude and powerlessness sought to *transcend* ‘hurt’ and ‘help’, bypassing the prison’s moral code and referencing another. However, they were unusual in the sample, and overall those who ‘resisted the tide’ were typically angry and resentful.

Men who maintained innocence asserted their ethical status *regardless of the conviction*: they wanted to *preserve* pre-prison

¹⁵Shukr: “gratitude, thankfulness”; “alhamdulillah”: “all praise is due to Allah”

selfhood and clear their good names. Ground projects associated with legal appeals were common among those early in the sentence. Among those later in the sentence, when (for many) the quest for vindication was becalmed by procedural or financial constraint, ground projects relating to self-preservation developed, often with an emphasis on preserving health. In all cases, however, the moral demands of risk management and reform were held as far away as possible:

I ain't going to lie, yeah... I haven't really tried to understand nothing in prison. Like, I've got assessed for courses [...] CALM, ETS, all of them courses [...] They say IEP this, and get that form, and this form, and [...] I don't want it. I'm not trying to... I'm not trying to take anything in. I'm not trying to act like I understand, I'm not trying to learn about prison [...] I'm not trying to soak none of this in.

[...] *You're keeping it at arm's length.*

Keeping it at arm's length, mate! [laughing] Fuck arm's... if I can get a broom I'll get a broom [...] Bargepole, whatever I can... Just keep it at a distance, man.

Reuben (Swaleside, thirties, mid)

As Saeed and Ian suggested, though, such adamant denials of culpability could yield to something subtler and more qualified, where desired outcomes might accrue from the effort.

To summarise: 'resisting the tide' meant rejecting demands to reform oneself and manage risk, on the basis that they were unwarranted. The challenge in sustaining this stance was that prison life was entirely structured around legal guilt. Appeals—the only conclusive means by which to avoid 'wearing' the offence—were inaccessible, exhaustible, and beyond control. Thus, staunchly 'resisting the tide' early on could sometimes yield to bargains and accommodations with risk management later on; this subtly modifies the description by Crewe *et al.* (2017a) of 'swimming with the tide' as a form of *offence-related* moral accountability.

‘Treading water’

For a second group, the key ethical considerations were tariff length, material conditions and ‘outside problems’ (see Chapter) such as family relationships. These considerations militated against compliance with the demand to confront the offence and reduce risk, for the time being. ‘Resisting the tide’ involved *pushing back* against censure; ‘treading water’ involved no such resistance, but instead delayed self-scrutiny, in favour of ground projects not related to the sentence plan.

Those who followed this path were mostly at Swaleside and in the early and middle reaches of the sentence. Exceptions were found among those who, at either site, were over-tariff with no clear sentence plan objectives, and who were simply waiting for the next parole review:

I’m just waiting, ain’t I? It’s a waiting game [...] I thought I’d come in and get a job, go out and work, great, get some money, save up. No. It’s a waiting game.

Ron (Leyhill, fifties, post-tariff)

‘Treading water’ was also common with those serving longer-than-average tariffs, or who had been assessed as low-risk. Both conditions increased the anticipated quantity of ‘dead’ or ‘nothing time’. Matt was very early in a multi-decade sentence:

Do you have a sentence plan?

No.

You don’t, or you don’t know?

No, no, no, no, no. There’s no sentence plan. No need.¹⁶ Got waaaaay too long [...] I’m going to be a pensioner when I get out. You know, there’s no cause to.

Matt (Swaleside, fifties, very early)

¹⁶Matt’s stance—that there was ‘no need’ for a sentence plan—contrasts strikingly with the impatience younger men expressed with their lack of progression. This underlines the importance of the future in narrations of the sentence.

Low-risk status also implied ‘nothing time’, because those who had it were often found unsuitable for interventions, for cost-benefit reasons: OBPs might not alter their risk enough. Low-risk status felt ‘loose’, with ‘crunch points’ feeling a long way off:

Do you have a sentence plan?

I don’t know. [...]

When did you definitely last have one?

In 2015.

What was on it?

“Complete TSP. Remain IEP- and adjudication-free. Maintain employment.” That was about it [...] My risk levels are low across the board. [...]

So what does the prison want from you?

I don’t know. This place is strange [...] They’re quite happy to just leave you and let you do your own thing.

Adam (Swaleside, twenties, mid)

Adam and many others had drawn the conclusion that little or nothing was expected; that risk assessments carried few consequences and appeared to involve the prison ‘talking to itself’:

All they’re getting [i.e. risk assessors] is what these guys [i.e. staff] on the wing, like, put on a sheet. So I’m not sure what ‘risk’ is supposed to be [...] They’ve got to get to know you, surely?

Robert (Swaleside, fifties, early)

They concluded that Swaleside only wanted them to ‘keep their heads down’. Where decades of the sentence remained, doing so would be easier and more comfortable in some prisons than others. Many preferred not to be transferred to category-C prisons, believing the cat-C estate to be dangerous, uncontrolled,

potentially progression-risking, and a less amenable environment than the LTHSE.

Participants who ‘trod water’ were willing to work on their risk. They differed from those who ‘resisted the tide’ in that most accepted at least a qualified kind of guilt. They expected to ‘play the game’, but not *yet*; or had completed the work recommended for them and had time left over. Some worried explicitly about stagnation, and perceived it to be an unavoidable feature (not a bug) of the sentence, with the following anecdote offering particularly striking support for this idea:

When I was at [HMP X], [the Prisons Minister] visited. The staff arranged for him to come in and talk with prisoners and staff. [...] I said to him, “Excuse me. Could you answer a question for me please?” He went, “Yes, if I can.” I said, “I am a long-serving prisoner. I have completed all of my courses and I have a long time left to serve. I have managed to get to a C-Cat prison. However [...] programmes-wise [the sentence plan] is all completed. Is the government planning [...] to put anything in place for the rest of that period [...] to prevent us from stagnating?” And he said, “Well, you are just going to have to get on with your time, aren’t you? I am sure you have a couple of bodies lying around somewhere.” And he walked off.

Dario (Leyhill, forties, late)

Thus, ‘treading water’ was defined not by opposition to the sentence, but by passing time as profitably as possible. It prioritised finding (or retaining access to) ‘niches’ (Toch 1992/1977), to the extent that they were available, in which pleasure, self-improvement, or the acquisition of new skills was feasible. ‘Food boats’ (see Earle and Phillips 2012 pp. 146–7) were a recurrent theme, as was artistic production:

I’m getting the books, I’m starting to read them, and, you know, I can read music! I mean, not very well... I can tell you what the notes are, and where they appear on the guitar neck, you know? And it’s just... Just learning, really.

Matt (Swaleside, fifties, very early)

These activities all had the goal of consuming time convivially, or of *using* it to develop the self. Others were rooted in well-being and self-care. Gym work was commonly described as a way to pass time, and connected with longer-term objectives of sustaining good health for life post-release. For some, academic study often produced a sense of counterfactual self-exploration, and of working out whom they might have become:

[My degree] kind of opened up my eyes a little bit that I had been... let down by society and that if I had been given the opportunities as a youth, then my life might have been turned out different. That I actually could have become something other than what I did.

Leon (Swaleside, forties, mid)

A few men who ‘trod water’ were less inward in their focus; their accounts of marking time were more sociable, and the social group, not the self, was object of their ethical work. Some men at Swaleside cited their friendship groups as a reason not to progress too soon; in them, norms of reciprocity and conviviality prevailed, in contrast to the more competitive, mistrustful nature of life on the wings more generally:

Get the Xbox out, play FIFA... You can cook, sit down, have a talk with your friends and that [...] We watch boxsets and stuff like that, music.

Ebo (Swaleside, twenties, mid)

To summarise: men who ‘trod water’ saw themselves as very much being ‘held’ by the prison. As Fergus McNeill (2009a) notes of the term, to be ‘held’ entails a certain ambivalence. ‘Hurtful’ aspects of the sentence plan—particularly its demands for accountability and change—were kept distant: they recognised work to be done in relation to risk. But now was not the time. Treading water could involve finding ‘niches’ (Toch 1992/1977) of comfort and conviviality, or what Irwin (1987/1970) called ‘gleaning’.

‘Drifting’

A third response to risk-related obligations was to ‘drift’. Like ‘treading water’, it involved no immediate engagement with the sentence plan. But it did not *defer* sentence plan goals, instead *ignoring* them. Found in every sentence stage, around three-quarters of ‘drifters’ were in either the early or post-tariff stages, with the latter usually *very* far over-tariff. Most also had complex risk profiles and occupied the ‘high risk’ bands summarised in Figure 1c. All except one had been convicted of intensely stigmatised offences. Often cynical and alienated, they saw risk management measures—and not merely the length of the sentence—as obtuse, entangling, and obstructive *by design*. While not denying their guilt, they typically felt that it obstructed what really mattered, and hence was morally thwarting. Out-and-out resistance was futile, and threatened formal progression. Thus, rather than engage with it, many simply followed their own priorities and hoped for the best.

Some complained that rehabilitative provision was not suited to their needs. William made this criticism in relation to a course, which (as he saw it) only scratched the surface of the reasons for his addiction:

I’d been to rehab a couple of times [before prison and] I’d already covered everything that they did on the course. And I’m not even too sure that the course really... That it would have given anyone anything. [It was trying to say], perhaps, “think more positive about what you can do instead of drugs” [...] but I think it did seem a bit pointless at the time.

This was at [HMP X] , was it?

Yeah. *Where I was happy. And I wasn’t using. And I didn’t feel I needed [heroin].* It probably would be more beneficial if I did it now, where I’m depressed, and I’ve been using.

William (Swaleside, forties, early)

Here, the sentence plan ‘hurt’ by prescribing ill-timed intervention on its own terms. Elsewhere, it ‘hurt’ by being *too* constraining. Timothy, whose RoSH assessments classified him as the highest-risk member in the entire sample, complained that “when [prison staff] look at me, they only look at me from the end of a cattle prod” (from interview notes). Applications for jobs and educational opportunities had been vetoed, and contact with some members of his family was forbidden. He resented all of this deeply:

The sentence plan doesn’t even reflect what this prison wants from me, not at all. It’s 95% interested in what I did in the past, 5% on how they want me to behave now, and nothing at all on what I should do in the future. Why plan the future retrospectively? Why face backwards if you’re going forwards?

Timothy (Swaleside, twenties, very early), from interview notes

Compliance with the sentence plan, for these men, seemed to offer no amelioration of an intolerable situation. ‘Drifters’ lacked ‘institutional hope’ (Seeds 2022b); they were ‘held’ not in the sense of being worked on, but of being pinned down. The moral message they heard was both, “you are risky” and, “you cannot change this”. Interventions felt, perplexingly, legitimate in principle but ineffective in practice. They were hardly worth engaging with:

Oh, courses can only be for good [...] But I’ve never been [offered the chance] [...] My fear [...] is that they will still want them, whether they think they work or not [...] I look at people who’ve passed, gone on to C-cats [...] I’m really appalled at their behavioural tendencies, their lack of control [...] there’s no rehabilitative factor or improvement, as I see it.

Gerald (Swaleside, seventies, mid)

Just under half of ‘drifters’ were well over-tariff, in every case by more than a decade. They all accepted their guilt, and had all been subject to intensive interventions which some had found

meaningful and helpful. But a principle of diminishing returns was evident:

I know that there's at least thirty [courses] that I've done [...] But [...] it just fucking goes in one ear and out the other now.

Do you mean you [no longer] engage with them seriously?

Yeah, exactly.

Chris (Swaleside, sixties, post-tariff)

Again, here, a sense of thwartedness is evident: unable to influence the constraints they were under, risk controls 'hurt' these men. They were 'held' in prison but to protect *others from them*, not to secure improvements for themselves. Some were angered that earlier reformatory efforts had not resulted in their release. Risk assessments felt like harsh judgements:

I hate parole boards. What they do is... they're just digging in the shit that I planted roses in years ago, if you know what I mean. They still want to see shit. And it's gone [...] I've even sat on the parole board and said, "you know what, I couldn't give a flying fuck if you let me out or not. I'm free inside. You don't understand that."

Fred (Leyhill, fifties, post-tariff)

Fred's words convey exasperation. He, and others like him, feared that their futures would be *permanently* compromised by their pasts, that what they did in prison would make no difference, despite what were often strong internal narratives of remorse and repentance. Risk management measures were 'hurtful', not because these men insisted they had *always been good*, but because they had *become better*, and were not recognised as such:

Psychology called me in about three or four years ago [...] and said to me, "Can you give me a hypothetical situation where you are likely to reoffend?" I said to her, "Do you possibly think for one minute I

entertain [the idea]? That's not going to happen [...] I have got absolutely no thought of or intention of ever putting myself in a situation where I am likely to offend. Where on earth are you coming from?" [...] That was the end of that interview. I think it lasted two minutes.

Derek (Leyhill, fifties, post-tariff)

Disengaging from official accounts of 'the good' meant that many searched for alternatives. Some (like Fred's account of being 'free inside') were metaphysical. Others cultivated forms of goodness beyond the scope of risk assessment, and accessible in the here and now:

What matters to you, if not 'jumping through hoops'?

[Gesturing outside the wing, towards the gardens area] Digging beds over there. And weeding beds over there. And turning compost over there [...] [I've been at it for] eighteen months. There was no beds there when I went over there. It was all turf [...] I don't go on the classrooms any more [...] That's what I'm doing here, is digging. All the time.

Chris (Swaleside, sixties, post-tariff)

These ethical projects, and the futures they looked towards, were fundamentally *private*: the wider goods (e.g. public safety, public protection) which risk practitioners sought to secure were seen as intrusive, unjustified, invasions of this privacy:

[My licence] says not to have contact with children under the age of sixteen, yes? Well, I'm not in for a charge like that, for children. I never have been. And [yet] that's one of my conditions. Well, they said that last time at the parole board, "Well, he's not in for any offenses against children. So, this should be taken off" [...] So [it was,] and obviously now, it's back in this parole dossier, and I'm not happy about it [...] I can't see the reason behind it.

Jeff (Leyhill, fifties, post-tariff)

The fundamental assertion here was one relating to ethical autonomy: the right to be recognised for the capacity to govern one's own life, rather than being obligated to govern oneself in others' interests:

Whatever I do, whether it be getting a smart phone, whether it be having contraband or refusing to do something that officers are telling me, my motives or my reasoning behind it is almost... Like, *there is a method to my madness* [...] I think there has always been some sort of ethical thinking to what I'm doing or understandable reasoning why I'm doing something.

Simeon (Swaleside, twenties, late)

Yet autonomy like Simeon's often broke rules. Men who 'drifted' were not progressing. They considered themselves capable of (and were more interested in) forming their own ethical projects; when this kind of behaviour came to the prison's attention, it seemed risky and non-compliant.

To summarise: those who 'drifted' followed their own moral 'maps', and behaved autonomously without performing compliance. They wanted changes they had made in prison to wipe clean the stain of the offence, and risk interventions 'hurt' them by refracting them through a lens. They perceived misrecognition in this, and no 'help'. As a result, they mostly followed private conceptions of the good, which failed to pay the requisite lip service to the prison's disciplinary authority. In not consenting to occupy a subordinate ethics, they were usually not, in fact, going where they said they wanted to go, but were instead 'drifting' and hoping for the best.

'Swimming onwards'

A final response to risk management was to 'swim onwards'. Participants who did were nearly all in the late and post-tariff stages,¹⁷ and most were at Leyhill. Those at Swaleside had

¹⁷All those over-tariff were over by six years or less, compared to the decade or more common in other groups.

arrived recently, having ‘come unstuck’ following long spells ‘treading water’ and ‘drifting’ in maximum-security prisons. *Now*, they believed themselves to be, if not ‘on a roll’, then at least carrying momentum. They had something to look forward to, and their actions were bringing it within reach:

I’d like to think the prison is invested in me. Maybe not on a personal level *per se* [...] but I think the system is invested in people that want to help themselves [...] I feel, since I’ve been here especially, they’re helping me to get out of the door, pushing me in that direction.

Daniel (Leyhill, fifties, late)

Daniel’s reference to reciprocation was significant: these men were confident that ethical behaviour (as they understood it) would *both* be good in its own right *and* secure progression. Risk constraints ‘held’ them in prison, but they were willing to think this ‘holding’ might benefit them.

Their offences and risk profiles varied. About half had been convicted of confrontation/fight murders, about half intensely stigmatised murders, and one an intimate partner murder. Accordingly, they had experienced many kinds of intervention. What most clearly distinguished them was an acceptance of legal guilt and a tendency to acknowledge a legitimate public interest in risk management, even where it frustrated their own. In short, they treated the offence not simply as a private wrong, but as a public one. This did not entail endorsement of every constraint, but they saw these holistically, within a wider legitimising frame. They complied, rather than resisting or claiming to know better:

When you say you’re not really a ‘medium’ risk, do you mean they’re kind of typecasting you?

Yeah. But I understand the reasons why they’re doing that.

Right. So you’re kind of accepting it?

Of course. Of course. Because their job is to protect the public [...] And... if there’s a risk, or an increased

risk... in other words, if I got into a relationship, then yeah, there's a bloody increased risk. Course there is. And I understand where they're coming from. And I respect that. But it doesn't mean I want to get in a relationship. 'Cos I don't.

Grant (Leyhill, fifties, late)

They 'wore' the 'risky' label for practical purposes, whether they accepted its substantive truth or not. In this, they differed from those who 'trod water' (because they were not waiting to engage but engaging now), and from the 'drifting' and 'resisting' groups (in that they considered risk management measures as having legitimate aims, regardless of how they personally were impacted). This sense of legitimacy helped them not to strain against measures which did not always closely conform to their own understanding of who they were and what they might do.

A few had lengthy experience of intensive therapeutic interventions. For them, the internalisation of risk represented a long tutelage. Their narratives about the offence and about changes undergone in prison seemed to be *both* sincere and endogenous, *and* instrumental and imposed. Engagement with therapy had yielded personally important results: long-awaited progressive moves, for instance, or the relief of unbearable shame through renarration, or a way of handling the flood of highly destructive emotions which characterised the early sentence stages:

I was on constant watch¹⁸ cos my head was all messed up. I was a sick man [...] The only thing what sorted me out was therapy.

Phil (Leyhill, fifties, late)

I was at rock bottom for probably about five years. I was fighting back, fighting against everything [...] Assaulting staff... I threw an officer down a flight of stairs, tried to bite another one's fingers off. So they put me on the book.¹⁹ [...] It sort of carried on [...] I knocked a screw out in the showers and we had a

¹⁸Suicide prevention watch.

¹⁹'The book': category-A; hence, 'on the book': 'placed in category-A', a highly consequential step.

big fucking riot. I was in the block for three months. Then I went to [another dispersal prison] and that's where I really started to dig in and accept what I was in prison for, accept the sentence, accept my guilt, accept everything around me.

Tony (Swaleside, forties, mid), from notes

Risk interventions relieved travails such as these: not merely an outside imposition calling for an insincere performance, nor a block on progression, they became a 'technology of the self' (Foucault 1988; see also Faubion 2011). They allowed past behaviour to be rejected, redescribed, and reframed, but without threatening personal disintegration. More intensive interventions tended to offer credence to, and foster narrative support for, the notion that deeply harmful behaviour arose from deep distress. The resulting narratives situated the speaker (and the offence) in a longer story, acknowledging their responsibility (and capacity) for harm, but also drawing attention to past victimisation. This was 'helpful' in that it produced a sense of reward:

See, for me it's that understanding and it's that knowledge [...] *It's the skills that you need to understand yourself. You can only do that yourself* [...] I never knew anything about DSPD.²⁰ Once I got there and I started to learn about what it was, that's when I wanted to be there. I wanted that change. I wanted to put that effort in [...] If you open up and allow yourself to be so red and raw with your emotions, with your thoughts, then you're going to gain out of it.

Nicholas (Leyhill, thirties, post-tariff)

This account is particularly illuminating. Prisoners *throughout the entire sample* emphasised their autonomy and agency. So many insisted, "prison doesn't change you, you change yourself", that the phrase felt clichéd. In one sense, Nicholas's attitude was

²⁰Dangerous and Severe Personality Disorder unit. Now renamed, but still a maximum-security version of the clinical/forensic interventions provided in PIPE units, through the Offender Personality Disorder Pathway. See Skett and Lewis (2019 pp. 168–172) for further details.

no different from those of participants who ‘drifted’, ‘resisted’ or ‘trod water’, and hence were following their own ethical priorities. What distinguished him, and others in the ‘swimming onwards’ group, was his acceptance of the basic terms on which risk discourse invited him to narrate his life: by acknowledging the *persistence of risk*, and the *necessity of ongoing constraint*. Nicholas at first “never knew anything about” DSPD, and it is telling that only “once [he] got there” did he find that he “wanted to be there”. What facilitated his willingness to work towards ‘transformative risk subjectivity’ (Hannah-Moffat 2005) was a more complex narrative of personhood than he had previously been able to offer. It emphasised emotionality and the development of coping skills, and communicated a fundamentally care-laden message: that his distress was worth relieving. His account—which articulated his conviction by reference to his childhood victimisations—was co-produced. It was an artefact of intervention, but one which relieved suffering (in his case, relating to shame).

Other men offered similar tales. Intervention with these care-infused qualities, even when it arrived very late in the sentence, generated reciprocal compliance. Those who felt intense guilt or shame relating to the offence could make peace with what they had done. They ceded a certain degree of narrative autonomy, inhabiting (rather than merely performing) the role of a risky subject. Renarrating an entire life as a prelude to the offence emphasised continuities between past, present, and future, ruling out the possibility that it could have been an aberration. The implication was that, at least at the time, they *could not have done otherwise*, and therefore did not possess ‘true’ moral autonomy:

I think it was inevitable that something was going to eventually happen. [And if] I wasn’t caught [...] then it is more than likely something else would have happened, and it is more than likely that it would have continued [...] How far it would have gone, I don’t know [...] [but] that behaviour wouldn’t have just ended of its own accord.

Nicholas (Leyhill, thirties, post-tariff)

Facts, realisation, you know? [...] What I was like, what I am, who I am, what I'm capable of. They're just basic facts now, and I have to accept that [...] I can change myself, I can behave like a different person, I can become a different thing, a different way of thinking about life and that. But it doesn't change the facts.

Billy (Swaleside, forties, late)

It followed, of course, that if persistent risk required ongoing management, then the constraints of the life licence—and not merely the penalty phase of the sentence—were legitimate aspects of punishment. One result was that frustrations with risk management—the sense that it *impeded* them or thwarted a 'good life'—were less widespread in this group than in others. Indeed, on some level, risk management was *the precondition* for a good life.

Not all of those who 'swam forwards' had experienced intensive therapeutic interventions. For those who had not, emphasis on childhood abuse and other psychologically damaging factors was less overt, and documents painted them as less psychologically complex and (perhaps) less vulnerable. They received less coaching about risk and how to narrate it, and did not place the offence in a longer-term continuity narrative, emphasising a confused and dangerous selfhood since brought to heel. The common factor, though, was *an acceptance of risk-related constraints*. Fundamentally, they accepted that risk management measures were legitimate, in the abstract if not in every specific case:

The courses are there for a reason, aren't they? [...] It's so that people, like psychologists, can pick things out that need to be worked on, or things that you're struggling to cope with or not managing to work out.

What have your interactions with Psychology been like?

I've had an assessment and everything like that, and they were perfectly fine [...] Two assessments,

actually [...] It was alright. Well, he wasn't recommending release [the first] time [...] there were still red flags. But now [...] that's all been taken out of my file, and now they're recommending release.

That doesn't sound like the battle some people describe.

No, it wasn't.

Taylor (Leyhill, forties, late)

What was evident here was a certain receptiveness to the moral messages spoken by the prison—a curiosity—even if the messages themselves were not always explicit:

My dad always used to say, "You've got two ears and one mouth, try listening twice as much as you speak." [...] So I listen to what they're asking of me.

OK. And what is that?

[...] Recognise my offence for what it is, deal with the situations that I got myself into that caused my stress levels to go up, learn how to cope with those in future, take things on board, and put them into practice. I just picked it up, is what I mean. It wasn't posted there in black and white. You have to read between the lines. But I picked it out.

Daniel (Leyhill, fifties, late)

'Swimming onwards' also typically went with coherent and clear planning, which were easier to form because these men trusted that compliance would be rewarded. Their ethical projects were usually connected with the practicalities of progression and release, accepting the constraints of the licence and of low-status, minimum-wage work as a starting point. There was also a certain realism about ongoing constraints, particularly the requirement for lifelong supervision.

It won't be real life. Part of me will still be in here, because I'm going to be on life licence until my last breath.

Why is that not ‘real life’?

Walking on eggshells, that’s what it’s going to be. Out there people can just easily pick the phone up and say, “He’s threatened me.” I’d get armed response at my house for that. I’ll get arrested for it and recalled straight away. It’s going to take a minimum of two years to get back out [...] That’s the hard graft, really.

Warren (Leyhill, thirties, late)

To summarise: what marked out the ‘swimming onwards’ group, more than anything else, was their acceptance of their situation; or, put more provocatively, their obedience. Some had learned to characterise their pasts using the psychological terminology which risk assessors would find coherent. Others had made sense of risk practice for themselves, and accepted that, though burdensome, it was not the final arbiter of their moral status. Both subgroups felt they were moving forwards, and tended to accept that resources commensurate with grander visions of their moral and judicial rehabilitation (Burke *et al.* 2019) were not on offer, at least for now. Their ethical projects consisted in accepting, rationalising, and disciplining themselves to this reality. Since this was, substantively, the form of compliance the prison demanded, they were (and perceived themselves to be) progressing.

Discussion

The notion that indeterminate imprisonment is painful *because* it is ‘tight’ is now well-established, and this form of power is largely accepted as a distinctive feature of penality in England & Wales (and the UK more broadly). ‘Tightness’, as originally formulated, describes a ‘late-modern’ approach to rehabilitation initiated by Labour governments in the 1990s and 2000s, which rewrote the law on murder sentencing, and architected the structures of offender management. It was demanding, prescriptive, exercised “levers of compliance and regulation”, and “turn[ed] the self into a vehicle of power rather than a place of last refuge”

(Crewe 2011a p. 525). The underlying penal ethics, in their original form, were fundamentally utilitarian:

...investment in [risk classification, reduction, and resettlement] initiatives arguably constitutes a further example of [...] concern for the communities into which most ex-prisoners must ultimately return and reside, rather than (principally) ex-prisoners themselves [...] [rehabilitation] does not tend to be justified with reference to the social problems that play a role in crime causation, nor the harms inflicted on offenders by incarceration, nor indeed the social exclusion they face on release. It is thus a far cry from the rights-based model of offender rehabilitation, which many would wish to revive.

Robinson (2008 p. 432)

With lifers, however, the commitment to a utilitarian, rehabilitative ethics was always qualified. As Chapter 3 suggested, ‘front door’ sentencing is strongly driven by retributive and deterrent logics, which—as the Simms case and others demonstrate—can always resurface via a controversial release decision. If the utilitarian basis of ‘tightness’ was tenuous to begin with, it has been further attenuated by ‘managerialism-minus’ (Liebling and Crewe 2012), which suppresses demand for costly interventions by rationing them based on risk, and has unquestionably made sentences longer and more complex to navigate at the ‘back door’. Put simply, the commitment to offer rehabilitation to lifers was always partial and incomplete. So is the ‘restoration’ of being released on licence.

Nonetheless, the underlying risk logics associated with ‘offender management’ continue to shape the processes through which lifers pursue their progression and release. Offender management still professes to transform, not incapacitate; to manage, not punish; to bring prisoners to heel, not dominate them into submission; and to enable or help, not to disable or hurt.

Evidence presented in this chapter highlights the complications and contradictions in this picture. They are a direct consequence of the sheer length of life sentences, and the unavoidable reality that years or decades must increasingly be spent *consuming*

time, with little guidance coming from overstretched staff on how. The mismatch between ‘time to fill’ and ‘resources to fill it with’ makes the life sentence not uniformly a ‘tight’ experience, but one in which ‘tightness’ is intermittent, and associated with administrative ‘crunch points’.

This is why some in the sample—most of whom had been gripped more tightly elsewhere—saw Swaleside as a ‘dumping ground’, in which meaningful behavioural expectations were few, and vague. It is also why many there felt they were being ‘warehoused’ or ‘neglected’. Low custodial risk assessments and extreme tariff lengths could each make interventions inaccessible. In a prison (Swaleside) concerned with order and violence reduction, volatile and disruptive prisoners—not usually lifers—were the priority, so that some participants concluded that to ‘tread water’ was the best way to spend portions of the sentence. If tight ‘grip’ over the self was intermittent, then lax and loose periods in the sentence were inevitable, and it made sense to follow one’s own projects, at least for a while. Some at Swaleside, lacking the shrewdness of former cat-A prisoners about risk management, and not yet having encountered ‘crunch points’, came to believe that risk was little more than talk. They saw offender management as a manipulation, and a performance, and responded in kind.

Later in the sentence, the sheer quantity of time in the life sentence acted differently. For post-tariff lifers at Swaleside, it explains the sudden urgency of their casework: with participants facing regular parole cycles, a belatedly ‘tight’ grip made sense, but often added targets to the sentence plans of men who had reached (or were approaching) their tariffs. At Leyhill, participants had often arrived with grandiose ideas about the future, and expected the relaxation of risk controls to herald greater autonomy. Such ideas soon appeared unrealistic under a renewed ‘tight’ grip, causing many to complain bitterly: some because sexual offence convictions made them the target of these measures, and others because they blamed ‘tightness’ on those who possessed such convictions. Widespread delay and a perceived excess of caution communicated to prisoners that their time and their lives were unimportant. This grated badly with some, who found concerns over their risk overblown, or who felt the pull of ethical obligations—most often to elderly parents—which they were impatient to fulfil.

However, at both sites, and especially at Leyhill, there were a few participants who felt more positively, understanding governance through risk to work in their own interests. It *helped*, though it sometimes also *hurt*, and it *did good*, even when it *felt bad*. Many perceived themselves to be moving forwards following periods of stagnation, and (significantly) many had received very intensive forms of intervention promoting and coaching the self-presentations which might secure their progression. More than anything, the experiential distance between higher-security and lower-security conditions generated feelings of legitimacy, though where some men had become ‘stuck’ again at Leyhill, these feelings slumped again into a sullen thwartedness.

The analysis presented here adds to the ‘tightness’ framework, taking cues particularly from its more recent and nuanced modifications (e.g. [Crewe and Ievins 2021](#); [Ievins 2020](#); [Rennie and Crewe 2023](#)). It adds depth and texture to the existing finding that psychological power may be exerted in varied ways, not all of which involve equal ‘grip’ or equivalent demands upon the self. Most originally, the chapter classifies *ethical responses* to risk governance, and characterises these in relation to ‘lax’, ‘loose’, ‘supportive’, or ‘tight’ uses of penal power. The classification is marked by the peculiarities of the two fieldwork prisons, but it offers a basis for further work. Beyond simply noting *that* some lifers prefer ‘tight’ intervention while others do not, the chapter sketches *why* this might be, suggesting that it is a function of several individual factors, including offence type, sentence length, and biography.

The sheer length of the life sentence is a significant feature of the analysis, with most participants in the sample understanding that some years of the sentence would be given over to killing time, even if some others might be devoted to ‘gleaning’ ([Irwin 1987/1970](#)). The offence is another significant factor, with some prisoners finding it very difficult to work within the strictures of risk management simply because they were not able to authentically inhabit a selfhood consistent with guilt. Finally, the life course is another significant factor: the main feature distinguishing those who ‘drifted’ was their sense that the sentence had an uncertain future, and they worked towards more private, inward objectives.

The authors of the epigrammatic quote at the start of this chapter contended, building on the ‘tightness’ framework, that prisoners are “no longer objects of punishment, but made instead into potential subjects of self-change” (Ugelvik and Damsa 2018 p. 1028). McNeill’s characterisation of the supervision relationship adds a further insight. If becoming a “subject of self-change” yields no reward, then what remains? Certainly, the experience of being an ‘object of punishment’; but not in the dominated sense characteristic of 1970s and 1980s imprisonment, which has been superseded. Instead, the ‘objectification’ in this case relates to being (mis)recognised as something ‘bad’ and on this basis held (and hurt) to suit others, *regardless of one’s efforts to do good*. Most visibly among those who ‘drifted’, this caused some lifers in the sample to disengage entirely—to “retreat into fantasy and passivity” (O’Donnell 2014 p. 237; cf. Crewe 2009 pp. 191–200 on ‘retreatists’)—with the likely consequence that they would be unlikely to secure their release, and poorly prepared should it come.

References

Conclusions

This chapter reviews and summarises the findings of the PhD, returning to the controversial prison release described in the Introduction and considering why the retributive emotions it summoned in victims and the public were so outraged by the case. It identifies the limitations of the research, and comments on the originality and wider significance of the findings.

Jill Stauffer's book, *Ethical Loneliness* (2015 Chapter 5), describes what happens when institutions fail to listen well to individual experiences of serious wrongdoing. By superimposing their own objectives on the messy realities of the individual case, they deal a double injustice: claiming the sole right to respond to the wrong; and then failing to consider the complexities of what those involved are owed. Instead of responding to real wrongs, institutions attempt to transform them into something tractable, and respond to that. Echoing the classic characterisation by Nils Christie (1977) of 'conflicts as property', Stauffer (2015 pp. 142–3) uses retributive punishment as an example:

[R]evenge disappears from official accounts of justice—beginning as a virtue and an honour owed to friends and kin, slowly converted into a formalized retribution owned only by the state (because, the reasoning goes, personal revenge is savagery), which then gets replaced by utilitarian calculations of social utility (because, the reasoning goes, retribution is also savage, or at least “not useful”). When revenge is virtue and honour, it is meted out personally between those affected, both victim (or the victim's champions) and perpetrator equally involved. When revenge becomes state

retribution it pits state against perpetrator, placing the need to rebalance state order higher than the right a victim once had to claim satisfaction for loss undergone. When state retribution becomes calculations about deterrence and incapacitation, not only do victims disappear, but individual perpetrators matter less as well. State power remains.

Stauffer suggests that one remedy is to take more seriously both resentment and the desire for revenge. These moral emotions *cannot be extinguished*, but if they are addressed, not merely bypassed, retribution “need not [be the] antonym of repair” (2015 p. 144). The current default response—massive retaliatory harm against the most culpable party—can be mitigated.¹ Retribution understood in these terms might mete out to *all* parties (and not merely the offender) what they deserve; and what offenders deserve might include not merely retaliation, but moral recognition, as people with the capacity to be accountable, and opportunities to regain trust.

The value of this argument is to redirect critical attention to what is ugly and problematic about retributive punishment: *not* that it inflicts damage on the culpable, but that it does so *without mitigation, remedy, or the opportunity for repair*. This is scarcely a promising circumstance in which a society can communicate about its values, and it may be partly for this reason that the ‘new penology’ rationales for imprisoning dangerous and risky populations have become highly incapacitative, basing themselves on a conceptualisation of offenders as dangerous objects, not as responsible subjects.

Summarising the findings

The PhD illuminates how this shift towards a morally denuded, risk-focused form of life imprisonment has affected the coherence of the life sentence *as a retributive punishment*, which is to say, as a sanction aiming (in part) to communicate with lifers about

¹Stauffer, for example, suggests support, moral recognition, or compensation.

wrongs, and the responsibilities which arise from them. It largely fails in this aim: it does not consistently push them to engage with their *particular* offence or to think about it as generating obligations towards *particular* victim(s). Some do think in this way. But this occurs haphazardly, and not by design.

Returning to the original research questions in Chapter , we can summarise answers as follows:

- men respond ethically in quite diverse ways to serving the mandatory life sentence;
 - they receive inconsistent and unclear moral messages about the offence of murder and their own past conduct, with more intense attempts at moral communication linked to assessed risk;
 - they respond to these messages according to a complex range of factors, among which both pre-prison social identity (linked to age at conviction) and the nature of the index offence are particularly significant;
 - they adopt highly individual ground projects and ethical priorities in response, but are pushed during ethical ‘crunch points’ to shape these to institutional requirements; and
 - official forms of moral communication often attempt to fit their specific actions to a broad, abstract template, leading some to feel misrecognised, and to find it difficult to make their prison experiences meaningful.

These findings were presented in stages. [Chapter 2](#) identified the moral nuance concealed beneath the single penalty for murder, suggesting that a systemic preoccupation with cost-effectiveness in risk management and intervention had rendered the penalty both increasingly severe, and yet also communicatively ‘thin’. [Chapter 3](#) set out the methodological underpinnings for the research, and [Chapters 4, 5, and 6](#) set out the empirical analysis.

Collectively, they concur with previous research on several points: that life imprisonment induces moral reflexivity; that

enforced dislocation from previous patterns of activity and identity is central to this process; and that adaptation to a very long (and especially an indeterminate) sentence is influenced by an ‘offence-time nexus’ (Crewe *et al.* 2020). However, each one adds nuance. A focus on ethical reflexivity, as conceptualised using anthropological materials in Chapter , reveals the *content* of moral reflection to be varied, and strongly shaped by both the circumstances of the offence, and the life course before conviction. Chapter 4 showed that not all forms of violence are equally easy to account for—in the sense that doing so involves *explaining oneself to others*. On the life course, Chapter 5 noted variations based on age at conviction, broadly showing that lifers convicted younger thought of preparing for the future (as Crewe *et al.* 2020, among others, have shown), while those convicted older found this idea less convincing, and often remained rooted in past identity. In relation to risk management, Chapter 6 introduces the concept of ethical ‘crunch points’ to suggest that ‘tight’ risk management, while certainly an explicit feature of policy, is neither implemented consistently, nor definitive of the experience of all lifers at all times during the sentence. Instead, psychological or ‘soft’ power may be more and less ‘present’ and ‘absent’, similarly to the power of officers (Crewe *et al.* 2014). This has implications for its legitimacy, since *both* the absence of intervention and the under-use of power can be just as harmful as their over-use, particularly if they are applied inconsistently through a very long sentence.

Limitations

Naturally, there are limitations to these findings. Most importantly, these arise from the idiosyncrasies of the sample. Although the sample itself (as Appendix shows in detail) fairly closely represents the mandatory lifer populations of the two prisons on a range of sentence and demographic variables, the prisons themselves were unusual. Swaleside—an unusually short-staffed long-term prison with a history of violence and disorder—may be ‘laxer’ than many comparable sites. Leyhill—holding men with a complex risk profile whose resettlement was a challenging task—may have been unusually ‘tight’ compared to comparable

prisons. A further limitation of the sample may arise from the uneven representation across sentence stages of participants with comparable offence types. Had the pandemic not intervened, this might have been possible to remedy in a third prison, but the questions begged are for others to take up.

Further limitations arise from the mix of documents made available to me by the OMUs in each prison. In [Chapter 6](#), the portrait of Swaleside's 'looseness' or 'laxity' is less textured than that of Leyhill's 'tightness'. At least in part, this will reflect its being painted from RC1 forms, not the EBM and ROTL risk assessments reviewed at Leyhill. The RC1 is a summary, albeit one presented to prisoners as if it speaks for itself, and at Swaleside, OASys and other more detailed assessments were subject to major backlogs. Records from psychological assessments or OBPs, even in digested form, were not available for review. This makes for identifiable blind spots in my view of moral communication about risk at Swaleside. The messages *received* in OBPs and through psychological assessments at Swaleside *were* evident in interview data, but glimpses of the censure they 'spoke' were fleeting. Other source materials might have yielded more textured insight, but this can only be speculative.

Originality and wider significance

Regardless of these limitations, the PhD has wider significance, primarily for the study of LTI. Ethnographic accounts of life in long-term prisons have traditionally focused on social dynamics, and the kinds of action prisoners engage in. Interest in the (re)construction of identity, and in interiority and reflexivity, has developed more recently.

The PhD adds to this body of recent work, in several ways. Its originality lies in the structured and systematic attention paid to how two factors—age at conviction and the life course—affect adaptation. It also lies in the account of moral communication presented here, in which messages delivered incoherently by the sanction interact with more personal and interior forms of reflection, sometimes producing self-reproach, but often not.

Methodologically, this contributes to the study of LTI, by underlining the quite substantial variation within the population of interest. Recent contributions have theorised quite broadly about adaptation and related concepts, based on samples whose idiosyncratic specificities may not be obvious. John Irwin's (2009) seminal book *Lifers* is a good example; his theorisation of 'awakening' may reflect the particularities of San Quentin State Prison in California, with its relatively high concentration of prisoner-led programming and (perhaps) a *prisoner culture* which promoted reflection on the offence in a relatively unusual way. Similarly, Crewe *et al.* (2020) develop a broad theorisation based not on a distinctive site, but on a distinctive sample: lifers convicted aged under 25. Both works are highly instructive, but the variability treated within this sample both refines and (sometimes) questions their theoretical conclusions; and this variation matters, since it affects the kinds of individual adaptations to imprisonment that lifers and LTPs have long been known to make. Future studies will need to keep the diversity of the LTP population within scope, not least because the population of interest may have bifurcated, between those convicted young and those convicted old, with sentencing law taking an invariant approach to determining the severity of their tariffs.

Theoretically and conceptually, the PhD contributes to the field by offering insights into reflexivity, an implicit but often underdeveloped theme in earlier research. As presented in these pages, ethical reflection—people's self-evaluations and the selfhoods they desire based on these—exerts a major influence over how they respond to censure and to its demands. We can only get so far with understanding this process—which drives how people 'do' their time in prison—without asking, in quite some detail, about the sense-making they engage in, and the representations of themselves they encounter in prison life. The power relations through which they encounter censure are those of incentives and 'soft' power (Crewe 2011b), but their responses are often quite individual and personal.

An attentiveness to ethics, as understood through anthropological texts on the subject, helps us 'get inside' these individual responses. For example, the cultural embeddedness of morality (Keane 2016) helps make sense of how lifers rationalise the index offence, and yet also explains why dislocation from earlier

lives can induce re-evaluation. Its emphasis on biographical narratives and projects of care as key vectors for ethics (Mattingly 2014) can help understand adaptive differences between those who arrive in prison with their adult lives mostly unwritten, and those who arrive with them largely complete. Its emphasis on interaction and encounter as ethically fertile domains (Keane 2016), and on ‘exemplars’ as the bearers of moral values (Robbins 2018) can make further sense of prisoners’ ‘redemption scripts’ (Maruna 2001), particularly those in which individuals who demand accountability compassionately appear as key figures (e.g. James 2016). And its account of first-person ethics—its contingency, and its ‘tragic’ vagaries (e.g. Mattingly 2012 pp. 167–179)—enriches our understanding of how lifers think about their offending, especially when compared to barren and dismissive concepts such as “cognitive distortions” or even “neutralisations”.

More broadly, the PhD has implications for how we understand the moral communication that retributive punishment is supposed to engage in. In a recent inquiry report on public understanding of sentencing, the House of Commons Justice Committee (2023, paras. 51-79) recommended the publication and broadcast of judicial sentencing remarks, as a matter of course and not merely in high-profile cases (as has hitherto been the practice). They envisaged benefits for the media (para. 54); for victims and their families (para. 55-58, 60-65); and, as an afterthought, for defendants and prisoners (paras. 66-71). The Committee’s concerns—that offenders often do not understand “the sentencing process” (para. 66)—are expressed in relation to understanding of *the structure of the sentence itself*:

It is important that offenders understand the sentence they are to serve. Offenders should have ready access to information about the sentencing process [...] [and] about what their sentence will look like in practice. Offenders [...] should be given a hard copy of their sentencing remarks. > > House of Commons Justice Committee (2023 para. 71)

Understanding of the sentence *is* important: as Chapter 6 noted, a few participants at both fieldwork sites had gone some years in prison before grasping the indeterminacy of their life sentences.

However, recent empirical research on moral communication, including this PhD, points to a *wider*, and less tractable, problem: the sanction's failure to communicate effectively or coherently that the state punishes lifers *for wronging fellow citizens*, not just for 'being dangerous' or 'being bad'.

Generally, sentencing remarks feature a narrative linking key features of the offence to the tariff selected. The Committee's recommendation on hard copies for prisoners goes some way to clarifying *what is being punished*, then. But it does little to clarify the delivery of censure because sentencing remarks are not static, and do not deliver censure as a one-off. Instead, they are reiterated and repackaged in risk assessment documents, where their summary of the court's fact-finding is marked by the adversarial trial's shortcomings as a truth-seeking procedure. Primarily concerned with judging legal guilt, it is uninterested in how the accused might understand their own actions (assuming they do). Procedural protections magnify this shortcoming, mediating expressions of responsibility through legal representation and ensuring that many defendants do not even speak. This forestalls opportunities to account for the offence, to express remorse, or to respond other than by denial.

The account which emerges may be highly tendentious and inauthentic, with no necessary link to what the offender thought he or she was doing. It then passes to the prison, where it is supplemented by files summarising the police investigation. These files, not necessarily tested in court, are not disclosable to the prisoner ([Ministry of Justice 2019](#)). In the hands of risk assessors, the result may be indirect and (sometimes) extrajudicial censure, which, over decades, coagulates into a kind of truth. The prisoner is defined by reference to a highly partial account of their index offence. Prison conduct, to the extent that it is recorded at all, is layered over it and interpreted in its light.

The process has elsewhere been described as 'maloptical'—that is, "the subject is seen badly, is seen *as* bad, and is projected and represented as bad" ([McNeill 2019 p. 209](#), emphasis original). With LTPs and lifers, the process is particularly insidious, because of the well-documented ways in which these forms of imprisonment erase prisoners' pasts. Personhood comes gradu-

ally to be defined by an account which was partial to start with, and is then distorted through repetition. Communicatively, the result is evident in Chapters 4 and 6: lifers who did not recognise themselves or their experiences in the official account of the offence simply felt as if censure talked past them.

Thus, sentencing remarks do not state censure conclusively, but merely become the first step in a game of pass-it-on. Hard copies do not prevent this; the game communicates indifference to particularity, accuracy, individuality, subjectivity, context, and detail, and at worst, the resulting distortion of wrongs and responsibilities might satisfy no one. The concrete, personal, individual, tangible harms and wrongs censured by judges are converted by penal professionals into abstract, impersonal, aggregate, potential, and intangible management problems. The result is not necessarily moral accountability, of the kind Danielle Sered (2019) describes.²

Jill Stauffer's argument is that institutions often fail to listen well. Arguably, the life sentence fails to listen at all, at least not in any truly individualised way. Lifers are addressed too generally, too stereotypically, and too inconsistently for claims of individual accountability to be credible. This is because, arguably, too, the sentence expresses indifference to their response (see Brownlee 2011): it intervenes too little to support claims of transformation, and 'fixes' risk only in the sense of encasing prisoners in an account derived from the offence.

It has long been known that a long (and particularly, an indeterminate) sentence damages identity and relationships, ruptures lives, and imposes stigma. What is clearer after this PhD is that it does so while communicating incoherently. Through risk management practices, it increasingly manages *public wrongs*, rather than punishing the *private wrongs* which generated the sanction. As Jill Stauffer's account of 'thin' retribution suggests, this might suit the priorities of public bodies which direct and administer the sentence. But the overweening, hubristic ambition of risk management—to 'manage the custodial sentence' from end to end (Ministry of Justice and HM Prison & Probation Service 2018)—is ill-supported by resourcing and expertise adequate to the task. Continuing sentence inflation further

²Quoted at the very end of Chapter 4.

complicates matters by ensuring that there is less and less to work towards. Amid a scarcity of truly individual attention while they are in custody, these factors render it very difficult indeed for lifers to salvage a viable life following release.

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Changes in murder sentencing since the formalisation of the ‘tariff’ system

Chapters 2 and 4 noted that the law on sentencing murders changed from 2003, resulting in a steady and ongoing trend of sentence inflation. However, as Chapter 4 made clear, the underlying approach to determining culpability has remained consistent. That is, although the *penalties* increased, the *kinds of features* which aggravated or mitigated a murder, linking it to penalties of different severity, have remained similar, with some changes (required by equalities legislation) to penalise crimes motivated by hatred, and some to reflect the shrinking range of legal defences available for some kinds of intimate partner murders. This Appendix narrates how the sentencing of murders developed in three stages and summarises the sentencing regimes in effect at different times in three Figures, 1, 2, and 3. All information about the sentencing practices in effect throughout is taken from The Law Commission (2015) except where otherwise indicated.

1967 to 1983

When the current life sentence for murder was created in 1967 as a mandatory replacement for the (just abolished) death penalty, the law allowed (but did not require) the Home Secretary to release lifers if the newly-created Parole Board recommended it. There was no formal tariff system, but the Home Secretary was to take advice from two sources: the judiciary, about what length of sentence would achieve the aims of punishment and deterrence in each case; and the Parole Board, about whether the prisoner posed any risk to the public. Under this system, it

was possible for lifers to be kept in prison for extremely long periods, but it was not normally done.

The ‘tariff system’ used from 1983 to 2002

The practice of giving explicit ‘tariffs’ or minimum terms to life-sentenced prisoners was begun by Home Secretary Leon Brittan in 1983. The change aimed to address the concern that life-sentenced prisoners were not serving long enough in prison, and that this was discrediting the justice system. From this time on, declared Brittan, there would be a stated minimum term of imprisonment to satisfy the aims of punishment/deterrence, with the question of risk to the public only being considered after it had expired.

The Home Secretary set the tariff based on recommendations from the trial judge and the Lord Chief Justice. Brittan declared that in most cases, the Home Secretary would follow the judge’s recommendations about punishment, and the Parole Board’s recommendations about risk. But crucially, he¹ would retain the power to make exceptions and ignore these recommendations. In practice, this almost always meant more severe penalties: extending the tariffs or preventing the release of people who were seen as especially dangerous, or whose release was thought to risk undermining public confidence in the criminal justice system. In reserving this power, Brittan and his successors were effectively retaining a veto over the release of people whose release was unusually risky or politically awkward.

Campaigners and lawyers saw this as a violation of the right to a fair trial: Article 6 of the European Convention on Human Rights guarantees the right to be tried by an impartial tribunal composed of members of the judiciary. Since sentencing appeared to be part of a trial process, and the Home Secretary was a politician and a member of the executive, his power to set lifers’ tariffs and direct their release seemed anomalous. From the late 1980s onwards, the Home Secretary’s power in this area was gradually eroded by litigation relating to the distinct kinds of life sentence, with the discretionary life sentence among the

¹Every Home Secretary until Theresa May in 2010 was male.

first to go. One side-effect was that the powers of the Parole Board to direct (rather than recommending) release grew. So did the power of trial judges to set (rather than recommending) a tariff.

Human rights litigation and challenges to executive discretion over release

These piecemeal legal challenges culminated in 2002 with a House of Lords judgment (*Anderson, R (on the application of) v Secretary of State for the Home Department [2002] UKHL 46 2002*), in which lawyers for Anthony Anderson (who was serving a mandatory life sentence for murder) argued that the Home Secretary's tariff-setting powers were incompatible with the Human Rights Act. The judgment necessitated changes to the law for all new life sentences, as well as the review of all existing life-sentence tariffs by members of the judiciary.

Before 2002, the judge's power to recommend a sentence had been entirely discretionary. In a statement of good practice issued in 1997 by the Lord Chief Justice, and used now as a guide for judges sentencing non-recent murders committed before 2002 (*The Law Commission 2015 pp. 233–4*), several points are noteworthy. First, there were no defined starting points for sentences; a 14-year sentence was stated to be the norm for an 'average' or 'unexceptional' murder, but this was guidance not a strict requirement, and in fact the judge could set the tariff where he or she saw fit, based on the particular circumstances of the case. Second, the guidance suggested examples of the kinds of mitigating and aggravating factors that should be seen as relevant to deciding the culpability of different murders. These aggravating and mitigating factors would normally lead to a heavier or lighter tariff. Third, there was no 'whole life order' by which the judge could direct that the sentenced person should remain in prison for the rest of their life. The judge could, however, choose not to recommend a minimum. Effectively, this would signal to the Home Secretary that a case was so serious that release was entirely in his or her hands; but crucially it did not legislate that a convicted

murderer must die in prison to satisfy the punitive requirements of the law. Fourth, the guidelines explicitly stated that there was to be no upper limit - but also said that sentences longer than 30 years were expected to be 'very rare indeed'.

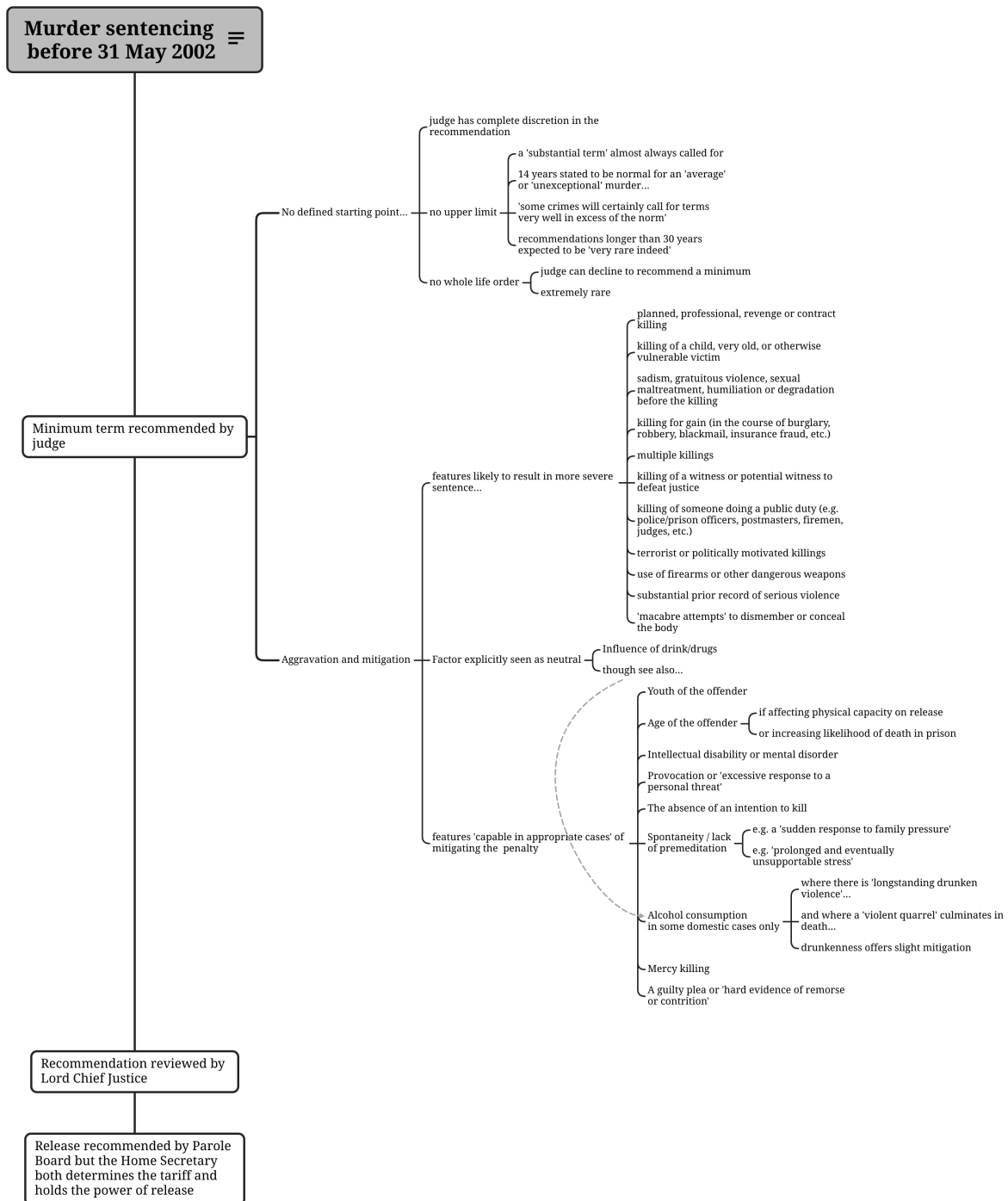
These features of the practice pertaining before 2002 are shown in Figure 1. Their key feature was judicial discretion, and an expectation that very long sentences of twenty years or more should be very unusual, though not impossible. Practically, their likelihood was also reduced by the fact that the Home Secretary would be able to give detailed consideration only to unusual or high-profile cases. For most cases, as Brittan indicated, only the judge's recommendation would shape the sentence.

Interim changes from 2002-2003

For murders committed after May 2002, an interim system was put in place, pending more permanent changes to be legislated by a new Bill, which became the 2003 Criminal Justice Act. As before, this was based on guidance issued by the Lord Chief Justice, but followed a more prescriptive structure. Rather than allowing judges free rein to determine a tariff by thinking about mitigating and aggravating factors in the round, the new system set 'starting points' for murders of differing degrees of seriousness. In setting a starting point, 'seriousness' was defined in relation to the offender's culpability or the victim's vulnerability, with examples given of factors that would usually result in a 'higher' (15/16 years), 'normal' (12 years) or 'lower' (8/9 years) starting point for the tariff. It was then further adjusted upwards or downwards, using mitigating or aggravating factors not already considered by the starting point.

As Figure 2 shows, the introduction of 'starting points' lessened judicial discretion somewhat, but still left the judge to adjust the sentence from the starting point. However, the expectation of 12 years as the starting point for a 'normal' murder is not far different from the old guideline's use of 14 years as a 'rule of thumb' for 'ordinary' murders. Moreover, the mitigating and aggravating factors were little changed; there was still no whole-life order; there was still no upper limit to tariffs though the

Figure 1: Murder sentencing before 31 May 2002



judge could decline to recommend a minimum; and sentences of more than 30 years were still expected by the Lord Chief Justice to be ‘very rare indeed’ ([The Law Commission 2015 p. 234](#)).

Schedule 21 and the move towards statutory murder sentencing

The major changes came with the 2003 Criminal Justice Act. Schedule 21 of the Act, which has since been amended and incorporated with all other sentencing law into the 2020 Sentencing Act, remains the law on sentences for murder. It has had the intended effect of drastically increasing the tariffs of lifers sentenced for murder. In a context where government wished to appear ‘tough on crime’, and where the powers of the Home Secretary to increase exemplary punishments using the discretionary power to set tariffs and order releases, Schedule 21 was a way to ensure that they did not become too lenient.

Some aspects of Schedule 21 were continuous with the previous guidelines: a system of starting points for offences of different degrees of ‘seriousness’ was the foundation of the new regime. Two things changed. First, the starting points increased in length, drastically. For the most serious offences, the ‘whole life order’ was introduced. Previously it was *possible* for someone to be kept in prison for the rest of their life to protect the public, if their risk of harming others was believed to justify it; now, it was *mandatory* to imprison them for the rest of their lives if the seriousness of their offence demanded it, regardless of future risk. Just as significantly, the starting point for the most serious murders more or less doubled (from 15/16 years to 30); the starting point for a ‘normal’ murder went from 12 to 15 years; and that for a murder where the offender was aged under 18 was set at 12 years, previously considered the benchmark for a ‘normal’ murder committed by an adult. Figure 3 shows the changes brought in by Schedule 21, and marks where provisions have since been added by amendment.

Because Schedule 21 has the force of statute, there is no discretion for the judge to consider all the facts and set the sentence

Figure 2: Murder sentencing between 1 June 2002 and 18 December 2003

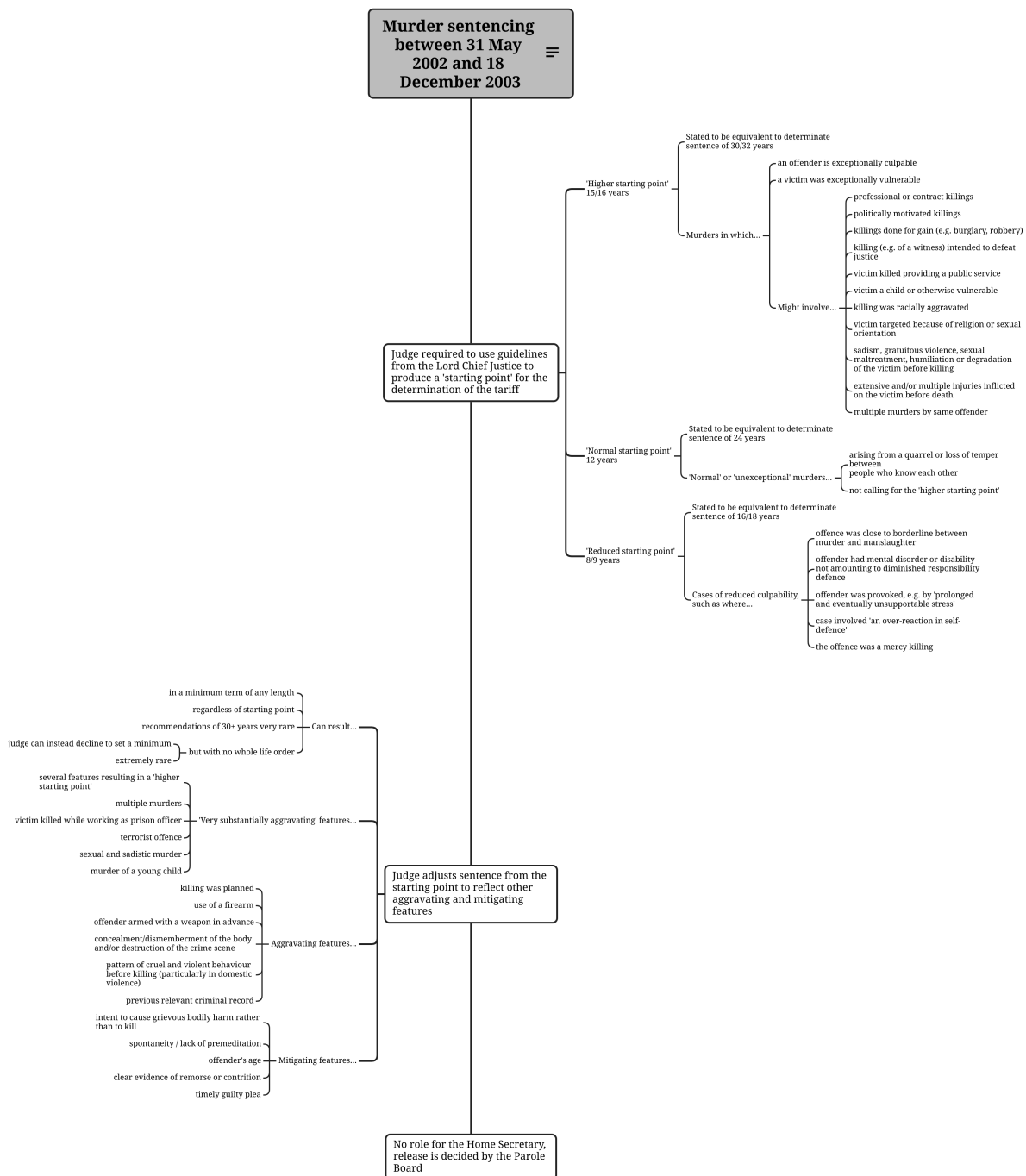
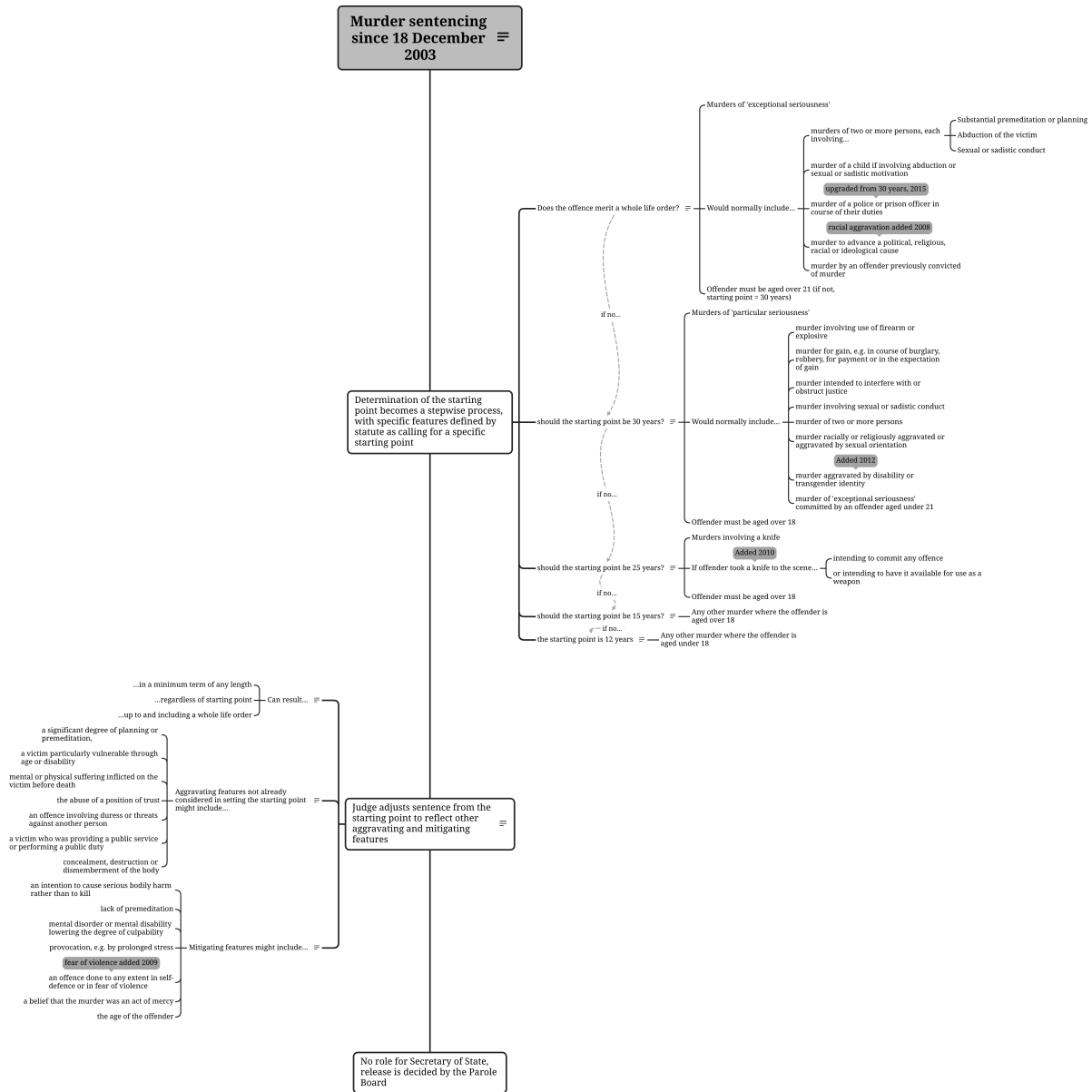


Figure 3: Murder sentencing since 18 December 2003



accordingly. Instead, murders with certain specific features were to be sentenced less flexibly, with fixed starting points and adjustments only from those points. Further amendments have been passed since: for example, in 2008, an amendment set a starting point of 25 years for murders committed by someone who took a knife to the scene of the offence; and in 2015, a whole life order was mandated for murders where the victim was a police or prison officer going about their duties.

The 2003 reforms increased the severity of sentences across the board. For example, in Swaleside lifers sentenced for murder before the 2003 Act had an average tariff of 14.4 years; for those sentenced afterwards it was 19.0 years. Punishments for murder now are as harsh as they have ever been since the death penalty was abolished in 1965.

Interview materials

Various materials were used to recruit participants and record structured data both for the research, and recording matters like consent, while the interviews were arranged and conducted. Copies of all these materials are included below.

Participant information sheet



Project:

Ethical self-governance among men serving life sentences for murder

Researcher:

Ben Jarman

Who am I?

I am a researcher at the University of Cambridge. Before this, for several years, I worked for various charities in different prisons around England and Wales.

Why am I doing this research?

In my previous jobs, I became interested by what people told me about their lives in prison, and their feelings about punishment and rehabilitation. I want to find out more about how people feel they change when they're in prison for a long time: how change gets started, what keeps it going, and what gets in the way.

What will participation involve?

If you send back the slip on the back of this booklet and tell me you might be interested, I'll approach you for an initial conversation. Mostly this will cover practical stuff like when would be the best times for you to meet for a full interview. If you are currently appealing your sentence or conviction, or if you are maintaining innocence, I will also need to know that.

If you agree to be involved, I will interview you, asking you to talk about your life before prison and your life in prison. The interview will be in two parts. The length of each part will vary depending on how much you want to say. Expect each half to take **at least an hour** – I will arrange it so that you are off work for the morning or afternoon where the interview takes place unless you prefer some other arrangement. You can take breaks if you want to, for any reason. I want to give you time to say what you need to say, and I will make sure the interview fits around your needs.

After all my interviews are done, at the end of my time in the prison, I would also like to look at some of the prison's records about you. If you give me permission, I will read the relevant records, and note down a summary of your index offence, conviction history, disciplinary record in prison, and courses you have done. I won't do this before I interview you, and you will be in control: if you don't give your permission, I won't ask the prison to show me your records.

Do you have to take part?

No. Your participation is voluntary. If you don't want to be involved, you don't have to be. This will not cause you any disadvantage.

Are there any risks involved in taking part?

I will ask you to talk about various aspects of your life before prison and in prison. It is possible that some questions might cover things you don't think about often, or you generally prefer not to think about. Some questions might trigger unhappy or upsetting thoughts, though this is unlikely.

My priority is to avoid the interview causing you any harm. You can decide not to answer any particular question if you prefer not to. You can also take a break or stop completely, at any time. This won't count against you. There will be time at the end to discuss anything you have found difficult. If you like, you can also tell me the name of a Listener, a chaplain, a mentor, a staff member, or someone else that you trust. If you found the interview difficult and you want to talk more about it with someone else afterwards, I can approach them for you, and ask them to check in with you.

Are there any benefits to taking part?

I am not allowed to pay you to take part. But the prison has agreed you will not lose pay, if taking part means you miss work or education. Taking part will have no effect on your IEP, categorisation, or parole.

Sometimes, prisoners my colleagues and I have interviewed say they get something positive from the experience. They welcome the chance to speak about their lives to someone from outside who is interested and wants to listen. For our part, we appreciate the chance to hear about prison life from your point of view.

Will what you say be confidential?

I do not work for the Prison Service, and my work is funded by independent organisations. When based in the prison, I will be using desk space there, but I have no formal role, and my papers and equipment are either carried around with me or taken out of the prison at the end of every day.

I take great care with the information you share with me, and what you say to me is confidential: no one else will see it, hear it, or read it. But there are three exceptions. If what you tell me is about any of the following, I am obliged to tell the prison:

- behaviour that is against prison rules and can be adjudicated against
- undisclosed illegal acts
- behaviour that is potentially harmful to you or others (e.g. intentions to self-harm or complete suicide)

Everything else is confidential.

Will your contribution remain anonymous?

If you are interviewed, you don't have to agree to be quoted. You also don't have to agree to let me record the interview; if you prefer, I will just write notes.

If you agree to let me record the interview, the recording will be stored securely and destroyed as soon as I've turned it into a written transcript (see below for more info). In the transcript, you will have a different name, and I will change or leave out any details (such as places or the names of other people) which could give away who you are. Nothing I write will allow you to be identified or linked back to anything you say.

How do you agree to take part?

If you would like to take part, please detach and return the reply slip (page 7 of this booklet), either by handing it to me, or sending it via the prison's internal post. Address it to me

(Ben Jarman) c/o [name of staff member], and she will pass it on to me.

If you agree, I'll contact you to arrange an interview. We'll start by going over some things on this sheet again in person, and then I'll ask you to confirm your consent in writing.

How will information be retained, why, and for how long?

I will keep what you tell me for the following reasons and the following period of time, as follows:

What	Why	How long
Interview recordings or interview notes (depending on whether you let me record)	To make an anonymous transcript	Until the transcript is finished, or 1 year after the date of the interview (whichever is earlier)
Anonymised interview transcripts (or notes)	To write up the research If I do follow-up research, to remind me what you said before	Up to ten years after the project is finished, or October 2032 (whichever is earlier)
Other identifying details (e.g. your name, prison number or date of birth)	To find you if I decide to do follow-up research	Up to ten years after the project is finished, or October 2032 (whichever is earlier)

What	Why	How long
Notes on your prison records (if you let me view them)	To compare what prison records say about you with what you say about yourself	<i>My notes:</i> until an anonymised summary is finished, or 1 year after the date of the interview (whichever is earlier) <i>Anonymised summary:</i> Up to ten years after the project is complete, or October 2032 (whichever is earlier)

All information will be stored securely. The only person able to view it will be me.

What if you want to withdraw from the study?

You can stop an interview at any time without giving a reason. If you were interviewed but change your mind later about taking part, you can also remove yourself from the study. This will not disadvantage you in any way. You can do this at any point up until 30th June 2020. If you do, I will destroy all records I have relating to you.

If you want me to do this, you should write to me using the address on page 4.

What will happen to the results of the study?

The results of the study will be written up as a long piece of writing, and shorter versions might also be published in places like academic journals and on my project website. Published information of any kind will be written so that it will be impossible to identify you or link you personally to the research.

I might decide to talk about the results with Prison Service staff, or with other researchers. This could happen face-to-face at conferences, training sessions and so on. If I do this, I'll be

talking about the overall findings, not about you personally, and you won't be identifiable in any quotes I might use.

I might decide to contact you in the more distant future, to interview you again and find out how you are doing some years after the initial interview. If I do this, I will read your original interview again to remind myself about what you said before.

What if you want more information, or you want to make a complaint?

Further information about the study can be obtained by writing to me or my academic supervisor, Ben Crewe, at the address below.

If you would like a copy of the research when it is finished, please write to me to ask for one.

The plans for the study have been reviewed by HM Prison & Probation Service, and by the Ethics Committee in my university. If you want further information about this, or if you want to complain about me or any aspect of the research, you should write to Professor Crewe.

Addresses

To say you no longer want to participate, or to ask for a copy of the finished work:

Ben Jarman

Prisons Research Centre

Institute of Criminology

Sidgwick Avenue

Cambridge CB3 9DA

To ask about the ethical approval for the study, or to complain about me or the research:

Professor Ben Crewe

Prisons Research Centre

Institute of Criminology

Sidgwick Avenue

Cambridge CB3 9DA

Thank you for reading this. If you want to ask anything else, you can tick the appropriate box on page 7

Appendix: How the University uses your personal information

1. Why have I been given this extra sheet?

This document supplements the specific information you have already been given (on pages 1-4 above) in connection with your participation in a research study or project run by academic researchers at the University of Cambridge. The information below—which we are obliged to supply you with—applies to all studies and projects that we run. If there is any contradiction between this general information and the specific information you have already been given, the specific information takes precedence.

2. Who will process my personal information?

The information published here applies to the use of your personal information by the University of Cambridge, including its Departments, Institutes and Research Centres/Units.

You have already been told about the types of personal information we will use in connection with the specific research study or project you are participating in and (where applicable) its sources, any data sharing or international transfer arrangements, and any automated decision-making that affects you.

3. What is the purpose and legal basis of the processing?

In general terms, we use your personal information (including, where appropriate, sensitive personal information) to carry out academic research in the public interest.

Please note that your consent to use your personal information is separate from your ethical consent to participate in a particular research study (which we usually request for relevant types of research).

You are not legally or contractually obliged to supply us with your personal information for research purposes.

4. How can I access my personal information?

Various rights under data protection legislation, including the right to access personal information that is held about you, are qualified or do not apply when personal information is processed solely in a research or archival context. This is because fulfilling them might adversely affect the integrity of, and the public benefits arising from, the research study or project.

The full list of (qualified or inapplicable) rights is: the right to access the personal information that is held about you by the University, the right to ask us to correct any inaccurate personal information we hold about you, to delete personal information, or otherwise restrict our processing, or to object to processing (including the receipt of direct marketing) or to receive an electronic copy of the personal information you provided to us.

If you have any questions regarding your rights in this context, please use the contact details below.

5. How long is my information kept?

You have already been told about the long-term use (and, where applicable, re-use) and retention of your personal information in connection with the specific research study or project you are participating in.

6. Who can I contact?

If you have any questions about the particular research study you are participating in, please use any contact details you have already been supplied with.

If you have any general questions about how your personal information is used by the University, or wish to exercise any of your rights, please write to the Data Protection Officer, c/o Information Compliance Office, Registrar's Office, University of Cambridge, The Old Schools, Trinity Lane, Cambridge, CB2 1TN.

7. How do I complain?

If you are not happy with the way your information is being handled, or with the response received from us, you have the right to lodge a complaint with the Information Commissioner's Office at Wycliffe House, Water Lane, Wilmslow, SK9 5AF.

This text was last updated in May 2019.

Reply slip



UNIVERSITY OF CAMBRIDGE

Project:

Identity, desistance, and the experience of imprisonment

Please mark your response in the box

- ☐ I AM willing to take part
- ☐ I AM NOT willing to take part
- ☐ I want to ASK QUESTIONS before I decide

Full name _____

Signature _____

Number _____

Wing/location _____

Thank you for your time reading and replying. I appreciate it.

Please return to me (Ben Jarman) by hand, or send c/o [staff member], via the internal post

Interview appointment memo



UNIVERSITY OF
CAMBRIDGE

To:

Location:

From: Ben Jarman

Date:

Re: Research interview

Dear

Thanks for agreeing to participate in a research interview with me.

I've booked the interview as an appointment so that you won't lose any pay for whatever else you would have been doing at this time. The interview will take place as follows:

Date:

Time:

Location:

If you wear glasses, it might be useful to bring them with you (but it's not essential).

Other than this you don't need to bring anything – just yourself!

See you then,

Consent form



UNIVERSITY OF CAMBRIDGE

Project title: Ethical self-governance among men serving life sentences for murder

Researcher: Ben Jarman

Please **CIRCLE** the answers to indicate whether you **AGREE** with the following statements.

-
- | | |
|---|---|
| 1. I have read and understood the information sheet, and have had a chance to ask questions about the study. | ☐ Yes
☐ No |
| 2. I understand that I can choose not to answer any question, and that I can withdraw from the study at any time until 30 th June 2020. | ☐ Yes
☐ No |
| 3. I agree to take part in the study, which means being interviewed by the researcher. | ☐ Yes
☐ No |
| 4. I understand that the researcher is required to disclose to the prison any behaviour that is against prison rules and can be adjudicated against, any undisclosed illegal acts, and any behaviour that is potentially harmful to me (e.g. intention to self-harm or complete suicide) or others. | ☐ Yes
☐ No |
-

Please tick one box to answer **YES** or **NO** to the following statements.

5. I agree to the interview being recorded and understand that the recording will be destroyed after it has been transcribed.	☐ Yes ☐ No
6. I agree that the researcher can use quotes from our interviews and conversations, and I understand my identity will be disguised.	☐ Yes ☐ No
7. I agree that the researcher can read my prison file for details of my index offence, conviction history, prison disciplinary record, and course participation. I understand that this will only be done at the end of Ben's time in the prison.	☐ Yes ☐ No

Please add your name, the date, and signature.

Name of Participant:	Name of Researcher: BEN
Date:	JARMAN
Signature:	Date:
	Signature:
To be completed by the researcher:	
Personal identifier:	
Participant's research code:	

Participant demography sheet



UNIVERSITY OF
CAMBRIDGE

Project title: Ethical self-governance among men serving life sentences for murder

Researcher: Ben Jarman

About you and your sentence

Name and NOMS
number

Participant ID (to be
completed by the
researcher)

What is your gender?

What is your date of
birth?

What date were you
sentenced?

When does your tariff
expire?

Is this your first
prison sentence?
(if 'No', please tick how
many prison sentences
you have had before)

- ☐ Yes
- ☐ No
- ☐ 1
- ☐ 2-5
- ☐ 6-9
- ☐ 10 or more

How old were you
when you were first
convicted of any
crime?

_____ years old

When did you come
to to this particular
prison?

I consider myself	☐ Yes
guilty of the offence	☐ No
of which I was	
convicted	

About you and your life before prison

Ethnicity	Asian/Asian	☐ Indian
	British	☐ Pakistani
		☐ Bangladeshi
		☐ Chinese
		☐ Other
	Black/Black	☐ Caribbean
	British	☐ African
		☐ Other
	Mixed	☐ White and Black
		Caribbean
Religion		☐ White and Black African
		☐ White and Asian
	Other	☐ Other
		☐ Arab
	White	☐ Other
		☐ British
		☐ Irish
		☐ Gypsy or Irish Traveller
		☐ Other
	Not stated	☐ I prefer not to say
		☐ No religion
		☐ Christian
		☐ Buddhist
		☐ Hindu
		☐ Jewish
	☐ Muslim	
	☐ Other	

What is the highest level of education you completed before entering prison?

- ☐ No schooling completed
- ☐ Primary school
- ☐ Secondary school, no certificate
- ☐ GCSEs
- ☐ A levels
- ☐ Diploma
- ☐ Trade/technical/vocational cert.
- ☐ Bachelor's degree
- ☐ Master's degree
- ☐ Professional degree
- ☐ Doctoral degree

What is your marital status?

- ☐ Single, never married
- ☐ Married or cohabiting
- ☐ Widowed
- ☐ Divorced
- ☐ Separated
- ☐ Yes

Do you have children?
(if 'yes', please indicate what kind of custody you had of them before prison)

- ☐ No
 - ☐ Daily care
 - ☐ Shared custody
 - ☐ No custody
 - ☐ Adult children
-

Prison timelines

The second (prison history) interview commenced by asking participants to use an A3 sheet marked with a set of ‘axes’, to give a narrative overview of the sentence to date. This was used because the interviews would be participants who had served vastly different periods of time in prison, meaning that a purely narrative interview would not be a good use of time; but I did not want the interview to be purely thematic, and instead sought some means of giving myself an overview of the ‘story’ of the sentence, and to sensitise myself to issues that might be interesting to probe further, for example periods in notoriously bad prisons, or in intensive risk-reducing interventions such as high-intensity therapeutic units.

The template (Figure 1), as well as soliciting a chronological account of participants’ prison trajectories, also asked them to link the experiences they were describing to descriptions of whether they were ‘feeling good’ (marked by drawing a line higher up the page), or ‘feeling bad’ (marked lower down the page). In introducing the exercise at the start of the interview I always drew three examples on the back of the paper to demonstrate the idea, narrating hypothetical examples based on syntheses of other participants’ sentence narratives.

The timeline was used very differently by different prisoners. In some cases, it was completed in a matter of seconds, and the idea of marking times that ‘felt bad’ or ‘felt good’ was rejected or ignored, as though ridiculous. Figure 2 shows one such example; here, the participant said that all prison experiences were bad experiences, and simply listed (verbally and in writing) the prisons where he had served his time. In cases such as these, it was as though the participant was resisting the idea that prison time could be meaningful at all, although not all of these ‘minimalist’ timelines described universally negative experiences: a couple of men, including one who was in the Late stage of the sentence, completed the page similarly quickly and said that they had found the sentence consistently easy, interesting, or even “enjoyable”.

In most cases, however, the participants took to the exercise readily, immediately grasping the notion that one’s experiences

Figure 1: The prison timeline template

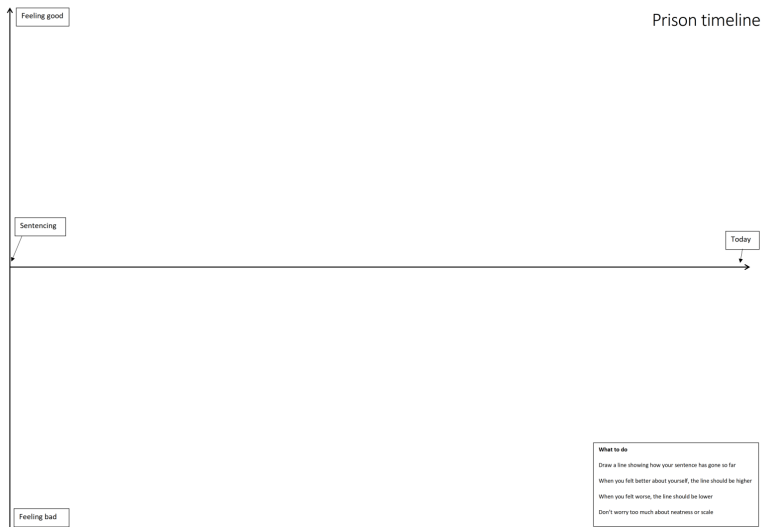
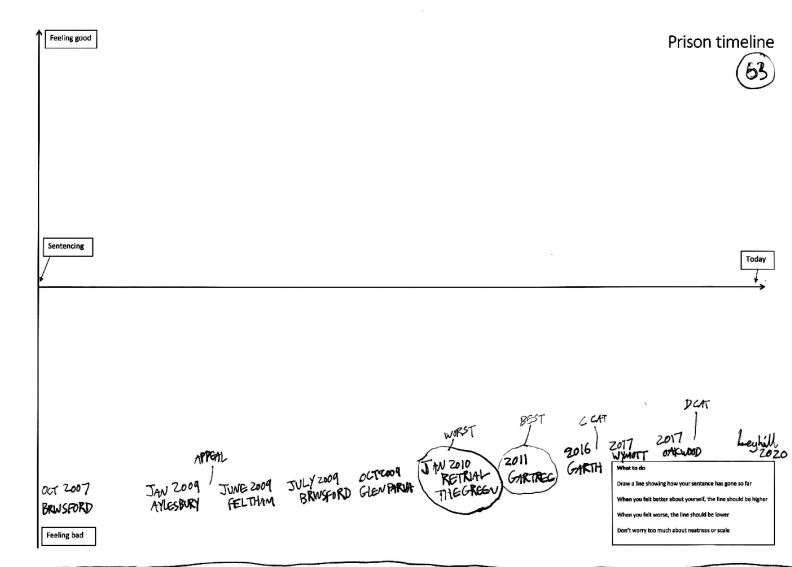
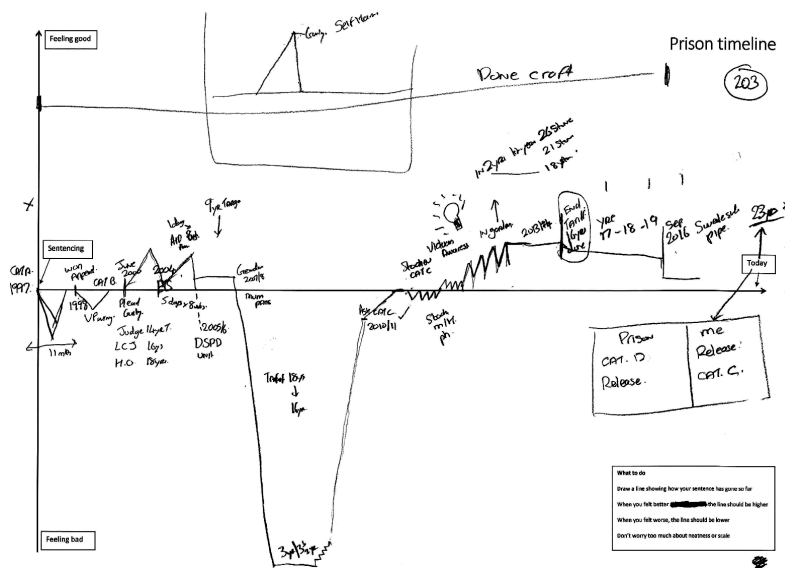


Figure 2: A prison timeline, completed minimally



fluctuated in prison, and could be narrated to imbue them with biographical meaning. Figure 3 is the most ‘maximal’ of these; the author, a post-tariff man in his fifties at Swaleside who was the first man in the entire PhD who I did the second interview with, spent two and a half hours drawing the line a centimetre or so at a time, and then annotating and explaining it in depth, interspersed with my questions. By the end of this we had barely any time left for the interview schedule, though we had also covered nearly all the topics I had been intending to ask about.

Figure 3: A prison timeline, completed maximally



The exercise demonstrated something useful to me, which was that some prisoners were far readier to narrate prison time as meaningful, whereas others were specifically resistant to doing so. Tellingly, nearly all the men who did not want to describe meaningful ‘ups and downs’ were also those who maintained innocence to some degree. This recalls the finding of Grounds (2005) that imprisonment experienced as wrongful imposes a highly consequential rupture in biographical meaning.

Interview schedule



Checklist of formalities

Check participant has had the information sheet

Ask if they have any questions or if there was anything they didn't understand

Underline the issue of confidentiality and explain what I have to disclose:

- ☐ Anything that's against the prison rules
- ☐ Any undisclosed offences
- ☐ Any information that makes me think they or someone else is at risk of harm

Ask whether they are happy:

- ☐ To go ahead
- ☐ For the interview to be recorded
- ☐ For me to view their prison record after the research has been finished – this won't happen till after I have done all the interviews

If so, get them to complete and sign the consent form

Explain that I have to enter something in NOMIS to say the interview has taken place but won't say what was said

Begin the interview

Life history segment

Aims of this section:

- a way into the interview
- a way to build rapport
- trying to establish a picture of the background to the offence
- probing as to ethical life and worldview before prison

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
1 OK, so later in the interview I'm going to ask you about how you came to be in prison, but I want to make sure that I put everything in its proper context, make sure I understand where you're coming from. So could you start by telling me about your early life – your family, where you grew up, that kind of thing?	• As much detail as you're comfortable with • Just talk freely – I'll ask follow-up questions if there's something I want to explore further • We've got a lot of time, so you can take as long as you like and tell me what you like • What's your earliest memory? • What are your memories of school? • Who were the key figures in your early life, for better or worse?	• This section of the interview deliberately open-ended. • Leave space for things to be quite digressive and conversational, and probe further in areas of thematic interest. • Be prepared to ask more questions. • Think about where the story starts – what about before and after that? • Things to focus on and ask more about: – Key figures – Emotionally intense or formative experiences – Role models and others, either admired or scorned – Experiences of institutional life e.g. school, care, youth

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
2 When you were a young man, what did a 'good life' look like to you then?	• What kind of life were you aiming for, what kind of things did you want out of life? • What sources of status and esteem did you have at the time? What kinds of things made you feel respected • What did respect mean? • What kinds of achievements had you made? • What mattered to you most at that time?	• How were they making a living? – How did they get into that? – Did they enjoy that? – Did they see themselves as good at it? – What other sources of enjoyment were there? • What was family life like? – Did they have a partner(s), child(ren)? – Were you living together with them at the time? – What was that like?

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
3 Did you have any kind of involvement in crime or with the criminal justice system before the events that led to you being in prison now?	• IMPORTANT: – If yes: did you think you were a bad person for doing so? – If no: what did you think of people who did? • Both: Did you think some offences were worse than others? Which ones? • What did you think of the police, the law, the state, and so on?	• Clues to evaluations of crime and ‘criminals’ before prison

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
4 If a stranger were to ask you to describe yourself at the time of your index offence, what would you say?	• Were you happy, sad? • Well/unwell? • In what ways were you a good person/a bad person? • What did you know about/not know about? Understand/not understand? • Were you flawed in any way? Were those flaws all there was to you?	• What kind of self-evaluation is apparent? • If the evaluation of the pre-prison self is entirely negative, probe for whether this was total

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
5 Do you mind me asking about the events that led to you being in prison now? I know this might be a difficult topic, so thank you for being willing to talk about it. Just start where you think you need to start. I'm interested in how you see things, so just focus on describing how things happened, and start where you think you need to start. If I have any questions, or there's something I don't understand, I'll ask – but you don't have to	• Who was the victim (to you)? • What role did they play in the events leading up to the offence? • How did the arrest/prosecution take place? • How did lawyers/family/friends/associates take it? • Did you think beforehand that you were capable of taking a life?	• Aspects of the narrative that imply moral self-evaluation

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
6 What do you remember about the trial?	• How did you plead? • Can you remember what the judge said about you in sentencing? – How did that feel? – Were you able to speak or say anything for yourself? – Would it have made any difference if you had? • Did it feel as if having a murder conviction said anything about you? What? • What tariff did they give you? • How old were you then?	

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
7 Looking back, what are you proud of from your life before prison?	• What kinds of things made you feel you were worth something at the time? – In your own eyes? – In others' eyes? • Was there anyone who looked up to you or saw you as a role model? – Who were they to you? – Why did they look up to you? – How did that feel? – Were they right to?	• Where did self-esteem and others' esteem come from? • Who were the ethically important people in their lives? • What ideas about virtue and ethical conduct did they represent?

Warm-down questions

Question
7a What made you decide to come along here for this interview today?
7b Is there anything you want to say anything else about?
7c What's it been like talking about all of this today? Is there anything you've found it difficult to talk about?

7d Is there anyone you would like me to tell so you can get some support with that?

Prison history segment

This section of the interview aims to gather data towards the research questions, as follows:

- How are men's personal ethics affected by being imprisoned for murder?
 - How do they respond to moral messages they receive, via conviction and punishment, about the offence of murder and their own conduct?
 - What 'ground projects' and ethical priorities do they adopt as the sentence proceeds?
 - How do their personal ethical priorities interact with the demand to self-govern and 'reduce risk'?
 - What are their experiences of hope and meaning, and how do these alter the experience of punishment?

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
8 What have been the key moments in the sentence so far? (use a timeline template to structure the response to this question)	• Use this template to draw a graph and talk me through things, as they look from where you are now • Don't worry about making it super-neat or super-accurate – the point of it is the talk that comes out of it • Ask follow-up questions: – Where are the peaks and troughs in the sentence? – What has been the key moments? – Who have	• Where have they done their time? • What does the current prison represent (as an environment) as compared to others? • How far has personal progress gone hand in hand with official progression? • What's been meaningful and meaningless? • What concerns structure the interviewee's framing of 'key moments'?

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
9 What have been the moments when you've felt like you were making progress?	• What kind of progress was that? • Was that personal progress or official progress?	• Are they the same thing? • Have they ever been the same thing?
10 What's your main daytime activity at the moment?	• What kind of work are you involved in? – Edu- ca- tion? - Of- fend- ing beha- viour pro- grammes? • Does this activity connect at all with who you are or who you want to be?	• Opportunities to ask what certain activities and programmes feel like

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
11 Are you involved in any religious or spiritual activities in the prison?	• Would you have expected that at the start of this sentence? • Does this activity connect at all with who you are or who you want to be?	• Opportunities to ask what certain activities and programmes feel like
12 When you're not at work/education/[whatever], how do you pass your time?	• What sources of pleasure and enjoyment do you have, if that's not an odd question?	
13 Have you been in trouble with the prison authorities since you were sentenced?	• Any nickings? • What were they about? • Do you get into trouble with the authorities now?	• References to segregation, extended periods of reflection – what role in the change process?

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
14 Looking back to the start of the sentence, did you expect any good to come of it?	• If so, what was it? • If not, why not? • Did you want to change at that time? – If so, why? • If not, why not? Did you think that prison would change you in some way you didn't want?	• Is change seen as a legitimate goal of imprisonment? – If so, probe how total a change is hoped for/expected – If not, probe what the interviewee hopes will stay the same
15 You talked last time about what the judge said at your trial. Did those words spoken in the sentencing hearing matter to you at the time?	• If so, why? • If not, why not? • What about now?	• What has changed over time?

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
16 How comfortable do you feel now about describing yourself as ‘a good person’ before you came to prison?	• Why? • Where does the comfort/discomfort come from?	• What kinds of concerns structure the comfort/discomfort?
17 In difficult moments, has it been possible to have honest conversations with other people about what you’re finding difficult?	• If so, why? • If not, why not? • Are conversations like this the exception or the rule?	
18 Have you been able to have honest conversations to help you work through your feelings about your offence?	• Who with? • Are there others you definitely wouldn’t have this kind of conversation with?	

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
19 Has there ever been a time when someone said or did something that made you feel bad about your offence?	• What happened? • Who was the person? • Is that how you normally feel? • Why did what this person said matter in the way that it did?	• Distinctions between regret and remorse • Discussions of different moral groupings or hierarchies among different subdivisions of prisoners

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
20 Do people in here make moral judgments about the kind of offence you were convicted of?	• For example, do you get the impression that they see it as worse or better than others' offences? • Who makes them? • What were the judgments? • Was this judgment directly about you, or was said in general but you felt like it applied to you? • Did that affect you?	

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
21 Are those kinds of beliefs consistent among different people you encounter in prison?	• For example, do prison officers and prisoners think the same? • What about prison managers? • What about psychologists and programmes staff? • What about chaplains, volunteers, visitors, and so on? • What about outside the prison? • Do these judgements affect you?	• How generalised are feelings of stigma?

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
22 What's the most meaningful thing in your life now, as far as you are concerned?	• Do you have anything, or can you do anything, at the moment, which you'd find it hard to carry on if you couldn't do or didn't have that thing? • Or – what makes life worth living? – Can you say more about what this thing means to you? – How does this affect the way you be- 372 have and the things you do in here?	• Be alert to clues about ground projects/ultimate concerns – paraphrase and attempt to describe what they are

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
23 What does it mean to you right now to be a good person or to live a good life?	• (If answer is focused on the future after prison) – are there things that you are doing right now, in prison, that you do because you connect them with that vision of a good life? – Has that changed during the sentence, then?	• Alertness again to clues re: ultimate concerns

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
24 Would you say you have changed since you've been in prison?	• Have these changes been something deliberate, or have they just happened? • Are you working on yourself? Is the prison working on you? Or both?	
25 Do you have any regular practices, routines or habits that are important to you?	• What are they? • Why do you do them? • Do you get anything worthwhile from them? • Have you always done them? • When and why did you start doing them?	• What are they working on (e.g. the soul, the memory, the community, the family, the body?)

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
26 As far as you know, do you have a sentence plan at the moment? What's on it?	• Have they given you a risk level or talked about you as a risk? • How accurate does that feel? • Does that represent everything the prison wants from you? • What do you think the prison wants most from you? • Does it feel as if the prison's priorities are the same as yours?	• Try to tease apart issues of provision vs. issues of priority – i.e. a distinction between things that broadly both sides agree on but which the respondent hasn't been able to access, and things that the respondent sees as important but the prison doesn't • Try also to ask where expectations are coming from – are they external or internal, moral or ethical, instrumental or normative?

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
27 You've had some experience of [making progress]/[being recategorised]. What was it like, working towards that point?	• Did that ever create dilemmas or difficulties for you? • Can you think of one of these dilemmas, and try and take me through what it was about and why it was difficult?	
28 Have you done any offending behaviour courses?	• What were they like? • Did they meet your needs, the prison's needs, neither or both? • What assumptions did the course make about the kind of person you are?	

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
29 Have you ever had any doubts about courses?	• What were they? • What was doubtful? • Did these doubts affect what you got from the course? • What about how you felt on the course?	

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
30 How do you think about the time you've got left in prison now?	- Do you feel as if you are preparing for the kind of life you want in the future? – [at Swaleside] Does being X years away from the tariff date affect the kinds of things you're thinking about? – [at Ley-hill] does being in an open prison, quite close to release, affect the kind of things you're think-	

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
31 Where do you see yourself a year after the end of your tariff?	• What will your life look like? • Is that what you want? • What kind of life do you envisage? • Does being in here help you prepare for that? – [at Swaleside] is it something you think about? – [at Leyhill] have your ideas about that changed as the sentence has gone on?	

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
32 Have there been people in prison who you have looked up to or admired in any way?	• Who are they? • Why do you identify them with something good? • Would you have recognised that as a good thing at the start of the sentence? • Is it normal here to find people that you look up to like this? • What about outside – are there people you admire there?	

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
33 What about you - as far as you know, what characteristics do others in here admire or look up to in you?	• What happened? • Who was the other person? – Other prisoners? – Officers? • Psychologists? – ‘Outside’ personnel e.g. probation? • Why did they identify you with something good? • Would they have recognised the same thing about you at the start of your sentence?	

Question	Prompt/possible follow-on questions	Be alert to/probe further for...
34 Would you say that you have gained anything that matters to you during your time in prison?	• What is it? • Why is it meaningful? • Would you have expected this at the outset? • What have you lost and gained?	

Warm-down questions

Question
35a What's it been like talking about everything we have talked about today? Did you find anything difficult to talk about?
35b Is there anyone you would like me to tell so you can get some support with that?
35c Thinking about the things we've talked about, are there any questions I should be asking, but I haven't?
35d Is there anything you want to say anything else about?

After the interview

- ☐ Get them to fill out the demographic info form!

Further information on the sample

This Appendix provides further information on the process of sampling, and on the eventual sample itself.

Variations on ‘innocence’ in sampling

[Chapter 3](#) described how one of the original sampling criteria was dropped, because it proved difficult to identify prisoners who were maintaining innocence. This Appendix describes how that became clear, and sets out some variations in how the term ‘innocence’ was understood by me and a prison psychologist working at Swaleside.

While I was in the early stages of constructing the sample, and still intending to try and apply the original eligibility criteria described in Chapter , a psychologist at Swaleside kindly offered to help me gauge how feasible it would be to use all six criteria, by generating two random dummy samples of twenty-six men from the 191 there who met criteria 1, 5 and 6, and then reviewing the OASys assessments for these men to attempt a classification. This felt unduly complicated, but it would have been churlish to decline the offer so early in the fieldwork. In the event, the exercise was unexpectedly useful. It clarified that trying to exclude potential participants who were ‘maintaining innocence’ or ‘not taking responsibility’ was futile, since these were highly nuanced issues, in ways the risk assessment documents were largely indifferent to.

This became clear through differences of interpretation between me and the psychologist, as we worked through the dummy samples. Table 1 presents a rough-and-ready inductive typology of what (to me) were different attitudes to the index offence,

all of which she saw as communicating a claim of ‘innocence’. By her assessment, twelve and seventeen members respectively of each dummy sample of twenty-six fell under this description. By mine, only three or four people in each group fitted the ‘Denial’ description in Table 1, the only stance to which I would have intuitively applied the label. Moreover, in the OASys records, prisoners’ reported views often differed markedly from the factual evidence the records described.¹

Table 1: Typology of styles of ‘innocence’ evident in the dummy sampling exercise

De- scrip- tion	Typical narratives about the offence
Denial	• I wasn’t there • It was a case of mistaken identity • I won’t talk about it with anyone • The police framed me • The victim isn’t actually dead
Deflec- tion	• I was there and I was involved, but my co-defendant(s)/others did it • I was there and there was a fight but they were alive when I left them and I don’t know what happened
Rein- ter- preta- tion	• I did it, but it wasn’t murder • It wasn’t as bad as they said
Disso- ciation	• I was so intoxicated (or so psychiatrically unwell) that I might have done it, but I can’t remember it or don’t recognise these as my actions

¹For example, one dummy sample member who maintained a strong claim of innocence admitted being at the scene, chasing and threatening the victim with a knife (the notes said this had been caught on CCTV), but claimed that he had broken off the pursuit; someone else must have stabbed the victim. Another in the same category maintained that the victim wasn’t dead, though couldn’t explain (so said the notes) how it came to be that a body had been found and identified by family members.

In short, it became clear that a strict approach to the original sample eligibility criteria was unworkable. First, there was no way of confidently estimating from prison records whether someone ‘maintained innocence’; partly because, second, it seemed possible that some maintained this stance habitually, for the benefit of the prison, while possibly making different claims to other audiences. Third, neither ‘innocence’ nor ‘responsibility’ were obviously meaningful distinctions by which to divide the sample. To my mind, of the attitudes described in Table 1, ‘deflection’, ‘reinterpretation’ and ‘dissociation’ all conveyed meaningful information about a response to censure, and only ‘denial’ suggested a flat denial of *any* ‘moral responsibility’, still less a claim that the speaker was ‘innocent’.

The sample's representativeness of the eligible populations at both prisons

The sample was, broadly, representative of the populations of the two fieldwork prisons. This can be seen in Table 2, which summarises how the final sample and the eligible populations at the two sites compared on their sentence characteristics. The point to note here is that the samples at both prisons came close to the populations for the age and sentence characteristics shown.

Table 2: Sentence characteristics of the sample and population at both sites. Source: P-NOMIS data supplied by each prison

		Age		Tariff (years)	Years served	Years served ÷ tariff (as %)
Statistic		when sampled	when sen- tenced			
Swales	Min- imum	Sample 22	16	12	2	7%
		Pop- ula- tion 21	16	7	2	6%
	Aver- age	Sample 43.8	33.4	20.0	9.8	55%
		Pop- (12.9)	(12.8)	(5.2)	(6.1)	(41%)
	(s.d.)	ula- 40.2	31.9	20.0	7.8	43%
		tion (12.2)	(11.6)	(5.3)	(4.8)	(33%)
Ley- hill	Max- imum	Sample 77	63	30	27	180%
		Pop- 77	63	35	27	180%
	Min- imum	Sample 31	17	8	7	66%
		Pop- 31	17	8	7	67%

Statistic		Age when sampled	Age when sen- tenced	Tariff (years)	Years served	Years served ÷ tariff (as %)
Average (s.d.)	Sample Pop- ulation	50.7 (14.1) 54.7 (12.4)	32.7 (14.7) 32.6 (12.9)	14.3 (3.2) 14.5 (3.2)	17.5 (8.2) 21.7 (9.0)	125% (59%) 153% (72%)
Maximum	Sample Pop- ulation	82 91	74 82	20 21	35 44	250% 420%

Table 3, meanwhile, compares the per-prison samples and the populations of the two prisons in terms of ethnicity and age. The point to note here is that the sample at Swaleside was broadly representative of the population in terms of its ethnic composition. At Leyhill, this was not true because of the deliberate oversampling of non-white prisoners described in Chapter 3.

Table 3: Descriptive statistics showing ethnicity of the samples and eligible populations at both sites. Source: P-NOMIS data supplied by each prison.

Ethnicity	Swaleside		Leyhill	
	sample	popula- tion	sample	popula- tion
Asian or Asian British	4 (13%)	17 (9%)	—	—
Black or Black British	9 (29%)	64 (33%)	3 (17%)	5 (8%)
Mixed	1 (3%)	6 (3%)	—	—
Chinese or other	—	1 (1%)	—	—
White	17 (55%)	102 (53%)	14 (78%)	60 (91%)

Ethnicity	Swaleside		Leyhill	
	sample	popula- tion	sample	popula- tion
Unknown or not stated	—	2 (1%)	1 (6%)	1 (2%)
All	30 (100%)	191 (100%)	18 (100%)	66 (100%)

Both tables show that the sample was broadly representative of those eligible to participate at each site.

Further information on documents and risk assessments used in the research

This Appendix provides further information on the documentary evidence reviewed in this research, with details from policy documents and other literature on the nature of the documents, their typical contents, and the purposes for which they are produced.

Risk assessment methodologies

[Chapter 6](#) describes the sample in terms of their assessed risk, differentiating among assessments made using varied methodologies. This section sets out key contextual information about these. All page references are to HMPPS's Public Protection Manual ([2016](#)) unless otherwise indicated.

The risk assessment methodologies used in the overall Offender Assessment System (OASys), which are described and noted in [Chapter 6](#), fall into two main groups: those using actuarial methodologies, which produce a numerical prediction, and those using structured professional judgement, which produce a qualitative assessment of the level of risk involved. There are differences within these groups, which are set out more thoroughly in [Table 1](#).

The wider OASys contains a larger range of assessments, and those described in [Table 1](#) are not comprehensive: only those methodologies covered by the documents I reviewed, and which are reported on in [Chapter 6](#), are covered. Risk assessments for sexual violence, though relevant for some of the men that I interviewed, and though included in the overall OASys, were

not included, nor summarised in the documents made available to me. It was only noted whether participants had such an assessment.

Table 1: Overview of risk assessment methodologies summarised in RC1, EBM, and ROTL risk assessment documents reviewed for this research

Method- ology	Assess- ment	Further details
Actuar- ial ¹	OGRS3 (Offender Group Re- conviction Score, version 3)	• Based only on static risk factors • Estimates separate numerical probabilities of reconviction within 12 and 24 months • ‘Low’, ‘medium’ and ‘high’ bandings subdivide population scores
	OGP (OASys General reoffending Predictor)	• Combines static factors from OGRS3 with dynamic factors relating to individuals under assessment • Estimates separate numerical probabilities of reconviction for non-violent offences within 12 and 24 months • ‘Low’, ‘medium’ and ‘high’ bandings subdivide population scores
	OVP (OASys Violence Predictor)	• Combines static factors from OGRS3 with dynamic factors relating to individuals under assessment • Estimates separate numerical probabilities of reconviction for violent (but not sexual) offences within 12 and 24 months • ‘Low’, ‘medium’ and ‘high’ bandings subdivide population scores

¹See Howard (2011) for further details of risk bandings.

Method- ology	Assess- ment	Further details
Struc- tured Profes- sional Judge- ment	RoSH (Risk of Serious Harm)	• Estimates the risk that subject will seriously harm him/herself or others • The risk must be “life-threatening and/or traumatic” such that “recovery, whether physical or psychological, can be expected to be difficult or impossible” (National Offender Management Service 2016 p. 1) • Separate scores allocated for harm to various parties: – In custody: * Self² * Children³ * Known adults⁴ * The public⁵ * Staff⁶ * Prisoners – In the community: * Self⁷ * Children⁸ * Known adults⁹ * The public¹⁰ * Staff¹¹ • Risk levels allocated by using actuarial scores as a referent and starting point, with the assessor then reviewing files and documents and judging the impact of evidence about dynamic risk factors found therein. • Risk bandings to be interpreted as follows [all p. 2]: – Low: “current evidence does not indicate a likelihood of causing serious harm” 391 Medium: “there are identifiable indicators of serious harm” which is “unlikely [without] a change in circumstances” – High: “there are identifiable indicators of serious harm, the potential

Summary of documents reviewed

The selection of documents reviewed in the OMUs at both prisons were not the same, and in fact overlapped only in part. This section offers brief further context on these documents, the purposes for which they are produced, and the information they contain. Not every document was available for every prisoner who consented to my viewing his records.

RC1 forms

The RC1 form summarises the decision-making process and basis for regular individual security categorisation reviews. Categorisation reviews for determinately sentenced prisoners “must” take place every 12 months, until three years remain to the earliest possible date of release, at which point they shift to being completed every six months ([Ministry of Justice and HM Prison & Probation Service 2021 para. 8.5](#)). For lifers, the timescales are not specified, but recategorisation is meant to take place alongside the sentence planning process, except if the prisoner “needs to be able access [sic] a progression opportunity [...] at

²Not recorded in documents I reviewed and not represented in the research.

³Either specific children, or children in general (p. 2).

⁴Specific persons with an existing connection to the subject of the assessment (e.g. victims, former partners) (p. 2).

⁵To be interpreted “either generally or a specific group such as the elderly, vulnerable adults [...], women or an ethnic minority group” (p. 2).

⁶Any person working with the subject in a professional capacity (p. 2).

⁷Not recorded in documents I reviewed and not represented in the research.

⁸Either specific children, or children in general (p. 2).

⁹Specific persons with an existing connection to the subject of the assessment (e.g. victims, former partners) (p. 2).

¹⁰That is, the public “either generally or a specific group such as the elderly, vulnerable adults [...], women or an ethnic minority group” (p. 2). Unlike the ‘known adult’ assessment, the ‘public’ assessment represents the judgement that in *any circumstances the assessor can imagine*, the prisoner might in future harm *either* a person in a specific category, or simply *any* person. In ‘known adult’ assessments, the assessor must fit the assessment to a defined set of actual relationships. They can, in principle, inquire into the nature of these relationships, and hence are constrained by known facts. In the ‘public’ assessment, they are constrained only by what can plausibly be imagined.

¹¹Any person working with the subject in a professional capacity (p. 2).

a prison of a lower category”, in which case the review should be expedited ([Ministry of Justice and HM Prison & Probation Service 2021 para. 8.6](#)).

The vast majority of those I reviewed at Swaleside had been completed during the last 12 months, with only a couple dating from as much as two years beforehand; I was told by an OMU staff member that they were normally done annually. This was something of a puzzle, given the requirement for them to be done alongside sentence planning, and the plainness with which so many men at Swaleside said they had not had a sentence plan or an OASys done for many years. I formed the impression that the RCIs were handled mainly as a formality and a paper exercise, and this accorded with what I was told by prisoners, as well as with the fact that only two examples contained any comments or contributions from the subject: one in which the prisoner had responded himself, and one from a highly litigious former category-A prisoner at Swaleside whose solicitor had contributed on his behalf. It is an explicit expectation that prisoners “must” be provided opportunities to participate in the sentence planning process ([Ministry of Justice and HM Prison & Probation Service 2018 para. 4.38](#)); whether or not they were provided such opportunities, only one man from thirty in the sample took it.

The forms themselves were recommended to me by OMU staff at Swaleside as the best single, recent, brief, but comprehensive overview of how the prison understood the individual under review. This was a fair description. Each form followed a standard format, containing:

- an overview of key sentence information
- categorisation history including the recommendation for the current review period
- risk data including most recent OASys assessments, RoSH levels, and any escape or abscond histories
- an offence narrative excerpted with varying degrees of abridgement from the most recent OASys, which usually also used extracts from the judge’s sentencing remarks and the MALRAP file summarising police records ([Ministry of Justice 2019](#)) to comment on and often contradict the subject’s account of the offence

- a summary of risk-reducing work prescribed by the sentence plan
- a summary of case notes from the review period, excerpting positive and negative entries by staff about the subject
- IEP levels during the review period
- Adjudications during the review period
- Contributions from the key worker and the prisoner (both almost always empty)
- Contributions from the Security department
- The outcome of the review

Enhanced Behaviour Monitoring assessments

Enhanced Behaviour Monitoring assessments (EBMs) are made, on reception to open prison, for all high-risk prisoners (and all lifers, regardless of their assessed risk). They are also completed for all prisoners in closed men's prisons who are part of a Progression Regime ([HM Prison & Probation Service 2019](#), paras. 1-2). As such, EBMs would have been produced for men on Swaleside's PIPE unit, but not for the mains prisoners there; I was not offered access to them at Swaleside, and hence the only ones I accessed for the present sample were at Leyhill, where the OMU recommended them to me for similar reasons as the RC1 was recommended at Swaleside.

The EBM assessment is not a risk assessment, but "a means of collating all known risk related information about an individual" ([HM Prison & Probation Service 2019 para. 4.3](#)). Conducted initially from written prison records by a prison psychologist, and mandatorily completed to a tight timescale (4 weeks) from the prisoner's arrival in open conditions, the EBM 'formulates' the individual's risk, lists factors of concern, and defines behaviours prison staff should interpret as indicating elevated and reduced risk. Based on the EBM, some prisoners are subjected to additional surveillance and monitoring and further review on an at least monthly basis. For others, the initial assessment document simply remains on file. Regardless of how it is used, the EBM remains a comprehensive overview of past assessment documents, and is expected to play a part in (but not to stand in for) subsequent risk assessments, such as those relating to ROTL.

The content of these documents was in many ways like that of the RC1 forms, in that they gave a similar overview of sentence information, OASys data, risk-reduction work prescribed and completed, and overviews of current custodial behaviour. However, they differed in offering more commentary, and also making an enormously more nuanced, detailed, and—in terms of behaviours—descriptive and ‘net-widening’ formulation of risk. This was absent from the RC1s.

The general impression I formed of the EBM assessments was that they represented a sharp and striking ‘tightening’ of penal supervision, that they were probably best thought of as a reflection of the changing means employed to manage risk after the move from closed conditions, and that (from prisoners’ point of view) they might often seem to dash hopes and expectations for a ‘loosening’ of controls that might have built up earlier stretches of the sentence. Even so, some participants clearly found the EBM process, and the regular review meetings and feedback loops it resulted in, very helpful—saying it was the first time they had seen their risk so clearly and the conduct expected of them so clearly described. But lengthy lists of risk factors, including some which were very vague, left scope for broad categories of behaviour to be labelled ‘risky’.

ROTL risk board records

Life-sentenced and other indeterminately sentenced prisoners are eligible only for Restricted releases on temporary licence (ROTLs), for which the process of risk assessment is more specific and more demanding than for Standard ROTLs ([Ministry of Justice and HM Prison & Probation Service 2022](#)). The risk board documents shared with me by Leyhill’s OMU recorded the decision made by a ROTL board, consisting of the subject’s offender supervisor and a senior manager. Compiled through a lengthy process in which offender managers, probation victim liaison staff, victims, police, and immigration enforcement authorities were all required to be consulted, the board then considered risk assessments written by the Offender Supervisor, considering each of the types of ROTL for which permission was being requested, and made recommendations for a decision

and any licence conditions required. The final decision, in all cases affecting lifers, would be made by the prison governor or his/her deputy.

The contents of the risk board documents were, again, similar in the underlying basics to the other assessments: sentence details, risk data, OASys records including an offence narrative, details of past offending, gists of security intelligence, and risk assessments. The latter were, like the EBM assessment, more detailed than anything in the RC1s, but not because they described in depth what might be the indicators of increased risk; in this case, they were more informative about the prisoner's release plans and circumstances, family relationships, and similar. The Board's recommendations, and the proposed licence conditions, were a good indicator of the trouble (or otherwise) that the prison expected to see if releases went wrong.

Police National Computer printouts

The Police National Computer is a database of criminal records managed by the Home Office, and containing entries for approximately thirteen million people as of 2021.¹² Printouts supplied to me by the OMUs at both prisons listed past convictions and out-of-court measures for each participant, first summarised by conviction type, and then listing all past convictions, cautions, etc. by date, number, and the court or police force involved. The printouts also gave details of any aliases or other names by which the subject had been known.

Judge's sentencing remarks

The judge's sentencing remarks were the final documents consulted. They were also the hardest to obtain: at Swaleside, I was told by the OMU manager that they were not routinely held by the prison and that they had to be requested from the courts, but by one of the Psychology staff that they were usually available in the paper 'warrant file', which (as I discovered) contained all documents relating to the prison's legal

¹²HC Deb 18 January 2021, vol 687 col 621.

authority to hold prisoners in custody. The OMU allowed me to consult these files on the shelves; they were often hard to find and I discovered a number of cases where prisoners' documents had been mixed up or placed in the wrong file, but I was able to find complete sentencing remarks in about three-quarters of cases, versions with pages missing in one or two, and an alternative document giving similar information.¹³ Sentencing remarks were often also quoted, usually in highly compressed and selective form, in the OASys assessments.

I found them fascinating documents to read, in part because they were so individual, so different from other documents, so expressive, and so clearly shaped by the writing style of the sentencing judge. In all these features, they stood out from the more administrative and consistent documents produced by prisons and probation services. They varied considerably in content and length, and it was evident that their nature changed very substantially over time. Those from before 2003 were highly condemnatory, used moralistic language, and were usually also very short: one transcript ran to exactly 129 words.

Those from after 2003 were enormously more detailed and much longer—sometimes ten or a dozen pages, and sometimes more. They varied greatly in style and content. Most narrated the offence in some detail and then assigned the sentence, but some began by setting the sentence and then referring to features of the case by turn, and without sequence. Some were matter-of-fact, others laid censure on thickly; some speculated into the lacunae left by known facts, filling in details such as motive probabilistically and from imagination, while others noted aspects of the case which might never be known. While it was usually clear what was being censured, some documents were confusing to read and no doubt more confusing to have listened to.

¹³For example, the sentencing judge's recommendations to the Lord Chief Justice, or in some other cases, a Court of Appeal resentencing judgement which summarised the original court's censure before adding its own glosses.